

SOLICITATION, OFFER AND AWARD				1. THIS CONTRACT IS A RATED ORDER UNDER DPAS (15 CFR 700)		RATING DO-A7		PAGE 1 OF 181 PAGES			
2. CONTRACT NO.		3. SOLICITATION NO. N0002425R6234		4. TYPE OF SOLICITATION [] SEALED BID (IFB) [X] NEGOTIATED (RFP)		5. DATE ISSUED 25 Feb 2025		6. REQUISITION/PURCHASE NO.			
7. ISSUED BY NAVAL SEA SYSTEMS COMMAND 1333 ISAAC HULL AVE SE WASHINGTON NAVY YARD DC 20376-2030 CODE N00024 TEL: FAX:				8. ADDRESS OFFER TO (If other than Item 7) See Item 7 CODE TEL: FAX:							
NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid" and "bidder".											
SOLICITATION											
9. Sealed offers in original and <u>1</u> copies for furnishing the supplies or services in the Schedule will be received at the place specified in Item 8, or if handcarried, in the depository located in <u>PIEE (Solicitation Module)</u> until <u>04:00 PM</u> local time <u>16 May 2025</u> (Hour) (Date)											
CAUTION - LATE Submissions, Modifications, and Withdrawals: See Section L, Provision No. 52.214-7 or 52.215-1. All offers are subject to all terms and conditions contained in this solicitation.											
10. FOR INFORMATION CALL:		A. NAME PATRICK DOOLEY		B. TELEPHONE (Include area code) (NO COLLECT CALLS) (202) 781-2332			C. E-MAIL ADDRESS patrick.dooley3.civ@us.navy.mil				
11. TABLE OF CONTENTS											
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OFFER (Must be fully completed by offeror)											
NOTE: Item 12 does not apply if the solicitation includes the provisions at 52.214-16, Minimum Bid Acceptance Period.											
12. In compliance with the above, the undersigned agrees, if this offer is accepted within _____ calendar days (60 calendar days unless a different period is inserted by the offeror) from the date for receipt of offers specified above, to furnish any or all items upon which prices are offered at the price set opposite each item, delivered at the designated point(s), within the time specified in the schedule.											
13. DISCOUNT FOR PROMPT PAYMENT (See Section I, Clause No. 52.232-8)											
14. ACKNOWLEDGMENT OF AMENDMENTS (The offeror acknowledges receipt of amendments to the SOLICITATION for offerors and related documents numbered and dated):				AMENDMENT NO.		DATE		AMENDMENT NO.		DATE	
15A. NAME AND ADDRESS OF OFFEROR		CODE		FACILITY		16. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)					
15B. TELEPHONE NO (Include area code)		15C. CHECK IF REMITTANCE ADDRESS IS DIFFERENT FROM ABOVE - ENTER SUCH ADDRESS IN SCHEDULE. ☐				17. SIGNATURE		18. OFFER DATE			
AWARD (To be completed by Government)											
19. ACCEPTED AS TO ITEMS NUMBERED				20. AMOUNT		21. ACCOUNTING AND APPROPRIATION					
22. AUTHORITY FOR USING OTHER THAN FULL AND OPEN COMPETITION: ☐ 10 U.S.C. 2304(c)() ☐ 41 U.S.C. 253(c)()						23. SUBMIT INVOICES TO ADDRESS SHOWN IN		ITEM			
						(4 copies unless otherwise specified)					
24. ADMINISTERED BY (If other than Item 7)				CODE		25. PAYMENT WILL BE MADE BY		CODE			
26. NAME OF CONTRACTING OFFICER (Type or print) TEL: EMAIL:						27. UNITED STATES OF AMERICA (Signature of Contracting Officer)		28. AWARD DATE			

IMPORTANT - Award will be made on this Form, or on Standard Form 26, or by other authorized official written notice.

Section B - Supplies or Services and Prices

SECTION B NOTESNOTE A

The Hours shown in these line items are notional ceiling values. The Government will fund these items as needed during contract performance in accordance with the Note D composite rates. The Government will issue Technical Instructions (TIs) in accordance with Section C text, NAVSEA C-242-H003, TECHNICAL INSTRUCTIONS. The Contractor shall not perform any effort under these CLINs until and unless tasked by the Government.

NOTE B

The dollar amounts shown in these Other Direct Cost (ODC) line items are notional ceiling values. The Government will fund this item as needed during contract performance. ODCs are for incidental material and travel costs incurred by the Contractor during the performance of this contract and will be reimbursed to the Contractor at cost only (no fee shall be paid on this line item). The Contractor shall receive authorization via Technical Instruction (TI) that will be issued by Contracting Officer Representative (COR) and the Contracting Officer.

NOTE C

Provisioned Item Order (PIO) will be implemented by separate contract modifications in accordance with Section C: C-217-H003, PROVISIONED ITEMS ORDER Alternate II (NAVSEA) (OCT 2018). Pricing will be set forth on each order. The profit percentages shall be proposed in accordance with the established percentages in Note D.

NOTE D

Offerors shall propose a fixed fee for CLINs 0001, and (if options are exercised) 0101, 0201, 0301, and 0401. The fixed fee percentage for these CLINs is hereby established to be ____% (to be filled in by Offeror but shall Not To Exceed (NTE) eight-percent (8%)) and shall be multiplied by the target cost (less FCCOM). The Government will unilaterally update this language at award to align with the proposed fee for these CLINs and remove proposal requested information.

Offerors shall propose a target fee for CLINs 0003, and (if options are exercised) 0103, 0203, 0303, and 0403. The target fee percentage for CLINs 0001, 0003 and (if options are exercised) 1001 and 1003 is hereby established to be ____% (to be filled in by Offeror but shall NTE eight-percent (8%)) and the maximum fee percentage is ____% (to be filled in by Offeror but shall NTE ten-percent (10%)) and shall be multiplied by the target cost (less FCCOM). The minimum fee is hereby established to be zero percent (0%). The share ratio for the CPIF portion of the fee structure is 50/50 (50% Government, 50% Contractor) for both underruns and overruns from target. The Government will unilaterally update this language at award to align with the proposed fee or these CLINs and remove proposal requested information.

Offerors shall propose profit for CLIN 0501. The profit percentage for CLIN 0501 is hereby established to be ____% (to be filled in by Offeror but shall NTE ten-percent 10%)) and shall be multiplied by the cost base (less FCCOM) at the establishment of each order. The Government will unilaterally update this language at award to align with the proposed profit for this CLIN and remove proposal requested information.

The Offeror shall divide the proposed estimated cost and the proposed fixed fee amount by the associated number of hours and insert the results rounded to the nearest penny in the appropriate columns in the table below. Estimated hourly rate (composite) rate is determined by including all allowable costs (including COM, if applicable). Fee/hour is calculated on cost less COM (if applicable). If COM is proposed necessary columns may be added. For purposes of the "Payment of Fee(s) (Level of Effort – Alternate I)" clause the hourly fee rate is as follows.

COMPOSITE RATE TABLE FOR LOE CLINs

CLIN	Hours	TC Hourly Rate	FF Hourly Rate	Fully Burdened Hourly Rate (TC+FF)
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0001	25,000			
0101	4,600			
0201	3,000			
0301	2,900			
0401	2,800			

* The Target Cost (TC) Hourly Rate amount shown above includes Cost of Money, however, the Fixed Fee (FF) Hourly Rate calculation excludes Cost of Money. The Contractor shall fill in this table with its proposal.

The Contractor shall fill in the table above with its proposal. The Government shall have the unilateral right to execute contract modifications using the hours with CLINs 0001, and (if options are exercised) 0101, 0201, 0301, and 0401. This table will be included in the contract. The rate provided in the table above is a composite rate inclusive of all labor categories for each year of the contract. The Government will unilaterally update this language at award to remove proposal request information.

NOTE E

Applicable to CLIN 0005 – Technical Data / Upgrade License Rights Buy-Out - The Offeror shall fill this in with their proposed cumulative price for those rights which the Offeror is willing to sell in accordance with Section M Section 3.5 (Factor 5 – Evaluated Cost/Price). The cumulative buy-out price is a summation of the Section J Attachments 6B, 7B, 8B, and 9B. The Government will unilaterally update this language at award to remove proposal request information.

NOTE F

Offeror shall propose and fill in the table below for stepladder quantities identified in the tables below in accordance with the applicable MMM Payload Sensor.

Unit Sell Price of CPIF MMM Payload Sensors						
Quantity	Delivery Month*	CLIN 0003 Option Base Year	CLIN 0103 Option Year 1	CLIN 0203 Option Year 2	CLIN 0303 Option Year 3	CLIN 0403 Option Year 4
QTY 1	16					
QTY 2	17					
QTY 3	18					
QTY 4	19					
QTY 5	20					
QTY 6	21					

The Government may unilaterally exercise these options within the established stepladder pricing in accordance with FAR 52.217-7 NAVSEA Variation I, October 2018, incorporated in Section I. The quantity can be increased by increments as long as the total quantity does not exceed the maximum contract quantity of thirty. If this increase occurs within a 60-day period of other quantities exercised under these CLINs, then pricing for all hardware under these CLINs procured within this 60-day period shall be adjusted to the unit price from the stepladder pricing appropriate for the total quantity being procured. For quantity increases not occurring within a 60-day period of when other quantities are exercised under these CLINs, the Government shall use unit pricing from the stepladder pricing applicable to the quantity of hardware being added and the pricing of previous quantities under said CLINs shall not change. The tables above, provide extended pricing for each step-ladder quantity.

* This column denotes the delivery month relative to date the option order is placed. If more than one unit is ordered at the same time, these dates increment by one month for each additional unit ordered. For instance, if three units are ordered, the first unit is due within 16 months after the award date, the second 17 months and the third 18 months.

NOTE G

Option CLINs to which the option clause in 52.217-7 NAVSEA Variation I and 52.217-9 NAVSEA Variation I apply and which is to be supplied only if and to the extent said option is exercised.

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0001	Engineering and Technical Support CPFF Level of Effort (LOE) See Notes A & D FOB: Origin (Shipping Point) PSC CD: 5865	25,000	Hours		
				ESTIMATED COST FIXED FEE	
				TOTAL EST COST + FEE	

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0002	Other Direct Costs (ODCs) COST ODC for incidental Material, Travel and Subsistence Support for CLIN 0001 Cost Ceiling Amount: \$500,000 See Note B FOB: Origin (Shipping Point) PSC CD: 5865	1	Lot		
				ESTIMATED COST	

ITEM NO CLIN Number 0003	SUPPLIES/SERVICES	QUANTITY 6	UNIT Each	UNIT PRICE	AMOUNT
OPTION	MMM Payload Sensor CPIF See Notes D, F, & G NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent. FOB: Origin (Shipping Point) PSC CD: 5865				
				TARGET COST TARGET FEE	
				TOTAL TGT COST + FEE	
				MINIMUM FEE	
				MAXIMUM FEE	
				SHARE RATIO ABOVE TARGET	
				SHARE RATIO BELOW TARGET	

ITEM NO CLIN Number 0004	SUPPLIES/SERVICES	QUANTITY 1	UNIT Lot	UNIT PRICE	AMOUNT
	Data FFP Not Separately Priced (NSP) - Data for all CLINs FOB: Destination PSC CD: 5865				
				NET AMT	

ITEM NO CLIN Number 0005	SUPPLIES/SERVICES	QUANTITY 1	UNIT Lot	UNIT PRICE	AMOUNT
OPTION	Data Rights/Upgrade License Rights FFP Buy-Out See Note E SOW Paragraph 3.1.5 FOB: Origin (Shipping Point) PSC CD: 5865				

NET AMT

ITEM NO CLIN Number 0101	SUPPLIES/SERVICES	QUANTITY 4,600	UNIT Hours	UNIT PRICE	AMOUNT
OPTION	Engineering and Technical Support CPFF Level of Effort (LOE) See Notes A, D, & G FOB: Origin (Shipping Point) PSC CD: 5865				

ESTIMATED COST
FIXED FEE

TOTAL EST COST + FEE

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY 1	UNIT Lot	UNIT PRICE	AMOUNT
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OPTION	Other Direct Costs (ODCs) COST Incidental Material, Travel and Subsistence Support of Item 0101 Cost Ceiling Amount \$162,000 See Notes B & G FOB: Origin (Shipping Point) PSC CD: 5865				
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ESTIMATED COST

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY 6	UNIT Each	UNIT PRICE	AMOUNT
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OPTION	MMM Payload Sensor CPIF See Notes D, F, & G				
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NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.
FOB: Origin (Shipping Point)
PSC CD: 5865

TARGET COST
TARGET FEE

TOTAL TGT COST + FEE
MINIMUM FEE
MAXIMUM FEE
SHARE RATIO ABOVE TARGET
SHARE RATIO BELOW TARGET

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0201		3,000	Hours		
OPTION	Engineering and Technical Support CPFF Level of Effort (LOE) See Notes A, D, & G FOB: Origin (Shipping Point) PSC CD: 5865				
				ESTIMATED COST FIXED FEE	
				TOTAL EST COST + FEE	

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0202		1	Lot		
OPTION	Other Direct Costs (ODCs) COST Incidental Material, Travel, and Subsistence Support of Item 0201 Cost Ceiling Amount: \$166,000 See Notes B & G FOB: Origin (Shipping Point) PSC CD: 5865				
				ESTIMATED COST	

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0203		6	Each		

OPTION MMM Payload Sensor
 CPIF
 See Notes D, F, & G

NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.

FOB: Origin (Shipping Point)
 PSC CD: 5865

TARGET COST
 TARGET FEE

TOTAL TGT COST + FEE
 MINIMUM FEE
 MAXIMUM FEE
 SHARE RATIO ABOVE TARGET
 SHARE RATIO BELOW TARGET

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0301		2,900	Hours		

OPTION Engineering and Technical Support
 CPFF
 Level of Effort (LOE)
 See Notes A, D & G

FOB: Origin (Shipping Point)
 PSC CD: 5865

ESTIMATED COST
 FIXED FEE

TOTAL EST COST + FEE

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
CLIN Number 0302		1	Lot		

OPTION Other Direct Costs (ODCs)
COST
Incidental Material, Travel, and Subsistence Support of Item 0301
Cost Ceiling Amount: \$170,000
See Notes B & G

FOB: Origin (Shipping Point)
PSC CD: 5865

ESTIMATED COST

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
CLIN Number 0303		6	Each		

OPTION MMM Payload Sensor
CPIF
See Notes D, F, & G

NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.
FOB: Origin (Shipping Point)
PSC CD: 5865

TARGET COST
TARGET FEE

TOTAL TGT COST + FEE
MINIMUM FEE
MAXIMUM FEE

SHARE RATIO ABOVE TARGET
SHARE RATIO BELOW TARGET

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0401		2,800	Hours		
OPTION	Engineering and Technical Support CPFF Level of Effort (LOE) See Notes A, D, & G FOB: Origin (Shipping Point) PSC CD: 5865				
				ESTIMATED COST FIXED FEE	
				TOTAL EST COST + FEE	

ITEM NO CLIN Number	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
0402		1	Lot		
OPTION	Other Direct Costs (ODCs) COST Incidental Material, Travel, and Subsistence Support of Item 0401 Cost Ceiling Amount: \$174,000 See Notes B & G FOB: Origin (Shipping Point) PSC CD: 5865				
				ESTIMATED COST	

ITEM NO	SUPPLIES/SERVICES	QUANTITY	UNIT	UNIT PRICE	AMOUNT
CLIN		6	Each		
Number					
0403					

OPTION MMM Payload Sensor
CPIF
See Notes D, F, & G

NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.
FOB: Origin (Shipping Point)
PSC CD: 5865

TARGET COST
TARGET FEE

TOTAL TGT COST + FEE
MINIMUM FEE
MAXIMUM FEE

SHARE RATIO ABOVE TARGET
SHARE RATIO BELOW TARGET

ITEM NO CLIN Number 0501	SUPPLIES/SERVICES	QUANTITY 1	UNIT Lot	UNIT PRICE	AMOUNT
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OPTION Provisioned Item Order (PIO) Spares
FFP
Maximum Order Cost Ceiling: \$11,300,000
See Notes C, D, & G

NOTE: The requirements in DFARS 252.211-7003, Item Identification and Valuation, are applicable for this line item. The contractor shall provide DoD unique identification or a DoD recognized unique identification equivalent.
FOB: Origin (Shipping Point)
PSC CD: 5865

NET AMT

CLAUSES INCORPORATED BY FULL TEXT

B-215-H002 REFUNDS (SPARES AND SUPPORT EQUIPMENT) (NAVSEA) (OCT 2018)

(a) In the event that the price of a spare part or item of support equipment delivered under this contract significantly exceeds its intrinsic value, the Contractor agrees to refund the difference. Refunds will not be made to recoup the amount of cost decreases that occur over time due to productivity gains (excluding economic purchase quantity considerations) or changes in market conditions.

(b) For purposes of this requirement, the intrinsic value of an item is defined as follows:

(1) If the item is one which is sold or is substantially similar or functionally equivalent to one that is sold in substantial quantities to the general public, intrinsic value is the established catalog or market price, plus the value of any unique requirements, including delivery terms, inspection, packaging, or labeling.

(2) If there is no comparable item sold in substantial quantities to the general public, intrinsic value is defined as the price an individual would expect to pay for the item based upon an economic purchase quantity as defined in FAR 52.207-4, plus the value of any unique requirements, including delivery terms, inspection, packaging or labeling.

(c) At any time up to two years after delivery of a spare part or item of support equipment, the Contracting Officer may notify the Contractor that based on all information available at the time of the notice, the price of the part or item apparently exceeds its intrinsic value.

(d) If notified in accordance with paragraph (c) above, the Contractor agrees to enter into good faith negotiations with the Government to determine if, and in what amount, the Government is entitled to a refund.

(e) If agreement pursuant to paragraph (d) above cannot be reached, and the Navy's return of the new or unused item to the Contractor is practical, the Navy, subject to the Contractor's agreement, may elect to return the item to the Contractor. Upon return of the item to its original point of Government acceptance, the Contractor shall refund in full the price paid. If no agreement pursuant to paragraph (d) above is reached, and return of the item by the Navy is impractical, the Contracting Officer may, with the approval of the Head of the Contracting Activity, issue a Contracting Officer's final decision on the matter, subject to Contractor appeal as provided in the "Disputes" clause (FAR 52.233-1).

(f) The Contractor shall make refunds, as required under this requirement, in accordance with instructions from the Contracting Officer.

(g) The Contractor shall not be liable for a refund if the Contractor advised the Contracting Officer in a timely manner that the price it would propose for a spare part or item of support equipment exceeded its intrinsic value, and with such advice, specified the estimated proposed price, the estimated intrinsic value and known alternative sources or item, if any, that can meet the requirement.

(h) This requirement does not apply to any spare parts or items of support equipment whose price is determined through adequate price competition. This requirement also does not apply to any spare part or item of support equipment if the Contractor submitted, and certified the currency, accuracy and completeness of, cost or pricing data applicable to the item.

(End of text)

B-216-H006 FEE TABLE (NAVSEA) (MAR 2019)

Labor CLIN	Labor Hours	Cost Per Hour*	Fee Rate Per Hour*	Loaded Hourly Rate

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*The offeror shall divide the proposed fee for each CLIN by the quantity of labor hours indicated to complete the table. Fee is calculated based on cost less FCCOM; if FCCOM is proposed, necessary columns may be added.

In the event of any inconsistency between the above table and the CLIN pricing, the CLIN pricing shall take precedence.

(End of text)

**B-227-H001 PROVISIONING TECHNICAL DOCUMENTATION – WITHHOLDING OF PAYMENT
(NAVSEA) (OCT 2018)**

(a) For the purpose of paragraph (c) of the "Progress Payments" clause of this contract, if included, the requirement that the Contractor develop and deliver Provisioning Technical Documentation (PTD) is considered to be a "material requirement of this contract," and Contractor failure to make adequate progress in the development of PTD, or to deliver acceptable PTD on a timely basis, may result in reduction or suspension of Progress Payments as provided in said paragraph.

(b) The PTD is considered to be a part of the "Technical Data" specified to be delivered under this contract for the purposes of the "Technical Data--Withholding of Payment" (DFARS 252.227-7030) clause. The terms and conditions of the clause entitled "Limitation On Withholding of Payments (FAR 52.232-9), if included in this contract, shall not apply to withholding of payment for failure to make timely delivery of the PTD or delivery of deficient PTD.

(End of text)

B-231-H001 TRAVEL COSTS (NAVSEA) (OCT 2018)

(a) Except as otherwise provided herein, the Contractor shall be reimbursed for its actual travel costs in accordance with FAR 31.205-46. The travel costs to be reimbursed shall be those costs for which the Contractor has maintained appropriate documentation and which have been determined to be allowable, allocable, and reasonable by the Procuring Contracting Officer, Administrative Contracting Officer, or their duly authorized representative.

(b) Reimbursable travel costs include only that travel performed from the Contractor's facility to the worksite, in and around the worksite, and from the worksite to the Contractor's facility.

(c) Relocation costs and travel costs incidental to relocation are allowable to the extent provided in FAR 31.205-35; however, Procuring Contracting Officer approval shall be required prior to incurring relocation expenses and travel costs incidental to relocation.

(d) The Contractor shall not be reimbursed for the following daily local travel costs:

- (i) travel at U.S. Military Installations where Government transportation is available,
- (ii) travel performed for personal convenience/errands, including commuting to and from work, and
- (iii) travel costs incurred in the replacement of personnel when such replacement is accomplished for the Contractor's or employee's convenience.

(End of text)

B-232-H005 PAYMENTS OF FEE(S) (LEVEL OF EFFORT)--ALTERNATE I (NAVSEA) (OCT 2018)

(a) For purposes of this contract, "fee" means "target fee" in cost-plus-incentive-fee type contracts, "base fee" in cost-plus-award-fee type contracts, or "fixed fee" in cost-plus-fixed-fee type contracts.

(b) The Government shall make payments to the Contractor, subject to and per the clause in this contract entitled "Fixed Fee" (FAR 52.216-8) or "Incentive Fee", (FAR 52.216-10), as applicable. Such payments shall be submitted by and payable to the Contractor pursuant to the clause of this contract entitled "Allowable Cost and Payment" (FAR 52.216-7), subject to the withholding terms and conditions of the "Fixed Fee" or "Incentive Fee" clause, as applicable. Fee paid per hour shall be based on total fee dollars divided by total hours to be provided. Total fee(s) paid to the Contractor shall not exceed the fee amount(s) set forth in this contract. In no event shall the Government be required to pay the Contractor any amount in excess of the funds obligated under this contract.

(End of text)

CLAUSES INCORPORATED BY FULL TEXT

B-232-H006 LIMITATION OF COST OR LIMITATION OF FUNDS CLARIFICATION (NAVSEA) (OCT 2018)

The clause entitled "Limitation of Cost" (FAR 52.232-20) or "Limitation of Funds" (FAR 52.232-22), as appropriate, shall apply separately and independently to each separately identified estimated cost.

(End of text)

Section C - Descriptions and Specifications

STATEMENT OF WORK

1.0 SCOPE

This Statement of Work (SOW) defines the efforts required to develop and deliver the Multifunction Modular Mast (MMM) Payload Sensor to the fleet. Efforts hereunder include program management, engineering, systems engineering, logistics and supportability engineering, configuration management, hardware integration (including material procurement or fabrication, and integration of Government-Furnished Material (GFM), as applicable), testing, evaluation, and installation. The system is designated for all submarine classes. Production units shall be built for VIRGINIA and LOS ANGELES Class submarines.

The work shall be performed as specified in the Contract Schedule and as identified in Technical Instructions. This procurement includes the following:

- Provide “end-to-end” system engineering, development, testing, and life cycle support for the MMM Payload Sensor.
- Provide MMM Payload Sensor and spare parts as ordered.
- Develop all baseline engineering level 3 documentation, product lists, and logistics support products.
- Define and depict the optimum balance of simulation and stimulation equipment needed to execute MMM Payload Sensor testing.
- Participate in the integration and end-to-end testing efforts at designated facilities.
- Provide source material for Logistics Data, Technical Data Packages, and Interactive Electronic Technical Manual (IETM).
- Provide installation support and depot level hardware repair services.

1.1. Navy Organization

Program Executive Officer, Undersea Warfare System (PEO UWS) is the acquisition executive for this procurement. The Submarine Electromagnetic Systems Program Office (PMS435) is responsible for the acquisition, development, production, fleet introduction, and support of the MMM Payload Sensor for VIRGINIA and LOS ANGELES Class submarines and appropriate Joint Program Office efforts.

1.2. Program Background

The MMM Payload Sensor program is an Acquisition Category (ACAT) IV and is not a Major Defense Acquisition Program (MDAP). The MMM Payload Sensor supports the global superiority of the U.S. Navy by providing communication enabling capability for Unmanned Aerial Vehicle (UAV) command and control for U.S. Navy fleet submarines, Line-of-Sight (LOS) communications, and Electronic Warfare (EW) capabilities. The MMM Payload Sensor is required for PMS415 to successfully field its UAVs. The MMM Payload Sensor provides communication-enabling capability UAV command and control.

2.0 APPLICABLE DOCUMENTS

The Contractor shall always use the latest revision of the following specifications, standards, handbooks, and reference documents in the table below. If a conflict exists between the stated and referenced requirements, the order of precedence shall be in accordance with FAR Clause 52.215-8.

2.1 Incorporation by Reference

All specifications, exhibits, drawings or other documents which are referenced in this contract, but are not attached hereto, are hereby incorporated by reference.

2.2 Issue of Documents

The following documents listed in the Department of Defense Index of Specification and Standards (DODISS) form a part of this SOW to the extent specified herein.

2.2.1 Government Documents

Table 1: MMM Payload Required Documentation

03 March 2025	System Performance Specification For The Multifunction Modular Mast Payload Generation 2
3004730 Rev A	Technical Data Package: Payload Assembly
PMS435-455-13 Ch.3	MMM System Performance Specification
94117-A80371-01	Technical Data Package: MMM Production Drawings
SCG ID# 08-069.5	Security Classification Guide (SCG) for AN/BLQ-10(V) Electronic Warfare Support (ES) System
DoDI 8500.01	Cybersecurity
DoDI 8510.01	Risk Management Framework for DoD Systems
PMS435-EMS-CMP-12-1	PMS435 Configuration Management Plan
NAVSEA 9400.2M	NAVSEA PIT-Control System Cybersecurity Implementation Manual
NIST Special Publication 800-53	Security and Privacy Controls for Federal Information Systems and Organizations
NIST SP 800-30	Guide for Conducting Risk Assessments
MIL-STD-31000B	Technical Data Packages
OPNAVINST S5513.8 - (05)	ELINT, General
Provisioning, Allowance, and Fitting-Out Support (PAFOS) Manual	Provisioning Technical Documentation (PTD) Requirements for NAVSEA Government Furnished and Contractor Furnished Commodities (http://www.nclc.navsea.navy.mil/TechLog/PolicyProc.htm)
S9081-AB-GIB-010 Rev 1	Reliability-Centered Maintenance (RCM) Handbook
TMCR NDMS-980020-000	Technical Manual Contract Requirement for Interactive Electronic Technical Manual (IETM) for AN/BLQ-10, Electronic Warfare Support Measures (ESM) System
MIL-STD-3034A	Reliability-Centered Maintenance (RCM) Process
NAVSEA S9407-AB-HBK-010 Rev 1	Handbook of Shipboard Electromagnetic Shielding Practices
NAVSEAINST 5100.3E	Mercury, Mercury Compounds, and Components Containing Mercury or Mercury Compounds
NAVSEA SS800-AG-MAN-010/P-9290	System Certification Procedures and Criteria Manual for Deep Submergence Systems
OPNAVINST S5513.5C - (41) S	Submarine Support Equipment Program (SSEP)
OPNAVINST S5513.5C - (90)	Submarine Technology for New Design Nuclear Powered Attack Submarines Commencing with SEA WOLF Class (SSN-21)
PEO SUB 8282; Ser TSUB/006	Cybersecurity Vulnerability Management Program (CSVMP) for the Submarine Warfare Federated Tactical Systems (SWFTS)
NIST SP 800-171 Rev 3	Protecting Controlled Unclassified Information in Nonfederal Systems and Organizations

Table 2: Government Documents

DoDM 5200.01 Vol 2	DoD Information Security Program: Marking of Information
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DODM 5200.01 Vol 4	DoD Information Security Program: Controlled Unclassified Information (CUI)
DoDI 5000.02	Operation of the Defense Acquisition System
DoDM 5205.02M	DoD Operations Security Manual
IMP-IMS-Guide	Integrated Master Plan and Integrated Master Schedule Preparation and Use Guide
IPC/J-STD-001 Rev H	Requirements for Soldered Electrical and Electronic Assemblies
MIL-DTL-15024/1B Notice 2	Set or Group Identification Plate
MIL-DTL-15024/4A Notice 2	Modification Identification Plate
MIL-HDBK-189C Notice 1	Reliability Growth Management
MIL-HDBK-502A	Product Support Analysis
MIL-STD-130N Notice 1	Identification Marking of U.S. Military Property
MIL-HDBK-2155 Notice 2	Failure Report Analysis and Corrective Action
MIL-STD-461G	Requirements for the Control of Electromagnetic Interference Characteristics of Subsystems and Equipment
MIL-DTL-901E Notice 1	Shock Tests, H.I. (High Impact) Shipboard Machinery, Equipment, and Systems, Requirements For
MIL-STD-810H w/ Change 1	Test Method Standard Environmental Engineering Considerations and Laboratory Test
MIL-STD-881F	Work Breakdown Structure for Defense Material Items
MIL-STD-882E w/ CHANGE 1	System Safety
PEO 435-SAFETY-SSMP Rev 02	PMS435 System Safety Management Plan (SSMP)
MIL-DTL-24643D	Cables, Electric, Low Smoke Halogen-Free, for Shipboard Use General Specification for
MIL-HDBK-2165 Notice 3	DoD Testability Handbook for Systems and Equipment
MIL-HDBK-2036 Notice 1	Preparation of Electronic Equipment Specifications
MIL-STD-40051-1D w/ CHANGE 1	DoD Standard Practice: Preparation of Digital Technical Information for Interactive Electronic Technical Manuals (IETMs)
NAVSEA SL720-AA-MAN-010/020 Rev2	Fleet Modernization Program Management and Operation Manual
NAVSO P-7000	DON Counterfeit Materiel Process Guidebook
SECNAVINST 4440.34	Implementation with Item Unique Identification within the DON
SL130-AD-MAN-010 PMS-425	Engineering Change Instruction (ECI) Development Manual

2.2.2 Non-Government Documents

ANSI/EIA 748	Earned Value Management
FED-STD-313F	Material Safety Data, Transportation Data and Disposal Data for Hazardous Materials Furnished to Government Activities
IEEE STD 15288.2	IEEE Standard for Technical Reviews and Audits on Defense Programs
SD-22	Diminishing Manufacturing Sources & Material Shortages Guidebook

ASME Y14.1	Decimal Inch Drawing Sheet Size and Format
ASME Y14.5	Dimensioning and Tolerancing
ASQ/ISO Q9001	Quality Management Systems - Requirements
SAE AS5553	Counterfeit Electronic Parts; Avoidance, Detection, Mitigation, and Disposition
SAE AS6174	Counterfeit Materiel; Assuring Acquisition of Authentic and Conforming Materiel
IDEA-STD-1010	The Independent Distributors of Electronics Association (IDEA) Inspection Standard

3.0 GENERAL REQUIREMENTS

The work required by this contract shall be performed in accordance with the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 (Attachment 2) and this SOW. Unless stated otherwise, the work required by this section 3.0 of the SOW is applicable to all requirements (engineering support, production, and PIO/spares) under this contract. This SOW contains the requirements applicable to the MMM Payload Sensor. These requirements include the design, development, testing, systems and production engineering, engineering services, field engineering services, and system support for the MMM Payload Sensor lifecycle.

There are specific circumstances during phases of this contract including design, development, integration and testing that will require personnel to be cleared for access to classified information. The Contractor will need to support this SECRET classification level configuration in all phases of this contract, design, development, integration, test, production, installation, and field support.

3.0.1 Waiver of Requirements

Notwithstanding the requirements of any of the clauses or provisions of this contract, if the Contractor discovers during performance of the work under this contract that the requirements of any of the clauses or provisions are in conflict with security instructions issued to the Contractor by the Contracting Officer, the Contractor shall notify the Contracting Officer of the conflict. At such time, the Contracting Officer shall either (i) modify or rescind the conflicting security requirements or (ii) issue written instructions to the Contractor regarding compliance with the requirements of the conflicting clauses or provisions. Any waiver of compliance with the clauses or provisions of this contract issued by the Contracting Officer shall be in writing.

3.0.2 Security Clearance Requirements

In performance on this contract, the Contractor will:

- Require to maintain a level of safeguarding for classified information, material, and data at the SECRET security clearance level.
- Require to use the Defense Technical Information Center (DTIC) in order to use the current contract specifications and applicable documentation.
- Require COMSEC to accommodate the use of secure communications and will be required to maintain a COMSEC account for SIPRNET equipment.
- Require to have access to Controlled Unclassified Information (CUI) with developers and integrators.
- Receive, store, and generate classified information. Techniques to modernize this equipment, testing of this equipment, email/written reports, and overall system performance could be classified. In this capacity, the contractor will generate and be in receipt of classified material.
- Fabricate, modify, or store classified hardware: The contractor will fabricate and modify classified components in support of this contract and then store this hardware until completion of all requirements.

- Adhere to all security requirements imposed by the latest revised Contract Security Classification Specification form DD254. Contractor key personnel working under this contract shall maintain at least an active SECRET security clearance.

The Contractor shall ensure all Operations Security (OPSEC) requirements and NAVSEA Critical Information List requirements are met and understood. The Contractor shall maintain an Operations Security (OPSEC) Program in accordance with DoDM 5205.02M. OPSEC requirements will be specified in DD Form 254 (Attachment 1). Contractor shall not disclose classified or unclassified information pertaining to the contract without prior review and clearance as specified in the DD Form 254 (Attachment 1).

The Contractor shall obtain and maintain an Authorization to Operate (ATO) from the Defense Security Service (DSS) for SIPRNet equipment and shall follow the Non-DoD Connection process within the Defense Information Systems Network (DISN) Connection Process Guide (CPG) Version 5.1 dated September 2016, or the latest version of the CPG at the time of Authorization.

The Contractor shall deliver an authorizable MMM Payload Sensor in accordance with DoD Instruction 8510.01, Risk Management Framework (RMF) for DoD Information Technology (IT).

The Contractor shall provide proof to the government that demonstrates all personnel (engineers and technicians) are cleared for General Service (GENSER) level tasks associated with the MMM Payload Sensor contract. The Contractor shall receive and maintain SIPRNet email access to support classified data transfer.

3.0.3 Location of Works

The preponderance of activity under this contract is expected to take place at the prime and sub-contractor (if applicable) facilities as reflected in the DD-254.

3.0.4 Level of Safeguarding for Classified Information / Material

Certain prime and sub-contractor facilities (if applicable), as reflected in the DD-254, shall safeguard information and material up to Secret in support of the MMM Payload Sensor's Program.

3.1 Contract Line Item Number (CLIN) Descriptions

3.1.1 CLINs 0001 and (If Option is Exercised) 0101, 0201, 0301, and 0401 – Engineering and Technical Support

The Contractor shall provide services of qualified engineers to meet the requirements of the contract and achieve the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 (Attachment 2) and this SOW. Engineering support will be issued and may be further specified in accordance with Section C text, NAVSEA C-242-H003, TECHNICAL INSTRUCTIONS. The general objective of these efforts shall be the common development, modernization, maintenance and technology upgrade of the MMM Payload Sensor which meet the performance requirements of the various U.S. Navy platform missions, where commonality offers the greatest cost and technical benefits.

The Contractor shall provide qualified engineers to perform engineering technical services tasks related to MMM Payload Sensor development, upgrade, or installation for all platform variants (VIRGINIA and LOS ANGELES Class submarines). These services shall include, but are not limited to, software/hardware design, development, modification, integration and checkout, test and evaluation, training, repairs, installation and checkout, inspection, technical issues resolution, trade studies, engineering change development, documentation, logistics analyses, and troubleshooting. Technical support shall include software and hardware enhancements using emerging technologies, when feasible.

The Contractor shall provide qualified electrical/electronic, mechanical and software engineers and technicians where required for field engineering or maintenance repair and sustainment to support the fleet. Field engineering and maintenance support shall include on-site assistance to submarine platforms for MMM Payload Sensor troubleshooting and repair. The Contractor shall provide engineering and technical services related to platform variant delivery, installation, and maintenance for VIRGINIA and LOS ANGELES Class submarines.

The Contractor shall provide scientists or engineers to conduct studies and analyses of the MMM Payload Sensor Performance. The Contractor shall document the results of special studies and analyses.

3.1.2 CLINs 0002 and (If Option is Exercised) 0102, 0202, 0302, and 0402: Incidental Material and Travel Support for Engineering Support

The Contractor shall provide incidental material or travel to meet the requirements of the contract and achieve the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 (Attachment 2) and this SOW. The Contractor shall provide incidental materials and travel necessary for the completion of order issued in accordance with the Section C text, NAVSEA C-242-H003, TECHNICAL INSTRUCTIONS within the Government's estimated amount. The Contractor shall be reimbursed for actual, allowable, and allocable costs less any discounts taken, plus applicable burdens, incurred in the performance of these items.

In order to minimize travel costs, the Contractor and its subcontractors at all tiers shall comply with DoD Joint Travel Regulations (JTR) in conducting travel of employees. In any instance in which recurring travel to one location for more than 180 days is planned for personnel at any tier, the Contractor shall obtain prior written approval from the Contracting Officer's Representative (COR), and the request for approval shall include a cost comparison addressing permanent change of station and long-term temporary duty assignment (TDY).

(a) Travel time necessary for performance of such services shall be included in computing the man days of service. When services are performed at sea and the engineer(s) is unable to leave the vessel when work is completed, the remaining time aboard the vessel shall be considered travel time for purposes of computing the man days of services. However, the Contractor shall be paid for no more than one man day of service per calendar day for each engineer while in travel status.

(b) Passports, visas, inoculations and other medical requirements necessary for performance of engineering services shall be at the sole responsibility and expense of the Contractor.

3.1.3 (If Option is Exercised) CLINs 0003, 0103, 0203, 0303, and 0403: MMM Payload Sensor Production Systems

The Contractor shall provide MMM Payload Sensor meeting the requirements of the contract and this SOW and achieve the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 (Attachment 2). The Contractor shall furnish supplies in accordance with the detailed specifications and requirements of this contract titled "ORDERS".

The Contractor shall conduct First Article Acceptance Tests (FAAT), Environmental Qualification Tests (EQT), and Factory Acceptance Tests (FAT) in accordance with section 3.6 of this SOW and the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 (Attachment 2). FAAT and EQT shall be conducted on the first article unit. FAT shall be conducted on each production sensor.

3.1.4 (If Option is Exercised) CLIN 0501: Provisioning Item Orders (PIO) / Spares

Provisioned Item Orders (PIOs) will be implemented by separate contract modifications in accordance with C-217-H003 – PROVISIONED ITEMS ORDER – Alternate II (NAVSEA) (OCT 2018). The Contractor shall fabricate and/or procure, assemble, test, and deliver hardware in support of MMM and in accordance with C-217-H003. PIO/Spares material may consist of major components, auxiliary and support equipment, or parts thereof and shall be subject to all program, quality, technical process, and data requirements of this SOW.

3.1.5 CLIN 0004: Data Requirements

The data to be furnished hereunder shall be prepared and delivered in accordance with the Contract Data Requirements List, DD Form 1423, Exhibit A attached hereto.

3.1.6 CLIN 0005: Technical Data / Upgrade License Rights (OPTION)

If exercised, the Contractor shall grant the corresponding Data Rights license for each item of Technical Data (TD), Computer Software (CS), and Computer Software Documentation (CSD) identified on Attachments 6B, 7B, 8B, and 9B. Following option exercise, the Contractor shall remove or revise markings and legends and resubmit previously submitted Exhibit A CDRLs to be consistent with the rights furnished hereunder. In addition, the Contractor shall deliver all future data submittals with markings and legends consistent with the rights furnished hereunder.

3.2 Integrated Program Management

The Contractor shall designate a Program Manager who shall have responsibility for all aspects of this contract and the authority to commit the Contractor to specific courses of action. The Contractor shall perform all administrative, technical, and financial management functions required to support this effort and shall maintain the status, including all technical activities, problems or deficiencies, and recommended solutions. The Contractor shall be responsible for those activities assigned to subcontractors, to ensure the delivery of all supplies and services specified in this contract. The deliverable for this work shall be the *Contractor's Progress and Status Report (CDRL A001)*.

3.2.1 Contractor Performance Management System

The Contractor shall establish, maintain, and use in the performance of this Contract, an integrated performance management system. The Contractor shall include the following management processes and systems in the established integrated performance management system: the integrated master schedule, contract work breakdown structure, change management, material management, procurement, cost estimating, and accounting. The correlation and integration of these systems and processes shall provide for early indication of cost and schedule problems, and their relation to technical achievement. The deliverable for this work shall be included in the *Integrated Program Management Data and Analysis Report (CDRL A002)*.

3.2.2 Contract Work Breakdown Structure (CWBS)

The Contractor shall develop and maintain the CWBS (**CDRL A003**) and the CWBS dictionary using MIL-STD-881F for guidance. The CWBS shall be to the lowest level necessary to reach manageable units of functional tasks that reflect the work being performed while ensuring the correlation of these lower levels to the specification, contract line items, data items, and work statement tasks. The Contractor shall use the CWBS as the primary framework for contract planning, budgeting, and reporting of the cost, schedule, and technical performance status to the Government. The Contractor shall also deliver the raw accounting data from their accounting system of each manufacturing lot, at the completion of that lot, in **Enterprise Resource Planning (ERP) Reports (CDRL A004)**. It shall include an additional field identifying each database record with the corresponding lowest WBS element that those costs were reported. The Contractor shall analyze the system requirements specified in the SOW and system specification and translate them into a structure representing the products and services that comprise the entire work effort under the Contract. The Contractor's team or organizational entity responsible for the systems engineering of the system prepares the technical elements of the extended Contract WBS. The Contractor, if necessary, shall update the CWBS during the execution of the Contract. Changes to the CWBS or associated definitions, at any reporting level, require approval of the Government.

3.2.3 Integrated Master Plan (IMP) and Integrated Master Schedule (IMS)

The Contractor shall develop and maintain an Integrated Master Plan (IMP) and Integrated Master Schedule (IMS) using the DOD Integrated Master Plan and Integrated Master Schedule Preparation and Use Guide. The schedule shall contain the planned events and milestones, accomplishments, exit criteria, and activities from contract award to the completion of the Contract. The Contractor shall quantify risk in hours, days, or weeks of delay and provide

optimistic, pessimistic, and most likely duration for each IMS activity and event. The IMP and IMS shall be included in the ***Integrated Program Management Data and Analysis Report (CDRL A002)***.

3.2.4 Post Award Conference (PAC)

The Contractor shall host and conduct a PAC with the Government within forty-five (45) calendar days of contract award. The PAC shall be held no longer than two business days. The Contractor shall develop the PAC structure and agenda. Contractor shall make available read-ahead material and presentation material ten (10) calendar days prior to the PAC. The Contractor shall generate and record minutes, attendance list, and action items of the PAC, and produce copies of all information presented. The Conference shall be held at the Contractor's facility. Representatives from each major subcontractor on the Contractor's team shall attend. Minutes of the meetings shall be kept by the Contractor unless otherwise directed by the Government. Minutes shall include a summary of discussions, copies of handouts or graphics, and a listing of action items, and be distributed electronically. The deliverables for this work shall be ***Meeting Agenda (CDRL A005), and Report, Record of Meeting/Minutes (CDRL A006)***.

The purpose of the PAC is as follows:

- a) Review the Contract and Technical requirements
- b) Discuss the roles and working relationships between the Contractor and the Government
- c) Discuss the Contractor's planned management effort and requirements verification process
- d) Discuss required meetings, periodicity, and reporting requirements
- e) Review the Contractor's facility plans
- f) Review the Contractor's recommendations for MMM Payload Sensor Integration and Test
- g) Identify the Integrated Product Teams and their respective roles and responsibilities
- h) Management and Contract Mechanics
 - 1) Contract Administration
 - 2) Team Introductions
 - 3) Review GFI/GFP utilization plans
 - 4) Integrated Baseline Review (IBR)
 - 5) Quarterly Program Reviews (QPR)
 - 6) Quarterly Financial Reviews (QFR)
- i) Technical Discussions
 - 1) Requirements Traceability overview
 - 2) Configuration Management processes
 - 3) Major Technical Risk Areas
 - 4) Design Review execution and schedule
 - 5) Configuration Management processes

3.2.5 Integrated Baseline Reviews (IBRs)

The Contractor shall host an IBR no later than 180 calendar days after contract award. The Contractor shall work with the Government to develop the IBR agenda. The Contractor shall make available read-ahead material and presentation material ten (10) calendar days prior to the IBR. The Contractor shall generate and record minutes, attendance list, and action items of the IBR, and produce copies of all information presented. The prime Contractor shall lead the IBRs, with active participation by the Government. The IBR shall be held at the Contractor's facility and shall be no longer than two business days. The deliverables for this work shall be ***Design Review Information Package (DRIP) (CDRL A007), Meeting Agenda (CDRL A005), and Report, Record of Meeting/Minutes (CDRL A006)***.

Minimum IBR Entry Criteria

- a) CWBS and CWBS Dictionary approved
- b) Control Accounts established and Control Account Managers (CAMs) assigned
- c) Initial IMS submitted in ***Integrated Program Management Data and Analysis Report (CDRL A002)***.

As determined by the COR, the Contractor shall conduct an IBR assessment for any major change to the contract, after the exercise of significant contract options, and/or the incorporation of major design modifications. The Government will use IBRs throughout the life of the MMM Payload Sensor program to facilitate and maintain mutual understanding of:

- a) The scope of the Program Management Baseline (PMB) consistent with authorizing documents
- b) Management control processes
- c) Risks in the PMB associated with cost, schedules, and resources
- d) Corrective actions where necessary

3.2.6 Progress Reporting

The Contractor shall prepare and deliver monthly Progress, Status, and Management Reports to provide status of all assigned tasks, report progress against milestones, and identify technical or schedule problem areas or risks along with recommendations for resolution *Contractor's Progress and Status Report (CDRL A001)*. The Contractor shall provide monthly *Contract Funds Status Report (CFSR) (CDRL A008)*. Reports shall be tailored to provide required Cost, Technical, and schedule information. The financial status shall include the Estimate at Completion (EAC), Actuals to Date (ATD), Estimate to Complete (ETC), amount funded and outlooks for when additional funding is required, as necessary, for tasks as identified in Technical Instructions.

3.2.7 Subcontract Management and Control

The Contractor shall identify and monitor subcontractor technical, quality, schedule, and milestone achievement on a continuing basis, according to the Contractor's own established subcontract management techniques. The Contractor shall report subcontractor status in the *Contractor's Progress and Status Report (CDRL A001)*.

3.2.8 Program Risk Analysis

The Contractor shall identify significant program issues and raise them to the Program Office so that they can be monitored and resolved. The Contractor shall perform a continuing analysis of program, technical, performance, cost and schedule risks. Risks shall allow for the identification of both technical and non-technical risks, risk assessment, the development of appropriate actions and mitigations to effectively manage these risks, and tracking of potential impacts to cost, schedule, or performance impacts. The analysis shall identify the risks associated with each area, identify the impact of each risk on the overall program, and proposed approaches for reducing identified risks. Risk analysis status shall be reported in the *Contractor's Progress and Status Report [CDRL A001]* and presented during Program Reviews, Technical Reviews, and monthly Risk Review Boards.

3.2.9 Program Reviews

The Contractor shall prepare agendas for Contractor-hosted meetings, program reviews, IPTs and all other meetings/reviews. The agendas shall be reviewed jointly between the Government and Contractor and distributed electronically via e-mail by the Contractor. Minutes of the meetings shall be kept by the Contractor unless otherwise directed by the Government. Minutes shall include a summary of discussions, copies of handouts or graphics, and a listing of action items, and be distributed electronically. The deliverables for this work shall be *Meeting Agenda (CDRL A005), and Report, Record of Meeting/Minutes (CDRL A006)*. The Contractor shall conduct quarterly program reviews (QPR) and Quarterly Financial Review (QFR) every three (3) months, at its facility or alternate Government facility for a period not to exceed one (1) day. An informal "read-ahead" brief shall be provided electronically to the Government 10 calendar days prior to the review.

3.2.9.1 Quarterly Program Review (QPR)

The purpose of the QPR is to ensure the Contractor's approach and progresses are technically sound, meet the requirements, and are mutually understood and properly documented. At each QPR, the Contractor shall report status, issues, risks, and recommendations for the following items (at a minimum):

- a) Schedule progress against the IMS (3-month history and 6-month projected)

- b) Contract deliverables completed and projected (3-month history and 6-month projected)
- c) Design and technical issues
- d) Test and evaluation activities, plans, results
- e) Logistics source data development and support efforts
- f) Development activities -- completed and planned
- g) Risk analysis and mitigation activities
- h) Quality program status
- i) Safety program status
- j) GFP and GFI status
- k) Proposed changes to the any baseline
- l) Status of action items from previous reviews
- m) Hazardous material management efforts
- n) Configuration management activities
- o) Production and Manufacturing readiness status
- p) Efforts authorized under Technical Instructions
- q) Reliability and maintainability
- r) Hardware and software engineering

3.2.9.2 Quarterly Financial Review (QFR)

The purpose of the QFR is to ensure the Contractor has adequate financial resources and planning to execute the contract. At each QFR, the Contractor shall report status of the following (at a minimum):

- a) Cost/Schedule performance and variances against plan
- b) Financial projection/actual (3-month history, 6-month future)
- c) Risk analysis and mitigation activities
- d) Status of action items from previous reviews

3.2.10 Design Disclosure, Intellectual Property and Data Rights

The Contractor shall establish and maintain a process that shall provide 'early and often' design disclosure directly to third party developers via electronic access to in-process design documentation and computer software. The Contractor shall support an Open Source Initiative with other participants within the Shipboard Combat Systems Development community. The Contractor shall establish an Associate Contractor Agreement with each third party developer and coordinate disclosure directly with the developers. The exchange of information shall be structured so as to protect the Contractor's and third party developers' proprietary rights in the information. The Contractor shall furnish to the Procuring Contracting Officer (PCO) a copy of each Associate Contractor Agreement and copies of all written communication between the Contractor and the third party developers that is pertinent to this contract as a ***Technical Information Report (CDRL A030)***. The Contractor shall discuss and attempt to resolve any problems between the Contractor and the third party developers and notify the PCO if required, in writing, of any problems including documentation of problem resolution.

3.2.11 Data Management

The Contractor shall manage the development and use of data under this contract so as to afford the Government visibility of all data. The Contractor shall maintain Contract Data Status for recording, planning, scheduling, and reporting the status of program data requirements including electronic mail transmittals; and maintain a list of all Contractor and subcontractor data generated in support of this contract. Data management shall adhere to the Team Submarine Information Security Policy provided as Government Furnished Information (GFI).

3.2.11.1 Digital Data Management.

The Contractor shall provide a collaborative Integrated Digital Environment among all participants in the contract. The Contractor shall be responsible for the digital generation, reception, and electronic delivery of data. All data shall be developed, managed, used, and delivered/exchanged electronically to the greatest extent practical.

Controlled Unclassified Information (CUI) submitted by email shall be digitally signed and encrypted. The Government may request the Contractor to deliver internal data developed or modified under this contract. If required, the Contractor shall establish SIPRNET communication capabilities for the transmission of sensitive and classified data and to provide support to the operating Fleet and its land based support activities.

3.2.11.2 Electronic CDRL Delivery.

The Contractor shall deliver all unclassified CDRLs by secure digital certificate web site, secure digital E-Mail, or electronic media. Classified CDRLs that require digital media delivery shall be delivered in electronic media and hardcopy format. CDRLs too large for delivery by E-Mail shall be delivered by alternate electronic media (file size, drawings, data packages etc.) in accordance with the applicable CDRL DD Form 1423.

3.2.12 Integrated Product Team (IPT)

The establishment of IPTs is a management technique that simultaneously integrates activities through the use of multi-disciplinary teams to optimize the design, manufacturing, and supportability processes. The Contractor shall establish and/or participate in joint Contractor/Government IPTs to resolve particular problems and issues. IPTs are generally formed at the Program Manager level and may include members from Government, the Contractor, subcontractors, vendors, and other industry partners and are chaired by the Government or Government representative. The Contractor shall develop IPT charters and present during program reviews.

The objective of the IPT concept is to assemble all stakeholders with a particular problem or issue who will expand the principal of concurrent engineering, utilizing a systematic approach to make team decisions based on timely input from the entire team, including customers and suppliers, and third party developers. The desired expectation is to move away from a pattern of hierarchical decision-making to a process where decisions are made across organizational structures by IPTs. These IPTs will integrate cost, schedule, and performance data to provide a global perspective with detailed insight into the managerial and technical aspects impacting Government and industry.

The Contractor (including subcontractors and vendors as necessary) shall attend, present as necessary, and participate in IPT meetings. In addition, the Government may establish, and the Contractor shall participate in ad hoc IPTs, as the need arises. During Government fiscal year, a minimum of 12 and a maximum of 26 IPT meetings shall be held at the Contractor's facility or a Government specified facility with unclassified telephone conference capabilities provided by the Contractor.

As part of the IPTs, the Contractor shall have responsibility for the following functions:

- a. Monitoring and reporting of Subsystem status and progress;
- b. Joint identification, evaluation, management, and reporting of risk mitigation and cost reduction initiative efforts;
- c. Identification, collection, analysis, and reporting of appropriate metrics for measurement of cost/schedule control, engineering and production progress;
- d. Joint evaluation and management resolution of major issues associated with hardware and software engineering, production, integration, test, and I&C activities;
- e. Verification that the Contractor's 'early and often' design disclosure process is providing data that is current, complete, and accurate to third party developers;
- f. Joint evaluation and management of the ILS effort; and
- g. Joint recommended approval of data items requiring approval under this contract.

3.2.13 Use of Contractor Facilities

The Contractor shall enable and facilitate the Government and Government-designated representative's access to Contractor facilities and all program data (e.g. working documents, databases, tracking systems, test results), including electronic access to computer files, pertaining to the contractor and subcontractor activities in the performance of this contract.

The Contractor shall provide and maintain secure office space and related services for up to three technical representatives at any one time, authorized by the Government, on site at the Contractor's facility to use on an occasional, as needed basis for contract administration purposes, beginning at contract award and continuing through the end of the contract. The Contractor shall have mutual agreements which allow for similar office space access within their respective facilities. The related services at a minimum are:

- a. Telephone services;
- b. FAX transmission and reception;
- c. Computer and network equipment to support analytical tasks, tracking tasks, word processing, and E-Mail services;
- d. Office equipment (e.g., desks, file cabinets);
- e. Internet Services; and
- f. Reproduction services (copying equipment).
- g. Administrative support

The Government may witness all Contractor efforts (to include all peer reviews, tests, test-like events, and inspections) to accomplish the SOW requirements and maintains the right to comment on processes. The Contractor shall notify the Government a minimum of thirty (30) calendar days in advance of any such peer review, tests, events, and/or inspections.

3.2.14 Government Furnished Information (GFI) (Attachment 3)

The Contractor shall manage and control GFI (Attachment 3) in accordance with the provisions of the contract. The Contractor shall thoroughly inspect GFI for deficiencies. Deficiency reports shall be in contractor's format and electronically submitted to the COR within 10 calendar days after discovery of a deficiency. GFI-related issues (e.g., substandard quality, tardy submission) that have or may have an adverse effect on the performance will be referred to the COR for resolution.

3.2.15 Government-Furnished Property/Equipment/Material (GFP/E/M) (Attachment 4)

If applicable, the Contractor shall manage GFP/E/M (Attachment 4) in accordance with the provisions of this contract. GFP/E/M related issues (e.g., substandard quality, tardy submission) that have or may have an adverse effect on the performance will be referred to the COR for resolution. The Contractor shall thoroughly inspect GFP/E/M for damage, malfunctioning, or otherwise unsuitable for use. Deficiency reports shall be submitted within 10 calendar days of receipt of each item of GFP/E/M and thereafter within 10 calendar days of defect occurrence. The deliverable for this work shall be *Quality Deficiency Report (CDRL A052)*.

3.2.16 Operation Security

The Contractor shall maintain an Operations Security (OPSEC) Program in accordance with DoDM 5205.02M. OPSEC requirements will be specified in DD Form 254 (Attachment 1). Contractor shall not disclose classified or unclassified information pertaining to the contract without prior review and clearance as specified in the DD form 254.

The Contractor shall establish and maintain a facility clearance of SECRET as issued by the Defense Security Service. The Contractor shall maintain secure areas to support the classification level of SECRET components, systems, and documentation.

3.3 System Engineering

The Contractor shall provide system engineering services to meet the requirements of the contract and achieve the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 (Attachment 2). The deliverable for this work shall be the *Technical Report/Study Services Report (CDRL A040)*. System engineering includes, but is not limited to, hardware engineering services, software engineering services, production engineering

services, analyses, criteria for testing requirements, technology application and upgrades, value engineering, systems integration, end-to-end testing and maintenance for the duration of the contract. In design reviews, the Contractor shall describe how their approach supports Open Architecture goals for interfacing with future antenna payload subsystems simultaneously under development and disclose the approach to support the System's collaborative development environment including the frequent and continuous design disclosure to Navy designated third-party developers throughout the development process.

The requirements-reviews, technology discussions and the design, production, testing, acceptance of future antenna payloads, and inboard sub-system interfaces may necessitate SECRET classification level access. This requires the vendor to provide classified support from initial design, to component build, to system integration, to laboratory troubleshooting, to final onboard system testing and fielding. The Contractor will need to support this SECRET level configuration in phases of this contract, design, development, integration, test, production, installation, and field support.

3.3.1 Systems Engineering Management

The Contractor shall provide a System Engineering Management Plan (SEMP) for how development will progress with the incorporation of inputs from the various supporting working groups ***SEMP (CDRL A038)***. The Contractor shall describe how the various technical inputs to the systems engineering effort will be integrated into a collaborative development environment. A description of each major technical review shall be included.

3.3.1.1 Program Protection Implementation Plan

The Government will update the PMS435 Program Protection Plan (PPP) to include MMM Payload Sensor. The Contractor shall provide assistance in the development of the PPP's MMM Payload Sensor Appendix by providing documentation in the ***DOD Risk Management Framework (RMF) Package Deliverables (CDRL A028)***. The Contractor shall then develop a ***Program Protection Implementation Plan (PPIP) (CDRL A036)*** in accordance with the PMS435 PPP. This will include the development of an Anti-Tamper plan.

3.3.2 Technical Reviews

Technical reviews shall be held at the Contractor's facility or a Government designated facility to discuss and evaluate design status following IEEE Standard 15288.2, IEEE Standard for Technical Reviews and Audits on Defense Programs. The Contractor shall demonstrate progress toward completion of required accomplishments associated with the event or milestone and resolve technical issues. Due to the classified content of technical information, discussions, and system software at the SECRET level, SECRET-level access by contract personnel is required when participating in Technical Reviews.

The following technical reviews shall be included in the SEMP at a minimum. Reviews shall be conducted on a periodic basis to determine progress and resolve issues. The structure and intervals will be defined in the Integrated Master Schedule (IMS). Reviews can be conducted concurrently if appropriate. The deliverables for each review shall be ***Design Review Information Package (DRIP) (CDRL A007)***, ***Meeting Agenda (CDRL A005)***, and ***Report, Record of Meeting/Minutes (CDRL A006)***.

(a) The Contractor shall conduct a System Requirements Review (SRR). The SRR shall be conducted to help ensure the level of understanding of top-level system requirements is adequate to support further requirements analysis and design activities, and that the system can proceed into initial system design with acceptable risk. The Contractor shall present its interpretation/understanding of the System Performance Specification requirements.

(b) The Contractor shall conduct a System Functional Review (SFR). The SFR shall be conducted to help ensure that the system under review can proceed into preliminary design with acceptable risk and that all system requirements and functional performance requirements derived from the approved preliminary system specification are defined and are consistent with the program budget, program schedule, risk, and other program and system

constraints. The completion of the SFR shall result in the establishment of the system hardware and software functional (performance) baseline.

(c) The Contractor shall conduct a Preliminary Design Review (PDR). The PDR shall be conducted to help ensure the preliminary design for the system under review is sufficiently mature and ready to proceed into detailed design and can meet the stated performance requirements within program budget, schedule, risk, and other program and system constraints.

(d) The Contractor shall conduct a Critical Design Review (CDR). The CDR shall be conducted to help ensure that the detailed design for the system under review is adequate to proceed into fabrication, system integration, demonstration, and test and can meet stated performance requirements within budget, schedule, risk, and other system constraints.

(e) The Contractor shall conduct a Test Readiness Review (TRR). The TRR shall be conducted to assess test objectives, test methods and procedures, test scope, safety, readiness for acquirer and supplier development test and evaluation (DT&E), and whether test resources have been properly identified and obtained. A Test Readiness Review (TRR) shall be completed a minimum of two (2) weeks prior to each test event via a meeting between the Joint Test Group (JTG) Chairman, or his designated representative, and the Contractor.

(f) The Contractor shall conduct a Functional Control Audit (FCA). The FCA shall be conducted to ascertain that a configuration item (CI) actual performance meets the requirements stated in the functional and allocated baseline documentation.

(g) The Contractor shall conduct a System Verification Review (SVR). The SVR shall be conducted to verify that the as-tested system meets the requirements in the system functional baseline and is ready to proceed to the next phase with acceptable risk.

(h) The Contractor shall conduct a Production Readiness Review (PRR). The PRR shall be conducted to ascertain that the system design is ready for production and that the supplier has accomplished adequate production planning for entering First Article Unit (FAU) or full-rate production (FRP).

(i) The Contractor shall conduct a Physical Configuration Audit (PCA). The PCA shall be conducted to determine conformance of the as-built configuration of a validated CI with its design documentation, and to verify the product baseline.

(j) The Contractor shall conduct subsequent reviews, which could take place in the form of Incremental Design Reviews (IDRs), and shall be held in accordance with the Contractor's IMP/IMS as agreed to by the Navy.

(k) The Contractor shall conduct a Delivery Readiness Review (DRR). The DRR shall be conducted to help ensure that the delivery of all shipset units and services proceed on time to meet required delivery dates as set forth in contract.

For all CDRLs that contain references to IDR and FDR, IDR shall be synonymous with PDR and FDR synonymous with CDR.

3.3.3 System Integration

The Contractor shall develop a *System/Software Integration Plan (SIP) (CDRL A018)*, identify and provide the necessary development facilities, and conduct system integration, in accordance with the SIP. The Contractor shall address all problems identified by the Government during interface testing. Interface testing and logistics integration events will typically occur annually.

3.3.4 Specification Requirement Verification Matrices (SRVMs) /Requirements Analysis.

The Contractor shall develop Specification Requirement Verification Matrices (SRVMs) to ensure traceability between the test requirements and the Performance - ***SRVM (CDRL A043)***. The Contractor shall conduct detailed system engineering, design, interface, and requirement analyses of the proposed system in accordance with the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 (Attachment 2). The design analyses shall consist of detailed examinations of the design techniques and materials that the Contractor plans to use to meet the requirements of the specifications. The Contractor shall not require any critical manufacturing processes, special inspections/tools, or calibrations in its design unless approved by the Government. The design analyses shall be specific on both the system and component levels. Materials and components to be incorporated in the system shall be specified including a listing of any hazardous materials or processes incorporated or used in the fabrication. Stress levels and safety factors, as appropriate, shall be identified for all mechanical and electrical parts. Methods and materials to be used to protect the components from the environment shall be identified using MIL-DTL-901, MIL-STD-461, and MIL-HDBK-470 as guidance. In addition to the system hardware physical considerations, the design analyses shall evaluate the system concept in terms of operability, reliability, production, maintainability and supportability objectives using MIL-STD-1472 and MIL-HDBK-470 as guidance. The Contractor shall examine the design details and modify them, as necessary, to ensure that the system design will meet the System Performance Specification For The Multifunction Modular Mast Payload Generation 2.

3.3.5 Failure Modes, Effects, and Criticality Analyses (FMECAs).

The Contractor shall perform a FMECA utilizing MIL-STD-1629 as guidance ***FMECA (CDRL A051)***. The FMECA shall be initiated early in the design phase to aid in the evaluation of the design to provide a basis for establishing corrective action. The FMECA shall document all probable failures in the system to determine by failure mode analysis the effect of each failure on system operation, identifies single point of failure, and ranks each failure according to a severity classification of failure effect.

The Contractor shall perform FMECA. The FMECA shall be performed to the LRU level and shall include an analysis of mission impact due to loss of functionality. All potential hardware and software failure modes shall be postulated at the LRU level and the effects of all higher levels shall be determined. Results of FMECAs shall be documented in the ***Reliability-Centered Maintenance (RCM) Failure Modes and Effects Analysis (FMEA) Report (CDRL A022)***.

3.3.5.1 Reliability Modeling and Allocations.

The Contractor shall develop, maintain, and update Reliability Models and Block Diagrams based on LRU, critical components, equipment, and system functions ***Reliability and Maintainability (R&M) Block Diagrams and Mathematical Models Report (CDRL A024)***. The Contractor shall use the models and block diagrams to allocate higher-level reliability requirements down to the equipment, LRU, and software levels for use in the selection of NDI. Reliability block diagrams shall be keyed and traceable, including nomenclature, to functional block diagrams, schematics, and drawings, to provide the basis for mathematical representation of reliability. The reliability mathematical model shall be updated with design changes as a result of relevant test changes in item configuration, mission parameters, and operational constraints. Modeling techniques shall provide basic/mission reliability for equipment and mission reliability of the system. All executable and data files shall be delivered to the Government. The deliverables for this work shall be ***Technical Report/Study Services Report (CDRL A040)***.

3.3.5.2 Maintainability Analysis.

The Contractor shall develop, maintain, and update Reliability Centered Maintenance (RCM) products and the reliability and maintainability predictions for the equipment and software using MIL-HDBK-217 as guidance. The Contractor shall conduct reliability and maintainability analyses throughout design and development to support availability predictions. This analysis shall be ***Reliability and Maintainability Predictions Report (CDRL A050)***.

3.3.6 Failure Reporting Analysis and Corrective Action System (FRACAS)

The Contractor shall implement a FRACAS program utilizing MIL-HDBK-2155 as guidance. The Contractor shall prepare and submit a quarterly FRACAS report for program office approval. *Failure Analysis and Summary Report (CDRL A048) and System Problem Report (CDRL A034).*

The Contractor shall analyze failure data, addressing: historical operating time and data; determination of the cause of each failure down to the LRU and component level that caused the failure; identify LRUs and components that have had more than one failure; planned corrective actions; and implementation and results of corrective actions, including resultant reliability. The Contractor shall analyze the root cause for all pattern failures (more than one) and shall submit for Government approval a failed item analysis report. If corrective actions are required, the Contractor shall include that data in the monthly Contractor's management report until the corrective action is completed. If deemed necessary by the Government, the Government will examine at the Contractor's facility, the data from all failure and corrective action analyses.

The Contractor shall be responsible for correcting deficiencies discovered during the reliability test and for incorporating engineering change orders into the production baseline accordingly. Throughout the Test, Analyze and Fix and FRACAS processes the Contractor shall plot failure data on a Reliability Growth Curve to assess system reliability. The Contractor may recommend additional specific testing to assess unique system characteristics. The deliverable for this work shall be *Contractor's Progress and Status Report (CDRL A001).*

3.3.7 Electromagnetic Compatibility (EMC) Control Planning

The Contractor shall implement EMC disciplines, management controls, engineering design procedures, suppression, and shielding techniques per MIL-STD-461F and NAVSEA S9407-AB-HBK-010 documents.

3.3.8 Quality Assurance

The Contractor shall establish, implement, and maintain a QA program that meets program objectives during the performance of the contract. At a minimum, the quality management process should include the following key QA activities:

- (1) Establishment of capable processes;
- (2) Monitoring and control of critical processes and product variation;
- (3) Establishment of mechanisms for feedback of field product performance;
- (4) Implementation of an effective root cause analysis and corrective action system;
- (5) Continuous process improvement

The Contractor shall provide status of ongoing quality assurance activities as part of the scheduled Program Reviews and shall assist and support quality audits as may be requested by the Government.

The QA requirements shall be equally applicable to the Contractor's subcontractors and suppliers. The Contractor shall qualify and monitor supplier sources in conjunction with QA requirements and material procurements.

All quality assurance operations performed by the Contractor shall be subject to Government verification at any time, to include observing Contractor operations to determine that practices, methods, and procedures of this contract are being properly applied.

3.3.9 Safety

The Contractor shall establish and maintain a *System Safety Program Plan (SSPP) (CDRL A046)* to support efficient and effective achievement of overall system safety objectives using MIL-STD-882E and PMS435 SSMP as guidance. The Contractor shall conduct, document and deliver the following safety analyses/reports for the MMM Payload Sensor with supporting details for variant or platform differences:

- a. Preliminary Hazard Analysis (PHA) *Technical Report/Study Services Report (CDRL A040)*
- b. System Hazard Analysis (SHA) *Technical Report/Study Services Report (CDRL A040)*

The Contractor shall ensure positive safety features are used in the MMM Payload Sensor to avoid personnel injury and equipment damage during the following activities:

- a. Handling
- b. Transportation
- c. Maintenance
- d. Testing
- e. Operations

The Contractor shall incorporate temporary protection for items in the MMM Payload Sensor that are susceptible to damage during all of the following activities:

- a. Handling
- b. Transportation
- c. Maintenance
- d. Testing
- e. Operations

3.3.10 Environmental Compliance

The Contractor shall ensure that work performed under the contract complies with National Aerospace Standard (NAS 411) and Environmental Readiness Program Manual (OPNAV Manual 5090.1 of 10 Jan 2014).

The Contractor shall eliminate, or at least minimize to the highest possible extent:

- a. Any usage of hazardous materials, including those on the Environmental Protection Agency (EPA) listing of 17 toxics (EPA 700-F-92-003)
- b. Any Class I or II Ozone depleting substances (The Contractor shall request approval from the Government prior to the use of ozone depleting chemical in accordance with 40 CFR Chapter I, Subchapter)
- c. Any of the Department of Defense (DoD) Top Ten Toxic Release Inventory (TRI) Chemicals

The Contractor shall ensure that any use of Hexavalent Chromium complies with USD (AT&L) memorandum 'Minimizing the Use of hexavalent Chromium (Cr6+)' of 8 April 2009 and ASN Memorandum 'Department of the Navy (DON) Hexavalent Chromium Authorization Process' of 22 December 2011.

The Contractor shall ensure only hazardous materials are used in accordance with 29 CFR 1910 Subpart H and FED-STD-313. The Contractor shall prevent the use of hazardous materials prohibited in the Submarine Material Control List (SMCL) and NAVSEA Technical Publication T9070-AL-DPC-020/077/2. The Contractor shall provide procedures for disposal of hazardous materials. Hazardous material, including carcinogenic material, which is required to be used in, supplied with, or required to support the system shall require approval from the Government. The Contractor shall identify and provide evidence to justify the use of hazardous or carcinogenic material to the Government. To facilitate approval the Contractor shall document the analysis conducted to evaluate alternatives and justify the use of hazardous material, including carcinogenic material, to the Government in a *Health Hazard Assessment Report (HHAR) (CDRL A026)* and provide Material Safety Data Sheets (OSHA Form 174).

3.3.11 Problem Reporting System

The Contractor shall establish a single system for the identification, tracking, and resolution of all hardware, software, and baseline documentation problems identified during system development, integration and testing. In addition, the Problem Report (PR) System shall be used to track test documentation problems and technical manual

errors. The PR system shall be accessible and viewable to the government. Data on the problems covered in this system shall be included with the ***Contractor's Progress and Status Report (CDRL A001)***.

3.4 Hardware Engineering

The Contractor shall provide hardware engineering services to meet the requirements of the contract and achieve the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 (Attachment 2). Due to the classified content of technical information, discussions, and system software at the SECRET level, SECRET-level access by contract personnel is required when providing engineering in support of hardware development, system integration design, and engineering interfaces with other equipment that includes Communications, sensor payloads, and Special Project components.

3.4.1 Hardware Requirements Definitions

The Contractor shall develop, update and maintain a hardware functional, performance and interface requirements baseline and generate program-unique specifications for the MMM Payload Sensor hardware. ***Program-Unique Specification Documents (CDRL A047)***.

3.4.2 Parts Management Program

The Contractor shall maintain a Parts Management Program that shall ensure the use of parts that meet contractual requirements, reduce proliferation of parts through standardization, enhancement, equipment reliability, and supportability, and proactively manage obsolescence. Processes and procedures accepting parts at the Contractor facility and supplier locations shall be established prior to Preliminary Design Review (PDR). The Contractor shall provide a Long Lead Item List to ensure parts are in place to meet scheduled events. The Contractor's Parts Management Program shall follow the guidelines described in MIL-STD-3018 and ANSI/AIAA-R-100A. The deliverable for this work shall be ***Parts Management Plan (CDRL A009)***.

3.4.3 COTS and NDI Requirements

The Contractor shall use NDI and COTS items to meet MMM Payload Sensor requirements to the maximum extent practicable. It is the Government's intent to use COTS and NDI documentation when available to reduce developmental costs. Design documentation for COTS and NDI is not required; however, the Contractor shall include the definition of the COTS/NDI physical and functional characteristics, including interfaces, for the application in the MMM Payload Sensor design documentation. The deliverables for this work shall be ***Interface Design Description (IDD) (CDRL A035)***, and ***Commercial Drawings/Models and Associated Lists (CDRL A017)***.

3.4.4 COTS /NDI Licenses and Modification

The Contractor shall be responsible for the procurement of licenses for COTS/NDI products delivered in this contract including both Contractors-developed and third party COTS/NDI. If the Contractor needs to obtain a license for any COTS/NDI incorporated into a deliverable under this contract, the Contractor shall notify the Government immediately in writing. This notification shall specify whether the license(s) that need to be procured are transferable to the Government and/or any of its other Contractors. The Contractor shall obtain Government approval prior to use of these components.

The Contractor shall provide copies of license agreements for Government approval prior to modification of any COTS/NDI. If approved, the Contractor shall document any modified COTS/NDI components and provide the document to the Government. The deliverable for this work shall be ***Technical Report/Study Services Report (CDRL A040)***.

3.4.5 Engineering Documentation and Drawings

The Contractor shall develop and update engineering and drawing documentation to support all requirements of the system performance specification and the contract. Documentation and drawings shall be comprised of commercial drawings, product drawings and interface control drawings including Red lined drawings. The deliverables for this

work shall be *Commercial Drawings/Models and Associated Lists (CDRL A017)*, *Product Engineering Design Data and Associated Lists (CDRL A023)* and *Interface Design Description (CDRL A035)*.

The Contractor shall prepare and update final production (level three) drawings for the MMM Payload Sensor. The deliverable for this work shall be *Product Engineering Design Data and Associated Lists (CDRL A023)*.

3.4.6 Equipment Integration

As needed, the Contractor shall provide engineering services to meet the integration requirements of this contract and achieve System Performance Specification For The Multifunction Modular Mast Payload Generation 2. The contractor shall provide support for MMM Payload Sensor integration of GFE or any other connected subcomponents. This system integration shall include any necessary design changes, procurement, or manufacturing to support the equipment, such as connectivity, software changes, human to machine interfaces, mounting, cooling, specification updates, or testing. This list is not all inclusive. The contractor shall work with the inboard integration team to ensure a cohesive design and interface requirements are met. This information shall be reflected as part of the System Integration Plan (SIP) *System/Software Integration Plan (SIP) (CDRL A018)*

3.4.7 Risk Mitigation

The Contractor shall identify risk mitigation associated with inadequate sources of supply and/or modification due to obsolescence. Other areas of risk analysis and mitigation will include, but not be limited to, life-cycle cost, technology refresh, manufacturing, repair centers, data modification, planned product improvement, supply management and configuration control. Identified risks and mitigation actions shall be reported as part of the *Contractor's Progress and Status Report (CDRL A001)*

3.4.8 Item Unique Identification (IUID) Report

The Contractor shall mark all unit level products in accordance with DFARS clause 252.211-7003 (Item Identification and Valuation), MIL-DTL-15024/1 B, MIL-STD-130N_CHG-1 and SECNAVINST 4440.34 as reference. Marking shall include: item name, reference designation, part number, contract number (procurement instrument identification number), and serial number. Modifications shall adhere to MIL-DTL-15024/4A. Government approval of nameplates includes ratio to equipment, location, access, legibility (clarity and size of font), as well as impact to function of the unit and environment. Marking information shall be entered into the IUID Registry, <https://www.bpn.gov/iuid/>.

The Contractor shall submit an IUID report (**CDRL A012, Item Unique Identification Report**) concurrent with the delivery of each MMM CLIN component delivery. The report shall identify items marked and their IUIDs in accordance with the NAVSEA IUID Implementation Strategy.

3.5 Technical Data Package

The Contractor shall develop Technical Data Packages for the MMM Payload Sensor, that describes a product baseline compatible with full scale level 3 production documentation in its native and or source format. This data package shall include descriptions of a candidate production system architecture, identification of parts, mechanical drawings, electrical schematics, software functional flow, computer network architecture and operator-machine interfaces. This data package shall also include all the procedures required to fabricate, assemble, test and validate the MMM Payload Sensor including quality control methods and reliability growth approaches. The data package shall include information on parts obsolescence, environmental qualification testing, electromagnetic interference testing, immunity to external noise sources, long term endurance and reliability, safety, and cyber security qualifications. *Technical Design Package (TDP) (CDRL A010)*.

3.6 Test and Evaluation (T&E)

The Contractor shall develop, maintain, and update a Test and Evaluation Program Plan (TEPP) *Test Evaluation Program (CDRL A045)* identifying each test required in accordance with the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 (Attachment 2). The TEPP shall include detailed

information to ensure that test program objectives, plans, and schedules, including requirements for test documentation, facilities, equipment, samples, and acceptance criteria, are met.

3.6.1 Joint Test Group (JTG)

The Contractor shall host and participate in the JTG meetings which will be made up of representatives from the Contractor and Government. A Government representative will chair the JTG. The JTG shall be the forum for discussion and resolution of all test and integration issues. The deliverables for this work shall be *Meeting Agenda (CDRL A005)* and *Report, Record of Meeting/Minutes (CDRL A006)*.

3.6.2 Supplemental Testing

As necessary, the Contractor shall provide any remaining follow-on testing, troubleshooting, and updates to the Performance Specification, schematic drawings, or ECPs to finalize approval of the TEMPALT or SHIPALT to include, but not limited to:

- a. EMI (Electromagnetic Interference) Testing
- b. EQT (Environmental Qualification Testing)
- c. FAI (First Article Inspection)
- d. End-to-end system and subsystem verification testing

3.6.3 Test Procedures and Reports

The Contractor shall develop, maintain, and update *Test Procedures (CDRL A025)*. Contractor shall generate a *Test/Inspection Report (CDRL A031)* following the conduct of each test performed. The TEPP shall describe all tests for each system configuration separately.

3.6.4 First Article Acceptance Test (FAAT)

The Contractor shall plan and successfully complete FAAT on the first article of each platform variant to meet the performance specification requirements. The Contractor shall develop, maintain, and update FAAT Test Plans and Procedures *First Article Qualification Test Plan and Procedures (CDRL A037)*. The Contractor shall submit a FAAT Plan for Government approval 60 calendar days prior to the scheduled test. The tests may be conducted at the Contractor's facilities or at an independent laboratory or commercial testing facility. The Contractor shall submit a *Test Inspection Report (CDRL A031)* at the completion of the FAAT.

3.6.5 Environmental Qualification Test (EQT)

The Contractor shall plan and successfully complete EQT on the first article system to meet the MMM Payload Sensor Performance Specification Requirements (Attachment 2). The Contractor shall develop, maintain, and update EQT Test Plans *Test Plan (CDRL A044)* and procedures *Test Procedure (CDRL A025)*. The Contractor shall submit EQT Plans for Government approval 60 calendar days prior to the scheduled test. The tests may be conducted at the Contractor's facilities or at an independent laboratory or commercial testing facility. The Contractor shall submit a *Test Inspection Report (CDRL A031)* at the completion of the EQT.

3.6.6 Factory Acceptance Test

The Contractor shall plan and successfully complete a Factory Acceptance Test (FAT) on all production sensors. The Contractor shall generate and maintain the *FAT plan (CDRL A032)* and procedures *Test Procedure (CDRL A025)* to describe all testing planned for MMM Payload Sensor production units. The FAT test plan shall be delivered to the Government for approval. The Contractor shall conduct testing in accordance with FAT test plan. The tests may be conducted at the Contractor's facilities or at an independent laboratory or commercial testing facility. The Contractor shall submit a *Test Inspection Report (CDRL A031)* at the completion of the FAT.

3.6.7 Problem Report (PR) Review Board

The Contractor shall host and participate in the PR Review Board. The Government will determine classification of PR severity.

3.7 Depot and Hardware Repair Support

The Contractor shall function as the depot, provide depot level hardware and equipment repair services, and operate a pool of ready for issue depot Lowest Replaceable Units (LRUs) and components, when directed by the Government. Additionally, the Contractor shall provide the management, engineering, supervisory and clerical support, plus all other operations functions, to maintain an infrastructure as required to enable depot repair. Data associated with depot and hardware repair support shall be submitted to the Government (*CDRL A040, Technical Report – Study/Services*).

When an item is received for repair, the Contractor shall analyze the item and provide the cost of the repair via an associated PQDR to the COR for review and approval (*CDRL A013, Product Quality Deficiency Report*). Repairs shall be performed within 90 days of the COR's acceptance of the PQDR and authorization of the repair action. If completion of the repair will take longer than 90 days, the Contractor shall notify the COR and provide current repair status and estimated completion date.

3.8 Configuration Management (CM)

The Contractor shall perform and maintain CM for the MMM Payload Sensor. The Contractor shall be responsible for developing and conducting a CM program in support of the Hardware, Firmware, and Computer Software Configuration Items (HWCIs/FWCIs/CSCIs) produced and provide a CM Plan outlining their processes and procedures. The Contractor's CM Plan shall follow the PMS435 CM Plan (PMS435-ESM-CMP-12-1). The Contractor's CM policies and procedures must be documented and integrated with its program management, engineering, supportability, and quality processes. EIA/IS-649 provides best practices guidance for the development of Contractor CM processes and methods. The Contractor's policy and procedures shall be outlined in their CM Plan *Supplier's Configuration Management Plan (CMP) (CDRLA054)*.

3.8.1 CM Data Distribution/Access

The Contractor shall provide the CM data electronically that is specified in the contract data requirements list (Exhibit A) via the Integrated Product Data Management (IPDM) Database.

3.8.2 Configuration Identification

The Contractor shall ensure that the following configuration identification requirements are implemented.

3.8.2.1 Hardware Identification/Marking

The Contractor shall physically identify and mark hardware (parts, assemblies, units) in accordance with the requirements of the PMS435 Configuration Management plan as specified in the Contractor CM Plan.

3.8.2.2 Software Identification/Marking

The Contractor shall physically identify each software entity under configuration control in accordance with the requirements of the PMS435 Configuration Management plan as specified in the Contractor CM Plan. The Contractor shall mark and label each software entity with a unique identifier and the version/revision level. Where appropriate, this information must be embedded in the code header. The Contractor shall mark each software media (e.g., magnetic tape, disk) containing copies of tested and verified software entities with a label containing, or providing cross-reference to, a listing of the applicable software identifiers of the entities it contains. The Contractor shall label media for deliverable CSCIs with the Government contract number; software identifier; Commercial and Government Entity (CAGE) code; media number (e.g., 1 of 2, 2 of 2) if there are multiple tapes/disks per set; and serial number of the media or media set (if there is more than one copy being delivered). Media copy numbers shall distinguish each copy of the software media from its identical copies. Each time a new version of software is issued; new or modified identifier numbers must be assigned.

3.8.2.3 Firmware Identification/Marking

The Contractor shall mark and label each firmware under configuration control in accordance with the requirements of the PMS435 Configuration Management plan as specified in the Contractor CM Plan. The Contractor shall mark the part number on the firmware device or on the next higher assembly:

(a) If the hardware device and embedded code are both controlled via a single engineering drawing, the part number representing the device with the code embedded shall comprise the label. Software identifier and software version shall be embedded in the source code header.

(b) If the Product Configuration Documentation (PCD) for the source code consists of a software product specification, the unloaded device part number and the software identifier of the embedded code (including version number) shall comprise the label. In addition, the software identification(s) shall be labeled on an identification plate or decal located adjacent to the nameplate on the equipment containing the firmware.

3.8.3 Configuration Control

The Contractor shall provide systematic evaluation, coordination, and implementation of all proposed/approved changes or deviations to the approved configuration baseline documentation via IPDM. The Contractor shall prepare Engineering Change Documentation (ECD) as required for the below paragraphs.

3.8.3.1 Engineering Change Proposals (ECPs)

For changes to the MMM Payload Sensor that impact the System Performance Specification For The Multifunction Modular Mast Payload Generation 2 requirements (Attachment 2) the Contractor shall submit Specification Change Notices (*CDRL A049, Specification Change Notices [SCNs]*) and *Engineering Change Proposals (CDRL A033)*. The Contractor shall prepare and submit Class I ECPs and Class II ECPs, IAW the PMS435 CM Plan and per the PMS435 integrated Product Data Management (iPDM) electronic schema (DD Form 1692). The Contractor shall submit all ECPs to the Government for review and disposition. Class I ECPs that impact cost of the controlled baseline shall be implemented only after authorized by the Procuring Contracting Officer via a contract modification. Proposed changes that would not affect the form, fit, function and/or cost of a configuration item identified in a Government controlled baseline, shall be submitted to the COR as a no-cost Class I or Class II ECPs for concurrence. ECP changes that receive such concurrence shall be implemented by the Contractor. Engineering changes should be limited to those changes or improvements, which are necessary to meet performance requirements, mitigate obsolescence or offer significant benefit to the Government. The Contractor shall provide supporting data (drawings, sketches, photographs, calculations, financial analysis or other attachments) that will clarify or justify the ECP. The Contractor shall determine the hazards and associated risks with ECPs and include a description of the impact in the proposed ECP documentation if the proposed ECP affects safety. The Contractor shall interface with the AN/BLQ-10(V)/Electronic Warfare System In Service Engineering Agent (ISEA) to coordinate technical content and submittal of ECPs.

The Contractor shall develop and submit a Technical Manual Deficiency Reports (TMDERs) for each Engineering Change Proposal that is developed and submitted by the Contractor and has an IETM and/or SSM impact identified (*CDRL A014, Technical Manual Change Request*).

The Contractor shall develop and submit a Technical Feedback Report (TFBR) for each Engineering Change Proposal that is developed and submitted by the Contractor and has a Preventative Maintenance System (PMS) impact identified (*CDRL A015, Technical Feedback Report*).

3.8.3.2 COTS Module Substitutions

Substitution of a COTS module for a COTS module previously selected for use in the hardware design is only allowed after completion of testing that demonstrates a change to the configuration baseline is not required. The substitution shall be treated as a Class II ECP. However, if such testing discloses that a change to the configuration baseline is required then the Contractor shall generate a Class I ECP.

3.8.3.3 Correction of Deficiencies

The Contractor is responsible for the development of ECPs and for all aspects of the implementation of the ECP which are required to correct deficiencies. Implementation shall include, but is not limited to, retrofit of all configuration items and provision of support resources called for under the contract to reflect any changes to be accomplished by the ECP to the extent necessary to allow all configuration items provided under this contract to be operated and maintained with the same support resources, such as operation and maintenance manuals, provisioning technical documentation, and maintenance spare/repair parts for such items. Changes that are directed by the Government shall be incorporated in accordance with the contract “CHANGES” clauses.

3.8.3.4 Requests for Variation (RFV)

The Contractor shall prepare critical and major Requests for Deviations (RFVs) and minor RFVs for the MMM Payload Sensor for Government review and approval. Authorized RFVs shall apply to a specific quantity of items for manufacture and shall not permanently change the established baseline. Submittal of recurring RFVs is discouraged.

When practical, RFVs should be unclassified. Classified data essential to the evaluation and disposition of an RFV must be submitted separately in accordance with the security procedures established in accordance with the contract and referenced in the unclassified portion of the RFV. The deliverable for this work shall be ***Request for Variation (RFV) (CDRL A016)***. Depending on the severity of the RFV the Government may request consideration be provided from the Contractor to the Government.

3.8.3.5 Class II ECPs Minor RFVs

The Contractor shall prepare Class II ECPs and minor RFVs for the MMM Payload Sensor for submittal to the Administrative Contracting Officer (ACO) for concurrence in classification. If the ACO or the ACO's representative does not notify the Contractor otherwise within fifteen (15) calendar days after submittal, concurrence may be assumed.

In the event of non-concurrence, the Contractor shall stop further implementation of the proposed Class II ECP or minor RFV at no increase in the price of this contract. The Contractor may resubmit the ECP as a Class I ECP or major RFV or request review by the Procuring Contracting Officer (PCO) within five (5) calendar days following the ACO non-concurrence. The Contractor shall perform as directed by the PCO; in the event that the Contractor disagrees with the PCO's direction, the Contractor may file an appeal under the “DISPUTES” clause of this contract. Pending resolution, however, the Contractor shall continue to perform pursuant to the PCO's direction.

3.8.3.6 Revisions to ECPs/RFVs/SCNs

The Contractor shall make revisions to ECPs/RFVs/SCNs for the MMM Payload Sensor as necessary and submit for approval.

3.8.3.7 Specification Change Notices (SCNs)

The Contractor shall prepare a proposed SCN concurrent with a Class I ECP for each specification, as that would require revision if the ECP were approved. The SCN shall be used to describe where and how the specification change will be made and provide instructions for pen and ink changes for minor changes or provide replacement specification pages. Classified data essential to the evaluation and disposition of an SCN must be submitted separately in accordance with the security procedures established in accordance with the contract and referenced in the unclassified portion of the SCN. The deliverable for this work shall be ***Specification Change Notice (CDRL A049)***.

3.8.3.8 Design Change Notice (DCN)

The Contractor shall notify the Government of all changes, whether of a production or modification type, which impact the end item or its supporting equipment's provisioning. The Contractor shall submit **Engineering Data for Provisioning (EDFP) (CDRL A011)** via the DCNs. When the design change significantly impacts the system or equipment configuration, and when directed by the Government, a changed system or equipment shall be provisioned as a new end item and documented by new PTD with associated EDP.

3.8.3.9 Engineering Change Instruction

The Contractor shall provide engineering support for the preparation of Government-generated engineering change instruction documents necessary to retrofit approved Class I Engineering Changes into delivered Kits. Includes: installation procedures, remove and replace procedures, rip-out and configuration data, and applicable logistics items and elements.

3.8.4 Configuration Status Accounting System

The Contractor's configuration status accounting (CSA) system shall provide for recording and reporting of information that is necessary to effectively manage the hardware and software delivered under this contract. Information to be recorded includes indented product listings, specification revision level and history, drawing revision level and history, software /firmware version level and history, active change preparation and processing status, approved change implementation status, operational configuration level, and history. The deliverable for this work shall be **Configuration Status Accounting Information (CDRL A019)**.

3.9 Integrated Logistic Support

The Contractor shall maintain an ILS Program in support of MMM Payload Sensor. The Contractor is responsible for providing current and accurate logistics source data in support of development and production systems as well as to coordinate and facilitate processes and infrastructure to provide for total life cycle support. Source data includes, but not limited to, technical documentation – Interaction Electronic Technical Manuals (IETMs), Ship Systems Manuals (SSMs), Maintenance Planning – Maintenance Index Pages (MIPS) and Maintenance Requirements Cards (MRCs), supply support – Provisioning Technical Data (PTD) and Engineering Data for Provisioning (EDFP).

The Contractor shall provide integrated logistics support services to meet the requirements of the contract and achieve MMM Payload Sensor Performance Specification. The deliverables shall be **Technical Information Reports (CDRL A030), and Technical Report/Study Services Report (CDRL A040)**.

3.10 Reliability Centered Maintenance (RCM)

The Contractor shall develop, maintain and update Reliability Centered Maintenance (RCM) in accordance with DoD 4151.22-M. The Contractor shall utilize the 12 Phase RCM process in accordance with MIL-STD-3034 to ensure the system achieves the desired levels of safety, reliability, and operational readiness in the most cost-effective manner. There are multiple analyses involved with RCM; they will be covered under one **Reliability-Centered Maintenance (RCM) Master System and Subsystem Index (MSSI) (CDRL A039)**.

3.11 Supply Support

The Contractor shall provide Original Equipment Manufacturer (OEM) source data, drawings, and technical information, and photographs for maintenance planning and Provisioning Parts List development. The Contractor shall provide a LRU List for the end item being delivered. The Contractor shall provide engineering and logistics support to and host a provisioning guidance conference and a provisioning conference for each Technical Insertion. The deliverables for this work shall be **Meeting Agenda (CDRL A005), Report, Record of Meeting/Minutes (CDRL A006), Provisioning Parts List (CDRL A053)**.

The Contractor shall support the OPUS modeling and the ILS IPT in formulating Onboard Repair Parts (OBRP), Installation and Checkout (INCO) kits, repair parts and support material requirements for O/I/D Level maintenance.

3.12 Support and Test Equipment

The Contractor shall identify and document Organizational (O), Intermediate (I), and Depot (D) level support and test equipment for MMM Payload Sensor, including GFP, based on the operation and maintenance requirements determined as a part of the maintenance task analysis and RCM analysis processes. Support and test equipment identified shall consider scheduled and unscheduled maintenance at each maintenance level. The Contractor shall minimize the number of different types of support equipment needed for the system and shall identify the test equipment as General or Special Purpose Electronic Test Equipment (GPETE or SPETE). The Contractor shall provide justification for the use of SPETE. ***Maintenance Test and Support Equipment Requirements List (CDRL A020)***. The Contractor shall develop and submit a ***Calibration and Measurement Requirement Summary (CMRS) (CDRL A021)*** detailing Test Equipment usage in the conducting of Corrective and Preventative Maintenance procedures for the MMM Payload Sensor.

3.13 Interactive Electronic Technical Manual (IETM) and Courseware

The Contractor shall develop, update, and maintain source data for an O-Level and I-Level IETM. Source data shall include: Physical and Functional descriptions at system, sub-system, chassis and component level; power and data wiring diagrams; digital photographs at rack, chassis and component level featuring controls, indicators and connections; access to lab for development, validation and verification evolutions, software users guide. The deliverables for this work shall be ***IETM Content Plan (CDRL A041)***.

3.14 Diminishing Manufacturing Sources and Material Shortages (DMSMS) Parts Management

The Contractor shall map the system's current technology. The mapping shall identify significant forecasted changes to capacity, reliability and design for the system's technologies so that informed decisions on potential upgrades and technology insertion and refreshment can be made. The deliverable for this work shall be ***Bill of Materials (BOM) for Logistics and Supply Chain Risk Management (CDRL A029) and Contractor's Progress and Status Report (CDRL A001)***.

3.15 DMSMS Management Requirements

The Contractor shall provide input into a Government approved tool managed by the DMSMS Management Team Lead, for the purpose of exchanging obsolescence information across the DOD enterprise. The Contractor shall track DMSMS cost and performance metrics using DASN(L) DMSMS Management Plan Guidance and report on these metrics as part of the scheduled DMTs, CM and ILS IPTs.

The Contractor shall develop and maintain sources and source lists of all components, materials, assemblies, subassemblies and piece parts to the Lowest Replaceable Unit (LRU) throughout the system's life cycle that may be at risk for DMSMS and obsolescence. The deliverable shall be a ***Bill of Materials (BOM) for Logistics and Supply Chain Risk Management (CDRL A029)***.

The Contractor shall flow-down DMSMS contract requirements to subcontractors. The Contractor shall manage and maintain visibility of its suppliers' DMSMS capabilities and efforts. The Contractor will provide input to the Quarterly DMSMS/Obsolescence reports for PMS435.

3.16 Training and Training Support

The Contractor shall develop the Training Program Development and Management Plan to meet interim operations and maintenance training requirements in accordance with MIL-PRF-29612. The deliverable for this work shall be ***Technical Training Plan (CDRL A027)***.

3.16.1 Training Materials

The Contractor shall develop, update, and maintain interim Operations and Maintenance training materials in accordance with the approved Training Program Development and Management Plan. The Contractor shall develop training materials that can be incorporated into existing training or used as stand-alone material. In addition, The

Contractor shall deliver 3rd party maintenance and/or operational manuals for commercially available system components and assemblies.

3.17 Packaging, Handling, Storage and Transportation (PHS&T)

The Contractor shall establish a PHS&T program that utilizes existing PHS&T programs to the maximum extent possible in accordance with ASTM-3951 and where ASTM-3951 is insufficient to meet requirements, MIL-STD-2073. The Contractor shall perform an analysis of the system and system LRUs and planned storage locations/durations to determine what type of packaging (to include special tools) will be required to maintain material during transportation and short and long-term storage.

The Contractor shall incorporate temporary protection for items that are susceptible to damage during the following events:

- Shipping
- Handling
- Packaging
- Transportation
- Installation

3.18 Cybersecurity

The Contractor shall provide information security engineering to assist the Government in obtaining the necessary MMM Payload Sensor Authorities to Operate (ATOs) through the Risk Management Framework (RMF) process. The Contractor shall assist the government in identifying and managing the Information System (IS) security risk related to the operation and use of the MMM Payload Sensor throughout all phases of the system lifecycle. The system must be verified as compliant to governing Cybersecurity (CS) and Information Assurance (IA) requirements. This includes all variants and versions of the MMM Payload Sensor hardware and software. Deliverables shall be the ***DOD Risk Management Framework (RMF) Package Deliverables (CDRL A028)***.

3.19 Field Engineering Services

The Contractor shall provide field engineering services to meet the requirements of the contract and achieve System Performance Specification For The Multifunction Modular Mast Payload Generation 2, SHIPALT development, TEMPALT development, maintenance, design, Performance and Modeling Analysis, fleet support, In-Service Engineering Agent (ISEA) support, system integration testing, system testing, logistics, and training engineering services. Support personnel shall include qualified electrical/electronic, mechanical and software engineers and technicians with a SECRET security clearance where required for on-site technical advisory service to assist Government personnel in support of system checkout, integration testing, system operational verification testing, repair, training, and to resolve other technical issues. Field maintenance support shall include on-site assistance to submarine platforms for MMM Payload Sensor troubleshooting and repair. Any problems that affect safety or the ability to operate (no workaround) shall be directed to the Government within 24 hours. The Contractor shall submit a summary of field maintenance and repair services as a part of the ***Contractor's Progress and Status Report (CDRL A001)***.

3.20 Maintenance Support Services

The Contractor shall provide maintenance support services to meet the requirements of the contract and achieve System Performance Specification For The Multifunction Modular Mast Payload Generation 2. The Contractor shall provide qualified electrical/electronic, mechanical and software engineers and technicians where required for field maintenance repair to support the fleet. Field maintenance support shall include on-site assistance to submarine platforms for MMM Payload Sensor troubleshooting and repair. Any problems that affect safety or the ability to operate (no workaround) shall be directed to the Government within 24 hours. Additionally, the Contractor shall establish a worldwide, 24-hour toll-free telephone hotline when providing fleet support. Within 24 hours of the receipt of any call, the Contractor shall provide assistance to the caller for corrective action, acknowledge receipt of the call to the Government, maintain a database of the call received (for trend analysis), and request further direction

from the Government as needed. The Contractor shall include a summary of telephone calls and their disposition as part of the quarterly Contractor's management meetings. The efforts shall include technician, engineering, and logistics support. The deliverables shall be **Technical Information Reports (CDRL A030)**, **Technical Report/Study Services Report (CDRL A040)**, and **Trip/Travel Reports (CDRL A042)**.

3.21 Studies/Analyses

The Contractor shall conduct studies and analyses to meet the requirements of the contract and achieve System Performance Specification For The Multifunction Modular Mast Payload Generation 2. The Contractor shall document the results of special studies and analyses. The deliverable for this work shall be **Technical Report/Study Services Report (CDRL A040)**.

CLAUSES INCORPORATED BY FULL TEXT

C-202-H001 ADDITIONAL DEFINITIONS–BASIC (NAVSEA) (OCT 2018)

- (a) Department - means the Department of the Navy.
- (b) Commander, Naval Sea Systems Command - means the Commander of the Naval Sea Systems Command of the Department of the Navy or his duly appointed successor.
- (c) References to The Federal Acquisition Regulation (FAR) - All references to the FAR in this contract shall be deemed to also reference the appropriate sections of the Defense FAR Supplement (DFARS), unless clearly indicated otherwise.
- (d) National Stock Numbers - Whenever the term Federal Item Identification Number and its acronym FIIN or the term Federal Stock Number and its acronym FSN appear in the contract, order or their cited specifications and standards, the terms and acronyms shall be interpreted as National Item Identification Number (NIIN) and National Stock Number (NSN) respectively which shall be defined as follows:

(1) National Item Identification Number (NIIN). The number assigned to each approved Item Identification under the Federal Cataloging Program. It consists of nine numeric characters, the first two of which are the National Codification Bureau (NCB) Code. The remaining positions consist of a seven digit non-significant number.

(2) National Stock Number (NSN). The National Stock Number (NSN) for an item of supply consists of the applicable four-position Federal Supply Class (FSC) plus the applicable nine-position NIIN assigned to the item of supply.

(End of text)

C-204-H001 USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (OCT 2018)

- (a) NAVSEA may use a file room management support contractor, hereinafter referred to as "the support contractor", to manage its file room, in which all official contract files, including the official file supporting this procurement, are retained. These official files may contain information that is considered a trade secret, proprietary,

business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as “protected information”. File room management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file room management services are acquired will contain a requirement that:

(1) The support contractor not disclose any information;

(2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;

(3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,

(4) In addition to any other rights the contractor may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed protected information, for the unauthorized duplication, release, or disclosure of such protected information.

(c) Execution of this contract by the contractor is considered consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file room management support contractor for the limited purpose of executing its file room support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Contractors should enter into separate non-disclosure agreements with the file room contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the file room or otherwise encumber the government.

(End of text)

C-204-H002 IMPLEMENTATION OF ENHANCED SECURITY CONTROLS ON SELECT DEFENSE INDUSTRIAL BASE PARTNER NETWORKS (NAVSEA) (SEP 2024)

1. System Security Plan and Plans of Action and Milestones (SSP/POAM) Reviews

a) Within thirty (30) days of contract award, the Contractor shall make its System Security Plan(s) (SSP(s)) for its covered contractor information system(s) available for review by the Government at the contractor's facility. The SSP(s) shall implement the security requirements in Defense Federal Acquisition Regulation Supplement (DFARS) clause 252.204-7012, which is included in this contract. The Contractor shall fully cooperate in the Government's review of the SSPs at the Contractor's facility.

b) If the Government determines that the SSP(s) does not adequately implement the requirements of DFARS clause 252.204-7012 then the Government shall notify the Contractor of each identified deficiency. The Contractor shall correct any identified deficiencies within thirty (30) days of notification by the Government. The contracting officer may provide for a correction period longer than thirty (30) days and, in such a case, may require the Contractor to submit a plan of action and milestones (POAM) for the correction of the identified deficiencies. The Contractor shall immediately notify the contracting officer of any failure or anticipated failure to meet a milestone in such a

POAM.

c) Upon the conclusion of the correction period, the Government may conduct a follow-on review of the SSP(s) at the Contractor's facilities. The Government may continue to conduct follow-on reviews until the Government determines that the Contractor has corrected all identified deficiencies in the SSP(s).

d) The Government may, in its sole discretion, conduct subsequent reviews at the Contractor's site to verify the information in the SSP(s). The Government will conduct such reviews at least every three (3) years (measured from the date of contract award) and may conduct such reviews at any time upon thirty (30) days' notice to the Contractor.

2. Compliance to NIST 800-171

a) The Contractor shall fully implement the CUI Security Requirements (Requirements) and associated Relevant Security Controls (Controls) in NIST Special Publication 800-171 (Rev. 2) (NIST SP 800-171), or establish a SSP(s) and POA&Ms that varies from NIST 800-171 only in accordance with DFARS clause 252.204-7012(b)(2), for all covered contractor information systems affecting this contract.

b) Notwithstanding the allowance for such variation, the contractor shall identify in any SSP and POA&M their plans to implement the following, at a minimum:

(1) Implement Control 3.5.3 (Multi-factor authentication). This means that multi-factor authentication is required for all users, privileged and unprivileged accounts that log into a network. In other words, any system that is not standalone should be required to utilize acceptable multi-factor authentication. For legacy systems and systems that cannot support this requirement, such as CNC equipment, etc., a combination of physical and logical protections acceptable to the Government may be substituted;

(2) Implement Control 3.1.5 (least privilege) and associated Controls, and identify practices that the contractor implements to restrict the unnecessary sharing with, or flow of, covered defense information to its subcontractors, suppliers, or vendors based on need-to-know principles;

(3) Implement Control 3.1.12 (monitoring and control remote access sessions) - Require monitoring and controlling of remote access sessions and include mechanisms to audit the sessions and methods.

(4) Audit user privileges on at least an annual basis;

(5) Implement:

i. Control 3.13.11 (FIPS 140-2 validated cryptology or implementation of NSA or NIST approved algorithms (i.e. FIPS 140-2 Annex A: AES or Triple DES) or compensating controls as documented in a SSP and POAM); and,

ii. NIST Cryptographic Algorithm Validation Program (CAVP) (see <https://csrc.nist.gov/projects/cryptographic-algorithm-validation-program>);

(6) Implement Control 3.13.16 (Protect the confidentiality of CUI at rest) or provide a POAM for implementation which shall be evaluated by the Navy for risk acceptance.

(7) Implement Control 3.1.19 (encrypt CUI on mobile devices) or provide a plan of action for implementation which can be evaluated by the Government Program Manager for risk to the program.

3. Cyber Incident Response

a) The Contractor shall, within fifteen (15) days of discovering the cyber incident (inclusive of the 72-hour reporting period), deliver all data used in performance of the contract that the Contractor determines is impacted by the incident and begin assessment of potential warfighter/program impact.

b) Incident data shall be delivered in accordance with the Department of Defense Cyber Crimes Center (DC3) Instructions for Submitting Media available at http://www.acq.osd.mil/dpap/dars/pgi/docs/Instructions_for_Submitting_Media.docx. In delivery of the incident data, the Contractor shall, to the extent practical, remove contractor-owned information from Government covered defense information.

c) If the Contractor subsequently identifies any such data not previously delivered to DC3, then the Contractor shall immediately notify the contracting officer in writing and shall deliver the incident data within ten (10) days of identification. In such a case, the Contractor may request a delivery date later than ten (10) days after identification. The contracting officer will approve or disapprove the request after coordination with DC3.

4. Naval Criminal Investigative Service (NCIS) Outreach

The Contractor shall engage with NCIS industry outreach efforts and consider recommendations for hardening of covered contractor information systems affecting DON programs and technologies.

5. NCIS/Industry Monitoring

a) In the event of a cyber incident or at any time the Government has indication of a vulnerability or potential vulnerability, the Contractor shall cooperate with the Naval Criminal Investigative Service (NCIS), which may include cooperation related to: threat indicators; pre-determined incident information derived from the Contractor's infrastructure systems; and the continuous provision of all Contractor, subcontractor or vendor logs that show network activity, including any additional logs the contractor, subcontractor or vendor agrees to initiate as a result of the cyber incident or notice of actual or potential vulnerability.

b) If the Government determines that the collection of all logs does not adequately protect its interests, the Contractor and NCIS will work together to implement additional measures, which may include allowing the installation of an appropriate network device that is owned and maintained by NCIS, on the Contractor's information systems or information technology assets. The specific details (e.g., type of device, type of data gathered, monitoring period) regarding the installation of an NCIS network device shall be the subject of a separate agreement negotiated between NCIS and the Contractor. In the alternative, the Contractor may install network sensor capabilities or a network monitoring service, either of which must be reviewed for acceptability by NCIS. Use of this alternative approach shall also be the subject of a separate agreement negotiated between NCIS and the Contractor.

c) In all cases, the collection or provision of data and any activities associated with this statement of work shall be in accordance with federal, state, and non-US law.

(End of Text)

C-209-H001 FIRST ARTICLE (CONTRACTOR TESTING) (NAVSEA) (APR 2024)

(a) The First Article shall conform in every respect to the requirements of this contract. The First Article shall be manufactured with tools, materials, and methods which are the same as the tools, material and methods which will

be used to manufacture the production units. All items delivered under the contract shall be manufactured under the same conditions and quality established by the First Article. Any changes to tools, material, or methods after the first article approval shall be documented by the contractor and approved by the Contracting Officer before they are used.

(b) The Contractor shall make a record of all data obtained during such tests in a form similar to the guidance provided in MIL-HDBK-831A dated 25 June 2013.

(c) Pursuant to paragraph (c) of the clause entitled "First Article Approval--Contractor Testing" (FAR 52.209-3), the First Article shall not be delivered as part of the production quantity.

(End of Text)

C-209-H003 WAIVER OF FIRST ARTICLE REQUIREMENTS (NAVSEA) (OCT 2018)

If the First Article is waived by the Government, the Contractor shall deliver supplies that are identical or substantially identical to those previously accepted by the Government under the following contract(s):

(Offeror to fill in contract number(s), as applicable. See Section M)

(End of Text)

C-211-H016 SPECIFICATIONS AND STANDARDS (NAVSEA) (OCT 2018)

(a) Definitions.

(i) A "zero-tier reference" is a specification, standard, or drawing that is cited in the contract (including its attachments).

(ii) A "first-tier reference" is either: (1) a specification, standard, or drawing cited in a zero-tier reference, or (2) a specification cited in a first-tier drawing.

(b) Requirements. All zero-tier and first-tier references, as defined above, are mandatory for use. All lower tier references shall be used for guidance only unless specifically identified below.

None

(End of text)

C-211-H017 UPDATING SPECIFICATIONS AND STANDARDS (NAVSEA) (DEC 2018)

The contractor may request that this contract be updated to include the current version of the applicable specification or standard if the update does not affect the form, fit or function of any deliverable item or increase the cost/price of the item to the Government. The contractor should submit update requests to the Procuring Contracting Officer with copies to the Administrative Contracting Officer and cognizant program office representative for approval. The contractor shall perform the contract in accordance with the existing specifications and standards until notified of approval/disapproval of its request to update by the Procuring Contracting Officer. Any approved alternate specifications or standards will be incorporated into the contract.

(End of text)

C-211-H018 APPROVAL BY THE GOVERNMENT (NAVSEA) (JAN 2019)

Approval by the Government as required under this contract and applicable specifications shall not relieve the Contractor of its obligation to comply with the specifications and with all other requirements of the contract, nor shall it impose upon the Government any liability it would not have had in the absence of such approval.

(End of text)

C-212-W001 CONTRACT TERMS AND CONDITIONS—COMMERCIAL ITEMS ADDENDUM TO 52.212-4 (NAVSEA) (OCT 2018)

(o) Warranty -- append the following to paragraph (o):

The contractor shall extend to the Government the full coverage of any standard commercial warranty normally offered in a similar commercial sale at no additional cost to the Government. Acceptance of the standard commercial warranty does not waive the Government's rights under the "Inspection" clause nor does it limit the Government's rights with regard to the other terms and conditions of this contract. In the event of a conflict, the terms and conditions of the contract shall take precedence over the standard commercial warranty. The standard commercial warranty period shall begin upon final acceptance of the applicable material and/or services listed in the Schedule.

The contractor shall provide a copy of its standard commercial warranty (if applicable) with its offer. The warranty covers a period of ____ months. (*Offeror is to insert number.*)

The following information is hereby appended to the clause:

(w) Data Rights. The Government shall have data rights to all data generated under this contract or order in accordance with DFARS 252.227-7015.

(x) Ordering. The agency authorized to place delivery orders against this contract is: [Add ordering activity name]. Delivery orders will be placed against this contract, by the Government, using the SF 1449.

(End of text)

C-215-H002 CONTRACTOR PROPOSAL (NAVSEA) (OCT 2018)

(a) Performance of this contract by the Contractor shall be conducted and performed in accordance with the detailed obligations to which the Contractor committed itself in Proposal _____ dated _____ in response to Solicitation No. N00024-25-R-6234.

(b) The technical volume(s) of the Contractor's proposal is(are) hereby incorporated by reference and made subject to the "Order of Precedence" (FAR 52.215-8) clause of this contract. Under the "Order of Precedence" clause, the technical volume(s) of the Contractor's proposal referenced herein is (are) hereby designated as item (f) of the clause, following "the specifications" in the order of precedence.

(End of text)

C-217-H001 PROVISIONED ITEMS ORDERS--BASIC (NAVSEA) (OCT 2018)

(a) General. The Contractor agrees that it will furnish the supplies or services ordered by the Government in accordance with the procedures specified herein. Orders will be placed by the Contracting Officer, Provisioning Activity or Administrative Contracting Officer as unilateral or bilateral modifications to this contract on SF 30, Amendment of Solicitation/Modification of Contract. Any amounts shown in Section B at time of award of the initial contract for each provisioned line item are estimated amounts only and are subject to upward or downward adjustment by the issuing activity. If no amounts are shown, funding will be obligated before or at time of order issuance. It is understood and agreed that the Government has no obligation under this contract to issue any orders hereunder.

(b) Priced Orders. For each proposed order, the Contractor agrees that it will submit such cost or pricing data as the Contracting Officer may require. Promptly thereafter, the Contractor and the Contracting Officer shall negotiate the price and delivery schedule for the proposed order. Upon execution and receipt of the priced order, the Contractor shall promptly commence the work specified in the order.

(c) Un definitized Orders. Whenever the Contracting Officer determines that urgent demands or requirements prevent the issuance of a priced order, he/she may issue an unpriced order. Such order may be unilateral or bilateral and shall establish a limitation of Government liability, a maximum ceiling amount, and a schedule for definitization, as described in subparagraph (e)(2) below. Upon request the Contractor shall submit a maximum ceiling amount proposal before the undefinitized order is issued. The maximum ceiling amount is the maximum price at which the order may be definitized. The Contractor shall begin performing the undefinitized order upon receipt, except as provided in paragraph (d) below. The clause entitled "Contract Definitization" (DFARS 252.217-7027) shall be included in any undefinitized order.

(d) Rejection of Unilateral Orders. The Contractor may reject any unilateral order if the Contractor determines that it cannot feasibly perform the order, or if the Contractor does not concur with the maximum ceiling amount. However, each unilateral order shall be deemed to have been accepted by the Contractor unless within fifteen days of issuance of the order, the Contractor notifies the Contracting Officer in writing of its rejection of the order.

(e) Definitization of Un definitized Orders. (1) The Contractor agrees that following the issuance of an undefinitized order, it will promptly begin negotiating with the Contracting Officer the price and terms of a definitive order that will include: (A) all clauses required by regulation on the date of the order; (B) all clauses required by law on the date of execution of the definitive order; and, (C) any other mutually agreeable clauses, terms

and conditions. No later than sixty (60) days after the undefinitized order is issued, the Contractor agrees to submit a cost proposal with sufficient data to support the accuracy and derivation of its price; and, when required by FAR, cost or pricing data. If additional cost information is available prior to the conclusion of negotiations, the Contractor shall provide that information to the Contracting Officer. The price agreed upon shall be set forth in a bilateral modification to the order. In no event shall the price exceed the maximum ceiling amount specified in the undefinitized order.

(2) Each undefinitized order shall contain a schedule for definitization which shall include a target date for definitization and dates for submission of a qualifying proposal, beginning of negotiations and, if appropriate, submission of make-or-buy and subcontracting plans and cost or pricing data. Submission of a qualifying proposal in accordance with the definitization schedule is a material element of the order. The schedule shall provide for definitization of the order by the earlier of:

(i) a specified target date which is not more than 180 days after the issuance of the undefinitized order. However, that target date may be extended by the Contracting Officer for up to 180 days after the Contractor submits a qualifying proposal as defined in DFARS 217.7401; or

(ii) the date on which the amount of funds expended by the Contractor under the undefinitized order exceed fifty percent (50%) of the order's maximum ceiling amount, except as provided in subparagraph (f)(3) below.

(3) If agreement on a definitive order is not reached within the time provided pursuant to subparagraph (e)(2) above, the Contracting Officer may, with the approval of the Head of the Contracting Activity, determine a reasonable price in accordance with Subpart 15.4 and Part 31 of the FAR, and issue a unilateral order subject to Contractor appeal as provided in the "Disputes" clause (FAR 52.233-1). In any event, the Contractor shall proceed with completion of the order, subject to the "Limitation of Government Liability" clause (FAR 52.216-24).

(f) Limitation of Government Liability. (1) Each undefinitized order shall set forth the limitation of Government liability, which shall be the maximum amount that the Government will be obligated to pay the Contractor for performance of the order until the order is definitized. The Contractor is not authorized to make expenditures or incur obligations exceeding the limitation of Government liability set forth in the order. If such expenditures are made, or if such obligations are incurred, they will be at the Contractor's sole risk and expense. Further, the limitation of Government liability shall be the maximum Government liability if the order is terminated. The "Limitation of Government Liability" clause shall be included in any undefinitized order.

(2) Except for undefinitized orders for Foreign Military Sales; purchases of less than \$25,000; special access programs; and Congressionally-mandated long-lead procurements; and except as otherwise provided in subparagraph (f)(3) below, the limitation of Government liability shall not exceed fifty percent (50%) of the ceiling amount of an undefinitized order. In the case of orders within these excepted categories, however, the procedures set forth herein shall be followed to the maximum extent practical.

(3) If the Contractor submits a qualifying proposal (as defined in DFARS 217.7401) to definitize an order before the Government has obligated fifty percent (50%) of the ceiling amount, the Contracting Officer may increase the limitation of Government liability to up to seventy-five percent (75%) of the maximum ceiling amount or up to seventy-five percent (75%) of the price proposed by the Contractor, whichever is less.

(4) If at any time the Contractor believes that its expenditure under an undefinitized order will exceed the limitation of Government liability, the Contractor shall so notify the Contracting Officer, in writing, and propose an appropriate increase in the limitation of Government liability of such order. Within thirty (30) days of such notice, the Contracting Officer will either (i) notify the Contractor in writing of such appropriate increase, or (ii) instruct the Contractor how and to what extent the work shall be continued; provided, however, that in no event shall the Contractor be obligated to proceed with work on an undefinitized order beyond the point where its costs incurred

plus a reasonable profit thereon exceed the limitation of Government liability, and provided also that in no event shall the Government be obligated to pay the Contractor any amount in excess of the limitation of Government liability specified in any such order prior to establishment of firm prices.

(g) Initial Spares. The limitations set forth in paragraph (c) and subparagraphs (e)(2), (f)(2) and (f)(3) do not apply to undefinitized orders for the purchase of initial spares.

(h) Terminal Date for Placement of Orders. The Contractor shall not be obligated to accept any orders placed hereunder beyond 180 days after delivery of the last end item.

(i) Segregation of Costs. The Contractor shall segregate the costs of performance of each undefinitized order from the cost of any other work performed by the Contractor.

(End of text)

C-217-H003 PROVISIONED ITEMS ORDERS--ALTERNATE II (NAVSEA) (OCT 2018)

(a) General. The Contractor agrees that it will furnish the supplies or services ordered by the Government in accordance with the procedures specified herein. Orders may be placed by the Contracting Officer, Provisioning Activity or Administrative Contracting Officer as unilateral or bilateral modifications to this contract on SF 30, Amendment of Solicitation/Modification of Contract. Any amounts shown in Section B at time of award of the initial contract for each provisioned line item are estimated amounts only and are subject to upward or downward adjustment by the issuing activity. If no amounts are shown, funding will be obligated before or at time of order issuance. It is understood and agreed that the Government has no obligation under this contract to issue any orders hereunder.

(b) Priced Orders. For each proposed order, the Contractor agrees that it will submit such cost or pricing data as the Contracting Officer may require. Promptly thereafter, the Contractor and the Contracting Officer shall negotiate the price and delivery schedule for the proposed order. Upon execution and receipt of the priced order, the Contractor shall promptly commence the work specified in the order.

(c) Undefinitized Orders. Whenever the Contracting Officer determines that urgent demands or requirements prevent the issuance of a priced order, he/she may issue an unpriced order. Such order may be unilateral or bilateral and shall establish a limitation on Government liability, a maximum ceiling amount, and a schedule for definitization, as described in subparagraph (e)(2) below. Upon request the Contractor shall submit a maximum ceiling amount proposal before the undefinitized order is issued. The maximum ceiling amount is the maximum price at which the order may be definitized. The Contractor shall begin performing the undefinitized order upon receipt, except as provided in paragraph (d) below. The clause entitled "Contract Definitization" (DFARS 252.217-7027) shall be included in any undefinitized order.

(d) Unilateral Undefinitized Orders. (1) For a unilateral undefinitized order, the Contractor shall within ten calendar days of receipt of the order notify the Contracting Officer in writing if it takes exception to the ceiling amount and/or the delivery schedule and shall propose a revised ceiling amount and/or a revised delivery schedule at that time. For unilateral undefinitized orders to which the Contractor takes no exception, the Contractor is obligated to perform just as if it were a fully definitized order.

(2) After receipt of the Contractor's Proposal to establish the revised ceiling amount and/or the revised delivery schedule, the Contracting Officer shall: (1) adjust the ceiling amount and/or revise the delivery schedule; (2) advise the Contractor that the order will be adjusted in a different amount than proposed by the Contractor; or (3) advise the

Contractor that no adjustment will be made. In the event the Contractor has taken exception to the ceiling amount and/or the delivery schedule and has submitted a timely proposal in accordance with the preceding requirement and the Contracting Officer has not accepted the Contractor's proposal, the Contractor shall not be obligated to perform the order beyond the point at which it would be entitled to be compensated in an amount in excess of the Government's limitation of liability contained in the unilateral order.

(e) Definitization of Undefined Orders. (1) The Contractor agrees that following the issuance of an undefinitized order, it will promptly begin negotiating with the Contracting Officer the price and terms of a definitive order that will include: (A) all clauses required by regulation on the date of the order; (B) all clauses required by law on the date of execution of the definitive order; and, (C) any other mutually agreeable clauses, terms and conditions. No later than sixty (60) days after the undefinitized order is issued, the contractor agrees to submit a cost proposal with sufficient data to support the accuracy and derivation of its price; and, when required by FAR, cost or pricing data. If additional cost information is available prior to the conclusion of negotiations, the Contractor shall provide that information to the Contracting Officer. The price agreed upon shall be set forth in a bilateral modification to the order. In no event shall the price exceed the maximum ceiling amount specified in the undefinitized order.

(2) Each undefinitized order shall contain a schedule for definitization which shall include a target date for definitization and dates for submission of a qualifying proposal, beginning of negotiations and, if appropriate, submission of make-or-buy and subcontracting plans and cost or pricing data. Submission of a qualifying proposal in accordance with the definitization schedule is a material element of the order. The schedule shall provide for definitization of the order by the earlier of:

(i) a specified target date which is not more than 180 days after the issuance of the undefinitized order. However, that target date may be extended by the Contracting Officer for up to 180 days after the Contractor submits a qualifying proposal as defined in DFARS 217.7401; or

(ii) the date on which the amount of funds obligated by the Government under the undefinitized order exceed fifty percent (50%) of the order's maximum ceiling amount, except as provided in subparagraph (f)(3) below.

(3) If agreement on a definitive order is not reached within the time provided pursuant to subparagraph (e)(2) above, the Contracting Officer may, with the approval of the Head of the Contracting Activity, determine a reasonable price in accordance with Subpart 15.4 and Part 31 of the FAR, and issue a unilateral order subject to Contractor appeal as provided in the "Disputes" clause (FAR 52.233-1). In any event, the Contractor shall proceed with completion of the order, subject to the "Limitation of Government Liability" clause (FAR 52.216-24).

(f) Limitation of Government Liability. (1) Each undefinitized order shall set forth the limitation of Government liability, which shall be the maximum amount that the Government will be obligated to pay the Contractor for performance of the order until the order is definitized. The Contractor is not authorized to make expenditures or incur obligations exceeding the limitation of Government liability set forth in the order. If such expenditures are made, or if such obligations are incurred, they will be at the Contractor's sole risk and expense. Further, the limitation of liability shall be the maximum Government liability if the order is terminated. The "Limitation of Government Liability" clause shall be included in any undefinitized order.

(2) Except for undefinitized orders for Foreign Military Sales; purchases of less than \$25,000; special access programs; and Congressionally-mandated long-lead procurements; and except as otherwise provided in subparagraph (f)(3) below, the limitation of Government liability shall not exceed fifty percent (50%) of the ceiling amount of an undefinitized order. In the case of orders within these excepted categories, however, the procedures set forth herein shall be followed to the maximum extent practical.

(3) If the Contractor submits a qualifying proposal (as defined in DFARS 217.7401) to definitize an order before the Government has obligated fifty percent (50%) of the ceiling amount, the Contracting Officer may increase the

limitation of Government liability to up to seventy-five percent (75%) of the maximum ceiling amount or up to seventy-five percent (75%) of the price proposed by the Contractor, whichever is less.

(4) If at any time the Contractor believes that its expenditure under an undefinitized order will exceed the limitation of Government liability, the Contractor shall so notify the Contracting Officer, in writing, and propose an appropriate increase in the limitation of Government liability of such order. Within thirty (30) days of such notice, the Contracting Officer will either (i) notify the Contractor in writing of such appropriate increase, or (ii) instruct the Contractor how and to what extent the work shall be continued; provided, however, that in no event shall the Contractor be obligated to proceed with work on an undefinitized order beyond the point where its costs incurred plus a reasonable profit thereon exceed the limitation of Government liability, and provided also that in no event shall the Government be obligated to pay the Contractor any amount in excess of the limitation of Government liability specified in any such order prior to establishment of firm prices.

(g) Initial Spares. The limitations set forth in paragraph (c) and subparagraphs (e)(2), (f)(2) and (f)(3) do not apply to undefinitized orders for the purchase of initial spares.

(h) Terminal Date for Placement of Orders. The Contractor shall not be obligated to accept any orders placed hereunder beyond the guaranty period set forth in the clause entitled "Guaranty Period" for the last article under the applicable item called for in Section B hereof for which the supplies or services are being acquired, provided, however, that deliveries or performance of such supplies or services shall be completed not later than the expiration of said guaranty period.

(i) Segregation of Costs. The Contractor shall segregate the costs of performance of each undefinitized order from the cost of performance of any other work performed by the Contractor.

(j) Ordering. The cognizant ordering activities are designated below:

(End of text)

C-223-H003 EXCLUSION OF MERCURY (NAVSEA) (MAR 2019)

(a) Definitions. As used in this text:

Article means a manufactured item other than a fluid or particle: (i) which is formed to a specific shape or design during manufacture; (ii) which has end use function(s) dependent in whole or in part upon its shape or design during end use; and (iii) which under normal conditions of use does not release more than very small quantities, e.g., minute or trace amounts of a hazardous chemical, and does not pose a physical hazard or health risk to employees.

Boundary of containment means a continuous tight seal (barrier) to prevent the release of functional mercury during normal operation and maintenance. Examples include the exterior of a fluorescent lamp, glass capsule of a mercury switch, and container for mercury reagents. A double boundary of containment consists of two independent seals.

Functional mercury means mercury or mercury compound(s) contained in equipment that is required for the equipment to operate properly, such as that found in mercury switches, fluorescent lamps, flat-panel monitors, thermostats, thermostat probes, small coin type batteries, barometers, and dental amalgams.

Hardware means any article, container, piece of material, individual part, subassembly, assembly, component, or system to which mercury control requirements apply.

Mercury-free means hardware that does not contain functional mercury and is not contaminated by mercury or mercury compounds.

Portable means items that are frequently transported during normal operation. Desk lamps, shop lights, and hand-held instruments are considered portable, while bulbs in stationary light fixtures are not. In general, items that require transport only during maintenance, installation, and removal of the items are not considered portable.

(b) The Contractor, and all subcontractors and vendors, shall ensure that mercury or mercury containing compounds are not intentionally added to, or come in direct contact with, hardware or supplies furnished under this contract.

(1) The Contractor shall ensure that mercury and mercury compounds are not taken onboard naval vessels by Contractor, subcontractor, or vendor personnel except for functional mercury used in batteries, dental amalgams, fluorescent lamps, flat-panel monitors, required instruments, sensors or controls, weapon systems, and chemical analysis reagents specified by the Naval Sea Systems Command (NAVSEA).

(2) Portable fluorescent lamps and portable instruments containing elemental mercury must be shock-proof in accordance with MIL-DTL-901E entitled Requirements for Shock Tests, H.I. (High Impact) Shipboard Machinery, Equipment, and Systems and have mercury enclosed by a double boundary of containment. Some devices with liquid crystal display (LCD) screens utilize a fluorescent bulb backlight to illuminate the LCD screen. No additional restrictions or controls apply to devices with LCD screens; however, the Contractor shall remove the LCD screen and seal it in plastic following any evidence that the backlight failed.

(3) For Submarines, any use of mercury containing items must be approved as required by the Nuclear Powered Submarine Atmosphere Control Manual (S9510-AB-ATM-010/U) Volume 1.

(4) The Contractor shall ensure that mercury and mercury compounds do not contact hardware surfaces in systems covered by NAVSEA Manual NAVSEA 0989-064-3000 entitled Cleanliness Requirements for Nuclear Propulsion Plant Maintenance and Construction, submarine air systems, level I systems per NAVSEA Publication 0948-LP-045-7010, NAVSEA Material Control Standard, or the submarine safety program (SUBSAFE) surfaces during maintenance or repair. Such hardware is designated as mercury-free. The Contractor shall ensure that all other hardware that could be structurally degraded by contamination with elemental mercury or reactive mercury compounds is separated from it by sufficient distance, or boundaries of containment that effectively prevents contact in all but the most extreme circumstances.

(5) The Contractor shall check any hardware surfaces in the above systems which are known or suspected to have come in contact with mercury or mercury compounds for evidence of structural degradation and external mercury contamination. The existence of external mercury contamination can be determined following MIL-STD-2041D entitled Control of Detrimental Materials.

(6) The presence of mercury in a product may be determined by checking product labeling on material safety data sheets or safety data sheets. Chemical analysis is not required.

(7) The Contractor shall dispose of any mercury and mercury compounds in accordance with OPNAV Manual (OPNAV M-5090.1) entitled Environmental Readiness Program Manual of 10 January 2014.

(8) If the use of mercury or mercury compounds cannot be avoided, a risk assessment and waiver request, if required, must be performed and submitted per the NAVSEA Hazardous Material Avoidance Process (T9070-AL-DPC-020/077-2). For systems covered by the NAVSEA Manual NAVSEA 0989-064-3000 entitled Cleanliness Requirements for Nuclear Propulsion Plant Maintenance and Construction, submit the risk assessment and waiver request, if required to Nuclear Propulsion (NAVSEA 08).

(c) In all cases where mercury or a mercury compound has contacted hardware surfaces required to be mercury-free the Contractor shall immediately provide a report to the NAVSEA Dry Environmental Systems and Hazardous Materials (NAVSEA 05P5) via the cognizant contract administration safety office. Reports concerning systems covered by NAVSEA Manual 0989-064-3000 must include NAVSEA Nuclear Propulsion Directorate (SEA 08) in the distribution. Reports must be in letter form and include the date and details of the contact, the surfaces contacted, the recovery actions taken, and the status of the affected surfaces.

(End of Text)

C-227-H006 DATA REQUIREMENTS (NAVSEA) (OCT 2018)

The data to be furnished hereunder shall be prepared in accordance with the Contract Data Requirements List, DD Form 1423, Exhibit(s) A, attached hereto.

(End of Text)

C-227-H010 COMPUTER SOFTWARE AND COMPUTER DATA BASES DELIVERED TO OR RECEIVED FROM THE GOVERNMENT (NAVSEA) (JAN 2019)

(a) The Contractor agrees to test for viruses, malware, Trojan Horses, and other security threats such as those listed in NIST Special Publication 800-12 Rev 1, An Introduction to Computer Security, The NIST Handbook, Chapter 4, in all computer software and computer data bases (as defined in the clause entitled "Rights In Noncommercial Computer Software and Noncommercial Computer Software Documentation" (DFARS 252.227-7014)), before delivery of that computer software or computer data base in whatever media and on whatever system the computer software or data base is delivered whether delivered separately or imbedded within delivered equipment. The Contractor warrants that when delivered any such computer software and computer data base shall be free of viruses, malware, Trojan Horses, and other security threats such as those listed in NIST Special Publication 800-12 Rev 1.

(b) The Contractor agrees that prior to use under this contract, it shall test any computer software and computer data base received from the Government for viruses, malware, Trojan Horses, and other security threats listed in NIST Special Publication 800-12 Rev 1, An Introduction to Computer Security, The NIST Handbook, Chapter 4.

(c) Any license agreement governing the use of any computer software or computer software documentation delivered to the Government as a result of this contract must be paid-up, irrevocable, world-wide, royalty-free, perpetual and flexible (user licenses transferable among Government employees and personnel under Government contract).

(d) The Contractor shall not include or permit to be included any routine to enable the contractor or its subcontractor(s) or vendor(s) to disable the computer software or computer data base after delivery to the Government.

(e) No copy protection devices or systems shall be used in any computer software or computer data base delivered under this contract with unlimited or Government purpose rights (as defined in DFARS 252.227-7013 and 252.227-7014) to restrict or limit the Government from making copies.

(f) It is agreed that, to the extent that any technical or other data is computer software by virtue of its delivery in digital form, the Government shall be licensed to use that digital-form data with exactly the same rights and limitations as if the data had been delivered as hard copy.

(g) Any limited rights legends or other allowed legends placed by a Contractor on technical data or other data delivered in digital form shall be digitally included on the same media as the digital-form data and must be associated with the corresponding digital-form technical data to which the legend(s) apply to the extent possible. Such legends shall also be placed in human-readable form on a visible surface of the media carrying the digital-form data as delivered, to the extent possible.

(End of text)

C-227-H014 PROTECTION OF DEPARTMENT OF NAVY TRADEMARKS - BASIC (NAVSEA) (JUL 2021)

(a) The contractor shall not assert any claim, in any jurisdiction, based on trademark or other name or design-based causes of action that are based on rights the contractor believes it has in the term(s) Multifunction Modular Mast and Multifunction Modular Mast Payload System (the "Designation(s)"), against the Government or others authorized by the Government to use the Designation(s) (including the word(s), name, symbol, or design) acting within the scope of such authorization (i.e. claims for trademark infringement, dilution, trade dress infringement, unfair competition, false advertising, palming off, passing off, or counterfeiting). Such authorization shall be implied by the award of a Government contract to any party for the manufacture, production, distribution, use, modification, maintenance, sustainment, or packaging of the products and services identified under this contract, and the scope of such implied authorization is defined as the use of the Designation(s) in performance under such contract by the prime contractor and its subcontractors and suppliers at any tier. In all other cases, the scope of the authorization will be defined by the Government in writing.

(b) The contractor shall notify the contracting officer at least 30 days before asserting rights in, or filing an application to register, any one of the Designation(s) in any jurisdiction within the United States. Any such notification shall be in writing and shall identify the Designation(s) (including the word(s), name, symbol, or design), provide a statement as to its intended use(s) in commerce, and list the particular classes of goods or services in which registration will be sought.

(End of text)

C-233-H001 DOCUMENTATION OF REQUESTS FOR EQUITABLE ADJUSTMENT--BASIC (NAVSEA) (OCT 2018)

(a) For the purposes of this special contract requirement, the term "change" includes not only a change that is made pursuant to a written order designated as a "change order" but also (1) an engineering change proposed by the Government or by the Contractor and (2) any act or omission to act on the part of the Government in respect of which a request is made for equitable adjustment.

(b) Whenever the Contractor requests or proposes an equitable adjustment of \$100,000 or more per vessel in respect to a change made pursuant to a written order designated as a "change order" or in respect to a proposed engineering change and whenever the Contractor requests an equitable adjustment in any amount in respect to any other act or omission to act on the part of the Government, the proposal supporting such request shall contain the following information for each individual item or element of the request:

(1) A description (i) of the work required by the contract before the change, which has been deleted by the change, and (ii) of the work deleted by the change which already has been completed. The description is to include a list of components, equipment, and other identifiable property involved. Also, the status of manufacture, procurement, or installation of such property is to be indicated. Separate description is to be furnished for design and production work. Items of raw material, purchased parts, components and other identifiable hardware, which are made excess by the change and which are not to be retained by the Contractor, are to be listed for later disposition;

(2) Description of work necessary to undo work already completed which has been deleted by the change;

(3) Description of work not required by the terms hereof before the change, which is substituted or added by the change. A list of components and equipment (not bulk materials or items) involved should be included. Separate descriptions are to be furnished for design work and production work;

(4) Description of interference and inefficiencies in performing the change;

(5) Description of each element of disruption and exactly how work has been, or will be disrupted:

(i) The calendar period of time during which disruption occurred, or will occur;

(ii) Area(s) aboard the vessel where disruption occurred, or will occur;

(iii) Trade(s) disrupted, with a breakdown of manhours for each trade;

(iv) Scheduling of trades before, during, and after period of disruption;

(v) Description of measures taken to lessen the disruptive effect of the change;

(6) Delay in delivery attributable solely to the change;

(7) Other work attributable to the change;

(8) Supplementing the foregoing, a narrative statement of the direct "causal" relationship between any alleged Government act or omission and the claimed consequences therefor, cross-referenced to the detailed information provided as required above; and

(9) A statement setting forth a comparative enumeration of the amounts "budgeted" for the cost elements, including the material costs, labor hours and pertinent indirect costs, estimated by the Contractor in preparing its initial and ultimate proposal(s) for this contract, and the amounts claimed to have been incurred and/or projected to be incurred corresponding to each such "budgeted cost" elements.

(c) Each proposal in excess of \$100,000 submitted in support of a claim for equitable adjustment under any requirement of this contract shall, in addition to the information required by paragraph (b) hereof, contain such information as the Contracting Officer may require with respect to each individual claim item.

(d) It is recognized that individual claims for equitable adjustment may not include all of the factors listed in paragraph (b) above. Accordingly, the Contractor is required to set forth in its proposal information only with respect to those factors which are comprehended in the individual claim for equitable adjustment. In any event, the information furnished hereunder shall be in sufficient detail to permit the Contracting Officer to cross-reference the claimed increased

costs, or delay in delivery, or both, as appropriate, submitted pursuant to paragraph (c) of this requirement, with the information submitted pursuant to paragraph (b) hereof.

(End of text)

C-237-H002 SUBSTITUTION OF KEY PERSONNEL (NAVSEA) (OCT 2018)

(a) The Contractor agrees that a partial basis for award of this contract is the list of key personnel proposed. Accordingly, the Contractor agrees to assign to this contract those key persons whose resumes were submitted with the proposal necessary to fulfill the requirements of the contract. No substitution shall be made without prior notification to and concurrence of the Contracting Officer in accordance with this requirement. Substitution shall include, but not be limited to, subdividing hours of any key personnel and assigning or allocating those hours to another individual not approved as key personnel.

(b) All proposed substitutes shall have qualifications equal to or higher than the qualifications of the person to be replaced. The Contracting Officer shall be notified in writing of any proposed substitution at least forty-five (45) days, or ninety (90) days if a security clearance is to be obtained, in advance of the proposed substitution. Such notification shall include: (1) an explanation of the circumstances necessitating the substitution; (2) a complete resume of the proposed substitute; (3) an explanation as to why the proposed substitute is considered to have equal or better qualifications than the person being replaced; (4) payroll record of the proposed replacement; and (5) any other information requested by the Contracting Officer to enable him/her to judge whether or not the Contractor is maintaining the same high quality of personnel that provided the partial basis for award.

(c) Key personnel are identified in an attachment in Section J.

(End of text)

C-242-H001 EXPEDITING CONTRACT CLOSEOUT (NAVSEA) (OCT 2018)

(a) As part of the negotiated fixed price or total estimated amount of this contract, both the Government and the Contractor have agreed to waive any entitlement that otherwise might accrue to either party in any residual dollar amount of \$1,000 or less at the time of final contract closeout. The term "residual dollar amount" shall include all money that would otherwise be owed to either party at the end of the contract, except that, amounts connected in any way with taxation, allegations of fraud and/or antitrust violations shall be excluded. For purposes of determining residual dollar amounts, offsets of money owed by one party against money that would otherwise be paid by that party may be considered to the extent permitted by law.

(b) This agreement to waive entitlement to residual dollar amounts has been considered by both parties. It is agreed that the administrative costs for either party associated with collecting such small dollar amounts could exceed the amount to be recovered.

(End of text)

C-242-H002 POST AWARD MEETING (NAVSEA) (OCT 2018)

(a) A post-award meeting with the successful offeror will be conducted within [*] days after award of the [contract / task order]. The meeting will be held at the address below:

Location/Address: [*]

(b) The contractor will be given [*] working days notice prior to the date of the meeting by the Contracting Officer.

(c) The requirement for a post-award meeting shall in no event constitute grounds for excusable delay by the contractor in performance of any provisions in the [contract / task order].

(d) The post-award meeting will include, but is not limited to, the establishment of work level points of contact, determining the administration strategy, roles and responsibilities, and ensure prompt payment and close out. Specific topics shall be mutually agreed to prior to the meeting.

[*] To be specified at [contract] award.

(End of text)

C-242-H003 TECHNICAL INSTRUCTIONS (NAVSEA) (OCT 2018)

(a) Performance of the work hereunder may be subject to written technical instructions signed by the Contracting Officer and the Contracting Officer's Representative specified in Section G of this contract. As used herein, technical instructions are defined to include the following:

(1) Directions to the Contractor which suggest pursuit of certain lines of inquiry, shift work emphasis, fill in details or otherwise serve to accomplish the contractual statement of work.

(2) Guidelines to the Contractor which assist in the interpretation of drawings, specifications or technical portions of work description.

(b) Technical instructions must be within the general scope of work stated in the contract. Technical instructions may not be used to: (1) assign additional work under the contract; (2) direct a change as defined in the "CHANGES" clause of this contract; (3) increase or decrease the contract price or estimated contract amount (including fee), as applicable, the level of effort, or the time required for contract performance; or (4) change any of the terms, conditions or specifications of the contract.

(c) If, in the opinion of the Contractor, any technical instruction calls for effort outside the scope of the contract or is inconsistent with this requirement, the Contractor shall notify the Contracting Officer in writing within ten (10) working days after the receipt of any such instruction. The Contractor shall not proceed with the work affected by the technical instruction unless and until the Contractor is notified by the Contracting Officer that the technical instruction is within the scope of this contract.

(d) Nothing in the foregoing paragraph shall be construed to excuse the Contractor from performing that portion of the contractual work statement which is not affected by the disputed technical instruction.

(End of text)

C-243-H003 CONFIGURATION MANAGEMENT (NAVSEA) (APR 2024)

(a) Baseline Definition - All contractual documentation in effect at the time of contract award shall constitute the Contract Baseline, which shall be considered incorporated in the baseline documentation.

(b) General Requirement –

(1) The Contractor shall maintain a Configuration Control Program to assure that all detail level work being performed under this contract is in compliance with appropriate baseline documentation. The Contractor shall prepare a Configuration Management Plan in accordance with the requirements of the contract. If required, the Contractor's Configuration Management Plan shall be submitted through the appropriate Contract Data Requirements List (CDRL) for approval by the Government.

(2) Whenever a situation arises wherein the Contractor cannot comply with a baseline document, or whenever intent of such documentation is significantly changed by detail level documentation, the Contractor shall submit change documents to modify the baseline to resolve the conflict or to allow non-compliance. Whenever the cost of implementing a proposed change is less than the threshold requiring certified cost or pricing data, the Contractor shall provide such detail of related costs as to allow the Government to determine an equitable adjustment for the change document submission. Whenever the contract cost changes by an amount greater than the threshold requiring certified cost or pricing data, the Contractor shall complete such cost and pricing data as the Contracting Officer shall require detailing all related costs, and attach it to the change document. Requirements for cost and pricing data shall be determined by the gross amount of the change unless otherwise directed by the Contracting Officer. Change documentation shall be submitted to the Contracting Officer in accordance with the appropriate CDRL, and as described in paragraphs (c) through (f) below.

(c) Engineering Change Proposals (ECPs) - ECPs shall be prepared in accordance with the approved configuration management plan and the requirements of the contract. DI-SESS-80639E approved 11 February 2020, EIA-649-1A dated 10 August 2020, and MIL-HDBK-61B dated 7 April 2020 apply. An ECP shall be submitted whenever the detail level physical configuration, material quality, operational or functional performance of equipment or installed systems will not be in compliance with baseline design-related documents (Specifications, Contract Drawings, etc.), and a change to the baseline document is considered an appropriate means of resolving a design-related issue. The contractor shall develop documentation in sufficient detail to enable Government review and evaluation of the merits of the proposed change, including cost and scheduling impact, ship class impact if applicable, and consequences if disapproved. List all existing drawings and technical manuals impacted by the change, including a brief narrative explanation of needed changes to incorporate the ECP if approved. Provide weight and moment data incidental to the change, if applicable. The Contractor shall also prepare applicable baseline document insert sheets, with specific word changes or proposed rewrite, to facilitate baseline documentation changes.

(d) Non-Engineering Change Proposals (NECPs) – An NECP shall be submitted whenever necessary to document administrative, procedural, scheduling, or documentation changes that do not directly impact the physical configuration of the equipment. The NECP shall explain the nature of the problem, identify the applicable baseline document (i.e., Contract Data Requirement List (CDRL), Contract Clause, etc.) and provide a detailed explanation justifying the proposed course of action desired to resolve the problem. Insert sheets for applicable documents shall also be attached to facilitate change action in the event the NECP is approved.

(e) Deviations/Waivers - In the event that a baseline design-related document requirement cannot be met, and a change to the baseline document is considered inappropriate, the Contractor shall submit a Request for Variance. The explanation of "Need for Deviation/Waiver" in the DD1694 shall provide detailed justification and consequences of approval, to include technical details explaining the degree of noncompliance and the effect on ship equipment or system operation.

(f) Equitable Adjustments for Change Documentation Preparations - For its effort expended in preparing ECPs, NECPs, and Deviations/Waivers, the Contractor shall receive equitable adjustment under the following circumstances:

(1) In the event the Contractor, on its own initiative, and without written request from the Contracting Officer, develops a change document that is later disapproved by the Government, the Contractor shall bear the cost of this effort.

(2) To avoid such loss, and at its option, the Contractor may submit a "preliminary" document that outlines intent, but without detailed supporting documentation and request the Contracting Officer's approval for expenditure of effort to complete the detailed supporting documentation. In the event the Contracting Officer denies this request, the Contractor will bear the cost of development of the "preliminary" document, and shall make no further effort to complete detailed supporting documentation.

(3) In the event the Contracting Officer approves the Contractor's request to develop supporting documentation, the Contractor shall be equitably compensated for its effort for both the "preliminary" and "final" documentation, regardless of whether or not the change document is later approved.

(4) In the event the Contracting Officer requests in writing that the Contractor develop change documentation, the effort expended by the Contractor in developing such documentation shall be subject to equitable adjustment, regardless of whether or not the change document is later approved.

(5) In the event the Contractor, on its own initiative, and without written request from the Government, develops a change document that is later approved by the Contracting Officer, the cost of developing such documentation shall be subject to equitable adjustment.

(6) Failure to agree to such equitable adjustment in contract price shall constitute a dispute, and shall be adjudicated in accordance with the requirements of the clause entitled "Disputes" (FAR 52.233-1).

(g) Any cost reduction proposal submitted pursuant to the clause entitled "Value Engineering" (FAR 52.248-1) shall be submitted as a Value Engineering Change Proposal (VECP). The Contractor shall follow the VECP preparation requirements of FAR 52.248-1(c) and any additional guidance provided by the Contracting Officer.

(End of Text)

C-244-H002 SUBCONTRACTORS/CONSULTANTS (NAVSEA) (FEB 2023)

In addition to the information required by FAR 52.244-2(e) of the contract, when consent to subcontract is required per FAR 52.244-2, the contractor shall also include the following information in requests to add subcontractors or consultants during performance:

(1) Impact on subcontracting goals,

(2) Impact on providing support at the contracted value,

(3) IF SEAPORT TASK ORDER - The results of negotiations to incorporate fee rate caps no higher than the lower of (i) SeaPort NXG fee rate caps for the prime contractor, or in the case where the proposed subcontractor is also a SeaPort NXG prime, (ii) fee rate caps that are no higher than the subcontractor's prime SeaPort NXG contract.

(End of Text)

C-245-H005 INFORMATION AND DATA FURNISHED BY THE GOVERNMENT--ALTERNATE I
(NAVSEA) (MAY 2019)

(a) Contract Specifications, Drawings and Data. The Government will furnish, if not included as an attachment to the contract, any unique contract specifications or other design or alteration data cited or referenced in Section C.

(b) Government Furnished Information (GFI). GFI is defined as that information essential for the installation, test, operation, and interface support of all Government Furnished Material identified in an attachment in Section J. The Government shall furnish only the GFI identified in an attachment in Section J. The GFI furnished to the contractor need not be in any particular format. Further, the Government reserves the right to revise the listing of GFI as follows:

(1) The Contracting Officer may at any time by written order:

- (i) delete, supersede, or revise, in whole or in part, data identified in an attachment in Section J; or
- (ii) add items of data or information to the attachment identified in Section J; or
- (iii) establish or revise due dates for items of data or information in the attachment identified in Section J.

(2) If any action taken by the Contracting Officer pursuant to subparagraph (1) immediately above causes an increase or decrease in the costs of, or the time required for, performance of any part of the work under this contract, the contractor may be entitled to an equitable adjustment in the contract amount and delivery schedule in accordance with the procedures provided for in the "CHANGES" clause of this contract.

(c) Except for the Government information and data specified by paragraphs (a) and (b) above, the Government will not be obligated to furnish the Contractor any specification, standard, drawing, technical documentation, or other publication, notwithstanding anything to the contrary in the contract specifications, the GFI identified in an attachment in Section J, the clause of this contract entitled "Government Property" (FAR 52.245-1) or "Government Property Installation Operation Services" (FAR 52.245-2), as applicable, or any other term or condition of this contract. Such referenced documentation may be obtained:

(1) From the ASSIST database via the internet at <https://assist.dla.mil/online/start/>; or

(2) By submitting a request to the

Department of Defense Single Stock Point (DoDSSP)
Building 4, Section D

700 Robbins Avenue
Philadelphia, Pennsylvania 19111-5094
Telephone (215) 697-6396
Facsimile (215) 697-9398.

Commercial specifications and standards, which may be referenced in the contract specification or any sub-tier specification or standard, are not available from Government sources and should be obtained from the publishers.

(End of Text)

C-246-H001 EXTENSION OF COMMERCIAL WARRANTY (NAVSEA) (OCT 2018)

The Contractor shall extend to the Government the full coverage of any standard commercial warranty normally offered in a similar commercial sale, provided that such warranty is available at no additional cost to the Government. The Contractor shall provide a copy of the standard commercial warranty with the item. The standard commercial warranty period shall begin upon the final acceptance of the applicable material or software. Acceptance of the standard commercial warranty does not waive the Government's rights under the "Inspection" clause, nor does it limit the Government's rights with regard to other terms and conditions of the contract. In the event of a conflict, the terms and conditions of the contract shall take precedence over the standard commercial warranty.

(End of text)

C-246-H002 GOVERNMENT USE OF CONTRACTOR'S INSPECTION EQUIPMENT (NAVSEA) (OCT 2018)

The contractor's gages, measuring, and testing devices shall be made available to the Government when required to determine contractor conformance with contract requirements. If conditions warrant, the contractor's personnel shall be made available for operation of such devices and for verification of their accuracy and condition.

(End of text)

C-247-H001 PERMITS AND RESPONSIBILITIES (NAVSEA) (DEC 2018)

The Contractor shall, without additional expense to the Government, be responsible for obtaining any necessary licenses and permits for complying with any applicable Federal, State, and Municipal laws, codes, and regulations for shipping and transportation including, but not limited to, any movement over public highways of overweight/over dimensional materials.

(End of text)

Section D - Packaging and Marking

CLAUSES INCORPORATED BY FULL TEXT

D-211-H001 PACKAGING OF DATA (NAVSEA) (FEB 2022)

Data to be delivered by Integrated Digital Environment (IDE) or other electronic media shall be as specified in the contract.

All unclassified data to be shipped shall be prepared for shipment in accordance with best commercial practice.

Classified reports, data, and documentation shall be prepared for shipment in accordance with National Industrial Security Program Operating Manual (NISPOM), 32 CFR Part 117.

(End of text)

D-211-H002 MARKING OF REPORTS (NAVSEA) (OCT 2018)

All reports delivered by the Contractor to the Government under this contract shall prominently show on the cover of the report:

(1) name and business address of the Contractor

(2) contract number

(3) sponsor:

COR in Section G

(Name of Individual Sponsor)

Program Executive Office, Undersea Warfare Systems (PMS 435)

(Name of Requiring Activity)

Washington Navy Yard, DC 20376-7021

(City and State)

(End of text)

D-211-H005 IDENTIFICATION MARKING OF PARTS – ALTERNATE I (NAVSEA) (OCT 2018)

(a) For all parts not subject to the marking requirements in DFARS 252.211-7003 – Item Unique Identification and Valuation, marking shall be accomplished in accordance with the following:

(1) Parts not manufactured to Government specifications shall be marked in accordance with generally accepted commercial practice.

(2) Parts manufactured to Government specifications shall be marked as follows:

(i) Electrical Parts - that is, all parts in electrical equipment and electrical parts when used in equipment which are not electrical in nature (e.g., electric controls and motors in a hydraulic system) - shall be identified and

marked in accordance with MIL-STD-1285D(2) dated 22 June 2018, or, where MIL-STD-1285D(2) does not cover such a part, in accordance with MIL-STD-130N(1) dated 16 November 2012. Requirements of MIL-STD-1686C dated 25 October 1995 for Electrostatic Discharge Control shall be addressed.

(ii) Electronic Parts - that is, all parts in electronic equipment and electronic parts when used in equipment which are not electronic in nature (e.g., electronic fuel controls in some engines) - shall be identified and marked in accordance with Requirement 67 of MIL-HDBK-454B dated 15 April 2007 with Notice 1 dated 12 December 2012. Requirements of MIL-STD-1686C for Electrostatic Discharge Control shall be addressed.

(iii) Parts other than electrical or electronic parts (as described above) shall be identified and marked in accordance with MIL-STD-130N(1).

(b) In cases where parts are so small as not to permit identification marking as provided above, such parts shall be appropriately coded so as to permit ready identification.

(End of Text)

D-247-W001 PROHIBITED PACKING MATERIALS (NAVSEA) (OCT 2018)

The use of asbestos, excelsior, newspaper or shredded paper (all types including waxed paper, computer paper and similar hygroscopic or non-neutral material) is prohibited. In addition, the use of yellow wrapping or packaging material is prohibited except where used for the containment of radioactive material. Loose fill polystyrene is prohibited for shipboard use.

(End of text)

D-247-W002 UNPACKING INSTRUCTIONS (NAVSEA) (OCT 2018)

(a) Location on Container. When practical, one set of the unpacking instructions will be placed in a heavy water-proof envelope prominently marked "UNPACKING INFORMATION" and firmly affixed to the outside of the shipping container in a protected location, preferably between the cleats on the end of the container adjacent to the identification marking. If the instructions cover a set of equipment packed in multiple containers, the instructions will be affixed to the number one container of the set. When the unpacking instructions are too voluminous to be affixed to the exterior of the container, they will be placed inside and directions for locating them will be provided in the envelope marked "UNPACKING INFORMATION".

(b) Marking Containers. When unpacking instructions are provided, shipping containers will be stenciled "CAUTION- THIS EQUIPMENT MAY BE SERIOUSLY DAMAGED UNLESS UNPACKING INSTRUCTIONS ARE CAREFULLY FOLLOWED. UNPACKING INSTRUCTIONS ARE LOCATED _____ [insert location]." When practical, this marking will be applied adjacent to the identification marking on the side of the container.

(End of Text)

Section E - Inspection and Acceptance

INSPECTION AND ACCEPTANCE TERMS

Supplies/services will be inspected/accepted at:

CLIN	INSPECT AT	INSPECT BY	ACCEPT AT	ACCEPT BY
0001	Destination	Government	Destination	Government
0002	Destination	Government	Destination	Government
0003	Origin	Government	Origin	Government
0004	Destination	Government	Destination	Government
0005	Destination	Government	Destination	Government
0101	Destination	Government	Destination	Government
0102	Destination	Government	Destination	Government
0103	Origin	Government	Origin	Government
0201	Destination	Government	Destination	Government
0202	Destination	Government	Destination	Government
0203	Origin	Government	Origin	Government
0301	Destination	Government	Destination	Government
0302	Destination	Government	Destination	Government
0303	Origin	Government	Origin	Government
0401	Destination	Government	Destination	Government
0402	Destination	Government	Destination	Government
0403	Origin	Government	Origin	Government
0501	Origin	Government	Origin	Government

CLAUSES INCORPORATED BY REFERENCE

52.246-2	Inspection Of Supplies--Fixed Price	AUG 1996
52.246-3	Inspection Of Supplies Cost-Reimbursement	MAY 2001
52.246-4	Inspection Of Services--Fixed Price	AUG 1996
52.246-5	Inspection Of Services Cost-Reimbursement	APR 1984
52.246-11	Higher-Level Contract Quality Requirement	DEC 2014
52.246-16	Responsibility For Supplies	APR 1984

CLAUSES INCORPORATED BY FULL TEXT

E-246-H013 INSPECTION AND ACCEPTANCE OF DATA (NAVSEA) (OCT 2018)

Inspection and acceptance of all data shall be as specified on the attached Contract Data Requirements List(s), DD Form 1423.

(End of text)

CLAUSES INCORPORATED BY FULL TEXT

E-246-H015 INSPECTION AND ACCEPTANCE OF ENGINEERING SERVICES IN SUPPORT OF SUPPLIES (NAVSEA) (FEB 2019)

Item(s) 0001, 0101, 0201, 0301, 0401 - For engineering services in support of delivered supplies, authorization for services shall be made by the PCO or Contracting Officer's Representative (COR). Inspection and acceptance shall be made by the COR or a designated representative of the Government following the receipt of the certification of performance on the delivered hardware.

(End of text)

0E-246-H019 INSPECTION AND ACCEPTANCE OF PROVISIONING TECHNICAL DOCUMENTATION (NAVSEA) (OCT 2018)

Item(s) 0001, 0101, 0201, 0301, 0401 - The Government may accept, conditionally accept, or reject the Provisioning Technical Documentation (PTD) within sixty days after its delivery, or as specified on the applicable CDRL(s). A notice of conditional acceptance shall state any corrective action required by the Contractor. If PTD is rejected, the Contractor may be required, at the option of the Government, to correct any or all of the PTD. The Contractor shall at no additional cost to the Government make any necessary changes, modifications, or corrections to the PTD. The Government shall take action on the corrected PTD within the time limit specified above. Government action under this requirement shall not affect or limit any other rights it may have under this contract.

(End of text)

E-246-H020 QUALITY MANAGEMENT SYSTEM REQUIREMENTS (NAVSEA) (OCT 2018)

The Contractor shall provide and maintain a quality management system that, as a minimum, adheres to the requirements of ASQ/ANSI/ISO 9001:2015 "Quality Management Systems – Requirements" and supplemental requirements imposed by this contract. The quality management system procedures, planning, and all other documentation and data that comprise the quality management system shall be made available to the Government for review. Existing quality documents that meet the requirements of this contract may continue to be used. The Government may perform any necessary inspections, verifications, and evaluations to ascertain conformance to requirements and the adequacy of the implementing procedures. The Contractor shall flow down such standards, as applicable, to lower-tier subcontractors under instances covered in FAR 52.246-11(b) or at the direction of the Contracting Officer. The Government reserves

the right to disapprove the quality management system or portions thereof when it fails to meet the contractual requirements.

(End of text)

CLAUSES INCORPORATED BY FULL TEXT

E-246-H022 INSPECTION AND TEST RECORDS (NAVSEA) (JAN 2019)

Inspection and test records shall, as a minimum, indicate the nature of the observations, number of observations made, and the number and type of deficiencies found. Data included in inspection and test records shall be complete and accurate, and shall be used for trend analysis and to assess corrective action and effectiveness. The data shall, on request, be identified and made available for on-site review by the Contracting Officer or designated Government representative.

(End of text)

CLAUSES INCORPORATED BY FULL TEXT

E-246-W002 CERTIFICATE OF COMPLIANCE (NAVSEA) (OCT 2018)

(a) A certification of material shall be provided by the Contractor, one (1) copy to accompany the shipment (in the packing list envelope) and (1) copy mailed to arrive at time of receipt of the shipment. Mark all certificates to the attention of Code 00Q.

(b) The certificate shall state compliance of material with drawing specification and contract/order requirements. The certificate shall as a minimum state the company name, contract/order number, drawing or specification number, and date. The certificate shall state, above the signature of a legally authorized representative of the company, the following:

This certification concerns a matter within the jurisdiction of an agency of the United States and the making of a false, fictitious, or fraudulent certification may render the maker subject to prosecution under Title 18, United States Code, Section 1001.

(c) Failure to provide certification at the time of shipment may result in material being rejected and returned at the contractor's expense.

(d) The certificate shall read as follows:

I certify that on _____ [insert date], the _____ [insert Contractor's name] furnished the supplies called for by the Order/Contract No. _____ via _____ [Carrier] on _____ [identify the bill of lading or shipping document] in accordance with all applicable requirements. I further certify that the supplies or services are of the quality specified and conform in all respects with the contract requirements, including specifications, drawings, preservation, packaging, packing, marking requirements, and physical item identification (part number), and are in the quantity shown on this document.

Date of Execution: _____
Signature: _____
Typed Name: _____
Title: _____

(End of text)

E-246-W004 PROCUREMENT QUALITY ASSURANCE INSPECTION AND ACCEPTANCE (NAVSEA)
(OCT 2018)

(a) Initial inspection of the supplies to be furnished hereunder shall be made by the COR at the contractor's or subcontractor's plant located at TBD. The contractor shall notify the cognizant inspector when the material is available for inspection. The place designated for such inspections shall not be changed without authorization of the Contracting Officer. Final inspection and acceptance shall be made by the COR and/or DCMA within 15 days after receipt.

(b) Initial inspection shall consist of quality assurance at point of manufacture or assembly and check/test prior to shipment. Final inspection and acceptance will be made by the Receiving Activity after installation/check out/testing of the supplies.

(End of text)

E-246-W007 NOTIFICATION OF INSPECTION OR TEST (NAVSEA) (OCT 2018)

The Contractor agrees to notify the COR, in writing, when the material will be inspected and/or tested. A minimum of 5 working days is required to arrange such a visit.

(End of text)

Section F - Deliveries or Performance

DELIVERY INFORMATION

CLIN	DELIVERY DATE	QUANTITY	SHIP TO ADDRESS	DODAAC / CAGE
0001	12 mths. ADC	25,000	NAVAL UNDERSEA WARFARE CENTER, NEWPORT JONATHAN DA SILVA CODE 3421, BUILDING 1319, ROOM 320 1176 HOWELL STREET NEWPORT RI 02841 401-832-6289 FOB: Origin (Shipping Point)	N66604
0002	12 mths. ADC	1	(SAME AS PREVIOUS LOCATION) FOB: Origin (Shipping Point)	N66604
0003	21 mths. AOE	6	(SAME AS PREVIOUS LOCATION) FOB: Origin (Shipping Point)	N66604
0004	60 mths. ADC	1	(SAME AS PREVIOUS LOCATION) FOB: Destination	N66604
0005	60 mths. ADC	1	(SAME AS PREVIOUS LOCATION) FOB: Origin (Shipping Point)	N66604
0101	12 mths. AOE	4,600	(SAME AS PREVIOUS LOCATION) FOB: Origin (Shipping Point)	N66604
0102	12 mths. AOE	1	(SAME AS PREVIOUS LOCATION) FOB: Origin (Shipping Point)	N66604
0103	21 mths. AOE	6	(SAME AS PREVIOUS LOCATION) FOB: Origin (Shipping Point)	N66604
0201	12 mths. AOE	3,000	(SAME AS PREVIOUS LOCATION) FOB: Origin (Shipping Point)	N66604
0202	12 mths. AOE	1	(SAME AS PREVIOUS LOCATION) FOB: Origin (Shipping Point)	N66604
0203	21 mths. AOE	6	(SAME AS PREVIOUS LOCATION) FOB: Origin (Shipping Point)	N66604

0301	12 mths. AOE	2,900	NAVAL UNDERSEA WARFARE CENTER N66604 JONATHAN DA SILVA DIVISION NEWPORT 1176 HOWELL ST, CODE 3421, BLDG. 1319, ROOM 3 NEWPORT RI 02841 401-832-6289 FOB: Origin (Shipping Point)
0302	12 mths. AOE	1	NAVAL UNDERSEA WARFARE CENTER, N66604 NEWPORT JONATHAN DA SILVA CODE 3421, BUILDING 1319, ROOM 320 1176 HOWELL STREET NEWPORT RI 02841 401-832-6289 FOB: Origin (Shipping Point)
0303	21 mths. AOE	6	(SAME AS PREVIOUS LOCATION) N66604 FOB: Origin (Shipping Point)
0401	12 mths. AOE	2,800	(SAME AS PREVIOUS LOCATION) N66604 FOB: Origin (Shipping Point)
0402	12 mths. AOE	1	(SAME AS PREVIOUS LOCATION) N66604 FOB: Origin (Shipping Point)
0403	21 mths. AOE	6	(SAME AS PREVIOUS LOCATION) N66604 FOB: Origin (Shipping Point)
0501	60 mths. ADC	1	(SAME AS PREVIOUS LOCATION) N66604 FOB: Origin (Shipping Point)

CLAUSES INCORPORATED BY REFERENCE

52.211-8	Time of Delivery	JUN 1997
52.211-16	Variation In Quantity	APR 1984
52.211-17	Delivery of Excess Quantities	SEP 1989
52.242-15	Stop-Work Order	AUG 1989
52.247-29	F.O.B. Origin	FEB 2006
52.247-34	F.O.B. Destination	JAN 1991
52.247-55	F.O.B. Point For Delivery Of Government-Furnished Property	JUN 2003

CLAUSES INCORPORATED BY FULL TEXT

F-242-H001 CONTRACTOR NOTICE REGARDING LATE DELIVERY (NAVSEA) (OCT 2018)

In the event the contractor anticipates or encounters difficulty in complying with the contract delivery schedule or date, the contractor shall immediately notify, in writing, the Contracting Officer and the cognizant Contract Administration Services Office, if assigned. The notice shall give the pertinent details; however, such notice shall not constitute a waiver by the Government of any contract delivery schedule, or of any rights or remedies provided by law or under this contract.

(End of text)

F-246-H001 PERFORMANCE FOR ENGINEERING SERVICES IN SUPPORT OF SUPPLIES (NAVSEA) (FEB 2019)

Item(s) 0001, 0101, 0201, 0301, 0401 - Engineering services in support of supplies delivered under Item(s) 0001 shall be performed within 12 months after unconditional acceptance of the last unit of the foregoing supply items. The Contractor shall notify the Contracting Officer in writing via the Contract Administration Office (CAO) of the actual date of unconditional acceptance of the last unit of the foregoing item(s), with a copy to the COR identified in Section G.

(End of text)

F-247-H001 DELIVERY OF DATA (NAVSEA) (OCT 2018)

All data to be furnished under this contract shall be delivered prepaid to the destination(s) and at the time(s) specified on the Contract Data Requirements List(s), DD Form 1423.

(End of Text)

F-247-H003 F.O.B. Origin (NAVSEA) (OCT 2018)

All supplies hereunder shall be delivered free of expense to the Government in accordance with instructions specified in the clause hereof entitled "F.O.B. Origin" (FAR 52.247-29) at or near the Contractor's plant, (insert city, county, and state), for shipment at Government expense (normally on Government bill(s) of lading) in accordance with the delivery instructions specified herein. This paragraph is required pursuant to 52.247-29 (a)(1).

FMS item(s), if any, shall be shipped on a separate bill of lading and Interstate Commerce Act 49 U.S.C. Section 10721 and 13712 rates do not apply.

(End of Text)

Section G - Contract Administration Data

CLAUSES INCORPORATED BY REFERENCE

252.204-7006	Billing Instructions--Cost Vouchers	MAY 2023
252.232-7003	Electronic Submission of Payment Requests and Receiving Reports	DEC 2018

CLAUSES INCORPORATED BY FULL TEXT

252.232-7006 WIDE AREA WORKFLOW PAYMENT INSTRUCTIONS (JAN 2023)

(a) Definitions. As used in this clause—

“Department of Defense Activity Address Code (DoDAAC)” is a six position code that uniquely identifies a unit, activity, or organization.

“Document type” means the type of payment request or receiving report available for creation in Wide Area WorkFlow (WAWF).

“Local processing office (LPO)” is the office responsible for payment certification when payment certification is done external to the entitlement system.

“Payment request” and “receiving report” are defined in the clause at 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(b) Electronic invoicing. The WAWF system provides the method to electronically process vendor payment requests and receiving reports, as authorized by Defense Federal Acquisition Regulation Supplement (DFARS) 252.232-7003, Electronic Submission of Payment Requests and Receiving Reports.

(c) WAWF access. To access WAWF, the Contractor shall—

(1) Have a designated electronic business point of contact in the System for Award Management at <https://www.sam.gov>; and

(2) Be registered to use WAWF at <https://wawf.eb.mil/> following the step-by-step procedures for self-registration available at this web site.

(d) WAWF training. The Contractor should follow the training instructions of the WAWF Web-Based Training Course and use the Practice Training Site before submitting payment requests through WAWF. Both can be accessed by selecting the “Web Based Training” link on the WAWF home page at <https://wawf.eb.mil/>.

(e) WAWF methods of document submission. Document submissions may be via web entry, Electronic Data Interchange, or File Transfer Protocol.

(f) WAWF payment instructions. The Contractor shall use the following information when submitting payment requests and receiving reports in WAWF for this contract or task or delivery order:

(1) Document type. The Contractor shall submit payment requests using the following document type(s):

(i) For cost-type line items, including labor-hour or time-and-materials, submit a cost voucher.

(ii) For fixed price line items—

(A) That require shipment of a deliverable, submit the invoice and receiving report specified by the Contracting Officer.

(Contracting Officer: Insert applicable invoice and receiving report document type(s) for fixed price line items that require shipment of a deliverable.)

(B) For services that do not require shipment of a deliverable, submit either the Invoice 2in1, which meets the requirements for the invoice and receiving report, or the applicable invoice and receiving report, as specified by the Contracting Officer.

(Contracting Officer: Insert either “Invoice 2in1” or the applicable invoice and receiving report document type(s) for fixed price line items for services.)

(iii) For customary progress payments based on costs incurred, submit a progress payment request.

(iv) For performance based payments, submit a performance based payment request.

(v) For commercial financing, submit a commercial financing request.

(2) Fast Pay requests are only permitted when Federal Acquisition Regulation (FAR) 52.213-1 is included in the contract.

[Note: The Contractor may use a WAWF “combo” document type to create some combinations of invoice and receiving report in one step.]

(3) Document routing. The Contractor shall use the information in the Routing Data Table below only to fill in applicable fields in WAWF when creating payment requests and receiving reports in the system.

Routing Data Table*

<i>Field Name in WAWF</i>	<i>Data to be entered in WAWF</i>
Pay Official DoDAAC	_____
Issue By DoDAAC	_____
Admin DoDAAC**	_____
Inspect By DoDAAC	_____
Ship To Code	_____
Ship From Code	_____

Mark For Code	_____
Service Approver (DoDAAC)	_____
Service Acceptor (DoDAAC)	_____
Accept at Other DoDAAC	_____
LPO DoDAAC	_____
DCAA Auditor DoDAAC	_____
Other DoDAAC(s)	_____

(*Contracting Officer: Insert applicable DoDAAC information. If multiple ship to/acceptance locations apply, insert “See Schedule” or “Not applicable.”)

(**Contracting Officer: If the contract provides for progress payments or performance-based payments, insert the DoDAAC for the contract administration office assigned the functions under FAR 42.302(a)(13).)

(4) Payment request. The Contractor shall ensure a payment request includes documentation appropriate to the type of payment request in accordance with the payment clause, contract financing clause, or Federal Acquisition Regulation 52.216-7, Allowable Cost and Payment, as applicable.

(5) Receiving report. The Contractor shall ensure a receiving report meets the requirements of DFARS Appendix F.

(g) WAWF point of contact.

(1) The Contractor may obtain clarification regarding invoicing in WAWF from the following contracting activity’s WAWF point of contact.

(Contracting Officer: Insert applicable information or “Not applicable.”)

(2) Contact the WAWF helpdesk at 866-618-5988, if assistance is needed.

(End of clause)

G-216-H001 FIXED FEE WITHHOLD--FAR 52.216-8 CLARIFICATION (NAVSEA) (OCT 2018)

The Government will withhold 15% of each fixed fee payment starting with the first invoice submitted until a total of \$100,000 of fixed fee has been withheld. Withheld amounts will be released in accordance with FAR 52.216-8, Fixed Fee.

(End of text)

G-216-H002 ORDERS--BASIC (NAVSEA) (JUL 2024)

(a) General. Orders for supplies or services specified in Section B of the Schedule may be issued by the Contracting Officer at any time during the effective period of this agreement. Except as otherwise provided in paragraph (c) below, the Contractor agrees to accept and perform orders issued by the Contracting Officer within the scope of this agreement. It is understood and agreed that the Government has no obligation under the terms of this agreement to issue any orders. Except as otherwise provided in any order, the Contractor shall furnish all materials and services necessary to accomplish the work specified in each order issued hereunder. In the event of any inconsistency between any order and this agreement, this agreement shall take precedence. All requirements of this agreement shall be applicable to all orders issued hereunder. Each order shall be considered a separate binding contract as of its effective date. The Contractor shall segregate the costs incurred in the performance of any order issued hereunder from the costs of all other orders issued under this agreement.

(b) Orders. Except as otherwise provided in paragraph (d) below, the Contractor shall not begin any work on an order until the order is issued by the Contracting Officer. Upon receipt of a proposed order, the Contractor shall promptly submit to the Contracting Officer a proposal for the work specified in the order. The Contractor agrees that it will submit such cost or pricing data as the Contracting Officer may require. Promptly after receipt of the Contractor's proposal and supporting cost or pricing data, if required, the Contractor and the Contracting Officer shall negotiate and agree upon a price and delivery schedule for the work being ordered. The price and delivery schedule, as agreed upon, shall be set forth in the priced order and the order shall be signed by both the Contracting Officer and the Contractor. Upon issuance of the order, the Contractor shall promptly commence work and shall diligently complete it.

(c) Rejection of Unilateral Orders. The Contractor may reject any unilateral order if the Contractor determines it cannot feasibly perform the order, or if it does not concur with the maximum ceiling amount. However, each unilateral order shall be deemed to have been accepted by the Contractor unless within fifteen (15) days of issuance of the order the Contractor notifies the Contracting Officer in writing of its rejection of the order.

(d) Undefinitized Orders. Whenever the Contracting Officer determines that urgent demands or requirements prevent the issuance of a definitized order, the Contracting Officer may issue an unpriced order. Such order may be unilateral or bilateral and shall establish a limitation on Government liability, a maximum ceiling amount and a schedule for definitization. Upon request, the Contractor shall submit a maximum ceiling amount proposal before the undefinitized order is issued. The maximum ceiling amount is the maximum price at which the order may be definitized. Except as provided in paragraph (c) above, the Contractor shall commence performance of the order upon issuance.

(e) Ordering Activities. The following activities are authorized to issue orders hereunder:

Naval Sea Systems Command

(End of Text)

G-232-H002 PAYMENT INSTRUCTIONS (NAVSEA) (FEB 2024)

Payment office allocation methods can be found in the table at DFARS PGI 204.7108(b)(2) (https://www.acq.osd.mil/dpap/dars/pgi/pgi.htm/current/PGI204_71.htm#payment_instructions).

(End of Text)

G-232-H005 SUPPLEMENTAL INSTRUCTIONS REGARDING INVOICING (NAVSEA) (JAN 2019)

(a) For other than firm fixed priced contract line item numbers (CLINs), the Contractor agrees to segregate costs incurred under this contract/task order (TO), as applicable, at the lowest level of performance, either at the sub line item number (SLIN) or CLIN level, rather than at the total contract/TO level, and to submit invoices reflecting costs incurred at that level. Supporting documentation in Wide Area Workflow (WAWF) for invoices shall include summaries of work charged during the period covered as well as overall cumulative summaries by individual labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of other direct costs (ODCs), materials, and travel, by technical instruction (TI), SLIN, or CLIN level. For other than firm fixed price subcontracts, subcontractors are also required to provide labor categories, rates, and hours (both straight time and overtime) invoiced; as well as, a cost breakdown of ODCs, materials, and travel invoiced. Supporting documentation may be encrypted before submission to the prime contractor for WAWF invoice submittal. Subcontractors may email encryption code information directly to the Contracting Officer and Contracting Officer Representative (COR). Should the subcontractor lack encryption capability, the subcontractor may also email detailed supporting cost information directly to the Contracting Officer and COR; or other method as agreed to by the Contracting Officer.

(b) Contractors submitting payment requests and receiving reports to WAWF using either Electronic Data Interchange (EDI) or Secure File Transfer Protocol (SFTP) shall separately send an email notification to the COR and Contracting Officer on the same date they submit the invoice in WAWF. No payments shall be due if the contractor does not provide the COR and Contracting Officer email notification as required herein.

(End of text)

G-242-H001 Government Contract Administration Points-of-Contact and Responsibilities (NAVSEA) (OCT 2023)

(a) The Government reserves the right to administratively substitute any of the points of contact listed below at any time.

(b) The contracting officer is the only person authorized to change this contract or orders issued thereunder. The Contractor shall not comply with any order, direction or request of Government personnel - that would constitute a change - unless it is issued in writing and signed by the Contracting Officer or is pursuant to specific authority otherwise included as part of this contract. If, in the opinion of the contractor, an effort outside the existing scope of this contract is requested, the contractor shall promptly comply with the Notification of Changes clause of this contract.

(c) The points of contact are as follows:

(i) The Procuring Contracting Officer (PCO) is:

Name: [Patrick Dooley]
Address: 1333 Isaac Hull Ave SE
Washington, DC, 20376
Phone: (202) 781-2332
E-mail: [patrick.s.dooley3.civ@us.navy.mil]

- (ii) The Contract Specialist is:
Name: [Ashley Thompson]
Address:
1333 Isaac Hull Ave SE
Washington, DC, 20376
Phone: (202) 781-0068
E-mail: [ashley.p.thompson4.civ@us.navy.mil]

- (iii) The Administrative Contracting Officer (ACO) is:
Name: [*]
Address:
[*Street]
[*City, State, Zip]
Phone: (Area Code) xxx- [xxxx]
E-mail: [*]

(d) The Contracting Officer's Representative (COR) is the contracting officer's appointed representative for technical matters. The COR is not a contracting officer and does not have the authority to direct the accomplishment of effort which is beyond the scope of the contract or to otherwise change any contract requirements. An informational copy of the COR appointment letter, which provides a delineation of COR authority and responsibilities, will be provided upon award of this contract.

The Contracting Officer's Representative (COR) is:

Name: [Jonathan Da Silva]
Address:
1176 Howell St. Newport, RI 02841
Phone: (401) 832-6289
E-mail: [jonathan.d.dasilva.civ@us.navy.mil]

G-242-H002 HOURS OF OPERATION AND HOLIDAY SCHEDULE (NAVSEA) (JUL 2021)

(a) The policy of this activity is to schedule periods of reduced operations or shutdown during holiday periods. Deliveries will not be accepted on Saturdays, Sundays or Holidays except as specifically requested by the [insert activity name]. All goods or services attempted to be delivered on a Saturday, Sunday or Holiday without specific instructions from the Contracting Officer or his duly appointed representative will be returned to the contractor at the contractor's expense with no cost or liability to the U.S. Government.

(b) The federal Government observes public Holidays that have been established under 5 U.S.C. 6103. The actual date of observance for each of the holidays, for a specific calendar year, may be obtained from the OPM website at OPM.GOV or by using the following direct link:

<https://www.opm.gov/policy-data-oversight/pay-leave/federal-holidays/>.

(c) Delayed Opening, Early Dismissal and Closure of Government Facilities. When a Government facility has a delayed opening, is closed or Federal employees are dismissed early (due to severe weather, security threat, security exercise, or a facility related problem) that prevents personnel from working, onsite contractor personnel regularly assigned to work at that facility shall follow the same reporting and/or departure directions given to Government personnel. The contractor shall not direct charge to the contract for such time off, but shall follow parent company policies regarding taking leave (administrative or other). Non-essential contractor personnel, who are not required to remain at or report to the facility, shall follow their parent company policy regarding whether they should go/stay home or report to another company facility. Subsequent to an early dismissal, delayed opening, or during periods of inclement weather, onsite contractors should monitor the OPM website as well as radio and television announcements before departing for work to determine if the facility is closed or operating on a delayed arrival basis.

(d) When Federal employees are excused from work due to a holiday or a special event (that is unrelated to severe weather, a security threat, or a facility related problem), on site contractors shall continue working established work hours or take leave in accordance with parent company policy. Those contractor employees who take leave shall not direct charge the non-working hours to the contract. Contractors are responsible for predetermining and disclosing their charging practices for early dismissal, delayed openings, or closings in accordance with the FAR, applicable cost accounting standards, and the company's established policy and procedures. Contractors shall follow their disclosed charging practices during the contract period of performance, and shall not follow any verbal directions to the contrary. The Contracting Officer will make the determination of cost allowability for time lost due to facility closure in accordance with FAR, applicable Cost Accounting Standards, and the Contractor's established accounting policy and procedures.

(e) If you intend to visit the Contracts Office, it is advised that you call for an appointment at least 24 hours in advance.

(f) The hours of operation are as follows:

AREA	FROM	TO
[insert specific Departments]	[insert times]	

(g) All deliveries to the Receiving Officer, _____ [Negotiator insert delivery location], shall be made Monday through Friday from 8:00 AM [Negotiator enter beginning hour of operation] to 5:00 [Negotiator enter closing hour of operation], local time. Deliveries will not be accepted after 5:00 PM [Negotiator enter closing hour of operation]. No deliveries will be accepted on federal government holidays.

(End of text)

G-242-W001 CONTRACT ADMINISTRATION FUNCTIONS (NAVSEA) (OCT 2018)

(a) In accordance with FAR 42.302(a) all functions listed are delegated to the ACO except the following items to be retained by the PCO:

[N/A List specific functions that will be retained by the PCO]

(b) In accordance with FAR 42.302(b), the following additional functions are delegated to the ACO:

[N/A List any additional functions that will be delegated to the ACO]

(End of text)

G-247-W001 PREPAY AND ADD SHIPPING CHARGES NOT ALLOWED (NAVSEA) (OCT 2018)

(a) Transportation is chargeable to: To be filled in at time of award [*Insert Navy Transportation Account Code (TAC)*]

(b) The above Transportation Account Code is to be used for shipping charges. Shipping is to be established via a bill of lading and a powertrack contractor is to be utilized. The Defense Contract Management Agency (DCMA) transportation officer can provide a listing of approved powertrack contractors. Shipping charges are NOT to be billed Prepay and Add on the invoice. The DCMA Administrative Contracting Officer does NOT have the authority to authorize Prepay and Add for shipping charges under this award.

(End of text)

Section H - Special Contract Requirements

CLAUSES INCORPORATED BY REFERENCE

52.234-4

Earned Value Management System

NOV 2016

CLAUSES INCORPORATED BY FULL TEXT

H-209-H003 REQUIRED DISCLOSURE OF ORGANIZATIONAL CONFLICT OF INTEREST (NAVSEA)
(NOV 2022)

- (a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.
- (b) The Contractor warrants that to the best of its knowledge and belief, and except as otherwise set forth in the contract, at the time of execution of this contract the Contractor does not have any organizational conflict of interest(s) as defined in paragraph (a).
- (c) The Contractor agrees that, if after award, it discovers an actual or potential organizational conflict of interest, it shall make immediate and full disclosure in writing to the Contracting Officer. The notification shall include a description of the actual or potential organizational conflict of interest, a description of the action which the Contractor has taken or proposes to take to avoid, mitigate, or neutralize the conflict, and any other relevant information that would assist the Contracting Officer in making a determination on this matter. Notwithstanding this notification, the Government may terminate the contract for the convenience of the Government if determined to be in the best interest of the Government.
- (d) Notwithstanding paragraph (c) above, if the Contractor was aware, or should have been aware, of an organizational conflict of interest prior to the award of this contract or becomes, or should become, aware of an organizational conflict of interest after award of this contract and does not make an immediate and full disclosure in writing to the Contracting Officer, the Government may terminate this contract for default.
- (e) If the Contractor fails to take action required by this requirement, or required by the Contracting Officer upon receipt of the Contractor's disclosure required by paragraph (c), the Government may terminate this contract for default.
- (f) The Contracting Officer's decision as to the existence or nonexistence of an actual or potential organizational conflict of interest shall be final.
- (g) The Contractor shall promptly notify the Contracting Officer, in writing, if it has been tasked to evaluate or advise the Government concerning its own products or activities, those of its subcontractors, those of one of its prime contractors (to which the contractor is a subcontractor), or those of a competitor in order to ensure proper safeguards exist to guarantee objectivity and to protect the Government's interest.
- (h) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where

appropriate.

(i) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.

(j) Compliance with this requirement is a material requirement of this contract.

(End of text)

H-209-H004 RESTRICTIONS RESULTING FROM POTENTIAL ORGANIZATIONAL CONFLICT OF INTEREST (NAVSEA) (NOV 2022)

(a) "Organizational Conflict of Interest" means that because of other activities or relationships with other persons, a person is unable or potentially unable to render impartial assistance or advice to the Government, or the person's objectivity in performing the contract work is or might be otherwise impaired, or a person has an unfair competitive advantage. "Person" as used herein includes Corporations, Partnerships, Joint Ventures, and other business enterprises.

(b) It is recognized that the effort to be performed by the Contractor under this contract may create a potential organizational conflict of interest on the instant contract or on a future acquisition. In order to avoid this potential conflict of interest, and at the same time to avoid prejudicing the best interest of the Government, the right of the Contractor to participate in future procurement of equipment or services that are the subject of any work under this contract shall be limited in accordance with FAR 9.5.

(c) The Contractor agrees that to prevent the existence of conflicting roles and unfair competitive advantage, during the performance of this contract and for a period of three years after completion of performance of this contract, the Contractor, any affiliate, subcontractor, consultant, or employee of the Contractor, any joint venture, any entity into or with which it may subsequently merge or affiliate, or any other successor or assign of the Contractor, shall not furnish to the United States Government, either as a prime contractor or as a subcontractor, or as a consultant to a prime contractor or subcontractor, any system, component or services which is the subject of the work to be performed under this contract, unless an exception under FAR 9.505 exists. This exclusion also does not apply to any work covered by FAR 9.505-2 (a)(3) or (b)(3) or recompetition for those systems, components or services furnished pursuant to this contract.

(d) Nothing in this requirement is intended to prohibit or preclude the Contractor from marketing or selling to the United States Government its product lines in existence on the effective date of this contract; nor, shall this requirement preclude the Contractor from participating in any research and development or delivering any design development model or prototype of any such equipment. Additionally, sale of catalog or standard commercial items are exempt from this requirement.

(e) The Contractor shall include this requirement in subcontracts of any tier which involve access to information or situations/conditions covered by the preceding paragraphs, substituting "subcontractor" for "contractor" where appropriate.

(f) The rights and remedies described herein shall not be exclusive and are in addition to other rights and remedies provided by law or elsewhere included in this contract.

(g) Compliance with this requirement is a material requirement of this contract.

(End of text)

H-216-H002 LEVEL OF EFFORT--ALTERNATE I (NAVSEA) (NOV 2022)

(a) The total level of effort for the performance of this contract is specified in Section B and includes prime and subcontractor direct labor (for those subcontractors specifically identified in the Contractor's proposal as having hours included in the proposed level of effort).

(b) Of the total man-hours of direct labor set forth in Section B, it is estimated that _____ (Offeror to fill-in) man-hours are uncompensated effort.

Uncompensated effort is defined as hours provided by personnel in excess of 40 hours per week without additional compensation for such excess work. All other effort is defined as compensated effort. If no effort is indicated in the first sentence of this paragraph, uncompensated effort performed by the Contractor shall not be counted in fulfillment of the level of effort obligations under this contract.

(c) Effort performed in fulfilling the total level of effort obligations specified in Section B shall only include effort performed in direct support of this contract and shall not include time and effort expended on such things as local travel to and from an employee's usual work location, uncompensated effort while on travel status, truncated lunch periods, work (actual or inferred) at an employee's residence or other non-work locations (except as provided in paragraph (i) below), or other time and effort which does not have a specific and direct contribution to the tasks described in Sections B and C.

(d) The level of effort for this contract shall be expended at an average rate of approximately _____ hours per week. It is understood and agreed that the rate of man-hours per week may fluctuate in pursuit of the technical objective, provided such fluctuation does not result in the use of the total man-hours of effort prior to the expiration of the term hereof, except as provided in the following paragraphs.

(e) If, during the term hereof, the Contractor finds it necessary to accelerate the expenditure of direct labor to such an extent that the total man-hours of effort specified in Section B would be used prior to the expiration of the term, the Contractor shall notify the Contracting Officer in writing setting forth the acceleration required; the probable benefits which would result; an offer to undertake the acceleration at no increase in the estimated cost or fee; and an offer for the additional man-hours to cover the remainder of the term to include a proposed level of effort, cost breakdown, and proposed fee, for continuation of the work until expiration of the term. The offer shall acknowledge that the additional man-hours proposed will be subject to the terms and conditions of this contract and any additions or changes required by then current law, regulations, or directives, and that the offer, with a written notice of acceptance by the Contracting Officer, shall constitute a binding contract. The Contractor shall not accelerate any effort until receipt of a signed contract modification by the Contracting Officer. Any agreement to accelerate will be formalized by contract modification.

(f) The Contracting Officer may, by written order, direct the Contractor to accelerate the expenditure of direct labor such that the total man-hours of effort specified in Section B would be used prior to the expiration of the term. This order shall specify the acceleration required and the resulting revised term. The Contractor shall acknowledge this order within five days of receipt.

(g) The Contractor shall provide and maintain an accounting system, determined adequate by the Administrative Contracting Officer, which collects costs incurred and effort (compensated and uncompensated, if any) provided in fulfillment of the level of effort obligations of this contract. The Contractor shall indicate on each invoice the total level of effort claimed during the period covered by the invoice, separately identifying compensated effort and uncompensated effort, if any.

(h) Within 45 days after completion of the work under each separately identified period of performance hereunder, the Contractor shall submit the following information in writing to the Contracting Officer with copies to the cognizant Contract Administration Office and to the Defense Contract Audit Agency office to which vouchers are submitted: (1) the total number of man-hours of direct labor expended during the applicable period that separately identifies compensated and uncompensated hours; (2) a breakdown of this compensated total showing the number of man-hours expended in each direct labor classification and associated direct and indirect costs; (3) a breakdown of other costs incurred; and (4) the Contractor's estimate of the total allowable cost incurred under the contract for the period. Additionally, in the case of a cost underrun the Contractor shall submit the amount by which the estimated cost of this contract may be reduced to recover excess funds. All submissions shall include subcontractor information.

(i) Unless the Contracting Officer determines that alternative worksite arrangements are detrimental to contract performance, the Contractor may perform up to 100% of the hours at an alternative worksite, provided the Contractor has a company-approved alternative worksite plan. The primary worksite is the traditional "main office" worksite. An alternative worksite means an employee's residence or a telecommuting center. A telecommuting center is a geographically convenient office setting as an alternative to an employee's main office. The Government reserves the right to review the Contractor's alternative worksite plan. In the event performance becomes unacceptable, the Contractor will be prohibited from counting the hours performed at the alternative worksite in fulfilling the total level of effort obligations of the contract. Regardless of work location, all contract terms and conditions, including security requirements and labor laws, remain in effect. The Government shall not incur any additional cost nor provide additional equipment for contract performance as a result of the Contractor's election to implement an alternative worksite plan.

(j) Notwithstanding any of the provisions in the above paragraphs and subject to the Limitation of Funds or Limitation of Cost clauses, as applicable, the period of performance may be extended at the discretion of the Contracting Officer, and the estimated cost may be increased in order to permit the Contractor to provide all of the man-hours listed in Section B. The contractor shall continue to be paid fee for each man-hour performed in accordance with the terms of the contract.

(End of text)

H-216-H003 TARGET PRICE NOTIFICATION REQUIREMENT (NAVSEA) (OCT 2018)

(a) The Contractor shall notify the Contracting Officer, in writing, whenever it has reason to believe that--

(1) the costs the Contractor expects to incur within the next 60 days (including amounts payable to subcontractors), when added to all costs previously incurred, will exceed 75 percent of the target cost specified in the Schedule, or

(2) the projected cost for the performance of this contract, exclusive of target profit, will be greater than the target cost specified in Section B of the contract.

(b) As part of the notification the Contractor shall provide the Contracting Officer the date when it is estimated that costs incurred will equal or exceed target cost and a revised estimate of the total cost of performing the contract. In the event that the revised estimated cost plus any adjustment for profit or loss exceeds the ceiling price specified in the Schedule, the Government's liability is limited to the ceiling price specified in the Schedule.

(c) This notification requirement shall apply to each separately identified target price specified in Section B of the contract.

(End of text)

H-246-H001 CALIBRATION SYSTEM REQUIREMENTS (NAVSEA) (FEB 2023)

(a) Definitions:

(1) All definitions, with the exception of Commercial Service Provider, are found in OPNAVINST3960.16 (series).

(2) Commercial Service Providers. Suppliers of tools, instruments, fixtures, test, measurement, and diagnostic equipment, including original equipment manufacturers, who may calibrate their own products but are not engaged in calibration as a major line of business, and other commercial laboratories that provide either calibration services in support of Navy contracts, or low volume, model specific, or unique parameter calibration services.

(b) The accuracy of Navy and Contractor calibrated equipment used for quantitative and qualitative measurements are ensured through measurement traceability. The Contractor is required to ensure that all calibrated equipment used for quantitative or qualitative measurements required for the research, design, test, production, and maintenance of NAVSEA systems will be maintained and calibrated in accordance with references OPNAVINST 3960.16 and NAVSEAINST 4734.1. Calibration sources shall be accredited by a U.S. based, Navy approved accreditation body to U.S. national standards:

(1) ANSI/NCSL Z540.3, Requirements for the Calibration of Measuring and Test Equipment, dated 3 Aug 2006; or

(2) ISO/IEC 17025:2017, General Requirements for the Competence of Testing and Calibration Laboratories (3rd Edition), dated 29 Nov 2017; or

(3) Certified by the U.S. Navy to NAVSEA 04-4734, Navy and Marine Corps Calibration Laboratory Audit/Certification Manual.

(c) ISO/IEC 17025:2017 and ANSI/NCSL Z540.3 accreditations must be performed by a U.S. based accreditation body. Calibration accreditation must include the parameters required to execute the calibration at appropriate ranges and tolerances. A calibration certificate meeting the requirements of ANSI/NCSL Z540.3 or ISO/IEC 17025:2017 must be provided with the returned calibrated unit. The calibration certificate must be evaluated to confirm that the calibration was performed within the laboratory's accreditation scope and that each calibration measurement met or exceeded a 4:1 Test Uncertainty Ratio (TUR).

(d) Certification to Navy standard NAVSEA 04-4734, is acceptable in place of ANSI/NCSL Z540.3 and ISO/IEC 17025:2017 accreditations. For activities certified to NAVSEA 04-4734, calibrations must be evaluated to confirm that the calibration was performed within the laboratory's NAVSEA scope of certification, and calibration event records shall be provided to the Government upon request. Calibration intervals that deviate from NAVSEA OD

45845, Metrology Requirements List (METRL), shall reflect Test, Measurement and Diagnostic Equipment (TMDE) end of period reliability greater than 85%. TMDE reliability data shall be provided upon request. TURs shall be greater than or equal to 4:1, or ensure a Probability of False Acceptance (PFA) of 2% or less and a Probability of False Rejections (PFR) of 15% or less. Measurement traceability, including TUR, PFA, and PFR shall be documented in accordance to MIL-STD-1839. Calibration procedures, methods, and measurement traceability used by the Contractor shall be provided to the Government upon request.

(e) All calibrations supporting this contract shall meet the requirements of OPNAVINST 3960.16. If the Contractor executes, subcontracts or outsources the initial or reoccurring calibration of calibrated equipment, the respective calibration laboratory, and all of their employees who perform calibration or supply calibrated equipment, shall be certified or accredited to the requirements of paragraphs (b), (c), and (d).

(f) Contractors electing certification to NAVSEA 04-4734 will contact the Contracting Officer's Representative (COR) or Technical Point of Contact (TPOC) within 60 days of contract award, who will then contact the NAVSEA09MM METCAL Technical Warrant Holder (TWH), at NAVSEA_METCAL_INSERTVICE@us.navy.mil, to begin the Navy certification process.

(End of Text)

Section I - Contract Clauses

CLAUSES INCORPORATED BY REFERENCE

52.202-1	Definitions	JUN 2020
52.203-3	Gratuities	APR 1984
52.203-5	Covenant Against Contingent Fees	MAY 2014
52.203-6	Restrictions On Subcontractor Sales To The Government	JUN 2020
52.203-7	Anti-Kickback Procedures	JUN 2020
52.203-8	Cancellation, Rescission, and Recovery of Funds for Illegal or Improper Activity	MAY 2014
52.203-10	Price Or Fee Adjustment For Illegal Or Improper Activity	MAY 2014
52.203-12	Limitation On Payments To Influence Certain Federal Transactions	JUN 2020
52.203-13	Contractor Code of Business Ethics and Conduct	NOV 2021
52.203-19	Prohibition on Requiring Certain Internal Confidentiality Agreements or Statements	JAN 2017
52.204-2	Security Requirements	MAR 2021
52.204-9	Personal Identity Verification of Contractor Personnel	JAN 2011
52.204-10	Reporting Executive Compensation and First-Tier Subcontract Awards	JUN 2020
52.204-12	Unique Entity Identifier Maintenance	OCT 2016
52.204-13	System for Award Management Maintenance	OCT 2018
52.204-18	Commercial and Government Entity Code Maintenance	AUG 2020
52.204-19	Incorporation by Reference of Representations and Certifications.	DEC 2014
52.204-21	Basic Safeguarding of Covered Contractor Information Systems	NOV 2021
52.204-23	Prohibition on Contracting for Hardware, Software, and Services Developed or Provided by Kaspersky Lab Covered Entities	DEC 2023
52.204-25	Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment	NOV 2021
52.204-27	Prohibition on a ByteDance Covered Application	JUN 2023
52.207-3	Right of First Refusal of Employment	MAY 2006
52.208-9	Contractor Use of Mandatory Sources of Supply or Services	MAY 2014
52.209-6	Protecting the Government's Interest When Subcontracting With Contractors Debarred, Suspended, or Proposed for Debarment	NOV 2021
52.209-9	Updates of Publicly Available Information Regarding Responsibility Matters	OCT 2018
52.209-10	Prohibition on Contracting With Inverted Domestic Corporations	NOV 2015
52.210-1	Market Research	NOV 2021
52.211-5	Material Requirements	AUG 2000
52.211-15	Defense Priority And Allocation Requirements	APR 2008
52.215-2	Audit and Records--Negotiation	JUN 2020
52.215-8	Order of Precedence--Uniform Contract Format	OCT 1997
52.215-10	Price Reduction for Defective Certified Cost or Pricing Data	AUG 2011

52.215-11 (Dev)	Price Reduction for Defective Certified Cost or Pricing Data-- Modifications (DEVIATION 2022-O0001)	OCT 2021
52.215-12 (Dev)	Subcontractor Certified Cost or Pricing Data (DEVIATION 2022-O0001)	OCT 2021
52.215-13 (Dev)	Subcontractor Certified Cost or Pricing Data - Modifications (Deviation 2022-O0001)	OCT 2021
52.215-14	Integrity of Unit Prices	NOV 2021
52.215-19	Notification of Ownership Changes	OCT 1997
52.215-21	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data -- Modifications	NOV 2021
52.215-23	Limitations on Pass-Through Charges	JUN 2020
52.216-7	Allowable Cost And Payment	AUG 2018
52.216-8	Fixed Fee	JUN 2011
52.216-10	Incentive Fee	JUN 2011
52.216-11	Cost Contract--No Fee	APR 1984
52.216-19	Order Limitations	OCT 1995
52.217-6	Option For Increased Quantity	MAR 1989
52.219-4	Notice of Price Evaluation Preference for HUBZone Small Business Concerns	OCT 2022
52.219-8	Utilization of Small Business Concerns	FEB 2024
52.219-9 Alt II	Small Business Subcontracting Plan (SEP 2023) Alternate II	NOV 2016
52.219-14 (Dev)	Limitations on Subcontracting (DEVIATION 2021-O0008)	FEB 2023
52.219-16	Liquidated Damages-Subcontracting Plan	SEP 2021
52.219-28	Post-Award Small Business Program Rerepresentation	FEB 2024
52.222-2	Payment For Overtime Premiums	JUL 1990
52.222-3	Convict Labor	JUN 2003
52.222-4	Contract Work Hours and Safety Standards - Overtime Compensation	MAY 2018
52.222-19	Child Labor -- Cooperation with Authorities and Remedies	FEB 2024
52.222-20	Contracts for Materials, Supplies, Articles, and Equipment	JUN 2020
52.222-21	Prohibition Of Segregated Facilities	APR 2015
52.222-26	Equal Opportunity	SEP 2016
52.222-35	Equal Opportunity for Veterans	JUN 2020
52.222-36	Equal Opportunity for Workers with Disabilities	JUN 2020
52.222-37	Employment Reports on Veterans	JUN 2020
52.222-40	Notification of Employee Rights Under the National Labor Relations Act	DEC 2010
52.222-50	Combating Trafficking in Persons	NOV 2021
52.222-54	Employment Eligibility Verification	MAY 2022
52.225-13	Restrictions on Certain Foreign Purchases	FEB 2021
52.227-1 Alt I	Authorization And Consent (JUN 2020) - Alternate I	APR 1984
52.227-2	Notice And Assistance Regarding Patent And Copyright Infringement	JUN 2020
52.227-3 Alt I	Patent Indemnity (Apr 1984) - Alternate I	APR 1984
52.227-10	Filing Of Patent Applications--Classified Subject Matter	DEC 2007
52.229-3	Federal, State And Local Taxes	FEB 2013
52.229-11	Tax on Certain Foreign Procurements--Notice and Representation	JUN 2020
52.229-12	Tax on Certain Foreign Procurements	FEB 2021
52.230-2	Cost Accounting Standards	JUN 2020
52.230-6	Administration of Cost Accounting Standards	JUN 2010

52.232-1	Payments	APR 1984
52.232-8	Discounts For Prompt Payment	FEB 2002
52.232-11	Extras	APR 1984
52.232-16 (Dev)	Progress Payments (DEVIATION 2020-O0010)	NOV 2021
52.232-17	Interest	MAY 2014
52.232-18	Availability Of Funds	APR 1984
52.232-20	Limitation Of Cost	APR 1984
52.232-22	Limitation Of Funds	APR 1984
52.232-23	Assignment Of Claims	MAY 2014
52.232-25	Prompt Payment	JAN 2017
52.232-33	Payment by Electronic Funds Transfer--System for Award Management	OCT 2018
52.232-39	Unenforceability of Unauthorized Obligations	JUN 2013
52.232-40	Providing Accelerated Payments to Small Business Subcontractors	MAR 2023
52.233-1	Disputes	MAY 2014
52.233-3 Alt I	Protest After Award (Aug 1996) - Alternate I	JUN 1985
52.233-4	Applicable Law for Breach of Contract Claim	OCT 2004
52.234-1	Industrial Resources Developed Under Title III, Defense Production Act	SEP 2016
52.242-1	Notice of Intent to Disallow Costs	APR 1984
52.242-2	Production Progress Reports	APR 1991
52.242-3	Penalties for Unallowable Costs	DEC 2022
52.242-4	Certification of Final Indirect Costs	JAN 1997
52.242-5	Payments to Small Business Subcontractors	JAN 2017
52.242-13	Bankruptcy	JUL 1995
52.243-1	Changes--Fixed Price	AUG 1987
52.243-2	Changes--Cost-Reimbursement	AUG 1987
52.243-6	Change Order Accounting	APR 1984
52.243-7	Notification Of Changes	JAN 2017
52.244-5	Competition In Subcontracting	AUG 2024
52.244-6	Subcontracts for Commercial Products and Commercial Services	FEB 2024
52.245-1	Government Property	SEP 2021
52.245-9	Use And Charges	APR 2012
52.246-23	Limitation Of Liability	FEB 1997
52.246-26	Reporting Nonconforming Items.	AUG 2024
52.249-2	Termination For Convenience Of The Government (Fixed-Price)	APR 2012
52.249-6	Termination (Cost Reimbursement)	MAY 2004
52.249-8	Default (Fixed-Price Supply & Service)	APR 1984
52.249-14	Excusable Delays	APR 1984
52.252-2	Clauses Incorporated By Reference	FEB 1998
52.252-6	Authorized Deviations In Clauses	NOV 2020
52.253-1	Computer Generated Forms	JAN 1991
252.201-7000	Contracting Officer's Representative	DEC 1991
252.203-7000	Requirements Relating to Compensation of Former DoD Officials	SEP 2011
252.203-7001	Prohibition On Persons Convicted of Fraud or Other Defense-Contract-Related Felonies	JAN 2023
252.203-7002	Requirement to Inform Employees of Whistleblower Rights	DEC 2022

252.203-7003	Agency Office of the Inspector General	AUG 2019
252.203-7004	Display of Hotline Posters	JAN 2023
252.204-7000	Disclosure Of Information	OCT 2016
252.204-7002	Payment For Contract Line or Subline Items Not Separately Priced	APR 2020
252.204-7003	Control Of Government Personnel Work Product	APR 1992
252.204-7009	Limitations on the Use or Disclosure of Third-Party Contractor Reported Cyber Incident Information	JAN 2023
252.204-7012 (Dev)	Safeguarding Covered Defense Information and Cyber Incident Reporting (DEVIATION 2024-O0013 REVISION 1)	MAY 2024
252.204-7015	Notice of Authorized Disclosure of Information for Litigation Support	JAN 2023
252.204-7018	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services	JAN 2023
252.204-7022	Expediting Contract Closeout	MAY 2021
252.205-7000	Provision Of Information To Cooperative Agreement Holders	JUN 2023
252.209-7004	Subcontracting With Firms That Are Owned or Controlled By The Government of a Country that is a State Sponsor of Terrorism	MAY 2019
252.211-7003	Item Unique Identification and Valuation	JAN 2023
252.211-7008	Use of Government-Assigned Serial Numbers	SEP 2010
252.215-7002	Cost Estimating System Requirements	DEC 2012
252.217-7027	Contract Definitization	MAY 2023
252.219-7003	Small Business Subcontracting Plan (DOD Contracts)	DEC 2019
252.222-7006	Restrictions on the Use of Mandatory Arbitration Agreements	JAN 2023
252.223-7006	Prohibition On Storage, Treatment, and Disposal of Toxic or Hazardous Materials	SEP 2014
252.225-7001	Buy American and Balance of Payments Program	FEB 2024
252.225-7002	Qualifying Country Sources As Subcontractors	MAR 2022
252.225-7004	Report of Intended Performance Outside the United States and Canada--Submission After Award	JUL 2024
252.225-7008	Restriction on Acquisition of Specialty Metals	MAR 2013
252.225-7009	Restriction on Acquisition of Certain Articles Containing Specialty Metals	JAN 2023
252.225-7012	Preference For Certain Domestic Commodities	APR 2022
252.225-7025	Restriction on Acquisition of Forgings	DEC 2009
252.225-7036	Buy American--Free Trade Agreements--Balance of Payments Program--Basic	FEB 2024
252.225-7048	Export-Controlled Items	JUN 2013
252.225-7052	Restriction on the Acquisition of Certain Magnets, Tantalum, and Tungsten.	MAY 2024
252.227-7013	Rights in Technical Data--Other Than Commercial Products and Commercial Services	MAR 2023
252.227-7019	Validation of Asserted Restrictions--Computer Software	JAN 2023
252.227-7026	Deferred Delivery Of Technical Data Or Computer Software	APR 1988
252.227-7027	Deferred Ordering Of Technical Data Or Computer Software	APR 1988
252.227-7030	Technical Data--Withholding Of Payment	MAR 2000
252.227-7037	Validation of Restrictive Markings on Technical Data	JAN 2023
252.227-7038	Patent Rights--Ownership by the Contractor (Large Business)	JUN 2012
252.231-7000	Supplemental Cost Principles	DEC 1991

252.232-7004 (Dev)	DoD Progress Payment Rates (DEVIATION 2020-O0010)	MAR 2020
252.232-7010	Levies on Contract Payments	DEC 2006
252.234-7002 (Dev)	Earned Value Management System (Deviation 2015-O0017)	SEP 2015
252.234-7004	Cost and Software Data Reporting System--Basic	NOV 2014
252.239-7000	Protection Against Compromising Emanations	OCT 2019
252.239-7001	Information Assurance Contractor Training and Certification	JAN 2008
252.239-7018	Supply Chain Risk	DEC 2022
252.241-7001	Government Access	DEC 1991
252.242-7004	Material Management And Accounting System	MAY 2011
252.242-7005	Contractor Business Systems	FEB 2012
252.242-7006	Accounting System Administration	FEB 2012
252.243-7001	Pricing Of Contract Modifications	DEC 1991
252.243-7002	Requests for Equitable Adjustment	DEC 2022
252.244-7001	Contractor Purchasing System Administration	MAY 2014
252.245-7003	Contractor Property Management System Administration	APR 2012
252.245-7005	Management and Reporting of Government Property	JAN 2024
252.246-7003	Notification of Potential Safety Issues	JAN 2023
252.246-7007	Contractor Counterfeit Electronic Part Detection and Avoidance System	JAN 2023
252.246-7008	Sources of Electronic Parts	JAN 2023
252.249-7002	Notification of Anticipated Contract Termination or Reduction	DEC 2022

CLAUSES INCORPORATED BY FULL TEXT

52.217-7 VAR I OPTION FOR INCREASED QUANTITY—SEPARATELY PRICED LINE ITEM (MAR 1989) (NAVSEA VARIATION I) (OCT 2018)

The Government may require the delivery of the numbered line item(s)/subline item(s), identified in the Schedule as an option item(s), in the quantity and at the price(s) stated in the Schedule. If more than one option exists, the Government has the right to unilaterally exercise any such option, in whole or in part up to the total quantity specified in the option item, whether or not it has exercised other options. Option(s) shall be exercised, if at all, by written or telegraphic notice(s) signed by the Contracting Officer and sent within the time(s) specified below:

The Government may require the delivery of the numbered line item(s)/subline item(s), identified in the Schedule as an option item(s), in the quantity and at the price(s) stated in the Schedule. If more than one option exists, the Government has the right to unilaterally exercise any such option, in whole or in part up to the total quantity specified in the option item, whether or not it has exercised other options. Option(s) shall be exercised, if at all, by written or telegraphic notice(s) signed by the Contracting Officer and sent within the time(s) specified below:

<u>ITEM(S)</u>	<u>LATEST OPTION EXERCISE DATE</u>
0003	16 Months After Contract Award
0103	24 Months After Contract Award
0203	36 Months After Contract Award
0303	48 Months After Contract Award
0403	55 Months After Contract Award
0501	60 Months After Contract Award

(End of clause)

52.217-9 OPTION TO EXTEND THE TERM OF THE CONTRACT (MAR 2000)

(a) The Government may extend the term of this contract by written notice to the Contractor within 60 days (insert the period of time within which the Contracting Officer may exercise the option); provided that the Government gives the Contractor a preliminary written notice of its intent to extend at least 60 days before the contract expires. The preliminary notice does not commit the Government to an extension.

(b) If the Government exercises this option, the extended contract shall be considered to include this option clause.

(c) The total duration of this contract, including the exercise of any options under this clause, shall not exceed 60 months.

(End of clause)

52.244-2 SUBCONTRACTS (JUN 2020)

(a) Definitions. As used in this clause--

Approved purchasing system means a Contractor's purchasing system that has been reviewed and approved in accordance with Part 44 of the Federal Acquisition Regulation (FAR).

Consent to subcontract means the Contracting Officer's written consent for the Contractor to enter into a particular subcontract.

Subcontract means any contract, as defined in FAR Subpart 2.1, entered into by a subcontractor to furnish supplies or services for performance of the prime contract or a subcontract. It includes, but is not limited to, purchase orders, and changes and modifications to purchase orders.

(b) When this clause is included in a fixed-price type contract, consent to subcontract is required only on unpriced contract actions (including unpriced modifications or unpriced delivery orders), and only if required in accordance with paragraph (c) or (d) of this clause.

(c) If the Contractor does not have an approved purchasing system, consent to subcontract is required for any subcontract that—

(1) Is of the cost-reimbursement, time-and-materials, or labor-hour type; or

(2) Is fixed-price and exceeds—

(i) For a contract awarded by the Department of Defense, the Coast Guard, or the National Aeronautics and Space Administration, the greater of the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract; or

(ii) For a contract awarded by a civilian agency other than the Coast Guard and the National Aeronautics and Space Administration, either the simplified acquisition threshold, as defined in FAR 2.101 on the date of subcontract award, or 5 percent of the total estimated cost of the contract.

(d) If the Contractor has an approved purchasing system, the Contractor nevertheless shall obtain the Contracting Officer's written consent before placing the following subcontracts:

Any major subcontracts added after award.

(e)(1) The Contractor shall notify the Contracting Officer reasonably in advance of placing any subcontract or modification thereof for which consent is required under paragraph (b), (c), or (d) of this clause, including the following information:

(i) A description of the supplies or services to be subcontracted.

(ii) Identification of the type of subcontract to be used.

(iii) Identification of the proposed subcontractor.

(iv) The proposed subcontract price.

(v) The subcontractor's current, complete, and accurate certified cost or pricing data and Certificate of Current Cost or Pricing Data, if required by other contract provisions.

(vi) The subcontractor's Disclosure Statement or Certificate relating to Cost Accounting Standards when such data are required by other provisions of this contract.

(vii) A negotiation memorandum reflecting—

(A) The principal elements of the subcontract price negotiations;

(B) The most significant considerations controlling establishment of initial or revised prices;

(C) The reason certified cost or pricing data were or were not required;

(D) The extent, if any, to which the Contractor did not rely on the subcontractor's certified cost or pricing data in determining the price objective and in negotiating the final price;

(E) The extent to which it was recognized in the negotiation that the subcontractor's certified cost or pricing data were not accurate, complete, or current; the action taken by the Contractor and the subcontractor; and the effect of any such defective data on the total price negotiated;

(F) The reasons for any significant difference between the Contractor's price objective and the price negotiated; and

(G) A complete explanation of the incentive fee or profit plan when incentives are used. The explanation shall identify each critical performance element, management decisions used to quantify each incentive element, reasons for the incentives, and a summary of all trade-off possibilities considered.

(2) The Contractor is not required to notify the Contracting Officer in advance of entering into any subcontract for which consent is not required under paragraph (c), (d), or (e) of this clause.

(f) Unless the consent or approval specifically provides otherwise, neither consent by the Contracting Officer to any subcontract nor approval of the Contractor's purchasing system shall constitute a determination—

- (1) Of the acceptability of any subcontract terms or conditions;
- (2) Of the allowability of any cost under this contract; or
- (3) To relieve the Contractor of any responsibility for performing this contract.

(g) No subcontract or modification thereof placed under this contract shall provide for payment on a cost-plus-a-percentage-of-cost basis, and any fee payable under cost-reimbursement type subcontracts shall not exceed the fee limitations in FAR 15.404-4(c)(4)(i).

(h) The Contractor shall give the Contracting Officer immediate written notice of any action or suit filed and prompt notice of any claim made against the Contractor by any subcontractor or vendor that, in the opinion of the Contractor, may result in litigation related in any way to this contract, with respect to which the Contractor may be entitled to reimbursement from the Government.

(i) The Government reserves the right to review the Contractor's purchasing system as set forth in FAR Subpart 44.3.

(j) Paragraphs (c) and (e) of this clause do not apply to the following subcontracts, which were evaluated during negotiations:

(End of clause)

252.204-7020 NIST SP 800-171 DOD ASSESSMENT REQUIREMENTS (NOV 2023)

(a) Definitions.

Basic Assessment means a contractor's self-assessment of the contractor's implementation of NIST SP 800-171 that-

- (1) Is based on the Contractor's review of their system security plan(s) associated with covered contractor information system(s);
- (2) Is conducted in accordance with the NIST SP 800-171 DoD Assessment Methodology; and
- (3) Results in a confidence level of "Low" in the resulting score, because it is a self-generated score.

Covered contractor information system has the meaning given in the clause 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

High Assessment means an assessment that is conducted by Government personnel using NIST SP 800-171A, Assessing Security Requirements for Controlled Unclassified Information that--

- (1) Consists of--
 - (i) A review of a contractor's Basic Assessment;

(ii) A thorough document review;

(iii) Verification, examination, and demonstration of a Contractor's system security plan to validate that NIST SP 800-171 security requirements have been implemented as described in the contractor's system security plan; and

(iv) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "High" in the resulting score.

Medium Assessment means an assessment conducted by the Government that--

(1) Consists of--

(i) A review of a contractor's Basic Assessment;

(ii) A thorough document review; and

(iii) Discussions with the contractor to obtain additional information or clarification, as needed; and

(2) Results in a confidence level of "Medium" in the resulting score.

(b) Applicability. This clause applies to covered contractor information systems that are required to comply with the National Institute of Standards and Technology (NIST) Special Publication (SP) 800-171, in accordance with Defense Federal Acquisition Regulation System (DFARS) clause at 252.204-7012, Safeguarding Covered Defense Information and Cyber Incident Reporting, of this contract.

(c) Requirements. The Contractor shall provide access to its facilities, systems, and personnel necessary for the Government to conduct a Medium or High NIST SP 800-171 DoD Assessment, as described in NIST SP 800-171 DoD Assessment Methodology at <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>, if necessary.

(d) Procedures. Summary level scores for all assessments will be posted in the Supplier Performance Risk System (SPRS) (<https://www.sprs.csd.disa.mil/>) to provide DoD Components visibility into the summary level scores of strategic assessments.

(1) Basic Assessments. A contractor may submit, via encrypted email, summary level scores of Basic Assessments conducted in accordance with the NIST SP 800-171 DoD Assessment Methodology to webptsmh@navy.mil for posting to SPRS.

(i) The email shall include the following information:

(A) Version of NIST SP 800-171 against which the assessment was conducted.

(B) Organization conducting the assessment (e.g., Contractor self-assessment).

(C) For each system security plan (security requirement 3.12.4) supporting the performance of a DoD contract--

(1) All industry Commercial and Government Entity (CAGE) code(s) associated with the information system(s) addressed by the system security plan; and

(2) A brief description of the system security plan architecture, if more than one plan exists.

(D) Date the assessment was completed.

(E) Summary level score (e.g., 95 out of 110, NOT the individual value for each requirement).

(F) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(ii) If multiple system security plans are addressed in the email described at paragraph (b)(1)(i) of this section, the Contractor shall use the following format for the report:

System security plan	CAGE codes supported by this plan	Brief description of the plan architecture	Date of assessment	Total score	Date score of 110 will be achieved

(2) Medium and High Assessments. DoD will post the following Medium and/or High Assessment summary level scores to SPRS for each system security plan assessed:

(i) The standard assessed (e.g., NIST SP 800-171 Rev 1).

(ii) Organization conducting the assessment, e.g., DCMA, or a specific organization (identified by Department of Defense Activity Address Code (DoDAAC)).

(iii) All industry CAGE code(s) associated with the information system(s) addressed by the system security plan.

(iv) A brief description of the system security plan architecture, if more than one system security plan exists.

(v) Date and level of the assessment, i.e., medium or high.

(vi) Summary level score (e.g., 105 out of 110, not the individual value assigned for each requirement).

(vii) Date that all requirements are expected to be implemented (i.e., a score of 110 is expected to be achieved) based on information gathered from associated plan(s) of action developed in accordance with NIST SP 800-171.

(e) Rebuttals. (1) DoD will provide Medium and High Assessment summary level scores to the Contractor and offer the opportunity for rebuttal and adjudication of assessment summary level scores prior to posting the summary level scores to SPRS (see SPRS User's Guide https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf).

(2) Upon completion of each assessment, the contractor has 14 business days to provide additional information to demonstrate that they meet any security requirements not observed by the assessment team or to rebut the findings that may be of question.

(f) Accessibility.

(1) Assessment summary level scores posted in SPRS are available to DoD personnel, and are protected, in accordance with the standards set forth in DoD Instruction 5000.79, Defense-wide Sharing and Use of Supplier and Product Performance Information (PI).

(2) Authorized representatives of the Contractor for which the assessment was conducted may access SPRS to view their own summary level scores, in accordance with the SPRS Software User's Guide for Awardees/Contractors available at https://www.sprs.csd.disa.mil/pdf/SPRS_Awardee.pdf.

(3) A High NIST SP 800-171 DoD Assessment may result in documentation in addition to that listed in this clause. DoD will retain and protect any such documentation as "Controlled Unclassified Information (CUI)" and intended for internal DoD use only. The information will be protected against unauthorized use and release, including through the exercise of applicable exemptions under the Freedom of Information Act (e.g., Exemption 4 covers trade secrets and commercial or financial information obtained from a contractor that is privileged or confidential).

(g) Subcontracts.

(1) The Contractor shall insert the substance of this clause, including this paragraph (g), in all subcontracts and other contractual instruments, including subcontracts for the acquisition of commercial products or commercial services (excluding commercially available off-the-shelf items).

(2) The Contractor shall not award a subcontract or other contractual instrument, that is subject to the implementation of NIST SP 800-171 security requirements, in accordance with DFARS clause 252.204-7012 of this contract, unless the subcontractor has completed, within the last 3 years, at least a Basic NIST SP 800-171 DoD Assessment, as described in <https://www.acq.osd.mil/asda/dpc/cp/cyber/docs/safeguarding/NIST-SP-800-171-Assessment-Methodology-Version-1.2.1-6.24.2020.pdf>, for all covered contractor information systems relevant to its offer that are not part of an information technology service or system operated on behalf of the Government.

(3) If a subcontractor does not have summary level scores of a current NIST SP 800-171 DoD Assessment (i.e., not more than 3 years old unless a lesser time is specified in the solicitation) posted in SPRS, the subcontractor may conduct and submit a Basic Assessment, in accordance with the NIST SP 800-171 DoD Assessment Methodology, to webpmsmh@navy.mil for posting to SPRS along with the information required by paragraph (d) of this clause.

(End of clause)

252.227-7014 RIGHTS IN OTHER THAN COMMERCIAL COMPUTER SOFTWARE AND OTHER THAN COMMERCIAL COMPUTER SOFTWARE DOCUMENTATION (MAR 2023)

(a) Definitions. As used in this clause--

(1) Commercial computer software means software developed or regularly used for nongovernmental purposes which--

(i) Has been sold, leased, or licensed to the public;

(ii) Has been offered for sale, lease, or license to the public;

(iii) Has not been offered, sold, leased, or licensed to the public but will be available for commercial sale, lease, or license in time to satisfy the delivery requirements of this contract; or

(iv) Satisfies a criterion expressed in paragraph (a)(1) (i), (ii), or (iii) of this clause and would require only minor modification to meet the requirements of this contract.

(2) Computer database means a collection of recorded data in a form capable of being processed by a computer. The term does not include computer software.

(3) Computer program means a set of instructions, rules, or routines, recorded in a form that is capable of causing a computer to perform a specific operation or series of operations.

(4) Computer software means computer programs, source code, source code listings, object code listings, design details, algorithms, processes, flow charts, formulae, and related material that would enable the software to be reproduced, recreated, or recompiled. Computer software does not include computer databases or computer software documentation.

(5) Computer software documentation means owner's manuals, user's manuals, installation instructions, operating instructions, and other similar items, regardless of storage medium, that explain the capabilities of the computer software or provide instructions for using the software.

(6) Covered Government support contractor means a contractor (other than a litigation support contractor covered by 252.204-7014) under a contract, the primary purpose of which is to furnish independent and impartial advice or technical assistance directly to the Government in support of the Government's management and oversight of a program or effort (rather than to directly furnish an end item or service to accomplish a program or effort), provided that the contractor--

(i) Is not affiliated with the prime contractor or a first-tier subcontractor on the program or effort, or with any direct competitor of such prime contractor or any such first-tier subcontractor in furnishing end items or services of the type developed or produced on the program or effort; and

(ii) Receives access to technical data or computer software for performance of a Government contract that contains the clause at 252.227-7025, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

(7) Developed means that--

(i) A computer program has been successfully operated in a computer and tested to the extent sufficient to demonstrate to reasonable persons skilled in the art that the program can reasonably be expected to perform its intended purpose;

(ii) Computer software, other than computer programs, has been tested or analyzed to the extent sufficient to demonstrate to reasonable persons skilled in the art that the software can reasonably be expected to perform its intended purpose; or

(iii) Computer software documentation required to be delivered under a contract has been written, in any medium, in sufficient detail to comply with requirements under that contract.

(8) Developed exclusively at private expense means development was accomplished entirely with costs charged to indirect cost pools, costs not allocated to a government contract, or any combination thereof.

- (i) Private expense determinations should be made at the lowest practicable level.
 - (ii) Under fixed-price contracts, when total costs are greater than the firm-fixed-price or ceiling price of the contract, the additional development costs necessary to complete development shall not be considered when determining whether development was at government, private, or mixed expense.
- (9) Developed exclusively with government funds means development was not accomplished exclusively or partially at private expense.
- (10) Developed with mixed funding means development was accomplished partially with costs charged to indirect cost pools and/or costs not allocated to a government contract, and partially with costs charged directly to a government contract.
- (11) Government purpose means any activity in which the United States Government is a party, including cooperative agreements with international or multi-national defense organizations or sales or transfers by the United States Government to foreign governments or international organizations. Government purposes include competitive procurement, but do not include the rights to use, modify, reproduce, release, perform, display, or disclose computer software or computer software documentation for commercial purposes or authorize others to do so.
- (12) Government purpose rights means the rights to--
- (i) Use, modify, reproduce, release, perform, display, or disclose computer software or computer software documentation within the Government without restriction; and
 - (ii) Release or disclose computer software or computer software documentation outside the Government and authorize persons to whom release or disclosure has been made to use, modify, reproduce, release, perform, display, or disclose the software or documentation for United States government purposes.
- (13) Minor modification means a modification that does not significantly alter the nongovernmental function or purpose of the software or is of the type customarily provided in the commercial marketplace.
- (14) Other than commercial computer software means software that does not qualify as commercial computer software under the definition of "commercial computer software" of this clause.
- (15) Restricted rights apply only to other than commercial computer software and mean the Government's rights to--
- (i) Use a computer program with one computer at one time. The program may not be accessed by more than one terminal or central processing unit or time shared unless otherwise permitted by this contract;
 - (ii) Transfer a computer program to another Government agency without the further permission of the Contractor if the transferor destroys all copies of the program and related computer software documentation in its possession and notifies the licensor of the transfer. Transferred programs remain subject to the provisions of this clause;
 - (iii) Make a reasonable number of copies of the computer software required for the purposes of safekeeping (archive), backup, modification, or other activities authorized in paragraphs (a)(15)(i), (ii), and (iv) through (vii) of this clause;
 - (iv) Modify computer software provided that the Government may--
- (A) Use the modified software only as provided in paragraphs (a)(15)(i) and (iii) of this clause; and

(B) Not release or disclose the modified software except as provided in paragraphs (a)(15)(ii), (v), (vi), and (vii) of this clause;

(v) Use, and permit contractors or subcontractors performing service contracts (see 37.101 of the Federal Acquisition Regulation) in support of this or a related contract to use, computer software to diagnose and correct deficiencies in a computer program, to modify computer software to enable a computer program to be combined with, adapted to, or merged with other computer programs or when necessary to respond to urgent tactical situations, provided that--

(A) The Government notifies the party which has granted restricted rights that any such release or disclosure to particular contractors or subcontractors was made;

(B) Such contractors or subcontractors are subject to the use and nondisclosure agreement at 227.7103-7 of the Defense Federal Acquisition Regulation Supplement (DFARS) or are Government contractors receiving access to the software for performance of a Government contract that contains the clause at DFARS 252.227-7025, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends;

(C) The Government shall not permit the recipient to decompile, disassemble, or reverse engineer the software, or use software decompiled, disassembled, or reverse engineered by the Government pursuant to paragraph (a)(15)(iv) of this clause, for any other purpose; and

(D) Such use is subject to the limitations in paragraphs (a)(15)(i) through (iii) of this clause;

(vi) Use, and permit contractors or subcontractors performing emergency repairs or overhaul of items or components of items procured under this or a related contract to use, the computer software when necessary to perform the emergency repairs or overhaul, or to modify the computer software to reflect the repairs or overhaul made, provided that--

(A) The intended recipient is subject to the use and non-disclosure agreement at DFARS 227.7103-7 or is a Government contractor receiving access to the software for performance of a Government contract that contains the clause at DFARS 252.227-7025, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends;

(B) The Government shall not permit the recipient to decompile, disassemble, or reverse engineer the software, or use software decompiled, disassembled, or reverse engineered by the Government pursuant to paragraph (a)(15)(iv) of this clause, for any other purpose; and

(C) Such use is subject to the limitations in paragraphs (a)(15)(i) through (iii) of this clause; and

(vii) Use, modify, reproduce, perform, display, or release or disclose computer software to a person authorized to receive restricted rights computer software for management and oversight of a program or effort, and permit covered Government support contractors in the performance of covered Government support contracts that contain the clause at 252.227-7025, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends, to use, modify, reproduce, perform, display, or release or disclose the computer software to a person authorized to receive restricted rights computer software, provided that--

(A) The Government shall not permit the covered Government support contractor to decompile, disassemble, or reverse engineer the software, or use software decompiled, disassembled, or reverse engineered by the Government pursuant to paragraph (a)(15)(iv) of this clause, for any other purpose; and

(B) Such use is subject to the limitations in paragraphs (a)(15)(i) through (iv) of this clause.

(16) Unlimited rights means rights to use, modify, reproduce, release, perform, display, or disclose computer software or computer software documentation in whole or in part, in any manner and for any purpose whatsoever, and to have or authorize others to do so.

(b) Rights in computer software or computer software documentation. The Contractor grants or shall obtain for the Government the following royalty free, worldwide, nonexclusive, irrevocable license rights in other than commercial computer software or computer software documentation. All rights not granted to the Government are retained by the Contractor.

(1) Unlimited rights. The Government shall have unlimited rights in--

(i) Computer software developed exclusively with Government funds;

(ii) Computer software documentation required to be delivered under this contract;

(iii) Corrections or changes to computer software or computer software documentation furnished to the Contractor by the Government;

(iv) Computer software or computer software documentation that is otherwise publicly available or has been released or disclosed by the Contractor or subcontractor without restriction on further use, release or disclosure, other than a release or disclosure resulting from the sale, transfer, or other assignment of interest in the software to another party or the sale or transfer of some or all of a business entity or its assets to another party;

(v) Computer software or computer software documentation obtained with unlimited rights under another Government contract or as a result of negotiations; or

(vi) Computer software or computer software documentation furnished to the Government, under this or any other Government contract or subcontract thereunder with--

(A) Restricted rights in computer software, limited rights in technical data, or government purpose license rights and the restrictive conditions have expired; or

(B) Government purpose rights and the Contractor's exclusive right to use such software or documentation for commercial purposes has expired.

(2) Government purpose rights.

(i) Except as provided in paragraph (b)(1) of this clause, the Government shall have government purpose rights in computer software development with mixed funding.

(ii) Government purpose rights shall remain in effect for a period of five years unless a different period has been negotiated. Upon expiration of the five-year or other negotiated period, the Government shall have unlimited rights in the computer software or computer software documentation. The government purpose rights period shall commence upon execution of the contract, subcontract, letter contract (or similar contractual instrument), contract modification, or option exercise that required development of the computer software.

(iii) The Government shall not release or disclose computer software in which it has government purpose rights to any other person unless--

(A) Prior to release or disclosure, the intended recipient is subject to the use and non-disclosure agreement at DFARS 227.7103-7; or

(B) The recipient is a Government contractor receiving access to the software or documentation for performance of a Government contract that contains the clause at DFARS 252.227-7025, Limitations on the Use or Disclosure of Government Furnished Information Marked with Restrictive Legends.

(3) Restricted rights.

(i) The Government shall have restricted rights in other than commercial computer software required to be delivered or otherwise provided to the Government under this contract that were developed exclusively at private expense.

(ii) The Contractor, its subcontractors, or suppliers are not required to provide the Government additional rights in other than commercial computer software delivered or otherwise provided to the Government with restricted rights. However, if the Government desires to obtain additional rights in such software, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. All other than commercial computer software in which the Contractor has granted the Government additional rights shall be listed or described in a license agreement made part of the contract (see paragraph (b)(4) of this clause). The license shall enumerate the additional rights granted the Government.

(iii) The Contractor acknowledges that--

(A) Restricted rights computer software is authorized to be released or disclosed to covered Government support contractors;

(B) The Contractor will be notified of such release or disclosure;

(C) The Contractor (or the party asserting restrictions, as identified in the restricted rights legend) may require each such covered Government support contractor to enter into a non-disclosure agreement directly with the Contractor (or the party asserting restrictions) regarding the covered Government support contractor's use of such software, or alternatively, that the Contractor (or party asserting restrictions) may waive in writing the requirement for a non-disclosure agreement; and

(D) Any such non-disclosure agreement shall address the restrictions on the covered Government support contractor's use of the restricted rights software as set forth in the clause at 252.227-7025, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The non-disclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the non-disclosure agreement.

(4) Specifically negotiated license rights.

(i) The standard license rights granted to the Government under paragraphs (b)(1) through (3) of this clause, including the period during which the Government shall have government purpose rights in computer software, may be modified by mutual agreement to provide such rights as the parties consider appropriate but shall not provide the Government lesser rights in computer software than are enumerated in the definition of "restricted rights" of this clause or lesser rights in computer software documentation than are enumerated in the definition of "limited rights" of the Rights in Technical Data--Other Than Commercial Products and Commercial Services clause of this contract.

(ii) Any rights so negotiated shall be identified in a license agreement made part of this contract.

(5) Prior government rights. Computer software or computer software documentation that will be delivered,

furnished, or otherwise provided to the Government under this contract, in which the Government has previously obtained rights shall be delivered, furnished, or provided with the pre-existing rights, unless--

(i) The parties have agreed otherwise; or

(ii) Any restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose the data have expired or no longer apply.

(6) Release from liability. The Contractor agrees to release the Government from liability for any release or disclosure of computer software made in accordance with paragraph (a)(15) or (b)(2)(iii) of this clause, in accordance with the terms of a license negotiated under paragraph (b)(4) of this clause, or by others to whom the recipient has released or disclosed the software, and to seek relief solely from the party who has improperly used, modified, reproduced, released, performed, displayed, or disclosed Contractor software marked with restrictive legends.

(c) Rights in derivative computer software or computer software documentation. The Government shall retain its rights in the unchanged portions of any computer software or computer software documentation delivered under this contract that the Contractor uses to prepare, or includes in, derivative computer software or computer software documentation.

(d) Third party copyrighted computer software or computer software documentation. The Contractor shall not, without the written approval of the Contracting Officer, incorporate any copyrighted computer software or computer software documentation in the software or documentation to be delivered under this contract unless the Contractor is the copyright owner or has obtained for the Government the license rights necessary to perfect a license or licenses in the deliverable software or documentation of the appropriate scope set forth in paragraph (b) of this clause, and prior to delivery of such--

(1) Computer software, has provided a statement of the license rights obtained in a form acceptable to the Contracting Officer; or

(2) Computer software documentation, has affixed to the transmittal document a statement of the license rights obtained.

(e) Identification and delivery of computer software and computer software documentation to be furnished with restrictions on use, release, or disclosure.

(1) This paragraph does not apply to restrictions based solely on copyright.

(2) Except as provided in paragraph (e)(3) of this clause, computer software that the Contractor asserts should be furnished to the Government with restrictions on use, release, or disclosure is identified in an attachment to this contract (the Attachment). The Contractor shall not deliver any software with restrictive markings unless the software is listed on the Attachment.

(3) In addition to the assertions made in the Attachment, other assertions may be identified after award when based on new information or inadvertent omissions unless the inadvertent omissions would have materially affected the source selection decision. Such identification and assertion shall be submitted to the Contracting Officer as soon as practicable prior to the scheduled date for delivery of the software, in the following format, and signed by an official authorized to contractually obligate the Contractor: Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Computer Software.

The Contractor asserts for itself, or the persons identified below, that the Government's rights to use, release, or

disclose the following computer software should be restricted:

Computer Software to be Furnished With Restrictions *	Basis for Assertion **	Asserted Rights Category ***	Name of Person Asserting Restrictions ****
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* Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions on the Government's rights to use, release, or disclose computer software.

** Indicate whether development was exclusively or partially at private expense. If development was not a private expense, enter the specific reason for asserting that the Government's rights should be restricted.

*** Enter asserted rights category (e.g., restricted or government purpose rights in computer software, government purpose license rights a prior contract, rights in SBIR software generated under another contract, or specifically negotiated licenses).

**** Corporation, individual, or other person, as appropriate.

Date

Printed Name and Title

Signature

End of identification and assertion)

(4) When requested by the Contracting Officer, the Contractor shall provide sufficient information to enable the Contracting Officer to evaluate the Contractor's assertions. The Contracting Officer reserves the right to add the Contractor's assertions to the Attachment and validate any listed assertion, at a later date, in accordance with the procedures of the Validation of Asserted Restrictions--Computer Software clause of this contract.

(f) Marking requirements. The Contractor, and its subcontractors or suppliers, may only assert restrictions on the Government's rights to use, modify, reproduce, release, perform, display, or disclose computer software by marking the deliverable software or documentation subject to restriction. Except as provided in paragraph (f)(5) of this clause, only the following legends are authorized under this contract; the government purpose rights legend at paragraph (f)(2) of this clause; the restricted rights legend at paragraph (f)(3) of this clause; or the special license rights legend at paragraph (f)(4) of this clause; and/or a notice of copyright as prescribed under 17 U.S.C. 401 or 402.

(1) General marking instructions. The Contractor, or its subcontractors or suppliers, shall conspicuously and legibly mark the appropriate legend on all computer software that qualify for such markings. The authorized legends shall be placed on the transmitted document or software storage container and each page, or portions thereof, of printed material containing computer software for which restrictions are asserted. Computer software transmitted directly from one computer or computer terminal to another shall contain a notice of asserted restrictions. However, instructions that interfere with or delay the operation of computer software in order to display a restrictive rights legend or other license statement at any time prior to or during use of the computer software, or otherwise cause such interference or delay, shall not be inserted in software that will or might be used in combat or situations that

simulate combat conditions, unless the Contracting Officer's written permission to deliver such software has been obtained prior to delivery. Reproductions of computer software or any portions thereof subject to asserted restrictions, shall also reproduce the asserted restrictions.

(2) Government purpose rights markings. Computer software delivered or otherwise furnished to the Government with government purpose rights shall be marked as follows:

GOVERNMENT PURPOSE RIGHTS

Contract No.

Contractor Name

Contractor Address

Expiration Date

The Government's rights to use, modify, reproduce, release, perform, display, or disclose this software are restricted by paragraph (b)(2) of the Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation clause contained in the above identified contract. No restrictions apply after the expiration date shown above. Any reproduction of the software or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(3) Restricted rights markings. Software delivered or otherwise furnished to the Government with restricted rights shall be marked with the following legend:

RESTRICTED RIGHTS

Contract No.

Contractor Name

Contractor Address

The Government's rights to use, modify, reproduce, release, perform, display, or disclose this software are restricted by paragraph (b)(3) of the Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation clause contained in the above identified contract. Any reproduction of computer software or portions thereof marked with this legend must also reproduce the markings. Any person, other than the Government, who has been provided access to such software must promptly notify the above named Contractor.

(End of legend)

(4) Special license rights markings.

(i) Computer software or computer documentation in which the Government's rights stem from a specifically negotiated license shall be marked with the following legend:

SPECIAL LICENSE RIGHTS

The Government's rights to use, modify, reproduce, release, perform, display, or disclose this software are restricted by Contract No. (Insert contract number), License No. (Insert license identifier). Any reproduction of computer software, computer software documentation, or portions thereof marked with this legend must also reproduce the markings.

(End of legend)

(ii) For purposes of this clause, special licenses do not include government purpose license rights acquired under a prior contract (see paragraph (b)(5) of this clause).

(5) Pre-existing markings. If the terms of a prior contract or license permitted the Contractor to restrict the Government's rights to use, modify, release, perform, display, or disclose computer software or computer software documentation and those restrictions are still applicable, the Contractor may mark such software or documentation with the appropriate restrictive legend for which the software qualified under the prior contract or license. The marking procedures in paragraph (f)(1) of this clause shall be followed.

(g) Contractor procedures and records. Throughout performance of this contract, the Contractor and its subcontractors or suppliers that will deliver computer software or computer software documentation with other than unlimited rights, shall--

(1) Have, maintain, and follow written procedures sufficient to assure that restrictive markings are used only when authorized by the terms of this clause; and

(2) Maintain records sufficient to justify the validity of any restrictive markings on computer software or computer software documentation delivered under this contract.

(h) Removal of unjustified and nonconforming markings.

(1) Unjustified computer software or computer software documentation markings. The rights and obligations of the parties regarding the validation of restrictive markings on computer software or computer software documentation furnished or to be furnished under this contract are contained in the Validation of Asserted Restrictions--Computer Software and the Validation of Restrictive Markings on Technical Data clauses of this contract, respectively. Notwithstanding any provision of this contract concerning inspection and acceptance, the Government may ignore or, at the Contractor's expense, correct or strike a marking if, in accordance with the procedures of those clauses, a restrictive marking is determined to be unjustified.

(2) Nonconforming computer software or computer software documentation markings. A nonconforming marking is a marking placed on computer software or computer software documentation delivered or otherwise furnished to the Government under this contract that is not in the format authorized by this contract. Correction of nonconforming markings is not subject to the Validation of Asserted Restrictions--Computer Software or the Validation of Restrictive Markings on Technical Data clause of this contract. If the Contracting Officer notifies the Contractor of a nonconforming marking or markings and the Contractor fails to remove or correct such markings within sixty (60) days, the Government may ignore or, at the Contractor's expense, remove or correct any nonconforming markings.

(i) Relation to patents. Nothing contained in this clause shall imply a license to the Government under any patent or be construed as affecting the scope of any license or other right otherwise granted to the Government under any patent.

(j) Limitation on charges for rights in computer software or computer software documentation.

(1) The Contractor shall not charge to this contract any cost, including but not limited to license fees, royalties, or

similar charges, for rights in computer software or computer software documentation to be delivered under this contract when--

- (i) The Government has acquired, by any means, the same or greater rights in the software or documentation; or
- (ii) The software or documentation are available to the public without restrictions.

(2) The limitation in paragraph (j)(1) of this clause--

(i) Includes costs charged by a subcontractor or supplier, at any tier, or costs incurred by the Contractor to acquire rights in subcontractor or supplier computer software or computer software documentation, if the subcontractor or supplier has been paid for such rights under any other Government contract or under a license conveying the rights to the Government; and

(ii) Does not include the reasonable costs of reproducing, handling, or mailing the documents or other media in which the software or documentation will be delivered.

(k) Applicability to subcontractors or suppliers.

(1) Whenever any other than commercial computer software or computer software documentation is to be obtained from a subcontractor or supplier for delivery to the Government under this contract, the Contractor shall use this same clause in its subcontracts or other contractual instruments, and require its subcontractors or suppliers to do so, without alteration, except to identify the parties. No other clause shall be used to enlarge or diminish the Government's, the Contractor's, or a higher tier subcontractor's or supplier's rights in a subcontractor's or supplier's computer software or computer software documentation.

(2) The Contractor and higher tier subcontractors or suppliers shall not use their power to award contracts as economic leverage to obtain rights in computer software or computer software documentation from their subcontractors or suppliers.

(3) The Contractor shall ensure that subcontractor or supplier rights are recognized and protected in the identification, assertion, and delivery processes required by paragraph (e) of this clause.

(4) In no event shall the Contractor use its obligation to recognize and protect subcontractor or supplier rights in computer software or computer software documentation as an excuse for failing to satisfy its contractual obligation to the Government.

(End of clause)

252.227-7015 TECHNICAL DATA--COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2023)

(a) Definitions. As used in this clause--

(1) Commercial product and commercial service includes commercial components and commercial processes but does not include commercial computer software.

(2) Covered Government support contractor means a contractor (other than a litigation support contractor covered by 252.204-7014) under a contract, the primary purpose of which is to furnish independent and impartial advice or

technical assistance directly to the Government in support of the Government's management and oversight of a program or effort (rather than to directly furnish an end item or service to accomplish a program or effort), provided that the contractor--

(i) Is not affiliated with the prime contractor or a first-tier subcontractor on the program or effort, or with any direct competitor of such prime contractor or any such first-tier subcontractor in furnishing end items or services of the type developed or produced on the program or effort; and

(ii) Receives access to technical data or computer software for performance of a Government contract that contains the clause at 252.227-7025, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends.

(3) Form, fit, and function data means technical data that describes the required overall physical, functional, and performance characteristics (along with the qualification requirements, if applicable) of an item, component, or process to the extent necessary to permit identification of physically and functionally interchangeable items.

(4) Technical data means recorded information, regardless of the form or method of recording, of a scientific or technical nature (including computer software documentation). The term does not include computer software or financial, administrative, cost or pricing, or management information, or information incidental to contract administration.

(b) License.

(1) The Government shall have the unrestricted right to use, modify, reproduce, release, perform, display, or disclose technical data, and to permit others to do so, that--

(i) Have been provided to the Government or others without restrictions on use, modification, reproduction, release, or further disclosure other than a release or disclosure resulting from the sale, transfer, or other assignment of interest in the technical data to another party or the sale or transfer of some or all of a business entity or its assets to another party;

(ii) Are form, fit, and function data;

(iii) Are a correction or change to technical data furnished to the Contractor by the Government;

(iv) Are necessary for operation, maintenance, installation, or training (other than detailed manufacturing or process data); or

(v) Have been provided to the Government under a prior contract or licensing agreement through which the Government has acquired the rights to use, modify, reproduce, release, perform, display, or disclose the data without restrictions.

(2) Except as provided in paragraph (b)(1) of this clause, the Government may use, modify, reproduce, release, perform, display, or disclose technical data within the Government only. The Government shall not--

(i) Use the technical data to manufacture additional quantities of the commercial products; or

(ii) Release, perform, display, disclose, or authorize use of the technical data outside the Government without the Contractor's written permission unless a release, disclosure, or permitted use is necessary for emergency repair or overhaul of the commercial products furnished under this contract, or for performance of work by covered Government support contractors.

(3) The Contractor acknowledges that--

(i) Technical data covered by paragraph (b)(2) of this clause are authorized to be released or disclosed to covered Government support contractors;

(ii) The Contractor will be notified of such release or disclosure;

(iii) The Contractor (or the party asserting restrictions as identified in a restrictive legend) may require each such covered Government support contractor to enter into a non-disclosure agreement directly with the Contractor (or the party asserting restrictions) regarding the covered Government support contractor's use of such data, or alternatively, that the Contractor (or party asserting restrictions) may waive in writing the requirement for an non-disclosure agreement; and

(iv) Any such non-disclosure agreement shall address the restrictions on the covered Government support contractor's use of the data as set forth in the clause at 252.227-7025, Limitations on the Use or Disclosure of Government-Furnished Information Marked with Restrictive Legends. The non-disclosure agreement shall not include any additional terms and conditions unless mutually agreed to by the parties to the non-disclosure agreement.

(c) Additional license rights. The Contractor, its subcontractors, and suppliers are not required to provide the Government additional rights to use, modify, reproduce, release, perform, display, or disclose technical data. However, if the Government desires to obtain additional rights in technical data, the Contractor agrees to promptly enter into negotiations with the Contracting Officer to determine whether there are acceptable terms for transferring such rights. All technical data in which the Contractor has granted the Government additional rights shall be listed or described in a special license agreement made part of this contract. The license shall enumerate the additional rights granted the Government in such data.

(d) Release from liability. The Contractor agrees that the Government, and other persons to whom the Government may have released or disclosed technical data delivered or otherwise furnished under this contract, shall have no liability for any release or disclosure of technical data that are not marked to indicate that such data are licensed data subject to use, modification, reproduction, release, performance, display, or disclosure restrictions.

(e) Applicability to subcontractors or suppliers.

(1) The Contractor shall recognize and protect the rights afforded its subcontractors and suppliers under 10 U.S.C. 3771-3775 and 10 U.S.C. 3781-3786.

(2) Whenever any technical data related to commercial products or commercial services developed in any part at private expense will be obtained from a subcontractor or supplier for delivery to the Government under this contract, the Contractor shall use this same clause in the subcontract or other contractual instrument, including subcontracts and other contractual instruments for commercial products or commercial services, and require its subcontractors or suppliers to do so, without alteration, except to identify the parties. This clause will govern the technical data pertaining to any portion of a commercial product or commercial service that was developed exclusively at private expense, and the clause at 252.227-7013 will govern the technical data pertaining to any portion of a commercial product or commercial service that was developed in any part at Government expense.

(End of clause)

252.227-7016 RIGHTS IN BID OR PROPOSAL INFORMATION (JAN 2023)

(a) Definitions.

(1) For contracts that require the delivery of technical data, the terms "technical data" and "computer software" are defined in the Rights in Technical Data--Other Than Commercial Products and Commercial Services clause of this contract or, if this is a contract awarded under the Small Business Innovation Research Program, the Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research (SBIR) Program clause of this contract.

(2) For contracts that do not require the delivery of technical data, the term "computer software" is defined in the Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation clause of this contract or, if this is a contract awarded under the Small Business Innovation Research Program, the Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research (SBIR) Program clause of this contract.

(b) Government rights to contract award. By submission of its offer, the Offeror agrees that the Government--

(1) May reproduce the bid or proposal, or any portions thereof, to the extent necessary to evaluate the offer.

(2) Except as provided in paragraph (d) of this clause, shall use information contained in the bid or proposal only for evaluational purposes and shall not disclose, directly or indirectly, such information to any person including potential evaluators, unless that person has been authorized by the head of the agency, his or her designee, or the Contracting Officer to receive such information.

(c) Government rights subsequent to contract award—

The Contractor agrees--

(1) Except as provided in paragraphs (c)(2), (d), and (e) of this clause, the Government shall have the rights to use, modify, reproduce, release, perform, display, or disclose information contained in the Contractor's bid or proposal within the Government. The Government shall not release, perform, display, or disclose such information outside the Government without the Contractor's written permission.

(2) The Government's right to use, modify, reproduce, release, perform, display, or disclose information that is technical data or computer software required to be delivered under this contract are determined by the Rights in Technical Data--Other Than Commercial Products and Commercial Services, Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation, or Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research (SBIR) Program clause(s) of this contract.

(d) Government-furnished information. The Government's rights with respect to technical data or computer software contained in the Contractor's bid or proposal that were provided to the Contractor by the Government are subject only to restrictions on use, modification, reproduction, release, performance, display, or disclosure, if any, imposed by the developer or licensor of such data or software.

(e) Information available without restrictions. The Government's rights to use, modify, reproduce, release, perform, display, or, disclose information contained in a bid or proposal, including technical data or computer software, and to permit others to do so, shall not be restricted in any manner if such information has been released or disclosed to the Government or to other persons without restrictions other than a release or disclosure resulting from the sale,

transfer, or other assignment of interest in the information to another party or the sale or transfer of some or all of a business entity or its assets to another party.

(f) Flowdown. Contractor shall include this clause in all subcontracts or similar contractual instruments and require its subcontractors or suppliers to do so without alteration, except to identify the parties.

(End of clause)

Section J - List of Documents, Exhibits and Other Attachments

SECTION J

The below document(s), exhibit(s), and other attachment(s) form a part of this contract:

EXHIBIT

Exhibit	Title	Pages	Date
A	Contract Data Requirements List (CDRL)	56	30 APRIL 2025

ATTACHMENTS

Attachment	Title	Pages	Date
1	Department of Defense Contract Security Classification Specification (DD Form 254)	5	29 NOV 2024
2	System Performance Specification For The Multifunction Modular Mast Payload Generation 2	21	03 MAR 2025
3	Government Furnished Information (GFI) List	2	08 APRIL 2025
4	Government Furnished Property (GFP/E/M) List	2	22 OCT 2024
5	Key Personnel List (to be incorporated at contract award)	N/A	TBD
6A	DFARS 252.227-7014 Supplemental Information—Noncommercial Technical Data, Noncommercial Computer Software, Noncommercial Computer Software Documentation rights assertions list (to be incorporated at contract award)	TBD	TBD
6B	Data Rights Buyout DFARS 252.227-7014 Supplemental Information—Noncommercial Technical Data, Noncommercial Computer Software, Noncommercial Computer Software Documentation rights assertions list (to be incorporated at contract award)	TBD	TBD
7A	DFARS 252.227-7015 Commercial Technical Data, Commercial Computer Software, and Commercial Computer Software Documentation-Government Use Restrictions (to be incorporated at contract award)	TBD	TBD
7B	Data Rights Buyout DFARS 252.227-7015 Commercial Technical Data, Commercial Computer Software, and Commercial Computer Software Documentation-Government Use Restrictions (to be incorporated at contract award)	TBD	TBD
8A	DFARS 252.227-7017 Data Rights List (to be incorporated at contract award)	TBD	TBD
8B	Data Rights Buyout DFARS 252.227-7017 Data Rights List (to be incorporated at contract award)	TBD	TBD
9A	DFARS 252.227-7028 Data Rights List (to be incorporated at contract award)	TBD	TBD
9B	Data Rights Buyout DFARS 252.227-7028 Data Rights List (to be incorporated at contract award)	TBD	TBD
10	BIIL List/BICPI List (to be incorporated at contract award)	TBD	TBD
11	Small Business Subcontracting Plan--Offeror's proposed plan will be incorporated into the contract at award	TBD	TBD

SOLICITATION ATTACHMENTS**SOLICITATION ATTACHMENTS**

Attachment	Title	Pages	Date
JS-1	Interested Offeror Questions Form	1	25 FEB 2025
JS-2	Past Performance Questionnaire	4	30 APRIL 2025
JS-3	Cost Element Table	7	18 MAR 2025
JS-4	Terms of Use Agreement	3	25 FEB 2025

Section K - Representations, Certifications and Other Statements of Offerors

CLAUSES INCORPORATED BY REFERENCE

52.207-4	Economic Purchase Quantity-Supplies	AUG 1987
52.209-5	Certification Regarding Responsibility Matters	AUG 2020
52.209-7	Information Regarding Responsibility Matters	OCT 2018
52.209-13	Violation of Arms Control Treaties or Agreements -- Certification	NOV 2021
52.222-22	Previous Contracts And Compliance Reports	FEB 1999
52.222-25	Affirmative Action Compliance	APR 1984
52.234-3	Notice of Earned Value Management System - Postaward Integrated Baseline Review	NOV 2016
252.204-7008	Compliance With Safeguarding Covered Defense Information Controls	OCT 2016
252.204-7016	Covered Defense Telecommunications Equipment or Services -- Representation	DEC 2019
252.204-7017	Prohibition on the Acquisition of Covered Defense Telecommunications Equipment or Services -- Representation	MAY 2021
252.219-7000	Advancing Small Business Growth	JUN 2023
252.225-7003	Report of Intended Performance Outside the United States and Canada--Submission with Offer	OCT 2020

CLAUSES INCORPORATED BY FULL TEXT

52.204-8 ANNUAL REPRESENTATIONS AND CERTIFICATIONS (MAY 2024)

(a)(1) The North American Industry Classification System (NAICS) code for this acquisition is 334511.

(2) The small business size standard is 1,350.

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(b)(1) If the provision at 52.204-7, System for Award Management, is included in this solicitation, paragraph (d) of this provision applies.

(2) If the provision at 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (d) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

☐ Paragraph (d) applies.

☐ Paragraph (d) does not apply and the offeror has completed the individual representations and certifications in the solicitation.

(c) (1) The following representations or certifications in SAM are applicable to this solicitation as indicated:

(i) 52.203-2, Certificate of Independent Price Determination. This provision applies to solicitations when a firm-fixed-price contract or fixed-price contract with economic price adjustment is contemplated, unless—

(A) The acquisition is to be made under the simplified acquisition procedures in Part 13;

(B) The solicitation is a request for technical proposals under two-step sealed bidding procedures; or

(C) The solicitation is for utility services for which rates are set by law or regulation.

(ii) 52.203-11, Certification and Disclosure Regarding Payments to Influence Certain Federal Transactions. This provision applies to solicitations expected to exceed \$150,000.

(iii) 52.203-18, Prohibition on Contracting with Entities that Require Certain Internal Confidentiality Agreements or Statements--Representation. This provision applies to all solicitations.

(iv) 52.204-3, Taxpayer Identification. This provision applies to solicitations that do not include the provision at 52.204-7, System for Award Management.

(v) 52.204-5, Women-Owned Business (Other Than Small Business). This provision applies to solicitations that—

(A) Are not set aside for small business concerns;

(B) Exceed the simplified acquisition threshold; and

(C) Are for contracts that will be performed in the United States or its outlying areas.

(vi) 52.204-26, Covered Telecommunications Equipment or Services--Representation. This provision applies to all solicitations.

(vii) 52.209-2, Prohibition on Contracting with Inverted Domestic Corporations--Representation.

(viii) 52.209-5, Certification Regarding Responsibility Matters. This provision applies to solicitations where the contract value is expected to exceed the simplified acquisition threshold.

(ix) 52.209-11, Representation by Corporations Regarding Delinquent Tax Liability or a Felony Conviction under any Federal Law. This provision applies to all solicitations.

(x) 52.214-14, Place of Performance--Sealed Bidding. This provision applies to invitations for bids except those in which the place of performance is specified by the Government.

(xi) 52.215-6, Place of Performance. This provision applies to solicitations unless the place of performance is specified by the Government.

(xii) 52.219-1, Small Business Program Representations (Basic, Alternates I, and II). This provision applies to solicitations when the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(A) The basic provision applies when the solicitations are issued by other than DoD, NASA, and the Coast Guard.

(B) The provision with its Alternate I applies to solicitations issued by DoD, NASA, or the Coast Guard.

(C) The provision with its Alternate II applies to solicitations that will result in a multiple-award contract with more than one NAICS code assigned.

(xiii) 52.219-2, Equal Low Bids. This provision applies to solicitations when contracting by sealed bidding and the contract is for supplies to be delivered or services to be performed in the United States or its outlying areas, or when the contracting officer has applied part 19 in accordance with 19.000(b)(1)(ii).

(xiv) 52.222-22, Previous Contracts and Compliance Reports. This provision applies to solicitations that include the clause at 52.222-26, Equal Opportunity.

(xv) 52.222-25, Affirmative Action Compliance. This provision applies to solicitations, other than those for construction, when the solicitation includes the clause at 52.222-26, Equal Opportunity.

(xvi) 52.222-38, Compliance with Veterans' Employment Reporting Requirements. This provision applies to solicitations when it is anticipated the contract award will exceed the simplified acquisition threshold and the contract is not for acquisition of commercial products or commercial services.

(xvii) 52.223-1, Biobased Product Certification. This provision applies to solicitations that require the delivery or specify the use of biobased products in USDA-designated product categories; or include the clause at 52.223-2, Reporting of Biobased Products Under Service and Construction Contracts.

(xviii) 52.223-4, Recovered Material Certification. This provision applies to solicitations that are for, or specify the use of, EPA- designated items.

(xix) 52.223-22, Public Disclosure of Greenhouse Gas Emissions and Reduction Goals--Representation. This provision applies to solicitations that include the clause at 52.204-7.

(xx) 52.225-2, Buy American Certificate. This provision applies to solicitations containing the clause at 52.225-1.

(xxi) 52.225-4, Buy American-Free Trade Agreements-Israeli Trade Act Certificate. (Basic, Alternates II and III.) This provision applies to solicitations containing the clause at 52.225-3.

- (A) If the acquisition value is less than \$50,000, the basic provision applies.
- (B) If the acquisition value is \$50,000 or more but is less than \$100,000, the provision with its Alternate II applies.
- (C) If the acquisition value is \$100,000 or more but is less than \$102,280, the provision with its Alternate III applies.

(xxii) 52.225-6, Trade Agreements Certificate. This provision applies to solicitations containing the clause at 52.225-5.

(xxiii) 52.225-20, Prohibition on Conducting Restricted Business Operations in Sudan--Certification. This provision applies to all solicitations.

(xxiv) 52.225-25, Prohibition on Contracting with Entities Engaging in Certain Activities or Transactions Relating to Iran—Representation and Certification. This provision applies to all solicitations.

(xxv) 52.226-2, Historically Black College or University and Minority Institution Representation. This provision applies to solicitations for research, studies, supplies, or services of the type normally acquired from higher educational institutions.

(2) The following representations or certifications are applicable as indicated by the Contracting Officer:

[Contracting Officer check as appropriate.]

(X) (i) 52.204-17, Ownership or Control of Offeror.

(X) (ii) 52.204-20, Predecessor of Offeror.

(X) (iii) 52.222-18, Certification Regarding Knowledge of Child Labor for Listed End Products.

(iv) 52.222-48, Exemption from Application of the Service Contract Labor Standards to Contracts for Maintenance, Calibration, or Repair of Certain Equipment--Certification.

(v) 52.222-52 Exemption from Application of the Service Contract Labor Standards to Contracts for Certain Services--Certification.

(vi) 52.227-6, Royalty Information.

(A) Basic.

(B) Alternate I.

(vii) 52.227-15, Representation of Limited Rights Data and Restricted Computer Software.

(d) The Offeror has completed the annual representations and certifications electronically in SAM accessed through <https://www.sam.gov>. After reviewing the SAM information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in paragraph (c) of this provision have been entered or updated within the last 12 months, are current, accurate,

complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [offeror to insert changes, identifying change by clause number, title, date]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR Clause	Title	Date	Change
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Any changes provided by the offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications posted on SAM.

(End of provision)

52.204-17 OWNERSHIP OR CONTROL OF OFFEROR (AUG 2020)

(a) Definitions. As used in this provision--

Commercial and Government Entity (CAGE) code means—

- (1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or
- (2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Highest-level owner means the entity that owns or controls an immediate owner of the offeror, or that owns or controls one or more entities that control an immediate owner of the offeror. No entity owns or exercises control of the highest level owner.

Immediate owner means an entity, other than the offeror, that has direct control of the offeror. Indicators of control include, but are not limited to, one or more of the following: Ownership or interlocking management, identity of interests among family members, shared facilities and equipment, and the common use of employees.

(b) The Offeror represents that it [____] has or [____] does not have an immediate owner. If the Offeror has more than one immediate owner (such as a joint venture), then the Offeror shall respond to paragraph (c) and if applicable, paragraph (d) of this provision for each participant in the joint venture.

(c) If the Offeror indicates ``has" in paragraph (b) of this provision, enter the following information:

Immediate owner CAGE code:

Immediate owner legal name: ____

(Do not use a ``doing business as" name)

Is the immediate owner owned or controlled by another entity?:

[____] Yes or [____] No.

(d) If the Offeror indicates ``yes" in paragraph (c) of this provision, indicating that the immediate owner is owned or controlled by another entity, then enter the following information:

Highest-level owner CAGE code:

Highest-level owner legal name:

(Do not use a ``doing business as" name)

(End of provision)

52.204-20 Predecessor of Offeror (AUG 2020)

(a) Definitions. As used in this provision--

Commercial and Government Entity (CAGE) code means--

(1) An identifier assigned to entities located in the United States or its outlying areas by the Defense Logistics Agency (DLA) Commercial and Government Entity (CAGE) Branch to identify a commercial or government entity by unique location; or

(2) An identifier assigned by a member of the North Atlantic Treaty Organization (NATO) or by the NATO Support and Procurement Agency (NSPA) to entities located outside the United States and its outlying areas that the DLA Commercial and Government Entity (CAGE) Branch records and maintains in the CAGE master file. This type of code is known as a NATO CAGE (NCAGE) code.

Predecessor means an entity that is replaced by a successor and includes any predecessors of the predecessor.

Successor means an entity that has replaced a predecessor by acquiring the assets and carrying out the affairs of the predecessor under a new name (often through acquisition or merger). The term "successor" does not include new offices/divisions of the same company or a company that only changes its name. The extent of the responsibility of the successor for the liabilities of the predecessor may vary, depending on State law and specific circumstances.

(b) The Offeror represents that it [____] is or [____] is not a successor to a predecessor that held a Federal contract or grant within the last three years.

(c) If the Offeror has indicated "is" in paragraph (b) of this provision, enter the following information for all predecessors that held a Federal contract or grant within the last three years (if more than one predecessor, list in reverse chronological order):

Predecessor CAGE code: ____ (or mark "Unknown").

Predecessor legal name: ____.

(Do not use a "doing business as" name).

(End of provision)

52.204-24 REPRESENTATION REGARDING CERTAIN TELECOMMUNICATIONS AND VIDEO SURVEILLANCE SERVICES OR EQUIPMENT (NOV 2021)

The Offeror shall not complete the representation at paragraph (d)(1) of this provision if the Offeror has represented that it "does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument" in paragraph (c)(1) in the provision at 52.204-26, Covered Telecommunications Equipment or Services-- Representation, or in paragraph (v)(2)(i) of the provision at 52.212-3, Offeror Representations and Certifications-- Commercial Products and Commercial Services. The Offeror shall not complete the representation in paragraph (d)(2) of this provision if the Offeror has represented that it "does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services" in paragraph (c)(2) of the provision at 52.204-26, or in paragraph (v)(2)(ii) of the provision at 52.212-3.

(a) Definitions. As used in this provision-

Backhaul, covered telecommunications equipment or services, critical technology, interconnection arrangements, reasonable inquiry, roaming, and substantial or essential component have the meanings provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Prohibition.

(1) Section 889(a)(1)(A) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2019, from procuring or obtaining, or extending or renewing a contract to procure or obtain, any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(2) Section 889(a)(1)(B) of the John S. McCain National Defense Authorization Act for Fiscal Year 2019 (Pub. L. 115-232) prohibits the head of an executive agency on or after August 13, 2020, from entering into a contract or extending or renewing a contract with an entity that uses any equipment, system, or service that uses covered telecommunications equipment or services as a substantial or essential component of any system, or as critical technology as part of any system. This prohibition applies to the use of covered telecommunications equipment or

services, regardless of whether that use is in performance of work under a Federal contract. Nothing in the prohibition shall be construed to--

(i) Prohibit the head of an executive agency from procuring with an entity to provide a service that connects to the facilities of a third-party, such as backhaul, roaming, or interconnection arrangements; or

(ii) Cover telecommunications equipment that cannot route or redirect user data traffic or cannot permit visibility into any user data or packets that such equipment transmits or otherwise handles.

(c) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services."

(d) Representations. The Offeror represents that--

(1) It [____] will, [____] will not provide covered telecommunications equipment or services to the Government in the performance of any contract, subcontract or other contractual instrument resulting from this solicitation. The Offeror shall provide the additional disclosure information required at paragraph (e)(1) of this section if the Offeror responds "will" in paragraph (d)(1) of this section; and

(2) After conducting a reasonable inquiry, for purposes of this representation, the Offeror represents that--

It [____] does, [____] does not use covered telecommunications equipment or services, or use any equipment, system, or service that uses covered telecommunications equipment or services. The Offeror shall provide the additional disclosure information required at paragraph (e)(2) of this section if the Offeror responds "does" in paragraph (d)(2) of this section.

(e) Disclosures.

(1) Disclosure for the representation in paragraph (d)(1) of this provision. If the Offeror has responded "will" in the representation in paragraph (d)(1) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the original equipment manufacturer (OEM) or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the Product Service Code (PSC) of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(1) of this provision.

(2) Disclosure for the representation in paragraph (d)(2) of this provision. If the Offeror has responded "does" in the representation in paragraph (d)(2) of this provision, the Offeror shall provide the following information as part of the offer:

(i) For covered equipment--

(A) The entity that produced the covered telecommunications equipment (include entity name, unique entity identifier, CAGE code, and whether the entity was the OEM or a distributor, if known);

(B) A description of all covered telecommunications equipment offered (include brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); and

(C) Explanation of the proposed use of covered telecommunications equipment and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(ii) For covered services--

(A) If the service is related to item maintenance: A description of all covered telecommunications services offered (include on the item being maintained: Brand; model number, such as OEM number, manufacturer part number, or wholesaler number; and item description, as applicable); or

(B) If not associated with maintenance, the PSC of the service being provided; and explanation of the proposed use of covered telecommunications services and any factors relevant to determining if such use would be permissible under the prohibition in paragraph (b)(2) of this provision.

(End of provision)

52.204-26 COVERED TELECOMMUNICATIONS EQUIPMENT OR SERVICES--REPRESENTATION (OCT 2020)

(a) Definitions. As used in this provision, "covered telecommunications equipment or services" and "reasonable inquiry" have the meaning provided in the clause 52.204-25, Prohibition on Contracting for Certain Telecommunications and Video Surveillance Services or Equipment.

(b) Procedures. The Offeror shall review the list of excluded parties in the System for Award Management (SAM) (<https://www.sam.gov>) for entities excluded from receiving federal awards for "covered telecommunications equipment or services".

(c) Representations.

(1) The Offeror represents that it [____] does, [____] does not provide covered telecommunications equipment or services as a part of its offered products or services to the Government in the performance of any contract, subcontract, or other contractual instrument.

(2) After conducting a reasonable inquiry for purposes of this representation, the offeror represents that it [____] does, [____] does not use covered telecommunications equipment or services, or any equipment, system, or service that uses covered telecommunications equipment or services.

(End of provision)

**52.209-2 PROHIBITION ON CONTRACTING WITH INVERTED DOMESTIC CORPORATIONS--
REPRESENTATION (NOV 2015)**

(a) Definitions. Inverted domestic corporation and subsidiary have the meaning given in the clause of this contract entitled Prohibition on Contracting with Inverted Domestic Corporations (52.209-10).

(b) Government agencies are not permitted to use appropriated (or otherwise made available) funds for contracts with either an inverted domestic corporation, or a subsidiary of an inverted domestic corporation, unless the exception at 9.108-2(b) applies or the requirement is waived in accordance with the procedures at 9.108-4.

(c) Representation. The Offeror represents that--

(1) It [____] is, [____] is not an inverted domestic corporation; and

(2) It [____] is, [____] is not a subsidiary of an inverted domestic corporation.

(End of provision)

**52.209-11 REPRESENTATION BY CORPORATIONS REGARDING DELINQUENT TAX LIABILITY OR A
FELONY CONVICTION UNDER ANY FEDERAL LAW (FEB 2016)**

(a) As required by sections 744 and 745 of Division E of the Consolidated and Further Continuing Appropriations Act, 2015 (Pub. L. 113-235), and similar provisions, if contained in subsequent appropriations acts, the Government will not enter into a contract with any corporation that--

(1) Has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability, where the awarding agency is aware of the unpaid tax liability, unless an agency has considered suspension or debarment of the corporation and made a determination that suspension or debarment is not necessary to protect the interests of the Government; or

(2) Was convicted of a felony criminal violation under any Federal law within the preceding 24 months, where the awarding agency is aware of the conviction, unless an agency has considered suspension or debarment of the corporation and made a determination that this action is not necessary to protect the interests of the Government.

(b) The Offeror represents that--

(1) It is [] is not [] a corporation that has any unpaid Federal tax liability that has been assessed, for which all judicial and administrative remedies have been exhausted or have lapsed, and that is not being paid in a timely manner pursuant to an agreement with the authority responsible for collecting the tax liability; and

(2) It is [] is not [] a corporation that was convicted of a felony criminal violation under a Federal law within the preceding 24 months.

(End of provision)

52.219-1 SMALL BUSINESS PROGRAM REPRESENTATIONS (FEB 2024)

(a) Definitions. As used in this provision--

Economically disadvantaged women-owned small business (EDWOSB) concern means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States and who are economically disadvantaged in accordance with 13 CFR part 127, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300. It automatically qualifies as a women-owned small business concern eligible under the WOSB Program.

Service-disabled veteran-owned small business (SDVOSB) concern means a small business concern--

(1)(i) Not less than 51 percent of which is owned and controlled by one or more service-disabled veterans or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more service-disabled veterans; and

(ii) The management and daily business operations of which are controlled by one or more service-disabled veterans or, in the case of a service-disabled veteran with permanent and severe disability, the spouse or permanent caregiver of such veteran or;

(2) A small business concern eligible under the SDVOSB Program in accordance with 13 CFR part 128 (see subpart 19.14).

(3) Service-disabled veteran, as used in this definition, means a veteran as defined in 38 U.S.C. 101(2), with a disability that is service-connected, as defined in 38 U.S.C. 101(16), and who is registered in the Beneficiary Identification and Records Locator Subsystem, or successor system that is maintained by the Department of Veterans Affairs' Veterans Benefits Administration, as a service-disabled veteran.

Service-disabled veteran-owned small business (SDVOSB) concern eligible under the SDVOSB Program means an SDVOSB concern that--

(1) Effective January 1, 2024, is designated in the System for Award Management (SAM) as certified by the Small Business Administration (SBA) in accordance with 13 CFR 128.300; or

(2) Has represented that it is an SDVOSB concern in SAM and submitted a complete application for certification to SBA on or before December 31, 2023.

Service-disabled veteran-owned small business (SDVOSB) Program means a program that authorizes contracting officers to limit competition, including award on a sole-source basis, to SDVOSB concerns eligible under the SDVOSB Program.

Small business concern--

(1) Means a concern, including its affiliates, that is independently owned and operated, not dominant in its field of operation, and qualified as a small business under the criteria in 13 CFR part 121 and the size standard in paragraph (b) of this provision.

(2) Affiliates, as used in this definition, means business concerns, one of whom directly or indirectly controls or has the power to control the others, or a third party or parties control or have the power to control the others. In determining whether affiliation exists, consideration is given to all appropriate factors including common ownership, common management, and contractual relationships. SBA determines affiliation based on the factors set forth at 13 CFR 121.103.

Small disadvantaged business concern, consistent with 13 CFR 124.1001, means a small business concern under the size standard applicable to the acquisition, that--

(1) Is at least 51 percent unconditionally and directly owned (as defined at 13 CFR 124.105) by--

(i) One or more socially disadvantaged (as defined at 13 CFR 124.103) and economically disadvantaged (as defined at 13 CFR 124.104) individuals who are citizens of the United States, and

(ii) Each individual claiming economic disadvantage has a net worth not exceeding the threshold at 13 CFR 124.104(c)(2) after taking into account the applicable exclusions set forth at 13 CFR 124.104(c)(2); and

(2) The management and daily business operations of which are controlled (as defined at 13 CFR 124.106) by individuals who meet the criteria in paragraphs (1)(i) and (ii) of this definition.

Veteran-owned small business concern means a small business concern--

(1) Not less than 51 percent of which is owned by one or more veterans (as defined at 38 U.S.C. 101(2)) or, in the case of any publicly owned business, not less than 51 percent of the stock of which is owned by one or more veterans; and

(2) The management and daily business operations of which are controlled by one or more veterans.

Women-owned small business concern means a small business concern--

(1) That is at least 51 percent owned by one or more women; or, in the case of any publicly owned business, at least 51 percent of the stock of which is owned by one or more women; and

(2) Whose management and daily business operations are controlled by one or more women.

Women-owned small business (WOSB) concern eligible under the WOSB Program (in accordance with 13 CFR part 127) means a small business concern that is at least 51 percent directly and unconditionally owned by, and the management and daily business operations of which are controlled by, one or more women who are citizens of the United States, and the concern is certified by SBA or an approved third-party certifier in accordance with 13 CFR 127.300.

(b)(1) The North American Industry Classification System (NAICS) code for this acquisition is [5865].

(2) The small business size standard is [insert size standard].

(3) The small business size standard for a concern that submits an offer, other than on a construction or service acquisition, but proposes to furnish an end item that it did not itself manufacture, process, or produce (i.e., nonmanufacturer), is 500 employees, or 150 employees for information technology value-added resellers under NAICS code 541519, if the acquisition--

(i) Is set aside for small business and has a value above the simplified acquisition threshold;

(ii) Uses the HUBZone price evaluation preference regardless of dollar value, unless the offeror waives the price evaluation preference; or

(iii) Is an 8(a), HUBZone, service-disabled veteran-owned, economically disadvantaged women-owned, or women-owned small business set-aside or sole-source award regardless of dollar value.

(c) Representations.

(1) The offeror represents as part of its offer that--

(i) It [____] is, [____] is not a small business concern; or

(ii) It [____] is, [____] is not a small business joint venture that complies with the requirements of 13 CFR 121.103(h) and 13 CFR 125.8(a) and (b). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(2) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents that it [____] is, [____] is not, a small disadvantaged business concern as defined in 13 CFR 124.1001.

(3) [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not a women-owned small business concern.

(4) Women-owned small business (WOSB) joint venture eligible under the WOSB Program. The offeror represents as part of its offer that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(5) Economically disadvantaged women-owned small business (EDWOSB) joint venture. The offeror represents as part of its offer that it [____] is, [____] is not a joint venture that complies with the requirements of 13 CFR 127.506(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(6) Veteran-owned small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not a veteran-owned small business concern.

(7) SDVOSB concern. [Complete only if the offeror represented itself as a veteran-owned small business concern in paragraph (c)(6) of this provision.] The offeror represents as part of its offer that it [____] is, [____] is not an SDVOSB concern.

(8) SDVOSB joint venture eligible under the SDVOSB Program. [Complete only if the offeror represented itself as a SDVOSB concern in paragraph (c)(7) of this provision]. The offeror represents as part of its offer that it [____] is, [____] is not a SDVOSB joint venture eligible under the SDVOSB Program that complies with the requirements of 13 CFR 128.402. [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .]

(9) HUBZone small business concern. [Complete only if the offeror represented itself as a small business concern in paragraph (c)(1) of this provision.] The offeror represents, as part of its offer, that--

(i) It [____] is, [____] is not a HUBZone small business concern listed, on the date of this representation, as having been certified by SBA as a HUBZone small business concern in the Dynamic Small Business Search and SAM, and will attempt to maintain an employment rate of HUBZone residents of 35 percent of its employees during performance of a HUBZone contract (see 13 CFR 126.200(e)(1)); and

(ii) It [____] is, [____] is not a HUBZone joint venture that complies with the requirements of 13 CFR 126.616(a) through (c). [The offeror shall enter the name and unique entity identifier of each party to the joint venture: ____ .] Each HUBZone small business concern participating in the HUBZone joint venture shall provide representation of its HUBZone status.

(d) Notice. Under 15 U.S.C. 645(d), any person who misrepresents a firm's status as a business concern that is small, HUBZone small, small disadvantaged, service-disabled veteran-owned small, economically disadvantaged women-owned small, or women-owned small eligible under the WOSB Program in order to obtain a contract to be awarded under the preference programs established pursuant to section 8, 9, 15, 31, and 36 of the Small Business Act or any other provision of Federal law that specifically references section 8(d) for a definition of program eligibility, shall—

- (1) Be punished by imposition of fine, imprisonment, or both;
- (2) Be subject to administrative remedies, including suspension and debarment; and
- (3) Be ineligible for participation in programs conducted under the authority of the Act.

(End of provision)

252.204-7007 ALTERNATE A, ANNUAL REPRESENTATIONS AND CERTIFICATIONS (OCT 2024)

Substitute the following paragraphs (b), (d) and (e) for paragraphs (b) and (d) of the provision at FAR 52.204-8:

(b)(1) If the provision at FAR 52.204-7, System for Award Management, is included in this solicitation, paragraph (e) of this provision applies.

(2) If the provision at FAR 52.204-7, System for Award Management, is not included in this solicitation, and the Offeror has an active registration in the System for Award Management (SAM), the Offeror may choose to use paragraph (e) of this provision instead of completing the corresponding individual representations and certifications in the solicitation. The Offeror shall indicate which option applies by checking one of the following boxes:

__ (i) Paragraph (e) applies.

___ (ii) Paragraph (e) does not apply and the Offeror has completed the individual representations and certifications in the solicitation.

(d)(1) The following representations or certifications in the SAM database are applicable to this solicitation as indicated:

(i) 252.204-7016, Covered Defense Telecommunications Equipment or Services--Representation. Applies to all solicitations.

(ii) 252.216-7008, Economic Price Adjustment--Wage Rates or Material Prices Controlled by a Foreign Government. Applies to solicitations for fixed-price supply and service contracts when the contract is to be performed wholly or in part in a foreign country, and a foreign government controls wage rates or material prices and may during contract performance impose a mandatory change in wages or prices of materials.

(iii) 252.225-7042, Authorization to Perform. Applies to all solicitations when performance will be wholly or in part in a foreign country.

(iv) 252.225-7049, Prohibition on Acquisition of Certain Foreign Commercial Satellite Services--Representations. Applies to solicitations for the acquisition of commercial satellite services.

(v) 252.225-7050, Disclosure of Ownership or Control by the Government of a Country that is a State Sponsor of Terrorism. Applies to all solicitations expected to result in contracts of \$150,000 or more.

(vi) 252.229-7012, Tax Exemptions (Italy)--Representation. Applies to solicitations when contract performance will be in Italy.

(vii) 252.229-7013, Tax Exemptions (Spain)--Representation. Applies to solicitations when contract performance will be in Spain.

(2) The following representations or certifications in SAM are applicable to this solicitation as indicated by the Contracting Officer: [Contracting Officer check as appropriate.]

(X) (i) 252.209-7002, Disclosure of Ownership or Control by a Foreign Government.

___ (ii) 252.225-7000, Buy American--Balance of Payments Program Certificate.

___ (iii) 252.225-7020, Trade Agreements Certificate.

___ Use with Alternate I.

___ (iv) 252.225-7031, Secondary Arab Boycott of Israel.

___ (v) 252.225-7035, Buy American--Free Trade Agreements--Balance of Payments Program Certificate.

___ Use with Alternate I.

___ Use with Alternate II.

___ Use with Alternate III.

___ Use with Alternate IV.

____ Use with Alternate V.

____ (vi) 252.226-7002, Representation for Demonstration Project for Contractors Employing Persons with Disabilities.

____ (vii) 252.232-7015, Performance-Based Payments--Representation.

(e) The Offeror has completed the annual representations and certifications electronically via the SAM website at <https://www.sam.gov>. After reviewing the SAM database information, the Offeror verifies by submission of the offer that the representations and certifications currently posted electronically that apply to this solicitation as indicated in FAR 52.204-8(c) and paragraph (d) of this provision have been entered or updated within the last 12 months, are current, accurate, complete, and applicable to this solicitation (including the business size standard applicable to the NAICS code referenced for this solicitation), as of the date of this offer, and are incorporated in this offer by reference (see FAR 4.1201); except for the changes identified below [Offeror to insert changes, identifying change by provision number, title, date ____]. These amended representation(s) and/or certification(s) are also incorporated in this offer and are current, accurate, and complete as of the date of this offer.

FAR/DFARS provision No.	Title	Date	Change

Any changes provided by the Offeror are applicable to this solicitation only, and do not result in an update to the representations and certifications located in the SAM database.

(End of provision)

252.227-7017 IDENTIFICATION AND ASSERTION OF USE, RELEASE, OR DISCLOSURE RESTRICTIONS (JAN 2023)

(a) The terms used in this provision are defined in the following clause or clauses contained in this solicitation:

(1) If a successful offeror will be required to deliver technical data, the Rights in Technical Data--Other Than Commercial Products and Commercial Services clause, or, if this solicitation contemplates a contract under the Small Business Innovation Research Program, the Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research (SBIR) Program clause.

(2) If a successful offeror will not be required to deliver technical data, the Rights in Other Than Commercial Computer Software and Other Than Commercial Computer Software Documentation clause, or, if this solicitation contemplates a contract under the Small Business Innovation Research Program, the Rights in Other Than Commercial Technical Data and Computer Software--Small Business Innovation Research (SBIR) Program clause.

(b) The identification and assertion requirements in this provision apply only to technical data, including computer software documents, or computer software to be delivered with other than unlimited rights. For contracts to be awarded under the Small Business Innovation Research Program, the notification requirements do not apply to

technical data or computer software that will be generated under the resulting contract. Notification and identification is not required for restrictions based solely on copyright.

(c) Offers submitted in response to this solicitation shall identify, to the extent known at the time an offer is submitted to the Government, the technical data or computer software that the Offeror, its subcontractors or suppliers, or potential subcontractors or suppliers, assert should be furnished to the Government with restrictions on use, release, or disclosure.

(d) The Offeror's assertions, including the assertions of its subcontractors or suppliers or potential subcontractors or suppliers shall be submitted as an attachment to its offer in the following format, dated and signed by an official authorized to contractually obligate the Offeror:

Identification and Assertion of Restrictions on the Government's Use, Release, or Disclosure of Technical Data or Computer Software.

The Offeror asserts for itself, or the persons identified below, that the Government's rights to use, release, or disclose the following technical data or computer software should be restricted:

Technical Data or Computer Software to be Furnished With Restrictions *	Basis for Assertion **	Asserted Rights Category ***	Name of Person Asserting Restrictions ****
(LIST) *****	(LIST)	(LIST)	(LIST)

*For technical data (other than computer software documentation) pertaining to items, components, or processes developed at private expense, identify both the deliverable technical data and each such items, component, or process. For computer software or computer software documentation identify the software or documentation.

**Generally, development at private expense, either exclusively or partially, is the only basis for asserting restrictions. For technical data, other than computer software documentation, development refers to development of the item, component, or process to which the data pertain. The Government's rights in computer software documentation generally may not be restricted. For computer software, development refers to the software. Indicate whether development was accomplished exclusively or partially at private expense. If development was not accomplished at private expense, or for computer software documentation, enter the specific basis for asserting restrictions.

***Enter asserted rights category (e.g., government purpose license rights from a prior contract, rights in SBIR data generated under another contract, limited, restricted, or government purpose rights under this or a prior contract, or specially negotiated licenses).

****Corporation, individual, or other person, as appropriate.

*****Enter "none" when all data or software will be submitted without restrictions.

Date _____

Printed Name and Title _____

Signature _____

(End of identification and assertion)

(e) An offeror's failure to submit, complete, or sign the notification and identification required by paragraph (d) of this provision with its offer may render the offer ineligible for award.

(f) If the Offeror is awarded a contract, the assertions identified in paragraph (d) of this provision shall be listed in an attachment to that contract. Upon request by the Contracting Officer, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate any listed assertion.

(End of provision)

252.227-7028 TECHNICAL DATA OR COMPUTER SOFTWARE PREVIOUSLY DELIVERED TO THE GOVERNMENT (JUN 1995)

The Offeror shall attach to its offer an identification of all documents or other media incorporating technical data or computer software it intends to deliver under this contract with other than unlimited rights that are identical or substantially similar to documents or other media that the Offeror has produced for, delivered to, or is obligated to deliver to the Government under any contract or subcontract. The attachment shall identify--

(a) The contract number under which the data or software were produced;

(b) The contract number under which, and the name and address of the organization to whom, the data or software were most recently delivered or will be delivered; and

(c) Any limitations on the Government's rights to use or disclose the data or software, including, when applicable, identification of the earliest date the limitations expire.

(End of clause)

K-227-W001 INSTRUCTIONS FOR OBTAINING EXPORT-CONTROLLED TECHNICAL DATA (NAVSEA) (MAY 2022)

(a) An offeror may not receive export-controlled technical data, which is specified in this solicitation, unless the offeror is a qualified U.S. contractor as defined in paragraph (b). See paragraph (c) and (d) for instructions on becoming a qualified U.S. contractor. Questions about this program or DD Form 2345 should be addressed to U.S./Canada Joint Certification Office, Defense Logistics Information Services (DLIS), Federal Center, 74 Washington Avenue North, Battle Creek, MI 49017-3084; or telephone (877) 352-2255; or email jcp-admin@dla.mil.

(b) By Department of Defense (DOD) Directive 5230.25 (hereinafter referred to as "the Directive"), a program was established to allow Qualified U.S. Contractors to obtain export-controlled technical data under certain conditions. A "Qualified U.S. Contractor" is a private individual or enterprise (hereinafter described as a "U.S. Contractor") that, in accordance with procedures established by the Under Secretary of Defense for Research and Engineering, ☐ certifies ☐ does not certify, as a condition of obtaining export-controlled technical data subject to the Directive from the Department of Defense, that:

(1) The individual who will act as recipient of the export-controlled technical data on behalf of the U.S. Contractor is a U.S. citizen or a person admitted lawfully into the United States for permanent residence and is

located in the United States;

(2) Such data is needed to bid or perform on a contract with the Department of Defense, or other U.S. Government agency, or for other legitimate business purposes in which the U.S. Contractor is engaged, or plans to engage. The purpose for which the data is needed shall be described sufficiently in such certification to permit an evaluation of whether subsequent requests for data are related properly to such business purpose.

(3) The U.S. Contractor acknowledges its responsibilities under U.S. export control laws and regulations (including the obligation, under certain circumstances, to obtain an export license prior to the release of technical data within the United States) and agrees that it will not disseminate any export-controlled technical data subject to the Directive in a manner that would violate applicable export control laws and regulations.

(4) The U.S. Contractor also agrees that, unless dissemination is permitted by the Directive, it will not provide access to export-controlled technical data subject to the Directive to persons other than its employees or persons acting on its behalf, without the permission of the DOD component that provided the technical data.

(5) To the best of its knowledge and belief, the U.S. Contractor knows of no person employed by it, or acting on its behalf, who will have access to such data, who is debarred, suspended or otherwise ineligible to perform under U.S. Government contracts; or has violated U.S. export control laws or a certification previously made to the Department of Defense under the provisions of the Directive.

(c) Private individuals or enterprises are certified as Qualified U.S. Contractors by submitting a DD Form 2345 to U.S./Canada Joint Certification Office, Defense Logistics Information Services, Federal Center, 74 Washington Avenue, North, Battle Creek, MI 49017-3084.

(d) Canadian contractors may be qualified in accordance with the Directive for technical data that do not require a license for export to Canada under section 125.12 of the International Traffic in Arms Regulations and sections 379.4(d) and 379.5(e) of the Export Administration Regulations, by submitting an equivalent certification to the DLIC.

(End of text)

Section L - Instructions, Conditions and Notices to Bidders

1.0 GENERAL

The Government intends to award a single award contract that results from this solicitation to the Offeror whose proposal represents the best value to the Government.

IMPORTANT: In order to be considered for contract award under this procurement, the Offeror shall have access to a Defense Security Service SECRET facility clearance with personnel clearances with clearance level of SECRET all issued by the United States Government, by proposal submission due date. Due to the critical technology contained within the MMM Payload Sensor and the classified (SECRET) nature of the program, there are restrictions upon foreign participation at the prime and subcontractor level. In performing this contract, the contractor will receive, store, and generate classified information or material as well as fabricate, modify and store classified hardware. SECRET facility physical construction and all classified data and hardware will be protected IAW DoD 5220.22-M, National Industrial Security Program Operating Manual (NISPOM). Offeror must be able to obtain and maintain an FCL (at the applicable classification level) and if applicable any FOCI must be mitigated per the 32 CFR Part 117. The Offeror (and any subcontractors performing SECRET-level work) shall not be:

- Under foreign ownership or control
- Restricted in access to Compartmented Information, Cryptographic Materials or Systems, Restricted Data, or Formerly Restricted Data.

The Government will not entertain any proposed revisions to the terms and conditions contained in this solicitation submitted as part of Offeror's proposals, including any attachment or exhibit referenced therein. Therefore, any offer that includes "redlines," condition(s) of offer, or any other deviation from the requirements of the solicitation may be rejected by the Government.

For proposal purposes, the estimated date of Award is 02 January 2026. The Government reserves the right to award sooner or later if necessary. The start and end dates will be updated accordingly upon Award. The proposal shall be valid for 360 calendar days following the due date for receipt of proposals.

Each Offeror is required to submit a proposal that is sufficiently detailed and complete to fully demonstrate an understanding of, and compliance with, all of the requirements of the solicitation. Proposals shall contain only material directly related to this acquisition. Offerors shall submit all information required by this solicitation. Offerors' proposals shall be based on the requirements contained in this solicitation (including those documents, exhibits, and other attachments to the solicitation identified in Section J). Offerors shall submit a proposal encompassing all of the line items listed in Section B of this solicitation. **FAILURE TO FOLLOW THE INSTRUCTIONS OR CONFORM TO ALL REQUIREMENTS OUTLINED IN THIS SOLICITATION MAY RESULT IN REJECTION OF THE OFFEROR'S PROPOSAL.**

Proposals submitted in response to the solicitation must contain a complete description of all pertinent aspects of the effort proposed by the Offeror. Offerors shall not assume that previously submitted data or prior experience presumed to be known to the Government (e.g., previous projects performed for the Government) will be considered as part of the proposal.

General statements such as, "the Offeror understands," "the Offeror can or will comply with the requirements," "standard procedures will be used," "well-known techniques will be used," or statements which merely paraphrase the solicitation in whole or in part do not constitute compliance with the requirements for proposal content. Data previously submitted, or presumed to be known (e.g., data or services previously submitted or performed for the

Government) cannot be considered as part of the proposal unless explicitly incorporated into the proposal. Discussions of each topic in the proposal shall exhibit continuity and logical progression.

The solicitation will be posted to the Government Wide Point of Entry (GPE) which is the contract opportunities portal at SAM website (<https://sam.gov>). Other documents, including classified attachments and GFI, will be made available only by submitting a completed Blocks 6.a-8.c on the DD Form 254 and Attachment JS-4 "Terms of Use Agreement" to the Government Points of Contact in Section L-1.1. Please reference the name of your company and "N00024-25-R-6234- MMM PAYLOAD SENSOR - TOU" (without quotes) in the subject line of the message. In the body of the email, provide the name and email address of a company individual who will receive the classified materials. Offerors shall request all documents, including classified documents, within ten (10) calendar days of RFP release. The Government will grant access and/or mail the classified documentation within five (5) business days of receiving the complete and approved request. Section L-1.3 outlines the process in additional detail.

Offerors are hereby notified that from time to time, the Government may post additional information to the GPE (SAM.gov) relating to this solicitation (e.g. responses to questions, amendments, etc.). It is the Offeror's responsibility to check the GPE for any such information.

1.1 Government Points of Contact

The Government Points of Contact for any questions or issues related to this solicitation are:

Ashley Thompson, Contract Specialist
ashley.p.thompson4.civ@us.navy.mil
(202) 781-0068

Patrick Dooley, Contracting Officer
patrick.s.dooley3.civ@us.navy.mil
202-781-2332

1.2 Submission of Questions and Comments

Offerors may electronically submit written questions requesting clarification of solicitation requirements by sending an email to the Government Points of Contact in Section L-1.1. It is the Offeror's responsibility to bring to the attention of the Government Points of Contact in Section L-1.1 at the earliest possible time, but prior to the closing date, any ambiguities, discrepancies, inconsistencies, or conflicts between the SOW and other solicitation documents attached hereto or incorporated by reference. For ease of Government review and to facilitate quicker responses, Offerors must submit questions on a Microsoft Word version of the Interested Offeror Questions Form (Attachment JS-1). All such questions should be received by email by **31 MARCH 2025** to allow the Government adequate time to prepare and issue responses to all Offerors prior to the date and time set for receipt of proposals. Only questions transmitted electronically to the Government Points of Contact in Section L-1.1 will receive a response. The Government will continue to accept questions up to the closing date and time of the solicitation; however, time may not permit responses to be issued prior to proposal receipt. Questions received may not result in an extension to the proposal due date. All questions and responses shall be distributed via a posting to www.sam.gov; responses will not be provided via email to individual Offerors.

However, any question or response that contains classified or controlled unclassified information will not be posted publicly, but rather will be sent directly to those Offerors who have executed the Attachment JS-4 TOU and meet the security requirements detailed herein. Contact the Contracting Officer and Contract Specialist for instructions on submitting classified questions related to this solicitation. Do not send classified questions or information directly to the Contracting Officer or Contract Specialist.

In the event that a prospective Offeror wishes to submit a comment or question that the prospective Offeror believes addresses a subject that is specific or proprietary to the Offeror, then the Offeror shall mark the question accordingly on the submission form and provide justification to support its claim. If the Government concurs with this identification, the Government will respond only to that potential Offeror. If the Government does not concur with this identification, it will inform the submitting Offeror and will not provide any further response. The Offeror may resubmit the question without the proprietary marking.

Offerors shall submit in accordance with this section any questions or suggestions related to the terms and conditions of this solicitation prior to the deadline for questions.

1.3 Availability of Government Furnished Information (GFI)

1.3.1 Classified GFI

The GFI relevant to this solicitation will be made available to those Offerors that submit the request for documents discussed in Section L-1.0 and pass a security vetting. The Government will verify the DD Form 254 submission and the TOU. Upon successful verification that the company has a Defense Counterintelligence and Security Agency (DCSA)-issued clearance of at least a SECRET facility clearance, providing for at least a SECRET personnel clearances, and at least a SECRET safeguarding capability, the Government will provide the information to those companies. The documents listed herein shall not be released to foreign sources. The Government will not provide sponsorship for new or upgraded personnel or facility clearances.

Unsuccessful Offeror(s) shall destroy all Government furnished solicitation materials associated with this RFP in accordance with Attachment JS-4 Terms of Use Agreement.

1.3.2 Unclassified GFI

Offerors shall wait until they receive approval to receive the classified GFI prior to requesting access to the Navy Electronic Technical Information Center (E-TIC).

The Navy has established an Electronic Technical Information Center (E-TIC) to serve as the repository for unclassified technical information related to the MMM Payload Sensor Program.

Unsuccessful Offeror(s) shall destroy all Government furnished solicitation materials associated with this RFP in accordance with Attachment JS-4 Terms of Use Agreement.

1.3.2.1 E-TIC Access

To apply for access to the MMM Payload Sensor GFI ETIC (Electronic Technical Information Center) hosted by AIMTC (Advanced Interactive Management Technology Center), prospective Offerors must have either a DoD CAC or a DoD External Certification Authority (ECA) Certificate from one of the DoD Approved Vendors: WidePoint (formerly ORC) or IdenTrust, Inc. For more information pertaining to approved ECA certificates, please visit the website: <https://public.cyber.mil/eca/>

FOR NEW AIMTC ACCOUNT REQUESTS:

Please visit the AIMTC website located at <https://aimtc.nuwc.navy.mil> and fill out the AIMTC Account Request Form (within #1).

FOR EXISTING AIMTC ACCOUNT HOLDERS:

Please visit the AIMTC website located at <https://aimtc.nuwc.navy.mil> ; Click on 'My Profile' and update your profile.

The following fields within your profile must be completed as follows:

'Name': Enter first name, middle initial, and last name
'Foreign National?': Select yes or no from drop down box
'Email address': Company email address (the use of personal email address are prohibited: i.e., Gmail, Yahoo, etc.)
'Branch' or 'Code' you support: PMS435
'Phone Number': Requestor's phone number
'NUWC Sponsor POC': Jonathan DaSilva
'NUWC Sponsor Code': PMS435
'Justification for your need to know': "Prospective Offeror for the MMM Payload Sensor GFI"

Please scroll down the page and expand the Category, "E-TIC (Electronic Technical Information Center)" and select "MMM Payload Sensor GFI".

Read and certify the understanding of User's Responsibilities. Click send at the bottom of the page. Upon approval by the Approving Official, your account will be created and you will be notified of your account information via email.

Please note that you will not be able to access the MMM Payload Sensor GFI ETIC until your account request is approved by the Approving Official and processed. Please allow for processing.

For AIMTC account access issues, please contact the AIMTC Webmaster at NUWC_NPT_AIMTC_Webmaster@navy.mil.

1.4 Solicitation Security Classification

This solicitation is unclassified, although some information provided in conjunction with this solicitation may be classified. All employees of the Offeror working on the classified portion of its proposal shall have active security clearances at the appropriate classification level. Offerors must provide a completed DD Form 254 in order to gain access to and handle classified materials. Offerors must meet all clearance requirements detailed in the DD Form 254 by proposal submission.

The Government does not anticipate a need for Offerors to submit classified material in any proposal volume. **OFFERORS SHALL NOT PLACE ANY CLASSIFIED INFORMATION IN ANY PORTION OF ITS PROPOSAL.** In the event classified information is found anywhere within the proposal, it will be destroyed and the Offeror's proposal will be determined to be non-compliant and will not be eligible for award.

1.4.1 Protecting Controlled Unclassified Information

Pursuant to DFARS 252.204-7008(c)(1), prospective Offerors are advised proper safeguarding of Controlled Unclassified Information (CUI) is considered a special standard of responsibility for this solicitation. See FAR subpart 9.1. Failure to properly safeguard and mark Controlled Unclassified Information in a prospective Offeror's proposal in accordance with applicable regulation and policy (to include Executive Order 13556, the Defense Acquisition Regulations Supplement and DoD Instruction 5200.48) may preclude the Contracting Officer from being able to provide the required affirmative determination of responsibility. If the Contracting Officer is unable to affirmatively determine the prospective Offeror to be responsible, the prospective Offeror will be ineligible for award.

1.5 Award Without Discussions

Pursuant to the provision under this section entitled FAR 52.215-1, "Instructions to Offerors – Competitive Acquisition," the Government intends to award a single contract on the basis of a proposal submission without conducting discussions with Offerors, but reserves the right to conduct discussions per FAR 15.306 "Exchanges with Offerors After Receipt of Proposals" if determined by the Contracting Officer to be necessary. Each Offeror shall submit only **one** proposal. **No alternate proposals will be accepted, and the submission of multiple proposals will result in rejection of all proposals.** Therefore, each Offeror's proposal submission shall contain the

Offeror's best terms from a price and technical standpoint. However, the Government may contact any, all, or a limited number of Offerors with questions concerning their proposals as permitted under FAR Part 15. Upon the conclusion of discussions, if they occur, the Government will request Final Proposal Revisions (FPRs) from all Offerors still within the competitive range.

1.6 Submission of Proposals

Offerors are instructed to submit their proposal electronically via the Procurement Integrated Enterprise Environment (PIEE) Solicitation Module (<https://piee.eb.mil>). Please note PIEE Solicitation Module does not allow zip files, multiple files will need to be uploaded individually. Proposals submitted by mail or hand-carried will not be evaluated. Proposals sent through proprietary or third-party File Transfer Protocol (FTP) sites will not be retrieved. It is the responsibility of the Offeror to confirm receipt of proposals. A vendor registration guide for obtaining access to the PIEE Solicitation Module is posted to the Defense Pricing and Contracting website at: <https://piectraining.eb.mil/wbt/xhtml/wbt/portal/overview/vendorRegister.xhtml>

For instructions on how to post an offer, please refer to the Posting Offer demo: https://piectraining.eb.mil/wbt/sol/Posting_Offer.pdf.

It is the Offeror's responsibility to obtain written confirmation of receipt of all electronic files for the full proposal. Upon proposal submission, the offeror should receive a system notification of successful proposal submission from PIEE. Offerors' proposals submitted via the PIEE Solicitation Module shall not contain CLASSIFIED INFORMATION. In the event that the Solicitation Module is down, or if the Offeror experiences technical difficulties, the Offeror shall immediately notify the Contracting Officer for an alternate proposal submission method. This notification must occur prior to the proposal submission deadline. Offeror notification shall be in writing and may be in conjunction with verbal notification, but verbal notification alone shall not be sufficient. It is the Offeror's responsibility to obtain written confirmation of receipt of all electronic files of the full proposal by the NAVSEA Contracting office. All proposals received after the exact time specified for receipt will be handled in accordance with FAR 52.215-1.

Electronic files shall be labeled by: a) Contractor Name and b) Title of the document being attached (Example: ABC Inc. – Volume I Technical / Management Proposal, ABC Inc. – Volume III Business Documentation / Completed Solicitation, etc.). Refer to volume information for specific volumes and titles.

The completion and submission to the Government of an offer shall indicate the Offeror's unconditional acceptance of the terms and conditions in the solicitation. The Government encourages Offerors to contact the PCO and Contract Specialist via the Offerors Question Process as outlined in Section L.1.2 above.

Proposals in response to this solicitation shall be submitted to the Government no later than the time specified in Block 9 of the SF 33. "Local time" shall refer to the time zone for Washington, DC.

Offerors shall take care to submit a legible, neat, orderly, concise and comprehensive proposal. Elaborate brochures or artwork, expensive paper or bindings, or expensive visual or presentation aids beyond those sufficient to present a complete and comprehensive proposal are unnecessary. Clarity is essential. The use of brochures shall be minimized and if used will count against page limits. There shall not be any embedded documents within the proposal. All documents shall be within one document or submitted as separate documents.

1.7 Proposal Format

The solicitation response shall be contained in three (3) separate Volumes:

Volume I – Technical/Management
Volume II – Cost/Price Proposal

Volume III – Business Documentation / Completed Solicitation

The number of copies required and the page limit are shown in the table below.

Volume / Title	Page Limit	Electronic Submissions (via PIEE)
I. Technical / Management	200	1
II. Cost / Price	None	1
III. Business Documentation / Completed Solicitation	None	1

The below items are considered as being part of the appendix to Volume I and do not count against the page limit stated above. However, additional page limits for the appendix documents are as specified below:

Appendix Documents		
Volume(s)	Document	Page Limitation
I	DFARS 252.227-7017 List	None
I	DFARS 252.227-7028 List	None
I	DFARS 252.227-7014 Supplemental Information - Noncommercial Technical Data, Noncommercial Computer Software, Noncommercial Computer Software Documentation	None
I	DFARS 252.227-7015 Commercial Technical Data, Commercial Computer Software, and Commercial Computer Software Documentation	None
I	Background Inventions--Identification and Licensing (BIIL)	None
I	Work Breakdown Dictionary	15 pages
I	Resumes	2 Resumes, 2 pages each (4 pages total)
I	Staffing Plan Matrix	None
I	Past Performance Questionnaire	3 Responses, 3 pages each (9 pages total)
I	Small Business Subcontracting Plan	None
I	Signed Letters of Intent	2 Letters of Intent, 2 pages each (4 pages total)
I	Administrative Documents such as Table of Contents, Glossary of Terms, Acronyms List, Cross Reference Matrix, etc.	None
I	System Engineering Management Plan (SEMP)	None

1.7.1 Proposal

The narrative material should consist of the following:

- Proposal shall be typed in Times New Roman font, no smaller than size 12, on standard 8-1/2 x 11 inch paper.
- Text line spacing shall be single spaced. One-inch minimum margins on each side, including top and bottom are required.
- Text within tables, diagrams, pictorial charts, or graphic material shall use Times New Roman font, no smaller than size 8.

- Every paragraph, figure, and table shall be numbered.
- Pages are to be numbered sequentially and tabs are to be used for chapter breaks. It is not acceptable to restart numbers in subsequent chapters within the proposals.
- A date shall be placed on each page of the proposal corresponding to the date of the initial proposal. Any pages that may be revised as a result of discussions (if required) shall contain revision numbers and dates.
- Fold out pages may be used for diagrams, charts, or graphic material only and may not exceed 11 inches by 17 inches. Fold out pages may only include narrative sufficient to describe, chart, or graphic material and must be single sided. Each single-sided fold out counts as 1 page.

Each volume shall not exceed the page limitation cited above.

The page count shall include all material and figures. Pages excluded from the page count must contain only material pertinent to the page heading or be blank and marked "Intentionally Left Blank." Index pages and Tabs are required and shall be cross-referenced to the table of contents. Every page, except those marked as blank, must be numbered.

The cover page of each Proposal Volume shall contain:

- Volume Number and Title (e.g., Volume I - Technical Proposal)
- Item Nomenclature and Request For Proposal (RFP) Number
- Company Name of the Offeror
- Offeror's Position on Disclosure of Proposal Data
- Security Classification of the Volume
- Serial Number/Copy Number

No cost or pricing information shall be included in the Offeror's cover letter or in any part of its submitted volumes except Volume II and Volume III. Cover letters are merely instruments for transmitting the submitted proposals; they are not part of the page count and will not be evaluated.

1.7.2 Electronic File Format

All files submitted to the Government shall be compatible with Microsoft Office 2016. All view graphs shall be in Microsoft PowerPoint 2016 (or compatible) format. All files spreadsheets or mathematical computations (cost data) shall be in Microsoft Excel 2016 (or compatible) format and shall be working versions, including formulas and computations. Submission of locked spreadsheets is not acceptable. All spreadsheets should be "unlinked" to separate documents to allow for cost/price evaluation. All text shall be in Microsoft Word 2016 (or compatible) or searchable Adobe Acrobat Portable Document Format (PDF).

1.8 Release of Technical Information

All technical information submitted pursuant to this solicitation is for the exclusive use of Government representatives, will be treated as business confidential, and will not be publicly disclosed, provided that, where a request for disclosure of such technical information is submitted to the Government pursuant to the Freedom of Information Act (5 U.S.C. 552a), the Government will not disclose the Offeror's technical information if public disclosure of information would substantially harm the Offeror in its competitive position. In order to help ensure non-disclosure, the title page of the technical proposal and other sheets of proposal data shall be marked with restrictive legends and the technical proposal shall be enclosed and marked "TECHNICAL INFORMATION – NOT TO BE PUBLICLY DISCLOSED".

2.0 PROPOSAL CONTENT

NO COST INFORMATION SHALL BE SUBMITTED IN ANY VOLUME OTHER THAN VOLUME II AND VOLUME III.

Information presented shall appear in the proposal in the same order it appears under the description of each proposal volume below.

Table 1.0 - Proposal Content		
TITLE	FACTORS	Evaluation
Technical/Management (Volume 1)	Factor (1): Performance Approach Factor (2): Technical/Management Approach Factor (3): Rights in Technical Data Factor (4): Past Performance	Factor (1): Adjectival Factor (2): Adjectival Factor (3): Adjectival Factor (4): Acceptable/Unacceptable
Cost/Price Proposal (Volume 2)	Factor (5): Cost/Price Proposal	TEC/P
Business Documentation / Completed Solicitation (Volume 3)	None	

2.1 VOLUME I: TECHNICAL/MANAGEMENT

Do not include cost or price information in this volume.

2.1.1 Factor 1 – Performance Approach

The Offeror's proposal shall demonstrate how the proposed design will meet the performance requirements of the Statement of Work and Attachment 2 (MMM Payload Sensor Performance Specification Requirements). The Offeror's proposal shall describe:

- a. The proposed design for mechanical, electrical and software including the design consideration for reliability, maintainability, availability, modularity, safety and Cyber Security.
- b. The schedule and technical approach for efficient Environmental Qualification Test (EQT) requirements verification. The Offeror shall describe the First Article Qualification approach.
- c. The approach to transition the development to the production baseline system including the establishment of the product baseline prior to production.
- d. The approach to manufacturing, testing, and delivering MMM Payload Sensor in accordance with the Performance Specification and Statement of Work, including production level documentation utilized.
- e. The fixtures, equipment, and processes to test capabilities for production verification and factory acceptance testing of the MMM Payload Sensor.
- f. The Offeror's material acquisition process; describe any risks due to distance and corporate barriers (if any) between Engineering, Production and Management and quality control of material from subcontractors; and describe how these risks are mitigated.
- g. How the Offeror plans to inspect and test any items that are subcontracted.
- h. The metrics used to measure performance and quality in producing the MMM Payload Sensor and procedures for implementing corrective action.

- i. The Offeror's proposal shall describe the equipment (test or otherwise), software and engineering support services required, to produce, vertically stand up, power, connect, control and test MMM Payload Sensor as applicable. The Offeror shall identify any GFI, GFM, or GFE that would be required to perform this task.

2.1.2 Factor 2 – Technical/Management Approach

The Offeror's proposed Technical/Management Approach shall demonstrate adequate knowledge, understanding, capability, and experience to perform all areas of the performance requirements of the MMM Payload Sensor Performance Specification and SOW.

The elements included in this factor are:

- a. Systems Engineering
- b. Facilities
- c. Program Management
- d. Key Personnel
- e. Personnel Resources
- f. Small Business Subcontracting Plan and Participation

2.1.2.1 Systems Engineering

The Offeror's proposal shall:

- a. Describe its technical approach, capabilities, and processes for applying a disciplined Systems Engineering (SE) approach to accomplish the requirements of the performance specification and Statement of Work (SOW). The Offeror shall describe the approach toward managing efforts to preclude duplication of efforts and to maximize "re-use" within every functional discipline during development. The description should describe the relationship, communication flows, and any dependencies, assumptions, and agreements, if any, necessary to execute tasks required to support the collaborative development environment.
- b. Describe the degree to which the product will perform and meet the reliability, availability, and maintainability requirements during all phases of the systems functional life to meet the requirements of the performance specification and SOW. The Offeror shall also describe how requirements are flowed to the subcontractors/suppliers to design hardware and software components.
- c. Describe its approach for Environmental Qualification Test (EQT), First Article Acceptance Test (FAAT), and Factory Acceptance Test (FAT).
- d. Provide a Systems Engineering Management Plan (SEMP) in its proposal that describes the depth and extent of systems engineering rigor that is envisioned for the development of the products required by this solicitation.
- e. Describe the extent of Government involvement required throughout the entire design, development, and qualification process. The Offeror shall identify its proposed design review process to demonstrate that the system will clearly conform to requirements. The Offeror shall describe the openness of the design by identifying any portion of the design that is proprietary or which contains limitations on data distribution to the Government and/or Government contractors.

2.1.2.2 Facilities

The Offeror's proposal shall describe:

- a. The shared resources (labor force, space, or equipment) and ramp-up capability (i.e. for increased throughput).
- b. The layout of the production space, to include a diagram of its facilities for this specific program, and address the availability of the facilities to meet the Government's requirements. The Offeror shall state whether the facilities are leased or owned. If facilities are leased, the Offeror shall disclose the length of the lease and any terms of the lease that would induce risk to the success of the MMM Payload Sensor program. The Offeror shall ensure that facilities are available for the entire contract term, and include any substantiating documentation.
- c. The facilities for the physical inspection and storage of incoming materials, supplier supplied items, and Government Furnished Equipment/Material (GFE/M).
- d. The production, fabrication, assembly, production testing, and inspection of the deliverables as well as any critical processes and procedures.

2.1.2.3 Program Management

The Offeror's proposal shall:

- a. Describe how the proposed organization will be integrated into the overall organization (including major subcontractors) and participate with the Navy Integrated Product Teams, indicating lines of authority and communication in terms of effective integration of testing, design, development, and MMM Payload Sensor integration support tasks.
- b. Identify the extent of Government involvement required throughout the entire design, development, and qualification process, to include the utilization of design reviews with Government representatives.
- c. Describe the limits of a program manager's authority and responsibility.
- d. Describe the corporate approach to program control, including the methods of communication, such as working meetings, directives, and memoranda. Discuss the procedures by which the program manager exercises control.
- e. Describe the management, communication, and coordination approach to develop interface design with other Government and Contractor representatives who are responsible for the development of interfacing systems.

2.1.2.4 Key Personnel

The Offeror shall include a resume and a signed letter of intent for all key personnel and fill in and submit Section J Attachment 5 – Key Personnel. Letters of Intent shall include the proposed named individual and the assigned labor category. Although Section M contemplates some Key Personnel becoming unavailable prior to contract award, Offerors shall only propose Key Personnel resumes for individuals that, at the time of proposal submission, the Offeror has a good faith expectation of providing at award. Additionally, the Government considers the submission of Letters of Intent for proposed contingent Key Personnel to be material to the proposal since these Letters of Intent demonstrate the Offeror's ability to hire personnel with the qualifications proposed at the salary proposed. Letters of Intent for current employees of an Offeror should express an understanding of being designated as key personnel under the resultant contract and a willingness to be committed to the program. The Key Personnel and qualifications are as follows:

a. Program Manager

- Desired: 15 years of experience with DoD acquisition processes in DoD/Navy program management and Field Site Operations, Industry or Government technical management, or Industry or Government business management.
- Desired: Bachelor degree (BS/BA) in related technical field.

- Required: Active Secret Security Clearance by proposal submission due date.

b. Chief Engineer

- Desired: 10 years of experience with systems engineering of submarine electronic warfare system.
- Desired: Bachelor degree (BS/BA) in related technical field.
- Required: Active Secret Security Clearance by proposal submission due date.

The Offeror's proposal shall include a filled in and submitted Section J Attachment 5 and resumes for the above Key Personnel containing the following minimum information:

- Employee Name
- Years of Professional Experience
- Current position/title
- Educational history/degrees held
- Chronology of professional experience, most related first
- Current level of security clearance

Resumes shall not exceed two (2) pages per person and must include the title of the position for which the Key Personnel are being proposed. Resumes are to be submitted as part of the Appendix to Volume I and do not count against the page limit. A list of Key Personnel (Attachment J-5) will be completed by the Offeror and incorporated into the contract at award.

2.1.2.5 Personnel Resources

The Offeror's proposal shall describe:

- The availability of trained personnel with required technical/professional skills for production, testing, delivery and support of the MMM Payload Sensor effort.
- The Offeror's plan to ensure that trained personnel retain qualifications, including periodicity of re-qualification.
- A staffing plan matrix in Microsoft Excel, as an appendix in Volume I, that supports the engineering services requirements of this solicitation. The Offeror shall provide an explanation detailing how its proposed labor mixes will meet the requirements of the SOW. The following tables provide the Government estimate of the labor mix required to complete the work. The Government developed this estimate based on historical experience with similar, successfully performed contracts. As such, Offerors should not deviate from the labor mix below, however, if the Offeror does, the Offeror shall provide detailed rationale used in selecting the proposed labor mix and demonstrate that their staffing plan will meet the Government's requirements. No cost information shall accompany the labor mix in Volume I. The labor mix shall show the various seniority levels of each category based on the following guidelines:
 - Junior Level Employee: Less than six (6) years of related experience
 - Mid-Level Employee: Six (6) to ten (10) years of related experience
 - Senior Level Employee: More than ten (10) years of related experience

Engineering Services Estimated Breakout & Labor Mix – CLINs 0001, 0101, 0201, 0301, and 0401				
	Program Management (10% of total CLIN hours)	Administrative (10% of total CLIN hours)	Engineering (60% of total CLIN hours)	Engineering Technicians (20% of total CLIN hours)

	Junior	Mid	Senior	Junior	Mid	Senior	Junior	Mid	Senior	Junior	Mid	Senior
% of Total	0%	5%	5%	5%	5%	0%	10%	25%	25%	5%	5%	10%

The staffing plan matrix shall be provided using the format in Attachment JS-3 Cost Element Table, with all cost or rate data removed. The table below shows the total notional number of hours that shall be proposed each year in Attachment JS-3 Cost Element Table:

Attachment JS-3 Tab	Total Hours
CLIN 0001	25,000
CLIN 0101	4,600
CLIN 0201	3,000
CLIN 0301	2,900
CLIN 0401	2,800
TOTAL	38,800

*The hours prescribed are inclusive of Key Personnel

Offerors are permitted to include their company-specific labor categories as part of its staffing plan matrix, but must provide a mapping of any company-specific labor categories it or one of its subcontractors proposes in staffing plan matrix in Attachment JS-3 Cost Element Table. This mapping must include a description of the requirements/qualifications associated with each company-specific labor category contained in the Offeror's Staffing Plan.

For CLINs 0001, 0101, 0201, 0301, and 0401, the Government has determined that the labor mix provided in Section L-2.1.2.5(c) is sufficient to complete the work for LOE CLINs. The Government developed the labor mix based on historical experience with similar, successfully performed contracts. As such, Offerors should note that, while their proposal labor mixes may reasonably deviate from this estimate, the Government will consider this estimate and the estimate's supporting documentation in its evaluation. Offerors that deviate from this labor mix estimate bear the burden of demonstrating that their Staffing Plan will meet the Government's requirements with their proposed technical approach. Under no circumstances will the Government consider offers whose proposed Section B deviate from the total number of direct labor hours listed in Section B of this solicitation for any LOE CLINs.

Offerors shall also clearly provide a composite view of the proposed labor mix for CLINs 0001, 0101, 0201, 0301, and 0401 to include the total proposed hours for each Offeror's labor category (mapped to Government identified functional areas' Program Management, Administrative, Engineering, and Engineering Technicians) segregated by CLIN by calendar year, inclusive of all the subcontractors proposed hours for each Government identified functional areas by year.

2.1.2.6 Small Business Subcontracting Plan and Participation

The Offeror shall submit a written proposed subcontracting plan in accordance with the clause entitled "SMALL BUSINESS SUBCONTRACTING PLAN" (FAR 52.219-9). It is the intent of the Government to encourage the use of Small Businesses whenever practicable. The Government desires a ten percent (10%) minimum overall small business participation goal to be set by the Offeror, inclusive of the congressionally mandated five percent (5%) goal for Small Disadvantaged Business concerns. If the Offeror proposes less than the above goals, the Offeror shall provide a justification for failing to meet the goals. The Offeror shall describe the extent to which its company has identified and committed to provide for participation by small businesses, including veteran-owned small businesses, service-disabled veteran-owned small businesses, HUBZone small business, Small Disadvantaged

Business, women-owned small businesses, historically black colleges and universities, and minority institutions for the performance of this contract. Of special interest is the amount and type of work to be performed by the subcontractors. The Offeror shall provide sufficient information to demonstrate that the contributions that small business subcontractors make will be meaningful in the sense that they will be performing functions important to the overall success of the program and also broaden the subcontractor's technical capabilities. The Offeror shall explain the reasons for, and advantages of, selecting the particular subcontractors (this explanation need not include material from suppliers).

The Offeror's proposal should describe the basis for subcontractor/supplier selection in terms of its respective capabilities, its role in the contract execution, and controls used to ensure consistent quality and compliant product deliveries and services.

For Small Businesses proposing as Prime Contractors, information relative to the overall breakout to subcontracting partners is required under this section.

2.1.3 Factor 3 - Rights in Technical Data

The Government desires at least Government Purpose Rights (GPR) license, as defined at DFARS 252.227-7013 and DFARS 252.227-7014, in all non-commercial technical data and computer software. The Offeror shall describe how it will support the Government's desired level of license rights. For rights in Technical Data/Computer Software/Computer Software Documentation (TD/CS/CSD), the Contractor shall explain the degree to which the proposal provides the level of technical data rights (commercial and noncommercial) and rights in computer software that will enable the Navy to sustain the MMM Payload Sensor throughout its lifecycle and allow for open and competitive procurement to include maintainability, reparability, and re-procurement. The Offeror shall provide the documentation required in the following subparagraphs:

In the event an Offeror (including its sub-Offerors or suppliers, or potential sub-Offerors or suppliers, at any tier) proposes to deliver any commercial or noncommercial TD/CS/CSD with less than such license rights as desired by the Government, the Government will evaluate the adverse impact on the Government's ability to use, modify, release, or disclose such TD, CS, or CSD. Further, the Government will consider the adverse impact of less than the license rights desired by the Government in the best value determination. The data rights license offered shall be incorporated into the successful Offeror's contract upon award. The Offeror shall provide the following information as attachments to its offer: (Note: These attachments are not included in the Volume I page count.)

Rights in Noncommercial TD, Noncommercial CS, and Noncommercial CSD

7017 Assertions List - The Offeror (including its sub-Offerors or suppliers, or potential sub-Offerors or suppliers, at any tier) shall list all noncommercial TD, CS, and CSD that it asserts will be delivered with other than an unlimited rights license. Specific instructions and requirements concerning this list are set forth in the DFARS 252.227-7017 provision incorporated at Section K of this solicitation. If the Offeror does provide assertions, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate and validate the listed assertions. Additionally, if there is no TD, CS, or CSD to be identified in the 7017 list, the Offeror shall submit the list and enter "None" in the body of the list. If the Offeror is awarded a contract, the 7017 List shall be incorporated into the contract as Attachment 8.

If the Offeror is proposing a buyout option under CLIN 0005 then the Offeror shall also provide a second 7017 Assertions List with the assertions applicable to the CLIN. If awarded a contract, this second 7017 list shall also be incorporated into the contract as Attachment 8B.

7028 Assertions List - The Offeror (including its sub-Offerors or suppliers, or potential sub-Offerors or suppliers, at any tier) shall list all noncommercial TD, CS, and CSD that it intends to deliver with other than an unlimited rights

license and that are identical or substantially similar to noncommercial TD, CS, or CSD that the Offeror has delivered to, or is obligated to deliver to, the Government under any contract or subcontract. Specific instructions and requirements concerning this list are set forth in the DFARS 252.227-7028 provision incorporated at Section K of this solicitation. If the Offeror does provide assertions, the Offeror shall provide sufficient information to enable the Contracting Officer to evaluate and validate the listed assertions. Additionally, if there is no TD, CS, or CSD to be identified in the 7028 list, the Offeror shall submit the list and enter "None" in the body of the list. If the Offeror is awarded a contract, the 7028 List shall be incorporated into the contract as Attachment 9.

If the Offeror is proposing a buyout option under CLIN 0005 then the Offeror shall also provide a second 7028 Assertions List with the assertions applicable to the CLIN. If awarded a contract this second 7028 list shall also be incorporated into the contract as Attachment 9B.

Supplemental Information Statement - If the Offeror (including its sub-Offerors or suppliers, or potential sub-Offerors or suppliers, at any tier) proposes to submit any noncommercial TD, CS, or CSD that should be delivered with a specifically negotiated license rights license (as discussed at DFARS 252.227-7013 or 252.227-7014), submit a statement entitled "Supplemental Information- Noncommercial Technical Data, Noncommercial Computer Software, Noncommercial Computer Software Documentation." The statement shall provide a complete description of the Government's ability to use, modify, release, perform, display, or disclose such TD, CS, or CSD. In addition, the Offeror shall provide the underlying executed licenses agreements for that TD, CS, or CSD. Any statement provided will be incorporated into the contract as Attachment 6.

If the Offeror is proposing a buyout option under CLIN 0005 then the Offeror shall also provide a second statement with the assertions applicable to the CLIN. If awarded a contract this second statement shall also be incorporated into the contract as Attachment 6B.

Rights in Commercial TD, Commercial CS, and Commercial CSD

Commercial Restrictions List - The Offeror shall submit a list entitled "Commercial Technical Data, Commercial Computer Software, and Commercial Computer Software Documentation-Government Use Restrictions" (the Commercial Restrictions List), that the Offeror (including its sub-Offerors or suppliers, or potential sub-Offerors or suppliers, at any tier) intends to deliver with other than an unrestricted rights license. The list shall include: (1) identification of the TD, CS, or CSD; (2) basis for asserting restrictions; (3) asserted rights category; and (4) name of the person asserting restrictions. For any item designated as NDI, the Offeror shall provide details of the Agency and level therein that paid for development and the contract number(s) and dates wherein payments were received. For each entry in the list citing an asserted rights category other than the standard license rights applicable to commercial TD and CSD as set forth in the DFARS 252.227-7015 clause, the Offeror shall provide a complete and accurate summary of the asserted rights license (e.g., a specifically negotiated license, or the license customarily offered to the public). If there is no information to be included in the Commercial Restrictions List, the Offeror shall submit the list and enter "None" in the body of the list. If the Offeror is awarded a contract, the Commercial Restrictions List shall be incorporated into the contract as Attachment 7.

If the Offeror is proposing a buyout option under CLIN 0005 then the Offeror shall also provide a Commercial Restrictions List with the restrictions applicable to the CLIN. If awarded a contract this Commercial Restrictions List shall also be incorporated into the contract as Attachment 7B.

Offerors shall provide a written summary and analysis of how the proposed commercial licenses in TD, CS, and/or CSD will affect the unimpeded, innovative, and cost effective operation, maintenance, repair, overhaul, modernization, and upgrade of MMM Payload Sensor throughout its lifecycle, and allow for the open and competitive procurement of MMM Payload Sensor requirements.

Option to purchase Government's desired level of license rights (identified under Section M)

Item 0005

For those items where less than the Government's desired level of license rights (identified under Section M) are being provided, the Government requests the Offeror list any TD, CS, and/or CSD for which the Government may purchase the desired level of license rights. If the Offeror is awarded a contract, the lists if provided, will be incorporated into the contract as Attachments 6B, 7B, 8B, and 9B as outlined above. Do NOT include cost or price information for this list under this volume. The price for this list shall be included under the price proposal, Volume II.

Background Inventions--Identification and Licensing (the BIIL List)

The Contractor shall provide a list (Attachment 10), entitled "Background Inventions--Identification and Licensing" (the BIIL List), identifying all inventions described in and covered by any patents or pending patent applications in which the Contractor (1) has any right, title, or interest; and (2) intends to include in any Items, Components, Processes (ICP) to be developed or delivered under the resulting contract, or that are described or disclosed in any Technical Data (TD), Computer Software (CS), or Computer Software Documentation (CSD) to be developed or delivered under the resulting contract. Such inventions are hereafter referred to as "background inventions."

The Contractor's failure to identify a background invention in the BIIL List, as set forth above, shall constitute a grant to the Government of a nonexclusive, nontransferable, irrevocable, worldwide, paid-up license to practice, and to have practiced for or on its behalf, such invention for Government purposes related to the affected MMM Payload Sensor(s).

2.1.4 Factor 4 – Past Performance

The Government will use Contractor Performance Assessment Reporting System (CPARS) as the primary source of past performance information. Offeror shall provide three past performance CPARS evaluations, if available, which shall reflect recent experience performed within the last five years of the solicitation release date and that demonstrates experience involving the same or similar design and development efforts. If Offerors are aware of any negative information in CPARS, they may address any extenuating or mitigating circumstances in this section.

If CPARS are not available, Offerors shall provide Past Performance Questionnaires (PPQs) to their customers for completion, (Attachment JS-2 Past Performance Questionnaire) for up to three (3) contracts or subcontracts performed in the past five (5) years calculated from the release of the solicitation date involving same or similar software design and development efforts. Each prime proposal shall include no more than a total of three (3) Past Performance Questionnaires, one (1) per contract identified.

Offerors shall fill in page 1 and 2 of the Past Performance Questionnaire for each customer and include as part of their proposal. Pages 1 and 2 shall not exceed three (3) pages. Separately, the Offeror shall provide the entire Past Performance Questionnaire, with page 1 and 2 completed, to each customer for them to complete the remainder of the questionnaire. Customer evaluation will not be included as part of the page count in this volume.

All Offerors shall request that each completed Past Performance Questionnaire be e-mailed directly to the Government POCs in Section L-1.1 above. All questionnaires must be received by the Government PRIOR TO THE CLOSING DATE OF THIS SOLICITATION. These questionnaires shall be sent by the reference directly to the POC and should not be sent via the Offeror or any other party. Any questionnaires received directly from the Offeror are NOT ACCEPTABLE, and may not be considered in the past performance evaluation. It is the Offeror's responsibility to ensure that its selected references submit the completed questionnaires to the POC for receipt on or before the required proposal due date. The Government, in its discretion, will determine whether to consider questionnaires received after the due date of the solicitation.

The Offeror shall instruct their major subcontractors, as defined in Section L, to complete three Past Performance Questionnaires (Attachment JS-2, Past Performance Questionnaire), if CPARs are not available for those subcontractors. These PPQs, if available, shall reflect work performed within the past five years of the solicitation release date that demonstrates experience involving the same or similar design and development efforts. Each past performance reference should not exceed **two (2) pages** per reference, for a **total of six (6) pages** per major subcontractor.

Example: If a Offeror has one major subcontractor then a total of six past performances should be provided. Three from the Offeror and three from the major subcontractor.

Note: The Government reserves the right to contact former customers and Government agencies and other private and other sources of information. The Government will also assess the role that subcontractors have played in contributing to an Offeror's success and/or failure and to what extent subcontractor's performance has contributed to an Offeror's past performance evaluation.

2.2 VOLUME II: COST/PRICE PROPOSAL

All information relating to cost data shall be included in Volume II. The burden of cost credibility rests with the Offeror to demonstrate the realism of its proposed costs; as such, the Offeror shall submit substantiating data for every major cost element proposed (e.g., direct labor, fringe rate, overhead rate, G&A rate, subcontract costs, etc.) and in accordance with 2.2.3, below. While the Government reserves the right to rely on other relevant, reliable data in its cost realism analysis of each Offeror's proposed costs, the Offeror shall submit sufficient substantiating data to demonstrate the realism of proposed cost elements. Moreover, providing insufficient information to substantiate the realism of proposed costs may result in a cost adjustment, an assessment of a Total Evaluated Cost/Price (TEC/P) risk, and/or a determination that the Offeror is ineligible for award.

Government Fiscal Year (GFY) as used herein is defined as 01 October through 30 September. Offerors shall clearly state their accounting-system defined Contractor Fiscal Year (CFY) (e.g., starts on DD-MM and concludes on DD-MM) and apportionment method used to generate GFY rates using CFY-based rates (for example, if an Offeror's CFY 2014 runs from September 1, 2015 through August 31, 2016, in order to convert rates from CFY 2015 to GFY 2016, the Offeror would apportion 11/12 from CFY 2015 and 1/12 from CFY 2016).

The Offeror's cost proposal shall cover all aspects of the proposed effort. Data contained in the cost proposal shall be consistent with data contained in Volume I. The cost data shall support the level of resources (products and services) required to complete the requirements of this solicitation. Any inconsistency between promised performance, the technical capability and experience in the proposal, identified personnel resources, and cost/price must be explained in the proposal. For example, if the intended use of new and innovative techniques is the basis for an abnormally low estimate, the nature of these techniques and their impact on cost or price shall be explained; or if a corporate policy decision has been made to absorb a portion of the estimated cost/price it must be stated in the proposal. Any inconsistency, if unexplained, may raise a fundamental question of the Offeror's understanding of the nature and scope of the work required and may adversely affect the evaluation of the Offeror's proposal. If an Offeror fails to provide any of the specifically requested substantiating cost information, the Government may find the Offeror ineligible for award. The burden of proof as to cost/price credibility rests with the Offeror.

Unrealistically low prices may indicate an inability to understand requirements and a high risk approach to contract performance. Moreover, inconsistencies between cost and pricing information submitted by the prime and cost and pricing information submitted by a subcontractor may indicate a performance or cost risk based on unclear subcontracting agreements or a lack of communication amongst an Offeror's team. Accordingly, the Government may consider such inconsistencies in evaluating an Offeror's ability to perform and the cost risk of its approach.

Volume II will consist of the supplemental information shown in the table below and further described in the following sections. It is not subject to any page limitations. Volume II may not discuss the Offeror's proposed technical approach except as necessary to demonstrate cost realism. If an Offeror discusses its technical approach in

Volume II, it should provide cross-references to the full discussion of the applicable portion of the Offeror's non-cost proposal. Any discrepancy between the technical approach in Volume I and any other part of the Offeror's proposal may call into question the Offeror's cost realism and/or the Offeror's understanding of the scope of nature of the work pursuant to the SOW.

It is imperative that all electronic pricing spreadsheets (Attachment JS-3) submitted under this volume contain functioning, visible, spreadsheet formulas. The Offeror shall ensure that the completed Total Cost/Price Build Up spreadsheet satisfies the following requirements:

- No macros
- No hidden or locked sheets
- Visible and editable formulas
- Editable cells (i.e., not locked)
- All calculation formulas involving rates linked to consolidated rates sheet
- Visibility and traceability into calculation for each cost element
- Traceability of proposed costs to specific CLINs
- Traceability of proposed company labor categories to Government skill mix categories

SECTION	DESCRIPTION
2.2.1	General Information
2.2.2	Cost/Pricing Summaries and Tables
2.2.3	Cost Estimating Rationale/ Cost Proposal Narrative

2.2.1 General Information

This Section shall include the following information, for the Offeror, team members, and/or each proposed subcontractor:

- a. Mailing address, telephone number and e-mail address for the cognizant Contract Administration Office (CAO) including the name of the Administrative Contracting Officer (ACO)
- b. Mailing address, telephone number, e-mail address and point of contact (POC) for the cognizant DCAA Office, including the name of the cognizant auditor
- c. Mailing address, telephone number, e-mail address and POC for the office to which the Offeror submits invoices, if different than DCAA
- d. CAGE Code Number and Unique Entity Identifier (UEI)
- e. Source of approval and the latest date of approval for the Offeror's Accounting System. Offerors are cautioned that this contract contains cost reimbursement provisions and a cost reimbursable contract may only be awarded to an Offeror that meets the qualifications set forth in FAR 16.301-1.
- f. Source of approval and the latest date of approval of the Offeror's Purchasing System
- g. Source of approval and latest date of determination of adequacy approval for the Offeror's Disclosure Statement pursuant to FAR 30.201-3 and FAR 52.230-1.

2.2.2 Cost/Price Summaries and Tables

2.2.2.1 CPFF LOE Engineering Support CLINs 0001, 0101, 0201, 0301, and 0401

Offerors shall provide Cost/Price Supporting Data in Microsoft Excel using the format provided as Attachment JS-3 Cost Element Table with this solicitation. The cost/price data shall include all major cost elements (Direct Labor by category/rate/hours, indirect information (Fringe rate and amounts, Overhead rate and amounts, G&A rate and amounts, Cost of Money factor/rate, etc.) and amount, escalation, Subcontracts, etc. and fee). Offers shall include the level(s) of effort (hours) stated in Section B by year and in the following table. Offerors shall clearly identify any proposed hours which are uncompensated effort and complete the Section H fill-in within NAVSEA Clause LEVEL

OF EFFORT – ALTERNATE I. Attachment JS-3 Cost Element Table shall detail the breakdown of all costs by year, with complete formulas. All data shall be supported and the Offeror may add additional tabs as necessary to support the existing tabs in Attachment JS-3 Cost Element Table. Attachment JS-3 Cost Element Table may be modified slightly as provided for in the workbook. The Offeror is responsible for ensuring that all formulas are correct and intact. Excel files submitted must include linked and executable formulas and editable cells (i.e., not locked) with no hidden or locked sheets.

Attachment JS-3 Tab	Total Hours
CLIN 0001	25,000
CLIN 0101	4,600
CLIN 0201	3,000
CLIN 0301	2,900
CLIN 0401	2,800
TOTAL	38,800

Note: If the labor mix proposed in the cost volume II does not match the labor mix provided in the Offeror's Technical/Management Volume I proposal, the labor mix with the highest cost/price will be used for the cost evaluation.

Offerors shall not propose a fixed fee greater than 8% for the Engineering Support CLINs.

2.2.2.2 Cost Material and Travel CLINs 0002, 0102, 0202, 0302, and 0402

The Government Cost ceiling is provided in Section B and in the following table. Offerors shall propose the Government Cost ceiling amount for these Cost-Only (no fee) ODC line items in the Attachment JS-3 Cost Element Table – CLINs 0002, 0102, 0202, 0302, and 0402 Offerors are not permitted to include indirect rate adders (i.e. G&A, Facilities Capital Cost of Money, etc.) in addition to the Government Cost ceiling.

CLIN	Government Cost Ceiling
0002	\$500,000
0102	\$162,000
0202	\$166,000
0302	\$170,000
0402	\$174,000

2.2.2.3 CPIF MMM Payload Sensor CLINs 0003, 0103, 0203, 0303, and 0403

The Government stepladder ordering is provided in Section B and in the following table. Offerors shall propose the stepladder pricing provided in the following table and apply the proposed target fee in the Attachment JS-3 Cost Element Table – CLINs 0003, 0103, 0203, 0303, and 0403.

Unit Sell Price of CPIF MMM Payload Sensors					
Quantity	CLIN 0003	CLIN 0103	CLIN 0203	CLIN 0303	CLIN 0403
QTY 1	<price>	<price>	<price>	<price>	<price>
QTY 2	<price>	<price>	<price>	<price>	<price>
QTY 3	<price>	<price>	<price>	<price>	<price>
QTY 4	<price>	<price>	<price>	<price>	<price>

QTY 5	<price>	<price>	<price>	<price>	<price>
QTY 6	<price>	<price>	<price>	<price>	<price>

Offerors shall not propose a target fee greater than 8% and not a maximum fee percentage greater than 10%. The minimum fee percentage shall be 0% as stated in Section B, Note D. The offerors shall use a share ratio for the CPIF portion of 50/50 (50% Government, 50% Contractor) for both underruns and overruns. This proposed fee rate will be applicable to all CLINs 0003, 0103, 0203, 0303, and 0403 and will be incorporated into the resulting award.

Consolidated Bill of Material (CBOM) Costs: To support the realism of its proposed material purchases, the Offeror shall provide relevant quotes, recent purchase history, and or similar substantiating data for each item on the CBOM (See material tabs in Attachment JS-3), with, at least, 80% of the total proposed material costs supported with applicable quotes or relevant purchase orders. At a minimum, quotes shall include the type of quote (e.g. fixed price, cost reimbursement, etc.) and the Offeror should ensure quotes are recent and specific to this requirement. With respect to prior purchase history, the Offeror should ensure that the history is recent and shall specifically address any impact changes in order quantity will have on unit pricing.

Additionally, Offerors shall specifically address where they propose to purchase more than the required material because of limits on minimum purchase quantities or to receive volume-pricing discounts. Offerors shall expressly describe whether they intend to charge the Government for these additional materials and whether they intend to retain them or deliver them to the Government during performance.

2.2.2.4 FFP PIO / Spares CLIN 0501

The Government Maximum Ordering Cost ceiling is provided in Section B and in the following table. Offerors shall propose the Government Maximum Ordering Cost ceiling provided in the following table and apply the proposed profit in the Attachment JS-3 Cost Element Table – CLIN 0501. Offerors shall not propose a profit percentage greater than 10%. This proposed profit rate will be applicable to all orders under this CLIN and will be incorporated into the resulting award. Offerors are not permitted to include indirect rate adders (i.e., G&A, Facilities Capital Cost of Money, etc.) in addition to the Government Maximum Ordering Cost Ceiling. The Offeror shall only apply the proposed profit to the Maximum Ordering Cost ceiling.

CLIN	Government Maximum Ordering Cost Ceiling
0501	\$11,300,000

2.2.2.5 NSP Data CLIN 0004

Offerors shall not propose any costs against CLIN 0004 as it is not separately priced (NSP).

2.2.2.6 Data Rights OPTION CLIN 0005

The Offerors proposed price for CLIN 0005 shall be included in the Total Evaluated Price to the Government. [Attachments 6B, 7B, 8B, and 9B] with either a place to put a price for each data item or one total price if not necessary to price each item].

2.2.3 Cost Estimating Rationale/ Cost Proposal Narrative

In its cost realism analysis, the Government desires to use the most relevant, reliable data available to capture the probable cost for each major cost element. Since each Offeror bears the burden of demonstrating the realism of its proposed costs, each Offeror must substantiate its proposed costs, as presented in its Attachment JS-3, with relevant, reliable data that demonstrates the realism of each proposed major cost element. The Government has already determined that certain types of information are necessary for its review, so each Offeror shall provide the following cost data for CPFF LOE CLINs 0001, 0101, 0201, 0301, and 0401.

2.2.3.1 Labor Hours and Direct Labor Costs

The proposed direct labor hours by category shall be clearly stated. Provide detailed rationale and history for all labor hour estimates and factors used in the calculations of the proposed hours. Provide any assumptions including overtime hours or weekend hours.

Offerors shall provide a screen-capture (or equivalent) from the employer's payroll system for each name or labor category in the Offeror's Staffing Plan. The screen-captures (or equivalent) shall be fully explained, allowing the Government to identify relevant compensation and clearly map to individual or labor category rates shown. If there is no payroll data available for one or more of the individuals or labor categories proposed, Offerors shall provide payroll data for a comparable position and a brief analysis of how the proposed position is comparable to the position corresponding to the payroll data supplied. Any additional supporting documentation may be provided at the Offeror's discretion. Each screen-capture should match the historical rates listed for that individual or labor category. The proposed rates provided in this attachment must be the exact rates utilized in the pricing section B, and proposed in the cost analysis narrative. If any proposed rate is different than the actual incurred rate or in the screen capture, the Offeror is to explain the reason for the difference in the narrative.

The Offeror shall also include any Forward Pricing Rate Agreements (FPRAs) in support of labor rates. If no FPRA is available, the Offeror shall provide Forward Price Rate Recommendations (FPRRs) or data from any other cognizant Government agency. If no data is available from a cognizant Government agency, the Offeror shall provide other forms of rate substantiation (such as payroll data, screen shots, information from the Bureau of Labor Statistics, etc.). Additionally, the Offeror shall provide detail of any union agreements that control labor rates. The Offeror shall highlight wage rate forecasting assumptions, including escalation (see Section L 2.2.3.5 below), and provide the basis for such escalation. If known, any differences between the DCAA/DCMA/other cognizant Government agency rates and those proposed should be isolated and discussed. In addition, any new or changed direct cost allocation rates (e.g., direct labor) or planned revisions to cost accounting disclosures shall be fully explained. The Offeror shall describe the extent to which these revised rates are projected to benefit performance of the efforts contained in this solicitation. Failure to provide substantiating information may subject an Offeror to upward adjustment.

NOTE: Offerors shall not rely on any Forward Pricing Rate Proposal to provide any form of cost realism substantiation. Additionally, Provisional Billing Rates (PBRs) are for billing purposes only and should not be used for cost /price proposals. Offerors are cautioned not to rely on these submissions (FPRPs & PBRs), which lack meaningful Government review, as sufficient to demonstrate the realism of its proposed rates.

If the Offeror elects to use a different labor mix for any CLIN other than the recommended mix cited in Section L 2.1.2.5 and Attachment JS-3, the Offeror should provide detailed Basis of Estimates (BOEs) identifying the functional breakout of the efforts within the Offeror's organization and to include any subcontracted efforts. The BOEs should include copies of pricing guides, reports from any referenced historical information and any other information the Offeror believes will assist the Government in its review to adequately delineate the efforts required.

In all cases where the direct labor costs are based upon PAST EXPERIENCE, the Offeror shall identify the past experience, explain how the past experience relates to the current effort, and explain how the direct labor cost data derived from past experience were adapted to the current effort.

2.2.3.1.1 Work Week Assumptions (Uncompensated Overtime)

If the Offeror or significant cost reimbursement subcontractor proposes uncompensated overtime or direct labor rates decremented for the impact of uncompensated overtime, it must substantiate the cost reductions associated with its proposed use of uncompensated effort. This must include a copy of the company's policy on uncompensated time and some form of historical data to demonstrate that the proposed level of uncompensated overtime is realistic. If any Offeror or any subcontractors (major or minor) propose uncompensated overtime, each must comply with FAR 52.237-10. Moreover, if any Offeror or major subcontractor proposes uncompensated overtime or direct labor rates decremented for the impact of uncompensated overtime, it must substantiate the cost reductions associated with its proposed use of uncompensated effort. This substantiation must include a description of the formulas applied to calculate the decremented rate (and/or decrement factor) and some form of historical data to demonstrate that the proposed level of uncompensated overtime is realistic. Such historical data might include the company's historical average annual level of uncompensated overtime from preceding years, after adjusting them for annual escalation. In accordance with FAR 52.237-10 Identification of Uncompensated Overtime, if uncompensated time is included in the offer or any of the supporting cost data, the uncompensated time should be clearly identified with an explanation as to why it is needed.

2.2.3.2 Indirect Costs

The Offeror shall provide all proposed indirect rates and amounts in the proposal for each of the Offeror's fiscal years. The Offeror shall indicate if these rates are from an FPRA with the Government (provide a copy of any FPRA). If no FPRA is available, the Offeror shall provide Forward Price Rate Recommendations (FPRRs) or data from any other cognizant Government agency. If no data is available from a cognizant Government agency, the Offeror shall provide other forms of rate substantiation. Any differences between the DCAA/DCMA/other cognizant Government agency rates and those proposed should be isolated and discussed. In addition, any new or changed indirect cost allocation rates (e.g., overhead or G&A allocation rates) or planned revisions to cost accounting disclosures shall be fully explained. The Offeror shall describe the extent to which these revised rates are projected to benefit performance of the efforts contained in this solicitation. Finally, the Offeror shall provide five years of actual, incurred rates, associated base volumes, and projected-to-actual data for each proposed indirect and G&A rate. Offerors should indicate the beginning and end dates for the fiscal year applicable to these rates. NOTE: If an Offeror does not have five years' worth of actual, incurred data, it must provide the required information dating from the origin of the company. The offeror should explain the basis for any significant rate differences between the prior five years period and the rates now proposed.

2.2.3.3 Subcontractor Costs

For the purposes of this solicitation, major subcontractors are defined as any cost-reimbursement subcontractor proposed to perform 10% or more of the total effort under CLINs. The prime contractor shall identify what each subcontractor contract type arrangement is and why the chosen contract type is most appropriate (ie CPFF, CPIF, FFP, T&M and etc.). Additionally, the prime contractor shall identify the subcontractors business size (ie. Large Business or Small Business etc.).

Each subcontractor estimate shall be addressed separately, and with the exception of non-cost-reimbursable subcontractors, detailed cost information shall be provided in the same format (Attachments JS-3 and payroll screen shots) as required for the prime contractor. ALL SUBCONTRACTORS, WITH THE EXCEPTION OF FFP AND TIME AND MATERIAL (T&M) SUBCONTRACTORS, ARE REQUIRED TO PROVIDE CONTACT INFORMATION FOR THEIR COGNIZANT DCAA BRANCH OFFICE WITH THE NAME AND PHONE NUMBER OF A DCAA POINT OF CONTACT WHO IS FAMILIAR WITH THEIR COMPANY.

The Offeror's narrative need only perform price analysis on the fixed price and T&M subcontractors within its proposal to determine that the fixed price and T&M subcontractors proposed are fair and reasonable. FAR 15.404-1(b)(2) provides a general discussion of price analysis. Prime Offerors shall fill out the Subcontractor Labor Cost section within Attachment JS-3 showing the fully burdened labor rates and total proposed costs for all FFP and T&M subcontractors. No fixed price or T&M subcontractor is required to provide a separate proposal.

The detailed information may be submitted separately to the Government if the subcontractor does not wish to provide this data to the prime Offeror. Subcontractors may submit their information directly to the Government and this information must be received by the solicitation close. For cost/price summary data provided separately, Subcontractors shall place the appropriate restrictive legend on their data and identify the Company name, address, point of contact and solicitation number. Each of the Offeror's major subcontractors must also provide a Substantiating Cost Narrative and Cost Information substantiating its Total Cost/Price Build Up Spreadsheet for the scope of their subcontract effort under the cost-reimbursement CLINs. Failure to have a subcontractor submit its data by the proposal due date shall render the entire proposal, including the prime's proposal, non-responsive, which would make the proposal unawardable.

2.2.3.4 Facilities Cost of Capital

Cost of money (COM) will only be an allowable cost if proposed; see FAR 15.408(h) and 15.408(i).

2.2.3.5 Escalation

Offerors shall provide a table that contains its proposed escalation rates and a narrative that identifies the basis for the rates, to include any supporting documentation, such as FPRRs/FPRAs issued by DCMA/DCAA.

For the purposes of cost evaluation, Offerors must propose escalation for all labor category rates in accordance with current, approved FPRA(s) or FPRR(s); when an FPRA or FPRR does not exist for a proposed performance year, offerors shall propose using the escalation rates no lower than the average escalation rate specified in the table below. The average annual escalation rate shown below is based on IHS Global Insight's escalation rates for Search, Detection, Navigation, Guidance, Aeronautical, and Nautical Systems (Annual). IHS Global Insight is frequently used by DCMA and DCAA as a forecasting tool in determining direct labor escalation.

<u>Calendar Year</u>	<u>Escalation Rate</u>
2027	1.75%
2028	1.75%
2029	1.75%
2030	1.75%
2031	1.75%

The Government may adjust any Offerors' proposed costs that fail to apply these assumptions. Additionally, the Government may identify additional cost or technical risk based on the Offeror's failure to fully understand the impact of these assumptions on their proposed approach.

NOTE: Offerors shall not rely on any Forward Pricing Rate Proposal to provide any form of cost realism substantiation. Additionally, Provisional Billing Rates (PBRs) are for billing purposes only and should not be used for cost /price proposals. Offerors are cautioned not to rely on these submissions (FPRPs & PBRs), which lack meaningful Government review, as sufficient to demonstrate the realism of its proposed rates.

2.2.3.6 Certified Cost and Pricing Data.

Offerors are not required to submit certified cost or pricing data. However, after receipt of proposals, it may be determined that adequate price competition does not exist and that certified cost or price data are required. If it is determined that adequate price competition does not exist, Offerors may be required to provide certified current, complete and accurate cost and pricing data within 30 calendar days after receipt of the Contracting Officer's request. In this event, a Certificate of Current Cost or Pricing Data will be

required immediately after agreement on cost/price is reached. Submission of certified cost or pricing data is not considered “discussions” under FAR Part 15.

2.3 VOLUME III – BUSINESS DOCUMENTATION / COMPLETED SOLICITATION

2.3.1 COVER LETTER

This Volume shall be accompanied by a cover letter prepared on the company’s letterhead stationery and shall state the following:

- 1) The proposal is valid for 360 calendar days following the due date for receipt of proposals
- 2) Offeror’s Cage Code and UEI Number
- 3) All enclosures transmitted with the proposal submission
- 4) The approved security clearance and clearance level of storage capability for the Offeror’s facility
- 5) Address and point of contact for the Offeror’s cognizant security office
- 6) Name of the Offeror’s security representative
- 7) Address(es) of the location(s) at which the Offeror intends to perform the proposed effort including subcontractor facilities
- 8) Names, titles, and telephone and facsimile numbers (and electronic addresses if available) of persons authorized to negotiate/ sign the proposal on the Offeror’s behalf with the Government in connection with this solicitation
- 9) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the solicitation and agreement to furnish any or all items upon which prices are offered at the price set opposite each item
- 10) Table of Contents and Glossary

In addition, the letter must contain the following certification regarding the classified and other restricted information made available to the Offeror for the purpose of responding to this solicitation:

I, [insert signatory’s name, title, company], hereby certify that within 120 calendar days of receipt of notification that [company] has been excluded from the competitive range or has not been selected for award of this contract, [company] will destroy any and all copies, notes, or other materials produced using the classified or other restricted information provided in connection with solicitation N00024-25-R-6234.

The Government will evaluate the cover letter to confirm that it contains the required information.

If the Offeror wishes to restrict the disclosure or use of its proposal, use the legend permitted by FAR 52.215-1(e).

The Offeror’s cover letter shall be placed at the beginning of Volume III after the title page.

2.3.2 LEGAL DOCUMENTS / SF 33 SOLICITATION, OFFER, AND AWARD

The offer is the document that will be used to make an award to the successful Offeror and shall include the following:

- a. The SF 33(s) must be completed entirely by the Offeror. Common mistakes include: (1) failing to complete all of blocks 12-18 on the first page, (2) failing to list pricing for all Contract Line Items (CLINs) in Section B, and (3) failing to fully complete Section K. The Offeror shall provide a completed SF 33 and a copy of the solicitation (and attachments) with all contractor fill-ins complete. The Offeror’s completed Section B shall include all proposed costs and fees.

Changes to any portion of the SF 33 not specifically requiring the input of information by the Offeror are prohibited. Red-lines, strikethroughs, additions, deletions, or any other changes not specifically required will be considered conditional agreement with solicitation terms, conditions, and provisions. An Offeror’s proposal which changes any portion of the SF 33 not specifically requiring the input of information by the Offeror may be rejected, and the Offeror furnishing the proposal may be determined ineligible for award.

2.3.3 SOLICITATION SECTION A

The solicitation SF 33 will be used to award a contract resulting from this solicitation. The Offeror shall complete Blocks 12 through 18 of the SF 33. The Offeror shall submit an executed SF 33 bearing the original signature of a representative who is authorized to contractually bind the company submitting the offer. The Offeror shall also submit a signed copy of the SF 30 cover page for each amendment to the solicitation. As with the SF 33, the representative who signs the SF 30 cover page(s) must be authorized to contractually bind the company submitting the offer. Block 12 shall be completed to align with the solicitation validity period (360 calendar days following the proposal due date) required by this solicitation.

2.3.4 SOLICITATION SECTIONS B THROUGH I

The Offeror shall submit Sections B through I with all appropriate information completed as required by the solicitation.

2.3.4 SOLICITATION SECTION J

The Offeror shall provide the following completed exhibits and attachments, which will be incorporated into the contract at award:

- Exhibit A, Contract Data Requirements List (CDRL), DD Form 1423
- Attachment 1 DD Form 254**
- Attachment 11 Small Business Subcontracting Plan (formatted IAW FAR 52.219 requirements)
- Attachment 8 DFARS 252.227-7017 Data Rights List
- Attachment 8B Data Rights License Upgrade Option for DFARS 252.227-7017 Data Rights List (to be incorporated at contract award)
- Attachment 9 DFARS 252.227-7028 Data Rights List (to be incorporated at contract award)
- Attachment 9B Data Rights License Upgrade Option for DFARS 252.227-7028 Data Rights List (to be incorporated at contract award)
- Attachment 6 Supplemental Information Statement (to be incorporated at contract award)
- Attachment 6B Data Rights License Upgrade Option for Supplemental Information Statement (to be incorporated at contract award)
- Attachment 7 Commercial technical data (TD), Commercial computer software (CS), or Commercial computer software documentation (CSD) rights assertions list (to be incorporated at contract award)
- Attachment 7B Buyout for Commercial technical data (TD), Commercial computer software (CS), or Commercial computer software documentation (CSD) rights assertions list (to be incorporated at contract award)
- Attachment 5 Key Personnel List (to be incorporated at contract award)

** Offerors are to complete Blocks 6.a.-8.c. on the DD254

2.3.5 SOLICITATION SECTION K

The Offeror shall complete and submit applicable provisions under the Representation, Certifications and Other Statements of Offerors section of the solicitation. Offerors shall mark items that are not applicable with "N/A." If the Offeror's Representations, Certifications, and Other Statements of Offerors are available, active, and valid in the System for Award Management (SAM) (<https://www.sam.gov>); the Offeror may reference them in the Cover Letter and decline to complete the portions of Section K of the SF 33 which are already present in SAM. The Offeror bears the burden of: (1) ensuring all information referenced in SAM is current accurate, and complete; and (2) ensuring any necessary information not present in SAM is provided within the Offeror's proposal.

2.3.6 SUBMISSION OF OFFER

The proper completion and submission to the Government of the SF 33 Solicitation Set/Completed Contract shall constitute an offer and indicate the Offeror's unconditional assent to the terms and conditions in this solicitation and in any attachments hereto. Any objection to any of the terms and conditions of this solicitation may constitute a

deficiency, which may make the offer unacceptable. Offerors are notified that the Government's acceptance of an offer does not imply acceptance of the pricing rationale or assumptions.

2.3.7 CONTRACT UPDATES REQUIRED TO SUPPORT AWARD

Prior to award, the Government will update the completed contract to generate a document suitable for contract award. These updates will include assigning the contract number and reformatting the contract document for entry into the Government contract-writing system, which may result in repagination of the document. The Government will pre-populate the contract pricing for Section B stepladder option line items using the highest stepladder quantity and unit price (the actual quantity and price for each line item will be established at the time of option exercise based on the terms and conditions of the contract which will be identified in Note F in Section B). The Offeror agrees that the Government may incorporate these updates, as well as the others noted in this solicitation, unilaterally prior to award.

2.3.8 DISCLOSURE OF ORGANIZATIONAL CONFLICT OF INTEREST (OCI) AND OCI MITIGATION PLAN

(a) Disclosure. The Offeror, including its subcontractor(s), affiliates, and consultants, shall state in its proposal if it is aware of any information bearing on the existence of any actual or potential organizational conflict of interest (OCI). An OCI may exist if the Offeror, its subcontractors, affiliates, and/or consultants are currently under contract to provide products and/or support services to Naval Sea Systems Command. Other situations may also give rise to an OCI. If the Offeror represents that it is aware of circumstances that may hinder its ability to render impartial, technically sound, and unbiased assessments, recommendations, and/or evaluations; or that circumstances exist that may result in the appearance that it may have an unfair competitive advantage, the Offeror shall provide a full disclosure statement as well as an OCI Mitigation Plan (see paragraph b). The statement must describe in a concise manner all relevant facts concerning any past, present or currently planned interest (financial, contractual, organizational, or otherwise) relating to the work to be performed hereunder and bearing on whether the Offeror has a possible organizational conflict of interest with respect to (1) impartial, technically sound, and unbiased assessments, recommendations, and/or evaluations, or (2) being given an unfair competitive advantage. Prospective Offerors shall refer to FAR Subpart 9.5 for policies and procedures for avoiding, neutralizing, or mitigating organizational conflicts of interest.

(b) OCI Mitigation Plan Contents. The Organizational Conflict of Interest (OCI) Mitigation Plan shall be submitted with an Offeror's proposal. Each of the items listed below shall be specifically addressed corresponding to the unique numeric designation.

- (1) Provide organization charts showing the Offeror's corporate structure and highlight elements of the company participating in the contract.
- (2) Demonstrate how the elements performing the proposed effort will be isolated from the remainder of the company.
- (3) Describe management reporting chains in sufficient detail to demonstrate that the proposed effort and decisions related to the effort will be isolated from the remainder of the company.
- (4) Address how the Offeror will preclude a perception of impaired objectivity by prohibiting transfers of personnel between contracts.
- (5) Provide information to indicate if the organizational elements performing the proposed effort will be geographically or physically separated from the remainder of the company.
- (6) Describe the process by which the Government will have insight or oversight of key processes.
- (7) Describe any situation in which management outside the mitigated organization will have access to key decisions for which the mitigated organization is responsible.
- (8) Provide all documents that the Offeror's employees are required to sign indicating which employees are required to sign and how often they are required to sign.

- (9) Describe the process for reassigning personnel, including subcontractors, from one assignment to another. Include restrictions that apply.
- (10) Describe the process for employees that leave employment and any controls that are exercised over its future employment, particularly as it relates to OCI and nondisclosure.
- (11) Describe any OCI training the Offeror's employees are offered and/or required to attend, along with the timing (before or after starting work on Government contract) frequency, length and content of such training.
- (12) Describe if the company conducts self-audits and if the results will be made available to the Government. To enable the Government to evaluate the Offeror's proposed plan, the following must be specifically addressed:
 - a. Disclosure of business activities of the company, its affiliates, team members and affiliates of team members which create either a conflict of interest or the appearance of a conflict of interest.
 - b. Provide evidence of facts and circumstances that the company believes mitigate or address concerns related to the appearance and/or presence of an OCI.
 - c. Explain the company's proposed approach to mitigating the effects of any apparent or actual conflicts of interest arising out of the business activities disclosed in response to Paragraph A above. The Government will treat all submissions as proprietary under 18 U.S.C. §1905 and protect proposed information accordingly.

(c) The Government will review the statement/OCI Mitigation Plan submitted, and any other information it deems relevant, to determine whether an award to the Offeror may create an organizational conflict of interest. If found to exist, the Government may (1) impose appropriate conditions which avoid such conflict, (2) disqualify the Offeror, (3) determine that it is otherwise in the best interest of the Government to contract with the Offeror by including appropriate conditions mitigating such conflict in the contract award, or (4) seek a waiver.

(d) The refusal to provide the disclosure as required shall result in disqualification of the Offeror for award. The nondisclosure or misrepresentation of any relevant interest may also result in the disqualification of the Offeror for award, or if such nondisclosure or misrepresentation is discovered after award, the Government may terminate the contract for default, recommend that the contractor be disqualified from subsequent related contracts, or be subject to such other remedial actions as may be permitted or provided by law. The attention of the Offeror in complying with this provision is directed to 18 U.S.C. 1001 and 31 U.S.C. 3802(a)(2).

CLAUSES INCORPORATED BY REFERENCE

52.201-1	Acquisition 360: Voluntary Survey	SEP 2023
52.204-7	System for Award Management	OCT 2018
52.204-16	Commercial and Government Entity Code Reporting	AUG 2020
52.204-22	Alternative Line Item Proposal	JAN 2017
52.211-2	Availability of Defense Specifications, Standards, and Data Item Descriptions in the Acquisition Streamlining and Standardization Information System (ASSIST) Website	SEP 2023
52.211-7	Alternatives to Government-Unique Standards	NOV 1999
52.211-14	Notice Of Priority Rating For National Defense, Emergency Preparedness, and Energy Program Use	APR 2008
52.215-1	Instructions to Offerors--Competitive Acquisition	NOV 2021
52.215-16	Facilities Capital Cost of Money	JUN 2003

52.215-20	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data	NOV 2021
52.215-22	Limitations on Pass-Through Charges--Identification of Subcontract Effort	OCT 2009
52.233-2	Service Of Protest	SEP 2006
52.252-3	Alterations in Solicitation	APR 1984
52.252-5	Authorized Deviations In Provisions	NOV 2020
252.204-7019	Notice of NIST SP 800-171 DoD Assessment Requirements	NOV 2023
252.215-7008	Only One Offer	DEC 2022
252.215-7010	Requirements for Certified Cost or Pricing Data and Data Other Than Certified Cost or Pricing Data	MAY 2024
252.215-7011	Requirements for Submission of Proposals to the Administrative Contracting Officer and Contract Auditor.	JAN 2018
252.215-7012	Requirements for Submission of Proposals via Electronic Media.	JAN 2018
252.215-7013	Supplies and Services Provided by Nontraditional Defense Contractors	JAN 2023
252.234-7001 (Dev)	Notice of Earned Value System (Deviation 2015-O0017)	SEP 2015
252.234-7003	Notice of Cost and Software Data Reporting System--Basic	NOV 2014
252.239-7017	Notice of Supply Chain Risk	DEC 2022

CLAUSES INCORPORATED BY FULL TEXT

52.216-1 TYPE OF CONTRACT (APR 1984)

The Government contemplates award of a CPIF, CPFF, Cost Only, FFP contract resulting from this solicitation.

(End of provision)

252.215-7009 PROPOSAL ADEQUACY CHECKLIST (MAR 2023)

The offeror shall complete the following checklist, providing location of requested information, or an explanation of why the requested information is not provided. In preparation of the offeror's checklist, offerors may elect to have their prospective subcontractors use the same or similar checklist as appropriate.

PROPOSAL ADEQUACY CHECKLIST

	<u>REFERENCES</u>	<u>SUBMISSION ITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
<u>GENERAL INSTRUCTIONS</u>				

	<u>REFERENCES</u>	<u>SUBMISSION ITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
1.	FAR 15.408, Table 15-2, Section I Paragraph A	Is there a properly completed first page of the proposal per FAR 15.408 Table 15-2 I.A or as specified in the solicitation?		
2.	FAR 15.408, Table 15-2, Section I Paragraph A(7)	Does the proposal identify the need for Government-furnished material/tooling/test equipment? Include the accountable contract number and contracting officer contact information if known.		
3.	FAR 15.408, Table 15-2, Section I Paragraph A(8)	Does the proposal identify and explain notifications of noncompliance with Cost Accounting Standards Board or Cost Accounting Standards (CAS); any proposal inconsistencies with your disclosed practices or applicable CAS; and inconsistencies with your established estimating and accounting principles and procedures?		
4.	FAR 15.408, Table 15-2, Section I, Paragraph C(1) FAR 2.101, "Cost or pricing data"	Does the proposal disclose any other known activity that could materially impact the costs? This may include, but is not limited to, such factors as— (1) Vendor quotations; (2) Nonrecurring costs; (3) Information on changes in production methods and in production or purchasing volume; (4) Data supporting projections of business prospects and objectives and related operations costs; (5) Unit-cost trends such as those associated with labor efficiency; (6) Make-or-buy decisions; (7) Estimated resources to attain business goals; and (8) Information on management decisions that could have a significant bearing on costs.		
5.	FAR 15.408, Table 15-2, Section I Paragraph B	Is an Index of all certified cost or pricing data and information accompanying or identified in the proposal provided and appropriately referenced?		

	<u>REFERENCES</u>	<u>SUBMISSION ITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
6.	FAR 15.403-1(b)	Are there any exceptions to submission of certified cost or pricing data pursuant to FAR 15.403-1(b)? If so, is supporting documentation included in the proposal? (Note questions 18-20.)		
7.	FAR 15.408, Table 15-2, Section I Paragraph C(2)(i)	Does the proposal disclose the judgmental factors applied and the mathematical or other methods used in the estimate, including those used in projecting from known data?		
8.	FAR 15.408, Table 15-2, Section I Paragraph C(2)(ii)	Does the proposal disclose the nature and amount of any contingencies included in the proposed price?		
9.	FAR 15.408 Table 15-2, Section II, Paragraph A or B	Does the proposal explain the basis of all cost estimating relationships (labor hours or material) proposed on other than a discrete basis?		
10.	FAR 15.408, Table 15-2, Section I Paragraphs D and E	Is there a summary of total cost by element of cost and are the elements of cost cross-referenced to the supporting cost or pricing data? (Breakdowns for each cost element must be consistent with your cost accounting system, including breakdown by year.)		
11.	FAR 15.408, Table 15-2, Section I Paragraphs D and E	If more than one Contract Line Item Number (CLIN) or sub Contract Line Item Number (sub-CLIN) is proposed as required by the RFP, are there summary total amounts covering all line items for each element of cost and is it cross-referenced to the supporting cost or pricing data?		
12.	FAR 15.408, Table 15-2, Section I Paragraph F	Does the proposal identify any incurred costs for work performed before the submission of the proposal?		
13.	FAR 15.408, Table 15-2, Section I Paragraph G	Is there a Government forward pricing rate agreement (FPRA)? If so, the offeror shall identify the official submittal of such rate and factor data. If not, does the proposal include all rates and factors by year that are		

	<u>REFERENCES</u>	<u>SUBMISSION ITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
		utilized in the development of the proposal and the basis for those rates and factors?		
<u>COST ELEMENTS</u>				
MATERIALS AND SERVICES				
14.	FAR 15.408, Table 15-2, Section II Paragraph A	Does the proposal include a consolidated summary of individual material and services, frequently referred to as a Consolidated Bill of Material (CBOM), to include the basis for pricing? The offeror's consolidated summary shall include raw materials, parts, components, assemblies, subcontracts and services to be produced or performed by others, identifying as a minimum the item, source, quantity, and price.		
SUBCONTRACTS (Purchased materials or services)				
15.	DFARS 215.404-3	Has the offeror identified in the proposal those subcontractor proposals, for which the contracting officer has initiated or may need to request field pricing analysis?		
16.	FAR 15.404-3(c) FAR 52.244-2	Per the thresholds of FAR 15.404-3(c), Subcontract Pricing Considerations, does the proposal include a copy of the applicable subcontractor's certified cost or pricing data?		
17.	FAR 15.408, Table 15-2, Note 1; Section II Paragraph A	Is there a price/cost analysis establishing the reasonableness of each of the proposed subcontracts included with the proposal? If the offeror's price/cost analyses are not provided with the proposal, does the proposal include a matrix identifying dates for receipt of subcontractor proposal, completion of fact finding for purposes of price/cost analysis, and submission of the price/cost analysis?		
<u>EXCEPTIONS TO CERTIFIED COST OR PRICING DATA</u>				

	<u>REFERENCES</u>	<u>SUBMISSION ITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
18.	FAR 52.215-20 FAR 2.101, “commercial product” or “commercial service”	Has the offeror submitted an exception to the submission of certified cost or pricing data for commercial products or commercial services proposed either at the prime or subcontractor level, in accordance with provision 52.215-20? a. Has the offeror specifically identified the type of commercial product or commercial service claim (FAR 2.101 "commercial product" or "commercial service" definition), and the basis on which the commercial product or commercial service meets the definition? b. For modified commercial products (FAR 2.101 "commercial product" definition); did the offeror classify the modification(s) as either-- i. A modification of a type customarily available in the commercial marketplace (paragraph (3)(i)); or ii. A minor modification (paragraph (3)(ii)) of a type not customarily available in the commercial marketplace made to meet Federal Government requirements not exceeding the thresholds in FAR 15.403-1(c)(3)(iii)(B)? c. For proposed commercial products "of a type", or "evolved" or modified (FAR 2.101 "commercial product" definition), did the contractor provide a technical description of the differences between the proposed item and the comparison item(s)?		
19.		[Reserved]		
20.	FAR 15.408, Table 15-2, Section II Paragraph A(1)	Does the proposal support the degree of competition and the basis for establishing the source and reasonableness of price for each subcontract or purchase order priced on a competitive basis exceeding the threshold for certified cost or pricing data?		
INTERORGANIZATIONAL TRANSFERS				
21.	FAR 15.408, Table 15-2, Section II Paragraph A.(2)	For inter-organizational transfers proposed at cost, does the proposal include a		

	<u>REFERENCES</u>	<u>SUBMISSION ITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
		complete cost proposal in compliance with Table 15-2?		
22.	FAR 15.408, Table 15-2, Section II Paragraph A(1)	For inter-organizational transfers proposed at price in accordance with FAR 31.205-26(e), does the proposal provide an analysis by the prime that supports the exception from certified cost or pricing data in accordance with FAR 15.403-1?		
<u>DIRECT LABOR</u>				
23.	FAR 15.408, Table 15-2, Section II Paragraph B	Does the proposal include a time phased (i.e.; monthly, quarterly) breakdown of labor hours, rates and costs by category or skill level? If labor is the allocation base for indirect costs, the labor cost must be summarized in order that the applicable overhead rate can be applied.		
24.	FAR 15.408, Table 15-2, Section II Paragraph B	For labor Basis of Estimates (BOEs), does the proposal include labor categories, labor hours, and task descriptions; (e.g.; Statement of Work reference, applicable CLIN, Work Breakdown Structure, rationale for estimate, applicable history, and time-phasing)?		
25.	FAR subpart 22.10	If covered by the Service Contract Labor Standards statute (41 U.S.C. chapter 67), are the rates in the proposal in compliance with the minimum rates specified in the statute?		
<u>INDIRECT COSTS</u>				
26.	FAR 15.408, Table 15-2, Section II Paragraph C	Does the proposal indicate the basis of estimate for proposed indirect costs and how they are applied? (Support for the indirect rates could consist of cost breakdowns, trends, and budgetary data.)		
<u>OTHER COSTS</u>				
27.	FAR 15.408, Table 15-2, Section II Paragraph D	Does the proposal include other direct costs and the basis for pricing? If travel is included does the proposal include number of trips, number of people, number of days		

	<u>REFERENCES</u>	<u>SUBMISSION ITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
		per trip, locations, and rates (e.g. airfare, per diem, hotel, car rental, etc)?		
28.	FAR 15.408, Table 15-2, Section II Paragraph E	If royalties exceed \$1,500 does the proposal provide the information/data identified by Table 15-2?		
29.	FAR 15.408, Table 15-2, Section II Paragraph F	When facilities capital cost of money is proposed, does the proposal include submission of Form CASB-CMF or reference to an FPRA/FRP and show the calculation of the proposed amount?		
<u>FORMATS FOR SUBMISSION OF LINE ITEM SUMMARIES</u>				
30.	FAR 15.408, Table 15-2, Section III	Are all cost element breakdowns provided using the applicable format prescribed in FAR 15.408, Table 15-2 III? (or alternative format if specified in the request for proposal)		
31.	FAR 15.408, Table 15-2, Section III Paragraph B	If the proposal is for a modification or change order, have cost of work deleted (credits) and cost of work added (debits) been provided in the format described in FAR 15.408, Table 15-2.III.B?		
32.	FAR 15.408, Table 15-2, Section III Paragraph C	For price revisions/redeterminations, does the proposal follow the format in FAR 15.408, Table 15-2.III.C?		
<u>OTHER</u>				
33.	FAR 16.4	If an incentive contract type, does the proposal include offeror proposed target cost, target profit or fee, share ratio, and, when applicable, minimum/maximum fee, ceiling price?		
34.	FAR 16.203-4 and FAR 15.408 Table 15-2, Section II, Paragraphs A, B, C, and D	If Economic Price Adjustments are being proposed, does the proposal show the rationale and application for the economic price adjustment?		
35.	FAR 52.232-28	If the offeror is proposing Performance-Based Payments-did the offeror comply with FAR 52.232-28?		

	<u>REFERENCES</u>	<u>SUBMISSION ITEM</u>	<u>PROPOSAL PAGE No.</u>	<u>If not provided EXPLAIN (may use continuation pages)</u>
36.	FAR 15.408(n) FAR 52.215-22 FAR 52.215-23	Excessive Pass-through Charges– Identification of Subcontract Effort: If the offeror intends to subcontract more than 70% of the total cost of work to be performed, does the proposal identify: (i) the amount of the offeror's indirect costs and profit applicable to the work to be performed by the proposed subcontractor(s); and (ii) a description of the added value provided by the offeror as related to the work to be performed by the proposed subcontractor(s)?		

(End of provision)

L-204-H003 NOTIFICATION OF USE OF NAVY SUPPORT CONTRACTORS FOR OFFICIAL CONTRACT FILES (NAVSEA) (APR 2019)

(a) NAVSEA may use a contractor to manage official contract files hereinafter referred to as "the support contractor", including the official file supporting this procurement. These official files may contain information that is considered a trade secret, proprietary, business sensitive or otherwise protected pursuant to law or regulation, hereinafter referred to as "protected information". File management services consist of any of the following: secretarial or clerical support; data entry; document reproduction, scanning, imaging, or destruction; operation, management, or maintenance of paper-based or electronic mail rooms, file rooms, or libraries; and supervision in connection with functions listed herein.

(b) The cognizant Contracting Officer will ensure that any NAVSEA contract under which these file management services are acquired will contain a requirement that

- (1) The support contractor not disclose any information;
- (2) Individual employees are to be instructed by the support contractor regarding the sensitivity of the official contract files;
- (3) The support contractor performing these services be barred from providing any other supplies and/or services, or competing to do so, to NAVSEA for the period of performance of its contract and for an additional three years thereafter unless otherwise provided by law or regulation; and,
- (4) In addition to any other rights the offeror may have, it is a third party beneficiary who has the right of direct action against the support contractor, or any person to whom the support contractor has released or disclosed Protected Information, for the unauthorized duplication, release, or disclosure of such Protected Information.

(c) Submission of a proposal will be considered as consent to NAVSEA's permitting access to any information, irrespective of restrictive markings or the nature of the information submitted, by its file management support contractor for the limited purpose of executing its file support contract responsibilities.

(d) NAVSEA may, without further notice, enter into contracts with other contractors for these services. Offerors are free to enter into separate non-disclosure agreements with the file support contractor. Contact the Procuring Contracting Officer for contractor specifics. However, any such agreement will not be considered a prerequisite before information submitted is stored in the files or otherwise encumber the government.

(End of provision)

L-209-H009 NOTIFICATION OF POTENTIAL ORGANIZATIONAL OR PERSONAL CONFLICT(S) OF INTEREST (NAVSEA) (APR 2022)

(a) Offerors are reminded that certain existing contractual arrangements may preclude, restrict or limit participation, in whole or in part, either as a subcontractor or as a prime contractor under this competitive procurement. Of primary concern are those contractual arrangements in which the Offeror provides support to PEO UWS, or related laboratories (if applicable), in support of operation of the office or any of its programs. General guidance may be found in FAR 9.505; however, this guidance is not all-inclusive. The Offeror's attention is directed to the "Organizational Conflict of Interest" (OCI) or similar requirement which may be contained in current or completed contract(s) which prohibits the prime or subcontractor from providing certain supplies or services to the Government as described above during the period of the current "support" contract(s) or for a period after completion of the "support" contract(s). Notwithstanding the existence or non-existence of an OCI or similar requirement in current or completed contract(s), the Offeror shall comply with FAR subpart 9.5 and identify whether an OCI exists and not rely solely on the presence of an OCI or similar requirement.

(b) Offerors also are reminded that certain potential conflicts of interest may arise where an Offeror has unequal access to nonpublic information about a competitor that may provide the Offeror with an unfair competitive advantage and preclude, restrict or limit participation, in whole or in part, either of the individual, subcontractor or prime contractor under this competitive procurement. For example, a potential conflict may arise if former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror may have gained access to nonpublic information about a competitor through participation in previous or ongoing performance or during the solicitation development/source selection process associated with this competitive procurement, and then participates in the formation of the Offeror's proposal. Other potential conflicts of interest may arise where either the former Department of Navy employee(s), subcontractors, or teaming partners of the Offeror under this competitive procurement set the ground rules for competition; for example, by drafting specifications or assisting in the drafting of the statement of work. General guidance may be found in FAR 3.101 and 9.505; however, this guidance is not all-inclusive.

(c) If an Offeror identifies a potential conflict of interest that exists at any tier, that Offeror is requested to notify the Contracting Officer within 14 days of the date of this solicitation. The Offeror shall provide: (1) the contract or previous source selection's solicitation number and name and phone number of the Contracting Officer for the contract which gives rise to a potential conflict of interest; (2) a copy of the requirement; (3) the statement of work and technical instruction from the existing contract, as applicable; (4) a brief description of the type of work to be performed by each subcontractor under the competitive procurement; (5) a brief description of the individual's, subcontractor's, or teaming partner's unequal access to nonpublic information about a competitor, which may lead to a conflict of interest in the formation of the Offeror's proposal, or establishment of ground rules for this competitive procurement, as applicable; (6) an OCI mitigation plan, as applicable; and (7) any additional

information the Contracting Officer should consider in making a determination of whether a conflict of interest exists. The Government may independently verify the information received from the Offeror. The requirement to identify potential conflicts of interest as outlined herein continues until contract award. Notwithstanding the above, the Government reserves the right to determine whether a conflict of interest exists based on any information received from any source.

(d) The Government will notify an Offeror of any conflict of interest within 14 days of receipt of all required information. Those Offerors deemed to have a conflict of interest may be ineligible for award. Failure to provide the information in a timely manner does not waive the Government's rights to make a conflict of interest determination. The Offeror is notified that if it expends time and money on proposal preparation, such expenditure is at its own risk regardless of whether the Government determines a personal or organizational conflict of interest does or does not exist.

(e) Any potential prime contractor which proposes an individual, subcontractor, or teaming partner later determined to have a conflict of interest and deemed ineligible to participate in the current competition, may not be granted the opportunity to revise its proposal to remove the ineligible individual, subcontractor or teaming partner. The Government reserves the right to determine which Offerors remain in the competitive range through the normal source selection process.

(f) If the Offeror determines that a potential organizational and/or personal conflict of interest does not exist at any tier, the Offeror shall include a statement to that effect in its response to this solicitation.

(End of provision)

L-211-H001 UPDATES TO PERIOD OF PERFORMANCE AND DELIVERY DATES (NAVSEA) (JUN 2022)

For proposal purposes the estimated date of contract, task order, or delivery order award is 02 January 2026. The government reserves the right to award sooner or later if necessary. The delivery dates and/or period of performance start and end dates in Section F will be updated at award based upon actual contract, task order, or delivery order award date.

(End of Provision)

L-215-H004 INSTRUCTIONS FOR PRICING OF CONTRACT DATA REQUIREMENTS LIST (NAVSEA) (OCT 2018)

(a) The Offeror shall complete the "Price Group" (Block 17) and "Estimated Total Price" (Block 18) of each data item on the Contract Data Requirements List (CDRL) of this solicitation using the following instructions:

(1) Block 17. Use the specified price group defined below in developing estimated prices for each data item on the DD Form 1423:

(a) Group I. Definition – Data which is not otherwise essential to the offeror's performance of the primary contracted effort (production, development, testing, and administration) but which is required by DD Form 1423.

(i) Estimated Price – Costs to be included under Group I are those applicable to preparing and assembling the data item in conformance with Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(b) Group II. Definition – Data which is essential to the performance of the primary contracted effort but the offeror is required to perform additional work to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price – Costs to be included under Group II are those incurred over and above the cost of the essential data item without conforming to Government requirements, and the administration and other expenses related to reproducing and delivering such data items to the Government.

(c) Group III. Definition – Data which the offeror must develop for his internal use in performance of the primary contracted effort and does not require any substantial change to conform to Government requirements with regard to depth of content, format, frequency of submittal, preparation, control, or quality of the data item.

(i) Estimated Price – Costs to be included under Group III are the administrative and other expenses related to reproducing and delivering such data items to the Government.

(d) Group IV. Definition – Data which is developed by the contractor as part of his normal operating procedures and his effort in supplying these data to the Government is minimal.

(i) Estimated Price – Group IV items should normally be shown on the DD Form 1423 at no cost.

(2) Block 18. For each data item, enter an amount equal to that portion of the total price which is estimated to be attributable to the production or development for the Government of that item of data. The estimated data prices shall be developed only from those costs which will be incurred as a direct result of the requirement to supply the data, over and above those costs which would otherwise be incurred in performance of the contract if no data were required. The entry “N/C” for “no charge” will be acceptable. The estimated price shall not include any amount for rights in data. The Government’s rights to use the data shall be governed by the pertinent provisions of the contract.

(End of provision)

L-215-H007 SUBMISSION OF QUESTIONS BY OFFERORS — ALTERNATE I (NAVSEA) (NOV 2021)

(a) Offerors may submit questions or request clarification of any aspect of this solicitation. It is the Offeror’s responsibility to bring to the attention of the Contracting Officer at the earliest possible time, but prior to the closing date, any ambiguities, discrepancies, inconsistencies, or conflicts between the SOW or PWS (as applicable) and other solicitation documents attached hereto or incorporated by reference. Each question should identify solicitation number, document, page number, paragraph number or other identifier relating to the question. Questions without this information may not be answered. Acknowledgment of questions received will not be made.

(b) The deadline for receipt of questions 31 MARCH 2025. Although every effort will be made, the Government makes no guarantee that questions received after the date above will be answered.

(c) All questions shall be submitted via email to the point of contact listed for this solicitation. Responses will be posted to the SAM web page at <https://www.SAM.gov>.

(End of provision)

L-219-H001 SUBMISSION OF SMALL BUSINESS SUBCONTRACTING PLAN (NAVSEA) (JAN 2021)

Offeror shall submit as part of its proposal a subcontracting plan in accordance with the clause entitled "Small Business Subcontracting Plan" (FAR 52.219-9). The plan shall include a five percent (5%) goal for small disadvantaged business concerns or a detailed explanation as to why the goal cannot be included in the plan.

(End of provision)

Section M - Evaluation Factors for Award

1.0 GENERAL

This section contains the evaluation factors for award. The Government intends to award, if at all, one contract to the responsible Offeror whose proposal, conforming to the solicitation, represents the best value to the Government after evaluation in accordance with the factors and methodology described herein. In accordance with FAR 52.215-1, Instructions to Offerors-Competitive Acquisitions, the Government intends to evaluate proposals and award a contract without discussions with the Offerors. Therefore, each initial offer shall contain the Offeror's best terms from a cost or price and technical standpoint. The Government, however, reserves the right to conduct discussions and request proposal revisions, if the Contracting Officer determines them to be necessary. If a competitive range is established, and if the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. Statements and representations made in the Offeror's proposal may be subject to verification by DCAA, DCMA, other sources, or through an onsite survey by Navy evaluators. The Government will reject as non-compliant any proposal that takes exception to the terms and conditions in the solicitation.

The Government will evaluate each Offeror's understanding of the requirements described in this solicitation and ability to perform the work on the basis of its proposal and the solicitation evaluation criteria. It is the Offeror's responsibility to provide information and evidence that clearly demonstrates its ability to satisfactorily perform the contract requirements in accordance with the factors outlined herein. All information submitted as part of the proposal will be used to evaluate the Offeror's capability to perform and understanding of the contract requirements.

The Government reserves the right to change any of the terms and conditions of this solicitation by amendment at any time prior to contract award and to allow Offerors to revise their offers as authorized by FAR 15.307.

The Government plans to award a single contract resulting from this solicitation to the responsible Offeror whose proposal offers the best value to the Government. The Government reserves the right to award no contracts at all depending upon the quality of proposals received and the availability of funds.

Offerors are required to meet all solicitation requirements, including terms and conditions and representations and certifications (Section K) and to provide all information required by Section L of this solicitation. Failure to comply with all of the solicitation requirements may result in the removal of the Offeror from consideration for award.

The Government reserves the right to eliminate from competition any proposal determined to be unacceptable. To be determined acceptable, the offer must manifest the Offeror's assent without exception to the terms and conditions of the solicitation, including Section J attachments. An "Unacceptable" rating for any single factor may render the entire proposal ineligible for award. If an Offeror is found unacceptable in a factor rating, then the Offeror's cost proposal may not be evaluated.

Offerors are advised that technical proposals may be evaluated without consideration of any proposed subcontractor which is deemed to have an organizational or personal conflict of interest.

Volume III will not be assigned an adjectival rating, but it will be reviewed to ensure that the Offeror provides all of the required documentation.

After contract award, Offerors may request a debriefing regarding its respective proposals. All requests for debriefing shall be made in writing to the Contracting Officer, as required by FAR 15.506.

2.0 EVALUATION FACTORS AND RELATIVE IMPORTANCE OF THE EVALUATION FACTORS

The Government will evaluate proposals based on the factors, areas of focus, and methods listed and described below:

<u>Factors</u>	<u>Elements</u>	<u>Evaluation</u>
Factor 1: Performance Approach	Performance	Adjectival
Factor 2: Technical/Management Approach	Systems Engineering Facilities Program Management Key Personnel Personnel Resources Small Business Subcontracting Plan and Participation	Adjectival
Factor 3: Rights in Technical Data	None	Adjectival
Factor 4: Past Performance	None	Acceptable/Unacceptable
Factor 5: Total Evaluated Cost/Price	None	TEC/P

2.1 Relative Order of Importance of Factors

Factor 1 is more important than Factor 2. Factor 2 is more important than Factor 3. Factor 4 is evaluated as Acceptable or Unacceptable. Factors 1-3 when combined, are significantly more important than Factor 5. Nevertheless, as competing proposals approach parity in the non-cost/price factors, Factor 5 will increase in importance.

Factors 1-3 will only be evaluated for Offerors receiving an Acceptable rating in Factor 4. A rating of “Unacceptable” in Factor 4 will result in a proposal being deemed ineligible for award.

Within Factor 1 and 2, a set of elements is taken in totality to arrive at an adjectival rating. An individual element will not receive its own adjectival ratings.

3.0 EVALUATION OF PROPOSALS

3.1 Factor 1 – Performance Approach

The Government will assign a single adjectival rating to this Factor. The Government will evaluate the degree to which the Offerors proposed Performance Approach response demonstrates adequate knowledge, understanding, capability, and experience of the effort required to perform the MMM Payload Sensor Performance Specification and SOW. The Government will assess the degree to which the Offeror’s proposal demonstrates a thorough understanding of the solicitation requirements for, and technologies involved with, the efforts under this solicitation. The Government will evaluate the risks and the proposed mitigation associated with the Offerors proposed approach.

3.2 Factor 2 – Technical/Management Approach

The Government will evaluate the degree to which the Offerors proposed Technical/Management Approach demonstrates adequate knowledge, understanding, capability, and experience to perform all areas of the performance requirements of the MMM Payload Sensor Performance Specification and SOW. The Government will assess the degree to which the Offerors proposal demonstrates a thorough understanding of the solicitation requirements for, and technologies involved with, the efforts under this solicitation. The elements included in this factor are:

- a. Systems Engineering (Section L-2.1.2.1)
- b. Facilities (Section L-2.1.2.2)
- c. Program Management (Section L-2.1.2.3)
- d. Key Personnel (Section L-2.1.2.4)
- e. Personnel Resources (Section L-2.1.2.5)
- f. Small Business Subcontracting Plan and Participation (Section L-2.1.2.6)

The aforementioned elements are not subfactors and will not be assigned individual adjectival ratings.

3.2.1 Systems Engineering:

The evaluation standard is the degree to which the proposal demonstrates how the proposed System Engineering (SE) approach will meet performance requirements of the Performance Specifications and the SOW by addressing the criteria cited in Section L-2.1.2.1.

3.2.2 Facilities:

The evaluation standard is the degree to which the Offerors proposal demonstrates how the proposed facilities and equipment will meet requirements of the SOW by addressing the criteria cited in Section L-2.1.2.2.

3.2.3 Program Management:

The evaluation standard is the degree to which the proposal demonstrates that the Offeror is capable of successfully managing the program by addressing the criteria cited in Section L-2.1.2.3.

3.2.4 Key Personnel:

The evaluation standard is the degree to which the proposal demonstrates that the qualification of the proposed resumes contain sufficient applicable experience to successfully deliver the requirements of this solicitation by addressing the criteria cited in Section L-2.1.2.4.

Key personnel are deemed essential to the performance of this effort and cannot be replaced without prior Government approval in accordance with C-237-H002 SUBSTITUTIONS OF KEY PERSONNEL (OCT 2018). The qualifications listed in each individual proposed Key Personnel resume, not the specific individual, are the materially relevant aspects of the proposed Key Personnel partially forming the basis of award under NAVSEA C-237-H002, Substitution of Key Personnel (Oct 2018). Therefore, even if a proposed Key individual becomes unavailable to the Offeror between proposal submission and award, the Government will evaluate and make its award decision based on the qualifications listed on the proposed resume(s). When the Government awards a contract under those circumstances, the Government will require the awardee to use the qualifications listed on the relevant proposed Key Personnel resume as the basis for replacing that individual under the NAVSEA C-237-H002 during contract performance.

The evaluation standard is the degree to which the proposal demonstrates that the Offeror utilizes personnel with the professional and technical skills necessary to successfully accomplish the production, test, delivery, and support of the MMM Payload Sensor.

3.2.5 Personnel Resources:

The evaluation standard is the degree to which the Offerors proposed staffing plan and labor mix is appropriate and demonstrates an understanding of the required efforts detailed in the SOW and Section L 2.1.2.4 and L-2.1.2.5 and

the degree to which the Offerors proposal demonstrates how the Offeror ensures that trained personnel retain qualifications, including periodicity of re-qualification by addressing the criteria cited in Section L. 2.1.2.5.

3.2.6 Small Business Subcontracting Plan and Participation:

The evaluation standard is the degree to which the Small Business Subcontracting Plan meets the desired percentages stated in Section L-2.1.2.6. The offeror may receive a more favorable evaluation if its proposal includes an overall small business participation goal that meets or exceeds the criteria outlined in Section L.2.1.2.6.

3.3 Factor 3 – Rights in Technical Data

The Government will assign an adjectival rating to this factor. The Government will evaluate Data Rights licenses using information in the proposal to assess the extent to which the license rights in noncommercial and commercial Technical Data (TD), Computer Software (CS), and Computer Software Documentation (CSD) offered to the Government affect the unimpeded, innovative, and cost effective operation, maintenance, repair, overhaul, modernization, and upgrade of the MMM Payload Sensor throughout its lifecycle, and allow for the open and competitive procurement of MMM Payload Sensor enhancements.

Noncommercial TD, CS and CSD: The Government desires at least a Government Purpose Rights (GPR) license (as defined in DFARS 25.227-7013 and DFARS 252.227-7014) in noncommercial TD, CS, and CSD, including object code, executable code and source code. The Government may also assess the extent to which the rights support a full and open competition for follow-on. Offerors that propose at least a GPR license to the Government may receive a more favorable evaluation. Proposals will not be rated as UNACCEPTABLE because an Offeror does not offer at least a GPR license. Proposals will not be assigned a weakness for SBIR data rights that the Offeror appropriately asserts under the DFARS data rights clauses contained in the solicitation. The Government will evaluate the impact of less than a GPR license in its best value determination.

Commercial TD, CS and CSD: The Government will evaluate the extent to which commercial TD, CS and CSD licenses meet the Government's intent described in the first paragraph above. Offerors may receive a more favorable evaluation or may be negatively impacted depending on the rights asserted.

The Government will conduct an evaluation of risks associated with the offered rights for both noncommercial and commercial TD, CS, and CSD licenses and this risk will impact the assigned adjectival rating for this factor. Use of proprietary algorithms, designs, processes, or interfaces will be evaluated based on the extent to which they affect the Government's overall goal and ability to acquire an open MMM Payload Sensor design.

The Government will evaluate each item of TD, CS, and CSD at the most favorable level of rights offered. For example, if an Offeror were to assert limited rights in a given item of TD, but also offered the Government an opportunity to purchase a GPR license for that item at a price proposed under CLIN 0007, then the Government would evaluate that item as though the Offeror had proposed to provide the Government a GPR license in that item. In the event an Offeror proposes to deliver solutions with less than such rights as desired by the Government, the Government will evaluate the degree to which the Offerors projected data rights approach affects unimpeded, cost effective repair, maintenance, modernization, the implementation and upgrade of the MMM Payload Sensor throughout their lifecycles, and allow for the open and competitive procurement of the MMM Payload Sensor sustainment requirements and follow-on efforts.

The Government will evaluate the "Background Inventions--Identification and Licensing" (the BIIL List), which identifies all background inventions and indicates for each invention whether the Offeror is willing to sell to the Government a license to practice such invention. If there is no Option pricing or system cost information to be provided in the Background Inventions-Cost/Price Information (BICPI) List, the Offeror shall submit the BICPI List and enter "None" as the body of the List. The BIIL List and BICPI List will be incorporated into the contract at award as Attachment J-11.

3.4 Factor 4 – Past Performance

The Past Performance factor will be rated on an Acceptable /Unacceptable basis. The Government will use information provided by the Offeror, as well as any other information deemed to assess the Offeror's ability to meet the solicitation requirements. This assessment will be based on a demonstrated record of past performance, taking into consideration the recency (defined in section 6.1) and relevancy of the past performance data. The Government may also evaluate the past performance of an Offeror's proposed subcontractors. In the investigation of an Offeror's past performance, the Government reserves the right to contact former customers, Government agencies and other private and public sources of information. In addition, the Government may, in its sole discretion, consider information from sources outside the Offeror's proposal. For example, the Government may consider information based on its own experience with the Offeror and/or may contact the parties for whom the Offeror performed contracts and consider their response when evaluating the Offeror's proposal. The Government may contact some or all of the references provided by the Offeror and may contact other sources of information, including but not limited to: Federal, state, and local Government agencies, and published media and electronic databases (i.e. Department of the Navy's Contractor Performance Assessment Reporting System (CPARS) and the Department of Defense's Past Performance Information Retrieval System (PPIRS), consumer protection organizations, and others who may have useful and relevant information, regardless of whether they have been provided by the Offeror as references. The Government reserves the right to determine the relevancy of such information and to verify statements and representations made in the Offeror's proposal.

In the case of an Offeror without a record of relevant past performance or for whom information on past performance is not available or so sparse that no meaningful past performance rating can be reasonably assigned, the Offeror may not be evaluated favorably or unfavorably on past performance (see FAR 15.305 (a)(2)(iv)). Therefore, the Offeror shall be determined to have unknown past performance. In the context of acceptability/unacceptability, unknown past performance shall be considered acceptable. The evaluation will include information provided by the Offeror demonstrating compliance with the requirements of FAR 52.219-8 and 52.219-9.

3.5 Factor 5 – Total Evaluated Cost/Price (TEC/P)

The Government will evaluate the Offeror's proposed costs and prices by calculating a Total Evaluated Cost/Price (TEC/P) that the Government will use in making the award determination. The Government will only be performing a cost realism analysis on CLINs 0001, 0003, 0101, 0103, 0201, 0203, 0301, 0303, 0401, and 0403. The Government will perform an analysis of the cost realism and completeness of the cost data, the traceability of the cost to the Offeror's capability data, the proposed allocation of man-hours and labor mix, and the proposed costs' reflection of the Offeror's understanding of the complexity and risk of the requirements. Pertinent cost information, including but not limited to DCAA and/or DCMA recommended rates for such costs as direct labor overhead, G&A, etc., as necessary and appropriate, will be used to arrive at the Government's determination of the probable cost to be incurred in the performance of this contract. If proposed costs are considered to be unrealistic, including unrealistic labor and/or indirect rates, the Offeror's proposed costs will be adjusted upward in accordance with FAR 15.404-1 to reflect more realistic costs and arrive at a Total Evaluated Cost/Price (TEC/P). Cost analysis techniques will be used to evaluate proposals, including comparison to audited indirect cost and labor rates, and other techniques as specified in FAR 15.404-1.

The TEC/P may differ from the proposed cost and will reflect the Government's best estimate of the cost of any contract that is most likely to result from the Offeror's proposal. The TEC/P of the Offeror will be used in the best value evaluation. Cost adjustments are for evaluation purposes only and award will be made at proposed costs and fees of the successful Offeror for CLINs 0001, 0003, 0101, 0103, 0201, 0203, 0301, 0303, 0401, and 0403. Only upward adjustments will be made. Therefore, any inconsistency, whether real or apparent, between promised performance and cost should be explained in the supporting cost data volume. Should the Government, in the exercise of its judgment, determine that a cost proposal submitted as a result of this solicitation is unrealistically low, the Government may reject the proposal regardless of its technical merit and/or total probable cost. Overhead burden rates (such as overhead, G&A, etc.) which are lower than DCAA recommended rates may be considered unrealistic and be revised by the Government for award evaluation purposes. If an Offeror does not submit cost

realism substantiating data for a cost element, the Government may accept the rates as proposed, but may document increased cost realism risk.

Additionally, Offerors should note that the fundamental purpose of a cost realism analysis is to guard the agency against unsupported claims of cost savings by determining whether the costs as proposed represent what the Government realistically expects to pay for the proposed effort. Therefore, the Government will closely evaluate whether and to what degree each Offeror's proposed costs are unrealistically low. In a competitive environment, the Government will not evaluate whether proposed cost elements are unrealistically high. It is the Offeror's sole responsibility to demonstrate that its proposed costs are realistic because they are substantiated by actual incurred data or are fixed/capped by contract.

Any inconsistencies between proposed technical performance and cost, whether real or apparent, should be explained in the supporting cost data section. The burden of proof for cost credibility rests with the Offeror. Offerors are cautioned that to the extent proposed costs appear unrealistic; the Government may infer either a lack of understanding of the requirements, increased performance or cost risk, or lack of credibility on the part of the Offeror. In addition, proposals which are unrealistic in terms of technical or schedule commitments or unrealistically low in cost may be deemed reflective of an inherent lack of technical competence or indicative of a failure to comprehend the complexity and risks of the proposed work. In sum, the burden of proof for cost credibility and realism rests with the Offeror; therefore, Offerors are cautioned to ensure that its proposed costs are easily traceable to their proposed technical approach and are supported by cost realism substantiating data.

Considering the small potential cost impact of variations in minor subcontractor costs, the Government will not conduct a detailed cost realism analysis of any Offeror's minor subcontractor costs. Nevertheless, the Government will review these proposed costs and hours for consistency with the rest of the Offeror's proposal and may adjust minor subcontractor cost or hours for lack of consistency with the rest of the Offeror's proposal. Similarly, the Government will not conduct a detailed cost realism analysis of any Firm-Fixed Price or T&M subcontractors, as these subcontracting arrangements do not present a meaningful cost risk in performance. The Government will evaluate any proposed Fixed-Price Incentive Fee subcontractors at ceiling without conducting a detailed cost realism of those subcontract costs.

The Government reserves the right to consider reasonable and realistic substantiating data from any other sources. Such sources include, but are not limited to: historical performance data from NAVSEA contracts, information from DCAA, and information from DCMA. If Offeror's are aware of any contradictory cost data, particularly recent audits or performance data that indicate higher costs than its proposed costs, Offeror's should explain why the substantiating data they provide is a more realistic estimate of the costs they would incur during performance than the contradictory data. Nevertheless, the Government is under no obligation to identify and use any cost realism data other than that provided by the Offeror, including any it already possesses. Offeror's are cautioned that the burden of cost credibility rests with them.

The Government will evaluate the Offeror's cost/price proposal for completeness and reasonableness and to ensure that the Offeror understands the scope of the work. For CLINs 0002, 0102, 0202, 0302, 0402, and 0501 the Government will not perform a cost realism analysis and the Government will not conduct price realism on any CLINs. An Offeror's technical proposal may infer a lack of understanding of the requirements, increased risk of performance, or lack of credibility on the part of the Offeror. This may lead the Government to determine the Offeror's technical proposal is unawardable.

The Government will determine a Total Evaluated Cost/Price to the Government for each offer by adding together the following values:

TOTAL EVALUATED COST/PRICE ELEMENTS		Evaluated
(Note 1) Total Evaluated Cost for CPFF LOE CLIN 0001	+	
(Note 2) Total Government estimated Cost for ODC CLIN 0002	+	\$500,000
(Note 3) Total Evaluated Cost for CPIF Production CLIN 0003	+	
(Note 4) Total Evaluated Price for Data Rights/License Fees, CLIN 0005, is the total price of the Offeror's proposed Option CLIN 0005 in Section B.	+	
(Note 1) Total Evaluated Cost for CPFF LOE CLIN 0101	+	
(Note 2) Total Government estimated Cost for ODC CLIN 0102	+	\$162,000
(Note 3) Total Evaluated Cost for CPIF Production CLIN 0103	+	
(Note 1) Total Evaluated Cost for CPFF LOE CLIN 0201	+	
(Note 2) Total Government estimated Cost for ODC CLIN 0202	+	\$166,000
(Note 3) Total Evaluated Cost for CPIF Production CLIN 0203	+	
(Note 1) Total Evaluated Cost for CPFF LOE CLIN 0301	+	
(Note 2) Total Government estimated Cost for ODC CLIN 0302	+	\$170,000
(Note 3) Total Evaluated Cost for CPIF Production CLIN 0303	+	
(Note 1) Total Evaluated Cost for CPFF LOE CLIN 0401	+	
(Note 2) Total Government estimated Cost for ODC CLIN 0402	+	\$174,000
(Note 3) Total Evaluated Cost for CPIF Production CLIN 0403	+	
(Note 5) Total Evaluated Price for FFP PIO / Spares under CLIN 0501	+	
TOTAL EVALUATED COST/PRICE TO THE GOVERNMENT	=	

The Government will not conduct either price realism or cost realism on CLINs 0002, 0005, 0102, 0202, 0302, 0402, and 0501.

For FFP CLIN where such CLIN is included in the calculation of the TEC/P, the Government will use the proposed price for FFP CLINs (Government provided Maximum Ordering Cost plus the Offeror proposed profit (no indirects should be applied ie.FCCOM)).

(1) Total Evaluated Cost for CPFF LOE CLINs 0001, 0101, 0201, 0301, and 0401. The total evaluated cost to the Government for CPFF LOE CLIN s 0001, 0101, 0201, 0301, and 0401 is determined by adding together the evaluated cost plus the total proposed cost for CLIN s 0001, 0101, 0201, 0301, and 0401. For CLIN s 0001, 0101, 0201, 0301, and 0401, a detailed review of each Offeror's pricing proposal will be made to assess and evaluate the realism of the Offeror's proposed costs for each line item. The Government will evaluate the cost realism of these estimated costs by considering the Offeror's proposed labor hours (which shall match the hours the Government provided), labor rates, burden rates and other costs in light of data available to the Contracting Officer, including the relationship of such proposed labor hours and costs to the effort described in the Offeror's technical proposal, and Government estimates for: (1) direct labor hours, (2) direct labor costs, (3) overhead and G&A costs, and (4) any other costs which are likely to be incurred by the Offeror in performance of the requirements of the solicitation. No downward adjustment will be made to an Offeror's cost or price during the cost realism analysis. Based on such

analysis, an adjusted cost for the Offeror will be calculated to reflect the Government's estimate of the Offeror's probable costs. The burden of proof for cost credibility rests with the Offeror.

(2) Total Government Estimated Cost for ODC CLINs 0002, 0102, 0202, 0302, and 0402. The evaluated cost for CLINs 0002, 0102, 0202, 0302, and 0402 ODC will be determined by adding the provided Government cost estimate. The Government will not conduct any cost realism or price realism analysis of this CLIN.

(3) Total Evaluated CPIF Production CLINs 0003, 0103, 0203, 0303, and 0403. The evaluated value of the CPIF Production CLINs 0003, 0103, 0203, 0303, and 0403 will be determined by adding the Government evaluated cost for max quantity 6 plus the proposed target fee for CLINs 0003, 0103, 0203, 0303, and 0403. For CLINs 0003, 0103, 0203, 0303, and 0403, a detailed review of each Offeror's pricing proposal will be made to assess and evaluate the realism of the Offeror's proposed costs for each line item and quantity. The Government will evaluate the cost realism of these estimated costs by considering the Offeror's proposed labor hours, labor rates, material, burden rates and other costs in light of data available to the Contracting Officer, including the relationship of such proposed labor hours, material and costs to the effort described in the Offeror's technical proposal, and Government estimates for: (1) direct labor hours, (2) direct labor costs, (3) BOM, (4) overhead and G&A costs, and (5) any other costs which are likely to be incurred by the Offeror in performance of the requirements of the solicitation. No downward adjustment will be made to an Offeror's cost or price during the cost realism analysis. Based on such analysis, an adjusted cost for the Offeror will be calculated to reflect the Government's estimate of the Offeror's probable costs. The burden of proof for cost credibility rests with the Offeror.

(4) Total Evaluated Price for Data Rights/License Fees, CLIN 0005, is the total price of the Offeror's proposed Option CLIN 0005 in Section B. The Government will include the CLIN 0005 (Technical Data / Upgrade License Rights Buy-Out Option) price in the Total Evaluated Price. (Note: The Data Rights Buy-Out CLIN price includes the sum of all proposed Attachments 6B, 7B, 8B, and 9B.

(5) Total Evaluated Price for FFP PIO / Spares under CLIN 0501. The evaluated price for CLIN 0501 will be determined by adding the Government provided maximum ordering cost plus the proposed profit for the CLIN (no indirects should be applied to the Government provided maximum ordering cost ie.FCCOM). The Government will not conduct any further cost or price realism analysis for this CLIN.

Offerors are advised that an offer that includes unbalanced pricing between the basic requirement and any options or between any line items may be rejected. Unbalanced pricing exists when, despite an acceptable total evaluated cost, the cost of one or more contract line items is overstated or understated. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

The burden of proof for cost credibility rests with the Offeror. The quality of the cost/price evaluation will be a reflection of the quality of the Offeror's Volume II submission supporting cost data. Poor or inadequate supporting cost data may negatively impact the Government's cost/price evaluation of the Offeror.

The Government may limit the breadth of the cost realism analyses to those Offeror proposals that represent the most likely candidates for award based on information derived from the technical evaluation and relative cost comparison. If an Offeror has a lower technical rating than competing Offerors and a higher proposed cost, the Government may elect not to perform a cost realism analysis on said Offeror's proposed cost as the cost realism analysis will only result in upward adjustments to the proposed cost thereby further removing the Offeror's proposal from the most likely candidates for award.

The Government will also evaluate the Offeror's price proposal for completeness and reasonableness. The Government will review the Offeror's proposal to verify compliance with Section L and completeness, adequacy and accuracy of all submitted documents. The Government may reject a proposal if determined that it is non-

compliant, incomplete, inadequate or inaccurate. The Government will verify adequate price competition exists in accordance with the procedures identified in FAR 15.403-1(c)(1). Fixed price and T&M subcontractors will not be evaluated for cost realism purposes.

If there are any discrepancies between the Section JS-3 (Cost Element Table) Attachment and Section B, the Offerors' total evaluated cost will be either Section JS-3 (Cost Element Table), as adjusted for cost realism purposes, or the unadjusted Electronic Section B prices, whichever is higher.

4.0 BASIS FOR AWARD

The Government intends to award a single contract to the responsive and responsible Offeror whose proposal represents the best value to the Government based on consideration of the evaluation factors outlined in this solicitation. The best value to the Government is that proposal that meets the requirements of this solicitation and that is determined to be the most advantageous to the Government, considering all of the evaluation factors. The best value proposal will be selected using a tradeoff process, as defined in FAR 15.101-1, which permits tradeoffs among cost and non-cost factors. Accordingly, the Government may accept other than the lowest cost proposal where the perceived benefits of the higher cost proposal merit the additional cost. Conversely, the Government may select a lower-cost, lower rated proposal if the Government determines that the premium associated with the higher-rated proposal is not justified. The Government may cease evaluation of any proposals that it determines are nonresponsive, unacceptable, or otherwise ineligible for award. In making its best value determination, the Government will consider the relative importance of the factors.

Offerors are notified that, in accordance with FAR clause 52.215-1, the Government intends to make an award on the basis of initial proposals without conducting discussions.

5.0 ADJECTIVAL RATINGS AND DEFINITIONS

5.1 Adjectival Ratings

The Government will perform an evaluation that focuses on the strengths and weaknesses of the Offeror's proposal, resulting in the assignment of an adjectival rating for Factors 1, 2, and 3 as described in the table below. It is recognized that a proposal need not have all aspects of the rating description to be rated accordingly. Cost will not be assigned an adjectival rating.

Combined Technical/Risk Ratings		
Color	Rating	Description
Blue	Outstanding	Proposal demonstrates an exceptional approach and understanding of the requirements and contains multiple strengths and/or at least one significant strength, and risk of unsuccessful performance is low.
Purple	Good	Proposal indicates a thorough approach and understanding of the requirements and contains at least one strength or significant strength, and risk of unsuccessful performance is low to moderate.
Green	Acceptable	Proposal meets requirements and indicates an adequate approach and understanding of the requirements, and risk of unsuccessful performance is no worse than moderate.
Yellow	Marginal	Proposal has not demonstrated an adequate approach and understanding of the requirements, and/or risk of unsuccessful performance is high.
Red	Unacceptable	Proposal does not meet requirements of the solicitation and, thus, contains one or more deficiencies and is unawardable, and/or risk of performance is unacceptably high.

Adjectival ratings above will be assigned to Factors 1-3 based upon the strengths, weaknesses, and deficiencies identified by the Government. These strengths and weaknesses are defined as follows:

Significant Strength is an aspect of an Offeror's proposal with appreciable merit or will exceed specified performance or capability requirements to the considerable advantage of the Government during contract performance.

Strength is an aspect of an Offeror's proposal with merit or will exceed specified performance or capability requirements to the advantage of the Government during contract performance.

Weakness means a flaw in the proposal that increases the risk of unsuccessful contract performance. See FAR 15.001.

Significant Weakness in the proposal is a flaw that appreciably increases the risk of unsuccessful contract performance. See FAR 15.001.

Deficiency is a material failure of a proposal to meet a Government requirement or a combination of significant weaknesses in a proposal that increases the risk of unsuccessful contract performance to an unacceptable level. See FAR 15.001.

Risk assessment will examine the degree to which an Offeror's proposed approach to achieving the Factor may involve risk of disruption of schedule, increased cost or degradation of performance, the need for increased Government oversight, and the likelihood of unsuccessful contract performance.

6.0 ACCEPTABILITY RATING PROCESS

The Government will use the following Acceptable/Unacceptable ratings/definitions for Factors 4.

6.1 FACTOR 4: ACCEPTABILITY RATINGS

In assessing the Past Performance factor, the Government will apply the following definitions of recency, relevancy, acceptable, unacceptable:

Recency, as it pertains to past performance information, is a measure of the elapsed time since the past performance reference occurred. Recency is generally expressed as a time period during which past performance references are considered relevant. This time period for this procurement is within the last five (5) years.

Relevancy, as it pertains to past performance information, is a measure of the extent of similarity between the service/support effort, complexity, dollar value, contract type, and subcontract/ teaming or other comparable attributes of past performance examples and the solicitation requirements; and a measure of the likelihood the past performance is an indicator of future performance.

Acceptable – Based on the Offeror's performance record, the Government has a reasonable expectation that the Offeror will successfully perform the required effort, or the Offeror's performance record is unknown.

Unacceptable – Based on the Offeror's performance record, the Government does not have a reasonable expectation that the Offeror will be able to successfully perform the required effort.

CLAUSES INCORPORATED BY FULL TEXT

M-215-H004 BASIS OF AWARD (NAVSEA) (DEC 2018)

ALL UNITS OF ALL ITEMS WILL BE AWARDED TO ONE OFFEROR. OFFERS, THEREFORE, MUST BE ON THE BASIS OF FURNISHING ALL UNITS OF ALL ITEMS TO THE SPECIFICATION(S) DETAILED IN THIS SOLICITATION.

(End of provision)

M-247-H001 F.O.B. EVALUATION CRITERIA (NAVSEA) (DEC 2018)

OFFERS SUBMITTED ON AN F.O.B. BASIS OTHER THAN THAT SPECIFIED IN SECTION F SHALL BE REJECTED AS UNACCEPTABLE.

(End of provision)